

## Lecture 01

### Concept of Ideology and Its Significance

#### Micro Learning Outcomes

Students will be able to:

1. Define ideology and recall its basic characteristics and key elements.
2. Understand how religion, culture, politics, and history function as core components in shaping an ideology.
3. Illustrate how ideology contributes to nation-building by applying theoretical concepts to historical or contemporary examples.
4. Analyze the ideological foundations of Pakistan in light of historical developments and political movements in the subcontinent.

#### 1.1 Definition and Meaning of Ideology

Understanding ideology is essential to understanding Pakistan as a nation. The word 'ideology' might sound complicated, but it simply refers to a set of ideas and beliefs that guide how people think about their society, their identity, and their future. Every nation has some form of ideology that helps its people understand who they are and what they stand for. For Pakistan, ideology has been particularly important because the country itself was created based on a specific set of ideas about Muslim identity and nationhood. In this section, we will explore what ideology means in general and then examine how leading scholars and thinkers have defined it specifically in the context of Pakistan.

##### 1.1.1 What is Ideology in General?

At its most basic level, "ideology is a system of ideas that shapes how people view the world." Think of it as a pair of glasses through which people see reality. These ideas influence how groups make decisions and organize societies. An ideology provides a worldview, a sense of identity, gives direction, and creates unity by bringing people together around shared beliefs (Cohen). National ideology helps citizens feel connected to their country. It explains why the nation exists and where it should be heading. Without a clear ideology, a nation may struggle to maintain unity and purpose.

### 1.1.2 Ideology of Pakistan

Pakistan's ideology is unique because the country was created as a homeland for Muslims of the Indian subcontinent. The ideology came first, and the nation was created to fulfill that vision. This makes Pakistan's case particularly interesting. The concept of 'Pakistanis' combines several elements: religious doctrine, geographical identity, historical narrative, language, and social customs. Together, these elements create a sense of responsibility and belonging among citizens. This ideology provides a national story explaining origins and purpose, defines who belongs to the nation, and offers political goals for leaders. (Cohen)

### 1.1.3 How Leading Scholars Define Pakistan's Ideology

#### Stephen P. Cohen's Perspective

Stephen P. Cohen examines the fundamental question of why Pakistan exists. He frames his analysis around the 'idea' behind the Pakistani state that justified creating a separate homeland for Indian Muslims (Cohen). Cohen treats the national idea as central to explaining Pakistan's development, internal tensions, and foreign relations. His work suggests ideology is a living force influencing real political decisions. The 'idea of Pakistan' continues to be debated and contested, showing that ideology remains powerful in shaping the nation's trajectory.

#### Javed Iqbal's Understanding

Javed Iqbal connected his father's philosophical vision to Pakistan's reality. He emphasized that ideology is rooted in 'Islamic principles', recognizing Muslims as a separate nation with a distinct culture and civilization (Iqbal, 1971). Ideology is deeply spiritual and cultural, encompassing how Muslims should organize society and govern themselves. This makes ideology both a unifying force and a guide for state function.

#### Sharif-ul-Mujahid's Contribution

Mujahid emphasized the 'Two-Nation Theory' as Pakistan's ideological foundation. This theory holds that Muslims and Hindus are distinct nations with different worldviews and values (Mujahid, 2000). Ideology means "recognizing this fundamental difference and understanding that Pakistan was created for Muslims to live by their values". Religion guides political, legal, and social systems, explaining why religious identity remains central to national identity.

### 1.1.4 Ideology in Practice

In Pakistan, ideology appears in the education system, textbook narratives, and political discourse. Islam serves as the primary marker that distinguishes Pakistan from its neighbors and unites its diverse internal populations. (Cohen) Political leaders regularly invoke ideology to justify policies and mobilize public support. Ideology, therefore, remains central to understanding Pakistan's identity and development.

## 1.2 Components of Ideology (Religion, Culture, Politics, History)

Ideology is not just one simple idea. It is made up of different parts that fit together like pieces of a puzzle. The four main components of Pakistan's ideology are Religion, Culture, Politics, and History. These components are closely connected. “Religion” shaped moral values and gave Muslims a reason to demand their own country. “Culture” provided shared practices, languages, and symbols that made people feel they belonged to one nation. The Politics turned these ideas into real actions, like creating laws and government institutions. “History” gave stories and examples from the past that explained why Pakistan was necessary and what it should become. By understanding these components, we can better understand what Pakistan stands for and why it was created.

### 1.2.1 Religion as the Foundation

#### Islam as the Core Justification

Religion, specifically Islam, is the most important component of Pakistan's ideology. Pakistan was created to provide a separate homeland where Muslims could live according to their religious beliefs and values. Islam became the philosophical and moral heart of the Pakistan movement. Muslims in British India believed they were a distinct community with their own obligations, customs, and legal traditions. They feared that in a Hindu-majority India, their religious identity could not be protected (Cohen, 1971).

#### Religion as a Unifying Force

Islam also united Muslims from different regions, languages, and ethnic groups. Before partition, Muslims spoke Urdu, Punjabi, Bengali, Sindhi, Pashto, and others. Islam gave them a common identity that crossed these differences and created solidarity during the Pakistan movement (Mujahid, 2000).

## **Islam in Governance and Law**

Religion influenced governance. Leaders debated whether Pakistan should be a modern democracy or an Islamic state. The 1949 Objectives Resolution balanced these ideas by declaring that sovereignty belongs to Allah, exercised through elected representatives .

### **1.2.2 Culture as Shared Identity**

#### **Cultural Symbols and Practices**

Inherited culture came from centuries of Islamic civilization in South Asia, including Mughal traditions, Sufi poetry, and regional customs. Invented culture included new national symbols to unite people, such as the flag, national anthem, and Urdu as a national language. Festivals, art, dress, and social rituals also strengthened a sense of belonging. These practices made people feel connected as one nation while respecting their historical roots (Cohen, 1971).

#### **Language and Literature**

Language played a key role in Pakistan's cultural identity. Urdu was chosen as the national language because of its association with Muslim culture and literature. Poets like Allama Iqbal wrote in Urdu and Persian, inspiring the Pakistan movement. His poetry highlighted Islamic civilization's glory and encouraged Muslims toward political and cultural revival. Javed Iqbal notes that "this vision shaped Pakistan's ideology and emphasized intellectual and cultural renewal alongside political independence" (Iqbal, 1971).

#### **Cultural Unity and Diversity**

Pakistan's culture includes diversity among Punjabis, Sindhis, Pashtuns, and Baloch, each with unique languages, customs, and histories. The challenge was to build a common national culture while respecting regional differences. Shared symbols like Islamic history, Muslim heroes, and festivals helped create unity. However, different groups sometimes debated which practices best represented Pakistan. Balancing cultural unity and diversity remains central to understanding the country's ideological and social identity (Mujahid, 2000).

### **1.2.3 Politics as Practical Action**

#### **The Two-Nation Theory**

The 'Two-Nation Theory' stated that Muslims and Hindus were not just religious communities but distinct nations. Muslim leaders like Sir Syed Ahmad Khan, Allama Iqbal, and Muhammad

Ali Jinnah argued that Muslims would remain a minority in united India and could not protect their political, economic, and cultural rights. This theory became the key political justification for demanding Pakistan, linking identity, security, and sovereignty into a practical framework for a separate homeland (Mehmood, 1994).

### **Muslim Political Awakening in British India**

After 1857, Muslims lost political power and felt weak in education and government jobs. Politics have become essential for survival and progress. Sir Syed Ahmad Khan emphasized modern education and political awareness. The All-India Muslim League was formed in 1906, and separate electorates in 1909 recognized Muslims as a political community. Political awakening gradually developed Muslim identity step by step, ensuring representation, protection of interests, and preparation for the Pakistan movement (Mujahid, 2000).

### **Constitutional Struggle and Demands for Safeguards**

Before partition, Muslims engaged in constitutional debates to protect their future. The Nehru Report (1928) rejected separate electorates, causing concern. Jinnah presented his "Fourteen Points", demanding provincial autonomy and protection of Muslim political rights. Javed Iqbal explains that Muslims realized their rights would not be secure in a Hindu-majority system. Politics became the practical way to ensure representation, self-government, and safety, leading ultimately to the demand for Pakistan (Iqbal, 1971).

## **1.2.4 History as Legitimizing Narrative**

### **Historical Grievances and Memories**

History provides the stories and events that explain why Pakistan was necessary. Historical memory focuses on struggles of Muslims in British India. Events like the decline of the Mughal Empire, the 1857 War of Independence, the Khilafat Movement, and the Pakistan Movement are presented as a continuous story of Muslim resistance and triumph. These narratives give legitimacy to Pakistan's existence. (Mujahid, 2000)

### **Founding Fathers and Heroes**

History creates heroes and role models for the nation. The most important figures are Allama Iqbal, who provided the philosophical vision, and Quaid-e-Azam Muhammad Ali Jinnah, who led the political struggle. These founding fathers are presented as visionary leaders who

understood Muslim needs. Their speeches and actions are studied in schools and quoted in debates to define what Pakistan should be. (Cohen)

### **History in Education and National Identity**

Historical narratives are taught in schools, celebrated through holidays, and reinforced through monuments. Pakistan's education system emphasizes the "Two-Nation Theory", the Pakistan Movement, and the sacrifices made during Partition. This helps create national identity and patriotism among citizens. However, historians point out that historical narratives can be selective. They may emphasize certain events while ignoring others. (Mehmood, 1994)

## **1.5 How the Four Components Work Together**

The four components do not work separately. They are deeply interconnected and support each other. "Religion" provided the moral foundation and main justification. "Culture" supplied shared identity through customs and symbols. "History provided legitimizing narratives and heroes. Together they form a complete ideology that guides the nation. When they work in harmony, they create unity. When they conflict, they lead to division (Iqbal, 1971). Pakistan's ideology is not static. It faces challenges and continues to be debated and reinterpreted (Cohen).

## **1.6 Importance of Ideology in Nation-Building**

When a new country is born, it faces a big challenge: how to bring different people together and make them feel like one nation. This is where ideology becomes very important. Ideology helps in nation-building in three main ways: it creates unity among people, it gives the nation a clear purpose, and it provides a framework for building state institutions.

### **1.6.1 Creating Unity Among People**

The first important job of ideology is to unite people. When Pakistan was created in 1947, it brought together people from different regions and cultures. The Two-Nation Theory gave people a common story to believe in. This ideological unity helped bridge gaps between different regional identities. By focusing on a shared Muslim identity, ideology created a sense of oneness stronger than regional differences. (Mujahid, 2000) This idea became the foundation of Pakistan's identity.

### **1.6.2 Giving the Nation a Clear Purpose**

The second important role of ideology is to give a nation a sense of purpose. A country needs to know what it is trying to achieve. Ideology provides this direction. In Pakistan, the ideological foundation helped define what the state should do. The purpose was to provide a place where Islamic values of justice, equality, and brotherhood could be practiced. (Iqbal, 1971) This gave the nation a moral mission. It influenced everything from education to government communication. A clear ideological goal helps mobilize citizens to work together.

### **1.6.3 Providing a Framework for State Institutions**

The third key role of ideology is to provide a framework for building state institutions. Institutions need guiding principles to function. In Pakistan, ideological principles were built into early political and legal structures. (Mehmood, 1994) The Objectives Resolution of 1949 used ideological language to set rules for the future constitution. It declared that sovereignty belongs to Allah and the state would follow democracy and social justice as explained by Islam. This provided a blueprint for development and gave leaders values to guide decisions.

In short, ideology acts like glue that holds a diverse nation together, a compass that gives direction, and a foundation for state institutions. For Pakistan, ideology was essential for surviving the early years and creating a unique national identity.

## **1.7 Ideological Foundations of Pakistan**

The ideology of Pakistan is the set of beliefs that led to the creation of a separate country for the Muslims of the Subcontinent. It acts as the soul of the nation. To understand this foundation, we can look at four main pillars that supported the demand for a new state.

### **1.7.1 Islamic Way of Life**

The most important foundation of Pakistan is "Islam". For the Muslims of India, Islam was not just personal worship; it was a complete way of life. They believed their spiritual, social, and moral values were different from those of other communities. They wanted a country where they could practice these values in every part of their lives. (Iqbal, 1971) Quaid-e-Azam saw Islam as a source of social justice. He wanted to create a state that protected the poor and treated everyone with equality. This foundation gave the Pakistan movement a moral purpose. (Ahmed, 1997)

### **1.7.2 Two Distinct Nations (Two-Nation Theory)**

The Two-Nation Theory is the idea that Muslims and Hindus were not just two religious groups, but two separate nations. They had different histories, heroes, and ways of living. These differences were so deep that they could never be merged into one Indian nationality. This theory was the political heart of the movement. It convinced Muslims they had a natural right to their own separate country. Without this belief, Muslims would have remained a permanent minority in a united India, always ruled by the majority. (Mehmood, 1994)

### **1.7.3 Cultural and Linguistic Identity**

Over hundreds of years, the Muslims of South Asia developed a unique culture. The Urdu language was a huge part of it. Muslims worried about their culture being erased. They feared that in a united India; their traditions would be replaced by the majority culture. (Aziz, 1967) Muslim identity brought people together from different provinces. Their shared cultural and religious identity gave them a common voice. This foundation was about the survival of a unique way of life. They needed separate land to keep their traditions alive for their children. (Jalal, 2014)

### **1.7.4 Economic and Political Security**

The demand for Pakistan was also about being safe and prosperous. Muslims in British India often found it hard to get good jobs and opportunities compared to other groups. They feared that in a united India; they would always be poor and powerless. Some scholars say the Muslim League wanted political security. This means they wanted to oversee their own destiny. Only in a separate state could they make their own laws and manage their own money without fear of being dominated. (Cohen) By having their own country, Muslims could build factories, schools, and hospitals, ensuring their people could grow in peace.

### **Concluding Remarks**

These four foundations, the Islamic Way of Life, the Two-Nation Theory, the protection of Culture and Language, and the need for Economic and Political Security, joined together to create the Ideology of Pakistan. They provided the vision and the strength for the people to struggle for an independent homeland where they could live according to their own beliefs. This lecture covered the concept of ideology, including its meaning and definition, as well as its four components: religion, culture, politics, and history. The discussion then focused on the importance of ideology in nation-building, followed by an explanation of the ideological foundations of Pakistan.



## Lecture 2

# Decline of Muslim Rule in the Subcontinent and War of Independence 1857

## Micro Learning Outcomes

Students will be able to:

- Identify the major causes behind the decline of Muslim rule in India.
- Understand how internal weaknesses of the Mughal Empire contributed to the loss of Muslim political power.
- Analyze the social, religious, economic and political challenges faced by Muslims after 1857 and their impact on Muslim identity.

## 2.1 Reasons of Decline of Muslim Rule in India

The decline of Muslim rule in India is a multifaceted historical process that significantly shaped the geopolitical landscape of the Subcontinent, ultimately paving the way for British colonial dominance and the eventual partition of India. This complex period is crucial for understanding the ideological foundations that led to the creation of Pakistan. The collapse of the Mughal Empire, internal weaknesses, and the rise of European powers collectively contributed to the erosion of Muslim political hegemony (Cohen, 2004).

### 2.1.1 Internal Decay of the Mughal Empire

The Mughal Empire, which had for centuries represented the zenith of Muslim power in India, began its irreversible decline after the death of Emperor Aurangzeb in 1707. While Aurangzeb's long reign (1658–1707) saw the empire reach its greatest territorial extent, it also sowed the seeds of its disintegration. His policies, often perceived as religiously intolerant and fiscally demanding, alienated significant sections of the population, particularly the Marathas and Sikhs, leading to widespread rebellions and protracted warfare. These military campaigns, though initially successful in expanding the empire, severely strained its financial and administrative resources (Aziz, 2002).

Following Aurangzeb's death, a succession of weak and ineffective emperors ascended the throne, leading to a rapid fragmentation of central authority. The Mughal court became a hotbed of intrigue and factionalism, with powerful nobles and regional governors (*Subahdars*) increasingly asserting their independence. This internal instability was exacerbated by the *Jagirdari* crisis, where the demand for land assignments (*jagirs*) outstripped their availability, leading to corruption, reduced loyalty, and a decline in administrative efficiency. Military discipline also deteriorated as emperors relied on mercenary armies whose loyalty was often fleeting. Key provinces like Bengal, Awadh, and Hyderabad gradually became *de facto* independent states, acknowledging Mughal suzerainty only in name. This decentralization of power effectively dismantled the unified administrative structure that had been a hallmark of Mughal rule (Ziring, 1997).

### **2.1.2 Rise of Regional Powers and External Invasions**

As the Mughal central authority weakened, various regional powers emerged, challenging the remnants of Muslim dominance. The Marathas, under dynamic leaders like *Shivaji* and later the Peshwas, expanded their influence across central and western India, frequently raiding Mughal territories and establishing a formidable confederacy. Their continuous military pressure further depleted Mughal resources and prestige. Similarly, the Sikhs in Punjab, the Jats around Delhi, and the Rajputs in Rajasthan asserted their autonomy, contributing to the fragmentation of political power (Saeed, 2000).

Compounding these internal challenges were devastating external invasions. The most significant of these was the invasion by Nader Shah of Persia in 1739, which culminated in the sack of Delhi. This invasion not only plundered immense wealth from the Mughal treasury but also shattered the myth of Mughal invincibility, exposing the empire's vulnerability to external aggression. It also led to the loss of significant territories in the northwest. Following Nader Shah, Ahmad Shah Abdali, the Afghan ruler, launched a series of invasions, further weakening the Mughal state and contributing to the chaos in northern India. These invasions not only destroyed existing infrastructure and economies but also prevented any coherent revival of centralized Muslim power (Mehmood, 1994).

### **2.1.3 European Colonial Expansion and Economic Disruption**

Simultaneously with the internal decay and regional challenges, European trading companies, particularly the British East India Company, began to transition from mere commercial

enterprises to formidable political and military powers. Initially seeking trade concessions, these companies exploited the political fragmentation of India. They forged alliances with regional rulers, often playing them against each other, and gradually built their own armies (Jalal, 1985).

Key battles marked the ascendancy of British power. The Battle of Plassey in 1757, where the British East India Company, led by Robert Clive, decisively defeated the Nawab of Bengal, Siraj-ud-Daulah, marked a turning point. This victory gave the British control over Bengal, a rich and populous province, providing them with significant revenue and resources. Subsequent victories, such as the Battle of Buxar in 1764, further solidified British dominance, granting them the right to collect revenue (*Diwani*) in Bengal, Bihar, and Orissa. The Anglo-Mysore Wars and the Anglo-Maratha Wars progressively eliminated other powerful regional contenders, effectively establishing British paramountcy across the Subcontinent (Khan, 2019).

The British colonial economic policies further disrupted the traditional Indian economy, which had supported the Mughal aristocracy and Muslim artisans. The imposition of new land revenue systems, the decline of indigenous industries due to competition from British manufactured goods, and the overall exploitation of resources led to widespread impoverishment and disempowerment, particularly affecting the Muslim elite who had historically benefited from state patronage and land grants (Mujahid, 2001).

## **2.2 War of Independence 1857**

The year 1857 marks a massive turning point in the history of the Indian Subcontinent. The students of Pakistan's history trying to understand the "why" behind the creation of Pakistan, this event is the essential starting point. Often called the "War of Independence" by South Asian historians or the "Sepoy Mutiny" by British historians, the events of 1857 were a violent and dramatic end to one era and the beginning of another (Cohen, 2004). To understand the decline of Muslim political power and the eventual struggle for Pakistan, we must first understand the watershed event of 1857.

### **2.2.1 The Immediate Cause: Why Did the Soldiers Revolt?**

The rebellion did not begin as a coordinated struggle for freedom but as a mutiny in the army of the British East India Company. The famous and immediate cause was the introduction of the new Enfield rifle. The cartridges for this rifle were greased with animal fat, and soldiers had to bite the end off to load the weapon.

A rumor spread like wildfire among the sepoys (Indian soldiers) that the grease was made from a mixture of cow and pig fat. For Hindu soldiers, the cow was sacred; for Muslim soldiers, the pig was unclean. This was a direct attack on the religious beliefs of both communities. The British had, for years, tried to respect the religious practices of its soldiers, but this one act of insensitivity convinced many sepoys that the British were trying to destroy their faith and convert them to Christianity (Cohen, 2004). This fear was the spark that ignited the tinderbox of accumulated grievances.

### **2.2.2 The Longterm Causes**

While the greased cartridges were the spark, the fire was fueled by decades of political, economic, social, and religious discontent.

#### **Political Causes**

The British East India Company expanded its control through war and diplomacy for a century, but the policies of Governor-General Lord Dalhousie in the 1850s proved particularly inflammatory. The Doctrine of Lapse allowed the British to annex princely states where rulers died without natural male heirs, leading to the seizure of Satara, Jhansi, and Nagpur. Indian rulers viewed this as a betrayal of established succession customs. In 1856, the British annexed the wealthy kingdom of Awadh (Oudh) on charges of misgovernment, directly alienating the many sepoys who originated from this region and remained loyal to its Nawab. Simultaneously, the British dismantled the traditional power structures of the Mughal court and Maratha Empire, creating a class of displaced princes and nobles eager to reclaim their lost authority.

#### **Economic Causes**

British colonial exploitation systematically drained Indian wealth through heavy taxation and discriminatory trade policies. The Permanent Settlement and rigid revenue demands devastated agricultural communities, while the destruction of indigenous industries, particularly textiles, deprived millions of artisans of their livelihoods. The annexation of prosperous states like Awadh disrupted regional economies and threatened the economic security of military families. For sepoys, British policies regarding service conditions and pensions created direct financial insecurities, making rebellion an economically rational choice for many participants.

## **Social Causes**

Growing fear of westernization dominated Indian society as the British imposed alien cultural values through administrative and educational reforms. Legislation banning sati and permitting widow remarriage, while progressive, was perceived as unwarranted interference in sacred traditions. The promotion of English education and Western legal concepts alienated traditional elites, who felt their cultural identity was under systematic assault. These reforms undermined the authority of community leaders and created defensive reactions among those determined to preserve their social hierarchies and family structures.

## **Religious Causes**

A pervasive fear existed that the British aimed to Christianize India, fueled by increasing missionary activity and government support for Christian education. As historian Ayesha Jalal notes, Muslim leaders invoked jihad against British rule, viewing it as a threat to Islam. This religious dimension transformed political anger into sacred cause. Crucially, the shared perception of religious endangerment created unprecedented unity between Hindus and Muslims, who traditionally experienced tensions but now found common cause against a regime hostile to both faiths, providing a unifying ideology that sustained coordinated resistance.

### **2.2.3 The Course of the War**

The mutiny began on May 10, 1857, in Meerut. Sepoys who had been imprisoned for refusing to use the new cartridges were freed by their comrades. The rebels then marched to Delhi, the symbolic heart of India.

In Delhi, they turned to the ageing Mughal Emperor, Bahadur Shah Zafar, and declared him their leader. This was a powerful symbolic act, as it revived the notion of a Mughal Empire fighting to expel the British. The rebellion spread rapidly across northern and central India.

- In Kanpur, the leader Nana Sahib led the rebel forces.
- In Jhansi, the legendary Rani Lakshmibai, whose state had been annexed by the British, became a military commander and a symbol of resistance.
- In Awadh, Begum Hazrat Mahal took the reins of the rebellion.

For a brief period, Hindus and Muslims, princes and peasants, united against a common enemy. This unity was remarkable. As one historian notes, the revolt symbolized collective identity, "cutting across caste, class, and communal divisions". It was a moment when an "idea of India" based on shared patriotism seemed possible (Cathie Carmichael, 2023).

However, this unity was not enough. The British had superior resources, better communication, and crucial support from some Indian princes and groups. For example, the powerful Sikh princes of Punjab and the rulers of Hyderabad, Mysore, and Kashmir remained loyal to the British and provided them with soldiers. The rebellion was brutally suppressed by mid-1858. Delhi was recaptured, Bahadur Shah Zafar was exiled, and the Rani of Jhansi was killed in battle. (Saeed, 2000)

#### **2.2.4 Post 1857 Scenario and the Birth of the British Raj**

The failure of the War of Independence had catastrophic consequences, especially for the Muslims of India.

**End of the East India Company:** The British government realized that the Company's rule was a failure. In 1858, the British Crown took direct control of India, an era known as the British Raj. Queen Victoria was declared Empress of India. (Saeed, 2000)

**The Policy of Vengeance and Suspicion:** The British were determined to punish those they held responsible. The Muslims were singled out for particular suspicion. The British believed that the Muslims were the primary instigators of the rebellion, as they were trying to restore the old Mughal order. As Ahmad Saeed argues, the aftermath was a disaster for the Muslim community (Saeed, 2000). They were systematically removed from positions of power and authority. Their property was confiscated, and they were excluded from the army and government services.

The War of Independence of 1857 was a watershed moment. It was the final, doomed attempt of old India to resist the new colonial power. For Muslims, it marked the end of centuries of political dominance and the beginning of a long struggle for survival in their own homeland. The despair and decline that followed 1857 created the conditions for a new kind of politics. Thinkers like Sir Syed Ahmad Khan would emerge from this wreckage, urging the Muslim community to reconcile with the British, embrace modern education, and chart a new path to protect their identity. Thus, the story of Pakistan's creation begins not with a celebration of victory in 1857, but with the painful lesson of its defeat.

### **3.3 Social, Religious, Economic and Political Challenges after War of Independence 1857**

After the War of Independence in 1857, the Muslims of India found themselves in a state of deep crisis. They had lost their political power, their economic strength, and their social standing. However, the most difficult battle they faced was on the socio-religious front. The challenges were not simply about poverty or lack of jobs; they went much deeper into questions of faith, identity, and survival. This section explores the major socio-religious challenges that Muslims had to confront in the late nineteenth century.

#### **3.3.1 The Crisis of Identity and Psychological Defeat**

The most fundamental challenge facing Muslims after 1857 was a crisis of identity. For centuries, Muslims had ruled large parts of India. With the exile of the last Mughal Emperor, Bahadur Shah Zafar, the symbol of Muslim political authority was destroyed forever (Ahmed, 1997). The community found itself leaderless and directionless.

This created a deep psychological defeat. Muslims experienced a "trauma of defeat," going from rulers to subjects. The British deliberately targeted Muslims for punishment, confiscating property and excluding them from government employment (Saeed, 2000). This systematic persecution deepened the sense of despair and humiliation. The psychological challenge was worsened by rapid social change from the West. Muslims were deeply divided on how to respond: should they reject everything Western or accept modernity completely?

#### **3.3.2 Educational Backwardness and Intellectual Stagnation**

The most serious practical challenge was educational backwardness. Before 1857, Muslims relied on traditional Islamic education. After British rule, English replaced Persian as the official language, and a modern education system was introduced.

Most Muslims refused to attend British schools. They saw English education as a tool of Christian missionaries and believed it would corrupt Islamic values. While understandable, this rejection had disastrous consequences (Jalal, 1985). While other communities embraced English education and filled government jobs, Muslims lagged far behind. By the 1870s, Muslims were severely underrepresented in government, law, and commerce (Khan, 2019). Without modern education, Muslims could not participate in public debates, influence policies, or represent their interests. They were becoming irrelevant in their own homeland.

### **3.3.3 Economic Decline and Destruction of the Muslim Middle Class**

The economic challenge was closely connected to educational backwardness. Before 1857, the Muslim upper and middle classes depended on government service, land ownership, and traditional crafts. British policies after the rebellion systematically destroyed these sources of income.

The British confiscated properties of suspected Muslims. Ahmad Saeed describes how Muslim nobles were reduced to poverty overnight, wiping out the traditional aristocracy (Saeed, 2000). Furthermore, new legal and economic systems favored those who understood English. Muslims, who had rejected English education, could not compete. Traditional crafts declined against British machine-made goods (Ziring, 1997). The community was trapped in a cycle of poverty and backwardness. Without education, they could not get jobs; without jobs, they could not afford education. This decline threatened the community's survival as a respectable entity.

### **3.3.4 Religious Fears and the Threat of Christian Missionaries**

Perhaps the most emotional challenge was the fear that Islam itself was under attack. After 1857, Christian missionaries became more active, often with British support. They established schools, distributed religious literature, and openly criticized Islam.

Ayesha Jalal discusses how Muslim fears of conversion were very real. Many believed the British used education to convert children. Rumors suggested the government planned to interfere with Muslim personal law. These fears were not unreasonable, as some British officials hoped India would become Christian. (Jalal, 2008) The introduction of Western education and customs seemed like a systematic effort to destroy Indian religions. This religious insecurity created immense anxiety, with parents afraid to send children to school and leaders struggling to protect Islamic beliefs.

### **3.3.5 The Challenge of Disunity and Conflicting Responses**

Finally, the Muslim community faced the internal challenge of disunity. Different groups proposed conflicting solutions, creating division rather than cooperation. Some religious scholars argued for completely rejecting British rule and preserving traditional learning. Others believed Muslims must learn English and adopt modern ways to survive. Still others tried to find a middle path. This confusion made it difficult to present a united front for Muslim interests (Aziz, 2002). The absence of strong leadership was a major challenge. The traditional Mughal



leaders were destroyed, and religious scholars had limited practical power. There was no single voice to guide the community through the crisis.

#### **4 Conclusion**

The decline of Muslim rule in India, culminating in the 1857 War of Independence, represents a watershed moment that fundamentally transformed the Subcontinent's political landscape. The internal decay of the Mughal Empire, characterized by weak successors, administrative fragmentation, and devastating external invasions, progressively dismantled centuries of Muslim political hegemony. The 1857 uprising, while briefly uniting Hindus and Muslims against colonial rule, ended in catastrophic failure that disproportionately devastated the Muslim community. The British singled out Muslims for systematic punishment, abolishing the Mughal Empire, confiscating properties, and excluding them from positions of power. This political destruction was compounded by profound socio-religious challenges: educational backwardness, economic decline, psychological defeat, and fears of religious extinction under missionary pressure. The community found itself leaderless, impoverished, and politically irrelevant in its own homeland. This period of unprecedented crisis from rulers to subjects created the collective trauma and identity consciousness that would ultimately catalyze the movement for Muslim revival and the demand for a separate homeland.

## **Lecture 03**

# **Educational Awakening of Indian Muslims: The Aligarh Movement**

## **Micro Learning Outcomes**

By the end of this lecture, students will be able to:

- Recall the causes of Muslim educational backwardness after 1857.
- Explain the role of the Aligarh Movement and Islamia College Peshawar in promoting modern education among Muslims.
- Analyze the impacts of educational reforms movements on the intellectual awakening of the Muslims of Sub-Continent and mobilizing that awakening into a concrete political identity and movement.

## **Educational Backwardness and Reforms (Aligarh Movement, Islamia College Peshawar)**

After the War of Independence in 1857, the Muslims of India were in a very bad condition. They had lost their political power and their economic strength. But the biggest problem was their educational backwardness. Without modern education, they could not get government jobs, could not understand the new British system, and could not compete with other communities who were moving ahead. This section explains the educational problems of Muslims and the efforts made to solve these problems through the Aligarh Movement and the establishment of Islamia College Peshawar.

## **The Problem of Educational Backwardness**

Before 1857, Muslims had their own traditional education system. They studied Persian, Arabic, Islamic law, and religion in madrassas. This system had worked well for centuries because Persian was the official language of the Mughal court. Muslim boys who studied in madrassas could easily get jobs in the government or become respected members of society.

But after the British took full control of India, they changed everything. They replaced Persian with English as the official language. They introduced a new education system based

on Western knowledge. Schools teaching English, science, and mathematics were established in all major cities (Jalal, 2014).

The problem was that most Muslims refused to join this new system. They had two main fears. First, they thought English education was a way for Christian missionaries to convert their children. Second, they believed that Western knowledge would destroy their Islamic values and culture (Saeed, 2000).

This refusal to accept modern education had very bad results. The Hindu community, especially in Bengal and Bombay, quickly took advantage of English education. They got most of the government jobs, joined the legal profession, and entered modern business and trade. But Muslims stayed away and became more and more backward.

The situation was so serious that a British government report from 1886 documented the shocking facts. In 1871, the proportion of Muslims to Hindus in government appointments was less than one-seventh. By 1880, it had fallen to below one-tenth. The report also showed that in the Foreign Office staff of 54 officers, only two were Muslims. In the Finance and Revenue Departments, with 75 officers, not a single Muslim was employed. In the Office of the Accountant General of Bengal, out of 181 officers, there was not one Muslim employee. This was happening even though Muslims made up one-third of the population in Bengal and in some districts were two-thirds of the population.

By the 1870s, Muslims were very few in government service. They could not compete for jobs because they did not know English and did not have modern education. Even in areas where Muslims were in majority, like Punjab and Bengal, they were far behind Hindus in education and employment.

This educational backwardness created a vicious cycle. Without education, Muslims could not get jobs. Without jobs, they remained poor. Without money, they could not educate their children. The community was trapped in poverty and ignorance (Ziring, 1997).

There was another dimension to this problem. The British also changed the language policies in ways that harmed Muslims. Before 1857, Persian was the official language in many parts of India. When the British replaced Persian with Urdu written in Persian script, it worked well for Muslims. But later, there were attempts to replace Urdu with Hindi written in the Nagri script in some regions. This created great discontent among Muslims. More importantly, when English became the language of government and courts, Muslims who only knew

Persian and Urdu lost their jobs. The substitution of vernacular dialects for Persian resulted in throwing out of employment a considerable body of Muslim subordinate officers who were totally dependent on government pay for their survival. As one historian noted, the actual impoverishment of the middle class of Muslims dates from this period (Government of India, 1886).

Another problem was that traditional Islamic education had become outdated. It did not teach science, mathematics, history, or modern languages. Students learned things that had no use in the modern world. But at the same time, completely leaving Islamic education would mean losing their religious identity. Muslims needed a solution that would give them modern knowledge without sacrificing their faith.

The situation of Muslims was so bad that some British observers noted that there was scarcely a government office where a Muslim could hope for any post above the rank of porter, messenger, or filler of ink-pots (Government of India, 1886). This was the condition of a community that had ruled India for centuries.

## **The Aligarh Movement: Sir Syed Ahmad Khan's Great Effort**

The man who understood this problem better than anyone was Sir Syed Ahmad Khan (1817-1898). He was a Muslim scholar and reformer who had worked for the British and had seen both worlds. After the 1857 rebellion, he thought deeply about why Muslims had fallen so low and what could be done to lift them again (Ahmed, 1997).

Sir Syed believed that education was the only solution. He said that Muslims must learn English and modern sciences while also keeping their Islamic beliefs. He started what we now call the Aligarh Movement to achieve this goal (Aziz, 2002).

### **First Steps: Scientific Society and Translation Works**

In 1864, Sir Syed started the Scientific Society in Ghazipur. The purpose of this society was to translate Western books on science and modern subjects into Urdu. He wanted to make modern knowledge available to Muslims who did not know English. The society also published two journals: *The Aligarh Institute Gazette* and *Tehzeeb-ul-Akhlaq* (the Muhammadan Social Reformer).

Through these journals, Sir Syed told Muslims that Islam was not against science and modern knowledge. He argued that the Quran itself encourages Muslims to learn and think. He said that blind following of old customs was the real enemy of Islam, not modern education.

### **The Muhammadan Anglo-Oriental College (MAO College)**

Sir Syed's greatest achievement was the establishment of the Muhammadan Anglo-Oriental College at Aligarh in 1875. This college was his dream come true.

The college had a very special purpose. It would teach Western subjects like English, science, philosophy, and history. But it would also teach Islamic studies, Arabic, and Persian. The idea was to create a new generation of Muslims who knew both worlds, who understood modern knowledge but remained proud of their Islamic heritage.

The college was modeled on Oxford and Cambridge universities in England. Sir Syed wanted it to have the same high standards. He raised money from wealthy Muslims and also got support from the British government. In 1877, Lord Lytton, the Viceroy of India, laid the foundation of the college.

### **The All-India Muhammadan Educational Conference**

In 1886, Sir Syed started the All-India Muhammadan Educational Conference. This was an organization that held meetings every year in different cities of India. Muslim leaders, educationists, and reformers would come together to discuss the problems of the community and find solutions.

The conference did a lot of good work. It encouraged Muslims to start schools and colleges in their own cities. It raised funds for scholarships. It created awareness about the importance of modern education. Slowly, the message of the Aligarh Movement spread to all parts of India.

### **Why the Aligarh Movement Was So Important**

The Aligarh Movement was not just about one college. It was a complete movement for the revival of Muslims. This movement gave Muslims a new confidence and a new direction. It showed them that they could be modern without losing their identity (Aziz, 2002).

The movement produced a whole generation of educated Muslims who later became leaders of the Pakistan Movement. People like Liaquat Ali Khan, who became the first Prime

Minister of Pakistan, were products of Aligarh. The Quaid-e-Azam Mohammad Ali Jinnah himself praised Aligarh and called it the "arsenal of Muslim India".

Some people criticize Sir Syed for being pro-British. But we must understand the time in which he lived. After 1857, Muslims were in no position to fight the British. They first needed to become strong through education. Sir Syed believed that cooperation with the British was necessary for survival. His policy was practical, not just loyal (Jalal, 2000).

## **Islamia College Peshawar: The Aligarh Spirit in the Frontier**

The success of Aligarh inspired Muslims in other parts of India to start similar institutions. One of the most important was the Islamia College Peshawar, established in 1913.

### **The Need for a College in the Frontier**

The North-West Frontier Province (now Khyber Pakhtunkhwa) was created in 1901. At that time, there was only one college in the whole province; Edwardes College, which was run by Christian missionaries. Muslim students who wanted higher education had to go all the way to Aligarh or Lahore. This was very difficult for poor families.

### **The Founders: Sahibzada Abdul Qayyum Khan and Sir George Roos-Keppel**

The man who took the lead was Sahibzada Abdul Qayyum Khan (1863-1937). He is called the "Sir Syed of the Frontier" because he did for the Pathans what Sir Syed did for the Muslims of India. He was greatly inspired by the Aligarh Movement and wanted to bring its benefits to his own people.

He got full support from Sir George Roos-Keppel, who was the British Chief Commissioner of the province. Roos-Keppel was a wise officer who understood that educated Muslims would be better partners for the British than ignorant ones. Together, they worked to establish a college that would serve the Muslims of the Frontier.

### **The Establishment of the College**

Islamia College Peshawar was established in 1913. Its purpose was the same as Aligarh: to provide modern education to Muslims while preserving their Islamic identity. The college taught English, science, and arts along with Islamic studies.

The college was built on a beautiful campus of 300 acres near the historic Khyber Pass. It had large halls, a mosque, hostels for students, and playing fields for sports. Students from all over the Frontier Province came to study there.

### **Connection with Aligarh Movement**

The connection between Islamia College and Aligarh was very strong. Many of the teachers at Peshawar were graduates of Aligarh. They brought with them the spirit of Sir Syed and his message of modern education. The curriculum was also modeled on Aligarh.

In fact, when Quaid-e-Azam Mohammad Ali Jinnah wrote his will, he mentioned three institutions that should receive his property: Aligarh Muslim University, Islamia College Peshawar, and Sindh Madrassah Karachi. This shows how important he considered these institutions for the Muslim community.

### **Role in the Pakistan Movement**

Islamia College Peshawar played a big role in the struggle for Pakistan. Its students and teachers actively supported the Muslim League. They spread the message of Pakistan in the Frontier Province, which was otherwise dominated by the Congress and nationalist parties.

The college produced many leaders who worked for the creation of Pakistan and later served the new country. Sahibzada Khurshid, the first student admitted to the college, later became the first Governor of Khyber Pakhtunkhwa after independence.

### **Impact of Educational Reforms**

The educational reforms started by Sir Syed and carried forward by institutions like Islamia College Peshawar had a huge impact on the Muslim community.

### **Intellectual Awakening**

First and foremost, these reforms created an intellectual awakening among Muslims. For the first time after 1857, Muslims started thinking critically about their problems. Sir Syed encouraged Muslims to use reason and rational thought. He argued that Islam was not against science and modern knowledge. He said that the Quran itself encourages Muslims to learn and think.

Through his journal *Tehzeeb-ul-Akhlaq* (The Muhammadan Social Reformer), Sir Syed spread his message far and wide. He challenged the orthodox mullahs who said that modern education was *haram* (forbidden). He gave Muslims a new way of thinking about their religion and their future. This movement gave Muslims a new confidence and a new direction. It showed them that they could be modern without losing their identity (Aziz, 2002).

### **Political Consciousness**

Second, these institutions created political consciousness among Muslims. The students who graduated from Aligarh understood how the British system worked. They knew English, they knew law, and they knew politics. They could represent Muslim interests effectively before the British government.

In 1886, Sir Syed founded the Muhammadan Educational Conference. This organization held meetings every year in different cities of India. Muslim leaders, educationists, and reformers would come together to discuss the problems of the community and find solutions. This conference became a platform where Muslims learned to think collectively about their future (Mujahid, 2001).

The Muhammadan Educational Conference was so important that it eventually became the All-India Muslim League in 1906 (Hussnain Ali, 2023). This was the political party that would later lead the movement for Pakistan. So, the educational movement started by Sir Syed directly led to the creation of the Muslim League.

### **Spread of Education**

Third, these institutions encouraged the spread of modern education to all parts of India. Following the Aligarh model, Muslims established schools and colleges in Lahore, Karachi, Dhaka, and many other cities. The movement became nationwide.

One of the most important institutions that followed the Aligarh model was Islamia College Peshawar, established in 1913. Islamia College Peshawar became a symbol of Muslim awakening in the Frontier Province. It provided modern education to Pathan youth who otherwise had to go all the way to Aligarh or Lahore. The college also resolved what was called the "dichotomy between secular and religious education", it taught modern sciences while preserving Islamic values.



## **Preservation of Islamic Identity**

Fourth, and most important, these reforms showed that Muslims could be modern without losing their Islamic identity. Sir Syed's message was clear: Muslims did not have to choose between their religion and the modern world. They could have both. This was his greatest gift to his community.

The Aligarh College taught Western subjects like English, science, philosophy, and history. But it also taught Islamic studies, Arabic, and Persian. The students who graduated from Aligarh were proud Muslims who also understood modern knowledge. They could compete with anyone in the modern world while remaining true to their faith.

The educational backwardness of Muslims after 1857 was a serious problem that threatened their very survival. But through the efforts of great reformers like Sir Syed Ahmad Khan and institutions like Aligarh Muslim University and Islamia College Peshawar, the community slowly recovered. These educational reforms laid the foundation for the political awakening that would eventually lead to the creation of Pakistan. As Stephen P. Cohen says in *The Idea of Pakistan*, “without the educational revival started by Sir Syed, there might have been no Pakistan Movement at all”.

## **Conclusion**

The educational backwardness of Muslims after 1857 threatened their very survival. Without modern education, they lost jobs, economic position, and political voice. The Aligarh Movement, led by Sir Syed Ahmad Khan, provided the solution. By establishing MAO College, he showed Muslims they could embrace modern knowledge while preserving Islamic identity. This message spread across India. Islamia College Peshawar, founded in 1913, brought the Aligarh spirit to the Frontier. It provided modern education to Pathan youth and produced leaders who actively supported the Pakistan Movement. Together, these institutions created intellectual awakening and political consciousness among Muslims. They transformed a defeated community into one that could demand its rights. As Stephen P. Cohen observes in *The Idea of Pakistan*, without this educational revival, there might have been no Pakistan Movement at all.

## **Lecture 04**

### **Genesis of Two-Nation Theory:**

#### **The Foundational Phase**

#### **Micro Learning Outcomes**

By the end of this lecture, students will be able to

- Define ‘Two Nation Theory’ and explain the historical background that contributed to the early development of the idea of ‘Two-Nation’ in the Subcontinent.
- Evaluate how Syed Ahmad Khan’s defense of Urdu emphasized Muslim cultural identity and helped in shaping the early concept of the Two-Nation Theory.
- Critically examine the impact of the Urdu Hindi Controversy, Indian National Congress and the Partition of Bengal in reinforcing the idea of Muslims as a separate nation.

#### **Understanding the Two-Nation Theory**

To understand how the Two-Nation Theory emerged? we must first clarify what a nation is, then define the doctrine itself, and finally trace how historical and constitutional developments that reshaped the political trajectory of Indian Muslims from a religious community into a self-conscious nation.

#### **What is a ‘Nation’?**

In Political Science, a nation is a historically evolved community of people who share common historical experience, cultural traditions, social institutions, and collective political will.

Applied to the Muslims of the Subcontinent, their shared religion, Islamic law, Urdu language, educational institutions, and historical experience of governance reinforced the concept of Muslim nationhood.

## **Concept: Two-Nation Theory**

The Two-Nation Theory states that Muslims and Hindus of the Subcontinent were two separate and distinct nations because their civilizational foundations were fundamentally different. The difference was not only religious; it involved law, social organization, moral philosophy, culture, and political vision. Syed Ahmad Khan was given the title of father of Two Nation Theory who first used the word 'Nation' for the Muslims of the Subcontinent.

## **Two-Nation Theory: Keystone of Pakistan's Ideology**

Ideology of Pakistan was based on the 'Two-Nation Theory' which meant that there were two nations (Muslims and Hindus) living side by side with their distinct characteristics; religion, unique cultural practices, social values, and political interests. This principle became the **foundational pillar of Pakistan's ideology**, providing a clear rationale for the demand for a separate homeland.

## **Evolution of Two Nation Theory: Historical Perspective**

The emergence of the Two-Nation Theory was not a sudden political reaction of the 20<sup>th</sup> century. It developed through a long historical process in which civilizational identity gradually transformed into structured political consciousness.

## **Advent of Islam and the Basis of Two Nation Theory**

Looking at the emergence of Islam in the world, the Holy Quran has given us a clear understanding of the 'Two Nations' **believers and non-believers**, emphasizing faith as the basis of community and identity. Monotheism, finality of Prophethood (PBUH), purity of soul and good deeds are the essence of Islam. Those who follow these beliefs form one nation, while those who don't belong to another.

(When we see the history of Subcontinent) Many Muslim intellectuals trace the origin of the phenomenon of Two Nation Theory with the arrival of Islam in the region.

In 712 AD, **Muhammad Bin Qasim** entered the areas that now comprise Pakistan and confronted with Raja Dahir in Sindh and former established Muslim authority. This event

introduced Islamic governance, legal principles, and administrative systems into the region that created an institutional presence forming the basis of Muslim historical memory.

### **Muslim Leaders and Articulation of Idea of ‘Two Nation’**

Muslim leaders and scholars gradually articulated the idea that Muslims and Hindus were two separate nations having diverse religious, cultural, and political identity.

In the eleventh century, the scholar **Abu Rayhan Muhammad al-Biruni**, in *Kitab fi Tahqiq ma li'l-Hind* (c. 1030 CE), recorded early civilizational differences. He observed:

**“All their fanaticism is directed against those who do not belong to them — against all foreigners. They call them mlechha, i.e. impure, and forbid having any connection with them, be it by intermarriage or any other kind of relationship, or by sitting, eating, and drinking with them, because thereby, they think, they would be polluted.”**

He was the member of court of Mahmud Ghaznavi, highlighted the existence of the two big groups following to two different religions. He was also known as the first founder of idea of ‘Two Nation’ presenting it long before the seed of Muslim Nationalism in the Subcontinent. This shows that Hindu–Muslim social boundaries existed long before colonial politics.

During the Mughal period, Muslim scholars reinforced Islamic identity. **Sheikh Ahmad Sirhindi** (Mujaddid Alf-Thani) (1564–1624), in his *Maktubat*, opposed religious syncretism of Akbar and emphasized the supremacy of Islamic law. He categorically created a line between Islam and Hinduism Because one gives us a complete code of life, while the other provides only a social system respectively. He was one of the Muslim reformists who boldly challenged Akbar’s policies of religious amalgamation that undermined Islam. He also stressed that two communities could never compromise on their religious practices.

**Shah Waliullah (1703–1762) and Syed Ahmad Shaheed (1786–1831)** were key Islamic reformers who worked for the religious revival and political strength of Muslims in the Subcontinent. Shah Waliullah emphasized Islamic unity when Muslim power was weakening due to the rise of the Marathas, Jats, and Sikhs. Later, Syed Ahmad Shaheed led religious and military efforts to protect Islam, reinforcing the idea of Muslims as a distinct community. These

scholars treated Islam as a public system of life, not merely private faith. Their work preserved Muslim distinctiveness during period of change.

## **Rise of British Rule: Necessity of a Separate Muslim Political Identity**

The decline of the Mughal Empire after the death of Aurangzeb in 1707 marked the beginning of Muslim political vulnerability in the Subcontinent. Weakening central authority, political fragmentation, and economic decline reduced Muslims from rulers to a marginalized community. Although their religious identity remained intact, the loss of sovereignty made it increasingly insecure. This situation further deteriorated after the Indian Rebellion of 1857, when British rule replaced Mughal authority completely. Muslims faced severe political, economic, and social setbacks. The British held them responsible for the revolt, leading to distrust, confiscation of property, and exclusion from administration. Meanwhile, Hindus adapted more quickly to the new system, gaining advantages in education and governance. With the introduction of modern institutions and majority-rule politics, Muslims risked permanent marginalization. Consequently, Muslim leaders felt the need for a separate identity to protect their religious, cultural, and political rights.

## **Syed Ahmad Khan: Reconstruction and Revival of Muslim Identity**

Following the crisis of 1857, Sir Syed Ahmad Khan (1817–1898) emerged as a key reformer dedicated to the uplift of Muslims in the Subcontinent. He believed that harmony between communities was essential for stability and therefore prioritized social and educational reform over political confrontation. According to K. K. Aziz in *The Making of Pakistan*, his strategy was based on loyalty to the British, promotion of modern education, and temporary withdrawal from politics to rebuild Muslim strength.

After the Indian Rebellion of 1857, Muslims were viewed with suspicion and faced severe decline in education, employment, and administration. Sir Syed sought to bridge this gap by improving relations with the British through his writings, including *Asbab-e-Baghawat-e-Hind* (1859) and *The Loyal Mohammedans of India* (1860). His aim was to present Muslims as loyal and capable contributors to governance.

He emphasized modern education as the key to progress and worked to establish institutions that would intellectually revive Muslims. Through these efforts, he not only restored confidence among Muslims but also reconstructed their social position. History shows that Sir Syed Ahmad Khan played a leading role in initiating the intellectual, social and political revival of Muslims in the Subcontinent.

### **Urdu–Hindi Controversy (1867): Idea of ‘Two Nation’**

As history tells us that Sir Syed was initially in favor of Hindu-Muslim Unity. He had earlier described Hindus and Muslims as “the two eyes of the beautiful bride, Hindustan,” reflecting his belief in coexistence. The year 1867 was a turning point in history that negated this very idea of Unity of two large communities. That point was Urdu–Hindi Controversy in the United Provinces marked the first major communal rift in modern politics. It was the direct attack on Muslim identity associated with language. Language is a fundamental medium of social and cultural interaction that binds people together and forms the foundation of society. Urdu developed naturally in the Subcontinent; it was not imported as a foreign language but emerged through interaction between local populations and incoming Arab, Persian, and Turkish influences. Its base lies in the local dialects of North India, particularly Khari Boli, which gradually incorporated vocabulary from Persian, Arabic, and Turkish. This linguistic blending gave rise to a new language that later came to be known as Urdu, commonly referred to as “Lashkari Zaban” (the camp language).

During Muslim rule in India, it became closely associated with Muslims and later became a symbol of separate cultural and historical identity of Muslims of the Subcontinent. Urdu had long been associated with Indo-Muslim cultural and administrative heritage.

In fact, Hindu leaders demanded the replacement of Urdu, written in Persian script, with Hindi in Devanagari script for official use in courts and administration. Altaf Hussain Hali in his biography of Sir Syayyid mentioned that Sir Syed became suspicious about Hindu intentions when they started complaining in Banaras for adopting Hindi as an official language. However, after witnessing the agitation, he reportedly remarked that the two communities would not cooperate wholeheartedly in public matters. The controversy convinced Syed Ahmad that cultural divergence could easily transform into political conflict, and this realization reinforced

the urgency of strengthening Muslim educational and economic foundations. Shakespear asked when the controversy was going on, that it is the first time I have heard you speak about the education of Muslims alone. In reply Syed Ahmad said;

**“After Urdu Hindi Controversy, I am now convinced that the two nations will not join wholeheartedly in anything.”**

Sir Syed Ahmad is known as pioneer of “Two Nation Theory” because he first used the word ‘Qaum’ (Nation) for the Muslims of the Subcontinent and predicted the differences between the two groups would increase with a passage of time. In his letter to Nawab Mohsin-ul-Mulk in 1870, he stressed “Muslims will never agree to Hindi and if Hindus also following the new move insist on Hindi, they will also not agree to Urdu. The result will be that the Hindus and Muslims will be completely separated.”

Another important figure in defending the status of Urdu was Mohsin-ul-Mulk, a close associate of Sir Syed Ahmad Khan and a prominent leader of the Aligarh Movement. Mohsin-ul-Mulk strongly supported Urdu as a symbol of Muslim identity and culture. Consequently, he played a central role in organizing efforts that later led to the establishment of the Urdu Defence Association in the late 19<sup>th</sup> century which aimed to defend Urdu against the replacement by Hindi in courts and administration. This fact was highlighted that, despite a shared geography, cultural symbols can become subjects of political contestation.

## **Indian National Congress and Muslims Aloofness from Politics**

The formation of the Indian National Congress in 1885 marked the beginning of organized political agitation for representative government. It was founded by A. O. Hume a former Home Secretary of the Government of India. Sir Syed viewed Congress demands cautiously, believing that Congress leadership largely reflected majority interests. He feared that rapid democratization would benefit the Hindu majority while Muslims remained educationally weaker. Therefore, he advised political aloofness until Muslims strengthened themselves sufficiently to compete. His strategy reflected constitutional realism: participation without preparation could institutionalize permanent disadvantage, and this caution shaped his broader reformist vision. In this case, it can't be assumed that he was anti-Hindus. He was friendly towards the Hindus but opposed to the objectives of the Congress. He pointed out that the congress objective of representative

government meant that Muslim would be merged by the Hindu majority. Out of the 70 delegates who attended the opening session of the Congress, only two were Muslims. Syed Ahmad who was invited to attend the Bombay session, refused the offer. He also advised Muslims not to join the Congress and predicted that the party would eventually become a Hindu party and would only look after the interests of Hindus. He mentions his concerns to clear his point of view in his letter to Budruddin Tyabji, the first Muslim President of the Congress, that the logical outcome of Congress agitation would be violence in which Muslims, as in the Mutiny, would bear the burden of consequences.

In response to Indian National Congress, Sir Syed Ahmad founded Muhammadan Educational Conference in 1886 was primarily an educational platform aimed at promoting modern and religious education among Muslims and overcoming backwardness. It also served as a forum for social reform, creating awareness and unity within the Muslim community. Although non-political, it indirectly developed political consciousness that later contributed to organized Muslim politics.

Sir Syed's concerns related to Hindus and Congress proved factual when the Hindu-Muslims riot broke out in Bombay in 1893 on the point of cow-slaughter and the playing of music before the Mosque at the prayer time. He said that "no political movement in India could be depended upon to produce worthwhile results in the face of growing estrangement between Hindus and Muslims". These were the sentiments of Muslims which were truly uttered by Syed Ahmad.

### **Majoritarianism ("One Man, One Vote") Vs. Separate Electorates**

Sir Syed Ahmad Khan rightly pointed out that majority-rule democracy would structurally disadvantage Muslims as minority. In his Meerut Speech delivered on 16 March 1888, he declared:

*"Now suppose that all the English were to leave India — then who would be the rulers of India? Is it possible that under these circumstances two nations — the Mohammedans and the Hindus — could sit on the same throne and remain equal in power? Most certainly not."*

By the late nineteenth century, Sir Syed Ahmad Khan opposed the proposal for selecting representatives in the Viceroy's council by election. Because Muslims would have no place in the Council, constituted roughly one-fourth of British India's population. The prophecy of Sir Syed



Ahmad Khan came to true. Under Indian Councils Act of 1892, the formation of legislative Council was based on half selection and half nomination. During that time, Muslims were not satisfied with the system even then could not secure single seat of Council. That system did not provide any safeguards, political influence and prestige as compared to Hindus. That's why Sir Syed Ahmad highlighted the system based on "one man, one vote," the Hindu majority would permanently dominate legislative institutions.

He advocated the right of separate electorates for Muslims of the Subcontinent and presented a scheme which stated that Muslims were a distinct community, entitled to elect their own representatives separately in legislative bodies, ensuring the protection of their political rights and interests. Separate electorates reinforced the idea that Muslims were a distinct political community, thereby strengthening the foundation of the Two-Nation Theory.

## **Partition of Bengal (1905): Demographic Recognition**

The Partition of Bengal on September 1, 1905 created Eastern Bengal and Assam, where Muslims formed approximately 54% of the population. For the first time, Muslim demographic strength translated into administrative authority. The partition was announced by Lord Curzon. Officially, it was presented as an administrative measure because Bengal was too large to govern effectively. It divided Bengal into:

- Western Bengal (Hindu-majority)
- Eastern Bengal & Assam (Muslim-majority)

Curzon justified it as an administrative measure to improve governance of a vast province, stating that it would *"invest the Mohamedans in Eastern Bengal with a unity which they have not enjoyed since the days of the old Musalman Viceroys and Kings."*

### **Muslims' Response to the Partition of Bengal**

Muslims welcomed the partition because Eastern Bengal provided them political majority and educational opportunities. It reduced Hindu economic dominance in Calcutta. It gave Muslims confidence in separate provincial strength. Many Muslims leaders appreciated Government because it created Eastern Bengal and Assam, a Muslim-majority province, with greater access to government jobs, education, and political representation. Muslims first saw the benefits of

majority rule in a province, highlighting their separate political interests from Hindus, as noted by Syed Ahmad. Leaders like Nawab Salimullah Khan openly supported the measure, believing it would restore Muslim influence that had declined since 1857.

### **Hindus' Opposition to the Partition of Bengal**

Quite understandably Hindu lawyers, merchants and landlords were opposed to it because partition was lessening the Calcutta's commercial and professional supremacy in Bengal. Strong opposition from Hindu elites, politicians and press was faced by Lord Curzon. The Hindu middle class of Calcutta (lawyers, journalists, zamindars, and educated professionals) viewed Bengal as:

- A symbol of cultural unity.
- The intellectual center of Indian nationalism.

Nationalists believed the partition was a deliberate British strategy of **“Divide and Rule.”** and an attempt to weaken the growing nationalist movement in Bengal. Hindu leaders believed that this was a deliberate act of British government to sow the seeds of differences between two communities Hindu and Muslim. Although Khalid Bin Sayeed quoted Hindu editor Auro Bindo who claimed in *Bande Mataram* “the composite culture of India is undoubtedly Hindu”.

Many Hindu leaders argued that the creation of a Muslim-majority province in Eastern Bengal would reduce Hindu political influence. Thus, their opposition was not only administrative but also political. Consequently, leaders like Surendranath Banerjee condemned the partition as an assault on Bengali unity, and the Bengalis launched the *Swadeshi* Movement whose sole purpose was the boycott of British goods and use of locally manufactured Indian products. Moreover, the dominance of Hindu nationalist leaders within the Congress during the *Swadeshi* agitation reinforced Muslim apprehensions that the organization was evolving into a body primarily safeguarding Hindu-majority political interests, rather than functioning as a genuinely representative of all Indians.

## **Annulment of Partition of Bengal**

After passing the six years, decision of Partition of Bengal was suddenly reversed in 1911 at the Delhi Durbar by King George V. Although, Lord Minto repeatedly assured Muslims about decision of partition while calling it final and unchangeable. British reversed it due to Indian National Congress and Hindu agitation exposed the vulnerability of Muslim political interests. While Hindus celebrated it as a triumph of nationalist struggle. Contemporary Muslim newspapers noted that “the British have caved in to Hindu agitation at the expense of Muslim political hopes.” This event intensified communal divisions and reinforced the perception that Hindus and Muslims had conflicting political aspirations, thereby strengthening the foundations of the Two-Nation Theory. It was an eye-opening event that forced Muslim to think that they would have to fight with two powers in future, the Hindu and the British.

## **Concluding Remarks**

The foundational phase of the Two-Nation Theory established the intellectual and political basis that eventually led to the creation of Pakistan. During this period, Muslim scholars, reformers, and leaders emphasized the distinct religious, cultural, and historical identity of Muslims in the subcontinent. The decline of Muslim political power after 1857, combined with Sir Syed Ahmad Khan’s reformist vision, key developments such as the Urdu–Hindi Controversy, and the Partition of Bengal (1905), gradually shaped Muslim consciousness. Demands for political safeguards, including separate electorates, reinforced the idea that Muslims were a separate nation whose rights could not be secured under a Hindu-majority system. These experiences laid the ideological foundation for the demand for an independent Muslim homeland, culminating in Pakistan’s creation in 1947.

## **Lecture No. 05**

### **Muslim Political Struggle in British India (1906-1929)**

#### **Introduction**

The previous lecture was about the emergence and philosophical foundations of the Two-Nation Theory, emphasizing religious, cultural, and political differences that necessitated a separate Muslim identity. The current lecture highlights practical steps toward political recognition, including separate electorates, the formation of the All-India Muslim League and reforms like Minto-Morley and Montague-Chelmsford reforms, and then the Nehru Report and the Jinnah's Fourteen Points.

#### **Micro Learning Outcomes**

The students will be able to:

- Recall why Muslims demanded separate electorates and a separate political platform.
- Remember the key provisions of Minto-Morley and Montague-Chelmsford reforms.
- Differentiate between the Nehru Report and Jinnah's Fourteen Points in terms of minority rights and political safeguards.

#### **Separate Electorate**

##### **Background and Need**

Separate electorates mean a system where minorities elect their own representatives instead of voting jointly. Indian Muslims demanded this because they feared unfair representation in a Hindu-majority system. When the British introduced democracy, decisions were based on majority rule, which worried Muslims that Hindus would dominate politics and ignore their interests. Muslims also believed they were a separate nation due to differences in religion, culture, and traditions. Congress supported joint electorates as it favored the majority. Therefore, Muslims demanded separate electorates to protect their political rights, identity, and future, ensuring their meaningful participation in government and safeguarding their interests (Aziz, 2002).

## **Prominent People**

A key role in presenting the demand for separate electorates was played by Sir Aga Khan, who led the Muslim delegation to the Viceroy. He clearly explained the concerns of Muslims and demanded proper political representation.

Another important figure was the Principal of the M.A.O College Archbold who arranged the meeting of Muslim delegation with the Viceroy on 1<sup>st</sup> October 1906. Finally, a delegation consisting of 35 leaders of Muslim community met to the viceroy, under the leadership of Sir Aga Khan, in Simla on 1<sup>st</sup> October 1906. The deputation was included the members from Bengal, Punjab, U.P., Bombay, Madras, Sindh, C.P., Deccan, and Delhi (Saeed, 2000).

The delegation met Lord Minto, who listened carefully and assured that their demands would be considered by the British government. His response encouraged Muslims to organize politically.

Later, Muhammad Ali Jinnah became the most important leader who defended Muslim political rights. He emphasized that Muslims were a separate nation and must have political safeguards.

On the other hand, Mahatma Gandhi and the Congress leadership opposed separate electorates and supported joint elections, arguing for a united Indian nation.

## **Demands**

The formal demand for separate electorates was presented in the Simla Deputation on 1st October 1906. Muslims demanded separate representation at all levels, including legislative councils, municipalities, and district boards. They also demanded that their representation should not be based only on population but also on their political importance and past contributions, as Muslims had ruled India for many centuries.

These demands were accepted in the Minto-Morley Reforms, which granted separate electorates to Muslims. This was a major achievement, as Muslims were now able to elect their own representatives and also vote in general constituencies. Although their representation was less than their actual population, it was still a landmark in their political history.

In the Lucknow Pact, Congress accepted the Muslim demand for separate electorates and agreed to give Muslims one-third representation at the center. It also introduced the concept of weightage, giving Muslims more seats than their population in minority provinces.

Later, the Montague-Chelmsford Reforms continued this system and accepted many demands of the Lucknow Pact. However, Congress later rejected these rights in the Nehru Report.

Elections held under the Government of India Act 1935 and later in 1945 proved that the All India Muslim League was the true representative of Muslims.

The Simla deputation was unique, because for the first time Muslims were anxious to take their share in the political activities as a separate identity. Another purpose of the delegation was to get a silent permission from the Government to make a political platform for the representation of Muslims, and also was to take the Government into confidence. The demand of separate electorates, which were presented through the deputation, was the foundation of all future constitutional amendments for India. The inevitable consequence of deputation was the partition of India and the emergence of Pakistan (Saeed, 2000).

## **Formation of Muslim League**

### **Introduction / Background**

After the creation of the Indian National Congress, it claimed to represent all Indians. However, Muslims soon felt that Congress mainly protected Hindu interests. Leaders like Sir Syed Ahmed Khan had already warned that Hindus and Muslims were two separate nations with different beliefs, culture, and interests.

Events like the Partition of Bengal and the Urdu-Hindi Controversy increased tensions. Muslims realized they needed their own political voice. As a result, the All India Muslim League was established on 30 December 1906 at Dacca. This marked the beginning of organized Muslim politics in India (Saeed, 2000).

### **Why Muslims Needed a Separate Platform**

Muslims felt the need for a separate political platform due to several reasons:

- Congress had an indifferent and often hostile attitude towards Muslim interests.

- Muslims were educationally and economically backward compared to Hindus and needed special attention.
- In the Urdu-Hindi controversy, Congress supported Hindi, ignoring Muslim concerns.
- The announcement of reforms by John Morley made Muslims realize they lacked representation.
- The success of the Simla Deputation encouraged Muslims to organize politically.
- Muslims believed they were a separate nation with a distinct identity and needed protection.

### **Formation of the All India Muslim League (December 1906)**

A resolution to form the All India Muslim League was passed by Nawab Salimullah Khan and was seconded by Hakim Ajmal Khan, Maulana Muhammad Ali and Moulana Zafar Ali. The resolution was passed by All India Educational Conference on 30th December 1906. Sir Agha Khan was appointed as President and Syed Hassan Balgrami as Secretary. Nawab Mohsim-ul-Mulk and Nawab Viqar-ul-Mulk were made joint secretaries. In this way Muslim league was established and become the sole representative of Muslims (Aziz, 2002).

### **Objectives and Early Growth**

The Muslim league laid the following points as its objectives:

1. To create loyalty towards British Government.
2. To safeguard political rights of Muslims.
3. To prevent prejudicial feelings against other communities.

The first session was held at Karachi on 29th December 1907. Later, Syed Ameer Ali organized a branch of Muslim league at London on 6th May 1908.

### **Analysis**

The creation of the Muslim League was a turning point in the political history of Indian Muslims. It gave them a united platform to express their concerns and protect their rights. The acceptance of separate electorates strengthened Muslim identity and political awareness.

Over time, the League became a strong political force, especially under the leadership of Muhammad Ali Jinnah. It transformed from a small organization into a mass movement. The idea that Muslims were a separate nation became stronger, leading to the demand for a separate homeland.

In the end, the Muslim League successfully led the struggle that resulted in the creation of Pakistan in 1947.

## **Minto-Morley Reforms 1909**

### **Background to the Reforms**

By 1909, political consciousness had grown a lot in India. The Indian National Congress and the newly formed All India Muslim League (1906) had become important voices. The British realized that old acts were not working. They needed to listen to these parties to keep peace. Two events pushed the British. First, Japan's victory over Russia (1904-5) gave Indians hope that Asia could become strong (Khan, 2019). Second, the Liberal Party came to power in Britain in 1906. This party did not like the harsh policies of the Conservatives. So, Lord Minto (Viceroy) and John Morley (Secretary of State) introduced new reforms in 1909.

### **Main Provisions of the Reforms**

#### **1. Separate Electorate for Muslims**

This was the most important part. For the first time, the British accepted the demand for separate electorate. Muslims would now vote only for Muslim candidates. This gave constitutional recognition to the idea that Muslims were a separate nation.

#### **2. Increased Council Size and Powers**

The number of members in the Imperial Legislative Council was increased from 16 to 60. Provincial councils were also made bigger. Members got new powers. They could ask questions, ask supplementary questions, and criticize the government. They could also move resolutions on public issues.

#### **3. Indians in Executive Councils**



For the first time, an Indian (S.P. Sinha) was included in the Viceroy's Executive Council. However, Muslims criticized this because they wanted one Muslim member too. The government promised to appoint a Muslim next time. Later, Sayed Ali Imam got this position.

#### **4. Special Representation for Loyal Classes**

The government wanted to win support from rich and loyal people. So, special seats were given to landlords, chambers of commerce, and other influential groups.

#### **5. Official Majority Maintained**

Despite all changes, the British kept official majority in the Imperial Council. In provincial councils, non-official majorities were useless because nominated members were included. There was no responsible government (Saeed, 2000).

#### **Reactions to the Reforms**

The Indians were not fully satisfied. The Congress split into two groups. The Moderates (like G.K. Gokhale) welcomed the reforms. Gokhale said in the Council, "*My Lord, I sincerely believed that you and Lord Morley have saved the country from anarchy and chaos.*" But the Extremists (like B.G. Tilak) rejected the act completely (Khan, 2019).

On the other hand, the All India Muslim League welcomed the 1909 Act. In the Delhi session of 1910, the League passed a resolution offering cooperation to the government.

#### **Positive Contributions**

Despite all flaws, the reforms opened the door for real politics. Indians learned to work in legislative councils. For example, 24 resolutions were accepted out of 168 in the Imperial Council. Also, Mohammad Ali Jinnah, as a private member, presented the *Waqf-alal-Aulad Bill*, which was passed (Khan, 2019).

### **Lucknow Pact 1916:**

The Lucknow Pact of 1916 represented a watershed moment in the Indian independence movement, marking the first and only time the Indian National Congress formally conceded to the All-India Muslim League's demand for separate electorates. By signing this agreement, the

Congress effectively recognized the Muslim community as a distinct political entity with specific interests that required guaranteed representation in provincial legislatures.

## **Montague-Chelmsford Reform (1919)**

The reforms were introduced in 1919 under the Government of India Act to increase Indian participation in administration. The earlier Minto-Morley Reforms had failed, so Indians demanded self-government. The Lucknow Pact united Congress and Muslim League. During World War I, Indians supported Britain but later felt disappointed due to unfulfilled promises.

Edwin Montagu and Lord Chelmsford introduced these reforms in the Act of 1919. Main features were:

- **Secretary of State's council:** Council of Secretary of State to have 8–12 members, including at least 3 Indians.
- **Central Legislature became bicameral:** Upper House (Council of State) with 60 members (35 elected); Lower House (Legislative Assembly) with 144 members (103 elected).
- **Division of powers:** center-controlled defense, foreign affairs, and currency; provinces managed education, health, and local government.
- Secretary of State's salary to be paid by the British government.
- **Diarchy in provinces:** Provincial subjects split into Transferred (health, education, agriculture) under ministers, and Reserved (police, land revenue) under Governor. Governor controlled both.

The reforms did not satisfy Indians. Mahatma Gandhi and Congress rejected them as inadequate, while Muslims accepted them with reservations. The Rowlatt Act and Jallianwala Bagh Massacre increased unrest, causing the failure of these reforms.

## **Nehru Report**

### **Background: Simon Commission and Political Deadlock**

Under the Act of 1919, the British planned constitutional reforms in India every ten years. Accordingly, the Simon Commission was sent in 1927, but it was boycotted by most Indian political parties due to lack of Indian representation. Lord Birkenhead challenged Indian leaders to draft a unanimous constitution. In response, an All-Parties Conference was held in Delhi in January 1928, attended by groups like the Indian National Congress and All India Muslim League, but failed over minority rights. Finally, under Motilal Nehru, a committee prepared the Nehru Report.

**Key provisions of the Nehru Report were:**

1. India should be given Dominion Status with the Parliamentary form of Government.
2. There should be a bi-cameral legislature consisting of senate and House of Representatives. The senate will comprise of two hundred members elected for seven years, while the House of Representatives should consist of five hundred members elected for five years.
3. Governor-General will act on the advice of executive council. It was to be collectively responsible to the parliament.
4. There should be Federal form of Government in India with Residuary powers to be vested in Centre.
5. There will be no separate electorate for minorities.
6. System of weightage should not be adopted for any province.
7. There will be no reserved seats for communities in Punjab and Bengal. However, reservation of Muslim seats could be possible in the provinces where Muslim population should be at least ten percent.
8. Judiciary should be independent from the Executive
9. There should be 1/4th Muslim Representation at Centre
10. Sindh should be separated from Bombay provided it proves to be financially self-sufficient.
11. Reforms should be introduced in NWFP

The report was strongly opposed by Muslims, and its Muslim members did not sign it. In December 1928, Muhammad Ali Jinnah presented four amendments: one-third Muslim representation at the Centre, reservation of seats in Punjab and Bengal, a federal system with

residuary powers to provinces, and separation of Sindh along with reforms in NWFP and Balochistan (Saeed, 2000).

These amendments were rejected by the Congress majority, which demanded implementation of the Nehru Report and declared January 26 as Independence Day. Jinnah termed this moment the “*parting of the ways*,” marking a clear divide between Hindu and Muslim political visions.

## **Jinnah Fourteen points**

In order to counter the proposals made in the Nehru Report, Jinnah presented his proposal in the form of Fourteen Points, insisting that no scheme for the future constitution of the government of India will be satisfactory to the Muslims until and unless stipulations were made to safe guard their interests. The following points were presented by the Quaid to defend the rights of the Muslims of the sub-continent:

1. The form of the future constitution should be federal, with the residuary powers to be vested in the provinces.
2. A uniform measure of autonomy shall be granted to all provinces.
3. All legislatures in the country and other elected bodies shall be constituted on the definite principle of adequate and effective representation of minorities in every province without reducing the majority in any province to a minority or even equality.
4. In the Central Legislature, Muslim representation shall not be less than one third.
5. Representation of communal groups shall continue to be by separate electorates: provided that it shall be open to any community, at any time, to abandon its separate electorate in favor of joint electorate.
6. Any territorial redistribution that might at any time be necessary shall not in anyway affect the Muslim majority in the Punjab, Bengal and the NWFP.
7. Full religious liberty i.e. liberty of belief, worship, and observance, propaganda, association, and education, shall be guaranteed to all communities.
8. No bill or resolution or any part thereof shall be passed in any legislature or any other elected body if three fourths of the members of any community in that particular body

oppose such a bill, resolution or part thereof on the ground that it would be injurious to that community or in the alternative, such other method is devised as may be found feasible practicable to deal with such cases.

9. Sind should be separated from the Bombay Presidency.
10. Reforms should be introduced in the NWFP and Balochistan on the same footing as in other provinces.
11. Provision should be made in the Constitution giving Muslims an adequate share along with the other Indians in all the services of the State and in local self-governing bodies, having due regard to the requirements of efficiency.
12. The Constitution should embody adequate safeguards for the protection of Muslim culture and for the protection and promotion of Muslim education, language, religion and personal laws and Muslim charitable institutions and for their due share in the grants-in-aid given by the State and by local self-governing bodies.
13. No cabinet, either Central or Provincial, should be formed without there being a proportion of at least one-third Muslim ministers.
14. No change shall be made in the Constitution by the Central Legislature except with the concurrence of the States constituting the Indian Federation (Saeed, 2000).

## **Conclusion**

In conclusion, the Muslim political struggle from 1906 to 1929 marked a decisive shift from minority safeguards to a clear demand for political recognition. Beginning with the Simla Deputation and the demand for separate electorates, Muslims asserted their distinct identity. The formation of the All India Muslim League provided a platform to protect their rights. Constitutional reforms like the Minto-Morley and Montague-Chelmsford Acts offered limited progress but failed to satisfy aspirations. The rejection of Muslim demands in the Nehru Report and the response of Muhammad Ali Jinnah through the Fourteen Points ultimately defined a separate political path for Muslims.

## Lecture No. 06

### Allama Iqbal's Presidential Address 1930

#### Micro Learning Outcomes

At the end of this lecture, Students will be able to;

| Sr. No. | MLO                                                                                                                                                                                   | Cognitive Level of Learning |
|---------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| 1.      | Identify the background, its session and key themes of the Allahabad Presidential Address (1930).                                                                                     | Remembering                 |
| 2.      | Explain Iqbal's concept of Muslim nationhood and the political significance of Allahabad Address.                                                                                     | Understanding               |
| 3.      | Analyse the key ideas of the original text of Allahabad Address (1930) by Allama Muhammad Iqbal, including Muslim identity, political autonomy, and Islam as a complete code of life. | Analysis                    |
| 4.      | Relate Iqbal's ideas in the Allahabad Address to the emergence of the Two-Nation Theory and Pakistan Movement.                                                                        | Application                 |

#### Previous Lecture Review

The previous lecture covered the period (1906–1929), which marked the beginning of organized Muslim political struggle in British India. The Simla Deputation and the All-India Muslim League aimed to protect Muslim rights. Separate electorates were granted in 1909. The Lucknow Pact ensured cooperation while acknowledging right of Separate Electorates of Muslims. The Nehru Report aimed to propose a united constitutional framework for India but was rejected by Muslims, leading to Muhammad Ali Jinnah's Fourteen Points.

#### Introduction

The lecture focuses on the concepts of nationhood, nationalism and the Two-Nation Theory as presented by Allama Muhammad Iqbal, with emphasize on their philosophical and religious

foundations. It examines how Muhammad Iqbal emphasized Islam as a complete way of life and the basis of a distinct Muslim identity. His ideas in the Allahabad Address 1930 will be examined, highlighting his vision for Muslim political autonomy and its role in the creation of Pakistan.

### **Need: Why did Iqbal deliver Address?**

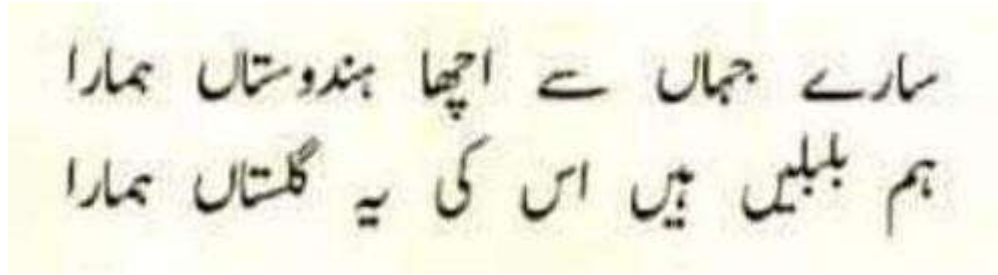
The need for the Allahabad Address arose from the political developments of the late 1920s, when constitutional reforms in British India strengthened majority rule. Although these reforms expanded participation, they created serious concerns among Muslims, especially in minority provinces, where political power depended on numbers. Earlier safeguards proved ineffective, and the failure of the Nehru Report (1928) further increased Muslim insecurity. In this context, Allama Muhammad Iqbal argued that Western-style democracy was unsuitable for India's plural society. Iqbal delivered the address to provide an intellectual and practical solution to these concerns. He emphasized that Muslims were a distinct nation with their own religious, cultural, and social values, and therefore required a separate political arrangement.

### **Allama Iqbal's Political Career**

Allama Muhammad Iqbal poet of the East and philosopher began his political career gradually, moving from an intellectual role to active political engagement in the 1920s. He was elected to the Punjab Legislative Council in 1926, where he gained practical insight into colonial governance and the limitations of representative institutions based on majority rule. During this period, his association with the All-India Muslim League strengthened, particularly after the failure of the Nehru Report (1928) to accommodate Muslim demands. By 1930, Iqbal had emerged as a prominent political thinker and leader, leading to his election as President of the All-India Muslim League session at Allahabad. In 1930, while representing the Muslim League, a famous speech was delivered in Allahabad known as the Allahabad Address.

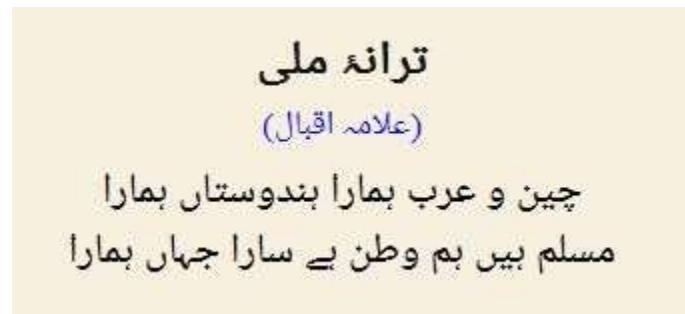
### **Iqbal Advocacy for Hindu Muslim Unity**

In his early intellectual phase, like Sir Syed Ahmad, Iqbal supported the idea of unity among the people of Subcontinent. This is reflected in his famous patriotic poem, published in 1904.



ترانہ ہندی اقبال المہ —

In this poem, Iqbal expresses love for India as a beautiful land, describing it as a “garden” and its people as “nightingales,” showing unity and harmony among communities at that time. At that time, Iqbal was promoting the idea of national unity and love for the homeland, regardless of religion or background. At this stage, Iqbal viewed Indian society as a shared cultural space. However, this idea of unity was primarily emotional and cultural rather than based on a detailed political analysis.



This poem was written in a time when Hindus and Muslims were being encouraged to unite against British rule. Iqbal’s early poetry reflects a sense of Indian nationalism along with a broader Muslim identity; their identity is global (*Ummah*-based). Over time, Iqbal reconsidered his earlier ideas.

### Evolution of Iqbal’s Political Thought

Allama Iqbal’s political thought evolved with time. He went to Europe in **1905** for higher education. He studied in England and Germany, where he developed many of his philosophical



and political ideas. After his visit to Europe, Allama Iqbal's political perspective underwent a significant transformation. He gradually shifted from supporting Indian nationalism to emphasizing a distinct Muslim identity based on religion, culture, and history. Influenced by his observations of European society, he developed a strong critique of Western materialism, highlighting its moral and spiritual shortcomings.

"اپنی ملت پر قیاس اقوامِ مغرب سے نہ کر  
خاص ہے ترکیب میں قومِ رسولِ ہاشمی"

Iqbal emphasizes that Muslims are a **distinct nation (Millat)**, united by **faith**, which is the core idea of **Muslim nationalism**.

He observed that religious, cultural, and social differences between Hindus and Muslims were too significant to be ignored in political organization. He came to the conclusion that Muslims were not merely a minority but a distinct nation with their own civilization and worldview. This shift marked a turning point in his thought and laid the foundation for Muslim nationalism. This transformation is reflected later in his political vision.

In **1930**, Allama Muhammad Iqbal clearly moved from poetic ideas of Muslim unity to a **practical political vision** in his Allahabad Address. Here, he **identified specific regions** where Muslims could form a separate political unit.

## **Iqbal's Allahabad Address: Vision for a Separate Muslim State**

Allama Muhammad Iqbal presided over the annual session of the All-India Muslim League held at Allahabad in December 1930. In his presidential address, Allama Muhammad Iqbal urged the Muslims of the Subcontinent to demand a separate homeland. This was the first time such a demand was formally articulated. His speech was based on the long-standing concept of the Two-Nation Theory. He found a golden opportunity to present his views when he was elected President of the All-India Muslim League at Allahabad. He truly himself earned the title of 'The Dreamer of Pakistan'.

## **Crux of Allahabad Address**

The crux of the Allahabad Address is the demand for **Muslim political identity, self-governance, and constitutional safeguards within a separate territorial framework**, laying the foundation for the idea of Pakistan. Now we will analyse the Allahabad Address

## **Analysis of Allahabad Address**

### **Critique of Indian Nationalism**

In the Allahabad Address (1930), Allama Muhammad Iqbal critically rejected **Indian Nationalism** by arguing that India was not a single nation but a continent of diverse communities. He opposed the idea of a unified nationalism based on territory, stating that such a system would ignore the distinct identity of Muslims and subject them to majority dominance. At the same time, he strongly highlighted Muslim nationalism, emphasizing that Muslims possessed a unique collective identity rooted in Islam. This is reflected in his words:

“India is a continent of human groups belonging to different races, speaking different languages, and professing different religions. Their behaviour is not at all determined by a common race-consciousness. Even the Hindus do not form a homogeneous group.”

This quotation supports his argument that Indian nationalism was impractical, while reinforcing the idea that Muslims, as a distinct nation, required separate political recognition and autonomy.

### **Separate Muslim Identity and Muslim Nationhood**

Allama Iqbal has deeply studied Islam as a religion and complete code of life. He was thoroughly convinced that both the Hindus and the Muslims were two entirely distinct and separate nations and that they could never be welded into one nation under any system. The concept of *Ummah* plays a central role in this understanding. It refers to the global community of Muslims united by faith and shared moral values. Iqbal further explained that Muslims formed a distinct political community because Islam had shaped their collective life over centuries.

He further emphasized the central role of Islam in shaping Muslim identity, declaring that “It cannot be denied that Islam, regarded as an ethical ideal plus a certain kind of polity—by which

expression I mean a social structure regulated by a legal system and animated by a specific ethical ideal has been the chief formative factor in the life-history of the Muslims of India. It has furnished those basic emotions and loyalties which gradually unify scattered individuals and groups and finally transform them into a well-defined people.”

Muhammad Iqbal, Presidential Address Delivered at the All-India Muslim League Session,  
Allahabad, 29 December 1930

He explained:

“Islam is not a church. It is a state conceived as a contractual organism long before Rousseau ever thought of such a thing.”

Muhammad Iqbal, *The Reconstruction of Religious Thought in Islam* (1930)

He further said that “It is not Muslims who have saved Islam; it is Islam that has saved Muslims.” These ideas align with Iqbal’s philosophy in the Allahabad Address 1930, where he emphasized that Islam is not just a religion but a **complete social and political system** shaping Muslim nationhood. It emphasizes that Islam provides a complete framework for both individual and collective life. At the same time, Iqbal advocated for the revival of Islamic political thought, presenting Islam as a complete system of life that integrates religion with governance. This intellectual shift led him to articulate the concept of Muslim nationhood, arguing that Muslims were a separate nation rather than a minority, which later became a foundational idea in the development of the **Two-Nation Theory**. This Address is considered as an authentic document on Islam as a system of life. It gave a new momentum to the struggle of the Muslims for independence.

### **Iqbal’s Perspective on Two-Nation Theory**

The Two-Nation Theory is based on the idea that Hindus and Muslims were two separate nations, each with its own religion, culture, history, and social system. Therefore, they required separate political arrangements. Iqbal’s Address states that “India is a continent of human groups belonging to different races, speaking different languages, and professing different religions. Allama Iqbal challenged the assumption that India was a single nation by asserting that it was a diverse subcontinent composed of multiple communities, each with its own religion, culture,

history, and social system. This statement reinforced the argument of the Two-Nation Theory by highlighting that India lacked the characteristics of a unified nation. Iqbal's concept of the **Two-Nation Theory** is based on the idea that **Muslims and Hindus are two separate nations**, not just religious communities.

### **Political Safeguards for Muslim**

In the Allahabad Address (1930), Allama Muhammad Iqbal initially acknowledged the need for **political safeguards** such as constitutional protections and provincial autonomy to protect Muslim rights within a federal structure of India. He was concerned that a simple majority-based system would not ensure justice for Muslims in the long run. Iqbal moved beyond the idea of temporary safeguards and argued that only **political autonomy in Muslim-majority regions** could permanently secure Muslim identity, rights, and development.

### **Formation of A North West State and Self-Government Rule**

After analyzing political realities, Iqbal presented a practical constitutional solution. He categorically identified those areas where Muslims lived in a majority.

Iqbal stated that "I would like to see the Punjab, North-West Frontier Province, Sind and Baluchistan amalgamated into a single State. Self-government within the British Empire or without the British Empire, the formation of a consolidated North-West Indian Muslim State appears to me to be the final destiny of the Muslims, at least of North-West India." (Iqbal, Presidential Address at the All-India Muslim League Session, Allahabad, 29 December 1930)

This statement from Address presents Iqbal's vision that the Muslim-majority four provinces should be merged into a single political unit. He emphasizes that Muslims of North-West India share a distinct identity based on religion, culture, and history, and therefore require political unity to safeguard their interests. His suggestion of "self-government within or without the British Empire" highlights the central demand for **Muslim autonomy and control over their own political affairs**.

Iqbal also describes the formation of a **consolidated Muslim state** as the "final destiny" of Muslims in North-West India, indicating that this development is both natural and historically

necessary. The idea is deeply rooted in the **Two-Nation Theory**, which holds that Muslims are a separate nation and cannot be effectively represented in a Hindu-majority political system.

This marked the first clear political articulation of Muslim autonomy in territorial terms. It critically examined the application of Western democracy in India and argued that majority rule in a diverse society would lead to domination rather than balanced governance.

Its essence was that “the Muslim demand for the creation of a Muslim India within India is... perfectly justified.”

Thus, this vision laid the **intellectual and ideological foundation for the demand of Pakistan**, marking a turning point in Muslim political thought in South Asia. Iqbal did not propose a state based solely on territory or power. His vision was rooted in ethical and spiritual principles derived from Islam. He emphasized that such a state should allow Muslims to organize their society according to their values while remaining adaptable to changing conditions.

In fact, Allama Iqbal and the Muslim League recognized that Muslim interests could not be adequately protected within a purely majoritarian framework, which contributed to the demand for a separate political arrangement. This reflects that the Muslim state was envisioned by Iqbal as dynamic, progressive, and morally grounded, rather than rigid or purely traditional.

Although Iqbal did not explicitly use the name Pakistan, his ideas laid its intellectual foundation. In 1933, Chaudhry Rehmat Ali introduced the name “Pakistan,” giving a clear identity to the Muslim majority areas which categorically identified by Iqbal. The idea of Pakistan came from Allahabad Address, got further documentary strength Chaudhry Rehmat Ali published a pamphlet “Now and Never” in 1933. In his pamphlet, he further elaborated Allama Muhammad Iqbal’s idea of Pakistan more comprehensively by including Kashmir within the territory of the proposed Muslim state. He also coined the word ‘Pakistan’ from the initial letters of the prospective component units of the future Muslim state. The word Pakistan literally means, ‘The Land of the Pure’.

## **Iqbal's Address: Reaction of Congress, Muslim League, and British Government**

The Allahabad Address of Allama Muhammad Iqbal received mixed reactions from different political groups. The Indian National Congress strongly opposed his ideas, as it believed in a united India and rejected the concept of separate Muslim statehood. Congress leaders viewed Iqbal's proposal as a threat to national unity and feared that it would divide the country on religious lines. The tribune condemned Iqbal for giving the idea of separate state, "Iqbal was solely responsible for the Hindu-Muslim tension." "Iqbal wanted to snatch the country of Hindus from them and to give it to the Muslims." (Hindu Columnist, *Inqilab* Lahore)

On the other hand, the All-India Muslim League gradually appreciated Iqbal's vision, as it addressed Muslim political concerns and identity. Many Muslim leaders saw it as a practical solution for safeguarding their rights. The Daily *Inqilab* and the Daily *Hamdam* Lucknow enthusiastically supported the views of Iqbal. Daily *Inqilab* writes that "the fact is that Iqbal's Address is the first crashing blow to the Hindu concept of 'Nationalism' and their desire to establish Hindu Raj." The British government, however, maintained a cautious and neutral stance; while it did not openly support the idea, it observed these developments carefully as part of its broader colonial policy of managing political differences in Subcontinent.

## **Iqbal's Correspondence with Jinnah Regarding Muslim Future**

The correspondence between Allama Muhammad Iqbal and Muhammad Ali Jinnah mainly took place between **1936 and 1937**. During this period, Iqbal wrote several letters to Jinnah, urging him to lead the Muslim community and work for a separate Muslim state in the Subcontinent.

He wrote to Jinnah:

**"A separate federation of Muslim provinces, reformed on the lines I have suggested above, is the only course by which we can secure a peaceful India and save Muslims from the domination of non-Muslims."**

Muhammad Iqbal, Letter to Muhammad Ali Jinnah, 21 June 1937 (Letters of Iqbal to Jinnah)

This shows that Iqbal viewed political separation as a practical and constitutional solution, not as

an emotional or sudden demand. At this stage, Iqbal's thought clearly established that Muslims were not merely a minority but a distinct political nation entitled to self-determination.

In another letter, he explained:

**“The question therefore is: how is it possible to solve the problem of Muslim India? The only way to do this is to redistribute the country and to provide one or more Muslim states with absolute majorities.”**

**Muhammad Iqbal, Letter to Muhammad Ali Jinnah, 28 May 1937 (Letters of Iqbal to Jinnah)**

This marked a decisive shift from demands for safeguards to the idea of separate political units based on nationhood.

## **Materialization of Iqbal's Idea into Political Reality**

Muslim politics at that stage remained largely confined to constitutional negotiation and the pursuit of safeguards within an all-India framework. Consequently, a clear gap persisted between conceptual clarity and political execution, as the Address had outlined a direction but not yet a mechanism for its realization. This gap began to narrow with the re-emergence of Muhammad Ali Jinnah as a central political authority. Iqbal wrote a series of letters to Jinnah while he was in England, urging him to return and lead the Muslims of India. Possessing both constitutional expertise and organizational discipline, Jinnah reoriented the All-India Muslim League from an elite platform into a representative political force. Jinnah leadership provided coherence, strategy, and continuity, enabling Muslim political thought to move from abstraction to structured mobilization. In this transformation, Jinnah's role was decisive.

## **Conclusion**

In conclusion, the Allahabad Address delivered by Allama Muhammad Iqbal in 1930 holds great historical significance as it provided a clear philosophical and political direction to the Muslims of the Subcontinent. It strengthened the foundation of the Two-Nation Theory by emphasizing that Muslims are a distinct nation with their own religion, culture, and identity, and that Islam is a complete way of life. Iqbal highlighted the limitations of majority rule in a diverse society and

proposed the consolidation of Muslim-majority regions as a practical solution for safeguarding Muslim interests. Finally, the address marked a shift from pan-Islamic ideals to territorial nationalism, recognizing the need for a defined geographical space for Muslims. This vision removed political confusion among Muslims and helped them understand their separate identity and future goals. His ideas were later supported by Muhammad Ali Jinnah and contributed to the formulation of the Lahore Resolution. Ultimately, the Allahabad Address played a decisive role in awakening Muslim consciousness and laid the ideological foundation for the creation of Pakistan.



## Lecture 07

# Government of India Act 1935 and Formation of Congress Ministries

### Mirco Learning Outcomes

By the end of this lecture, students will be able to:

- Identify the key features of the Government of India Act 1935, focusing on provincial autonomy and the federal structure.
- Explain how the 1937 elections reshaped political power between Congress and the Muslim League.
- Analyze how Congress ministries (1937–1939) influenced Muslim political identity.

### Government of India Act 1935

The earlier constitutional developments in the subcontinent that paved the way for the Government of India Act 1935, focusing specifically on provincial autonomy and the proposed federal structure, and how these provisions contributed to the consolidation of separate electorates and ultimately the emergence of separate states in the subcontinent, were the following.

The Indian Councils Act 1909 aimed to ease rising nationalist pressure and secure Muslim political support; the Government of India Act 1919 followed World War I to address growing demands for self-government through limited power-sharing; and the Simon Commission 1927 was appointed due to dissatisfaction with the 1919 system and the need for further reform. Consequently, the Government of India Act 1935 was introduced to establish a more comprehensive constitutional framework, address political unrest, and grant provincial autonomy.

The Important features of Govt of India Act 1935 are:

- **Federal System (Proposed):** Proposed an all-India federation including British India and princely states, though it was not implemented.

- **Provincial Autonomy:** Abolished dyarchy in provinces and granted them full autonomy with responsible governments.
- **Dyarchy at Centre:** Introduced dyarchy at the central level by dividing subjects into reserved and transferred categories.
- **Bicameral Legislature:** Established a two-house federal legislature consisting of the Council of State and Federal Assembly.
- **Expanded Franchise:** Extended voting rights to about 10–14% of the population based on property and education qualifications.
- **Separate Electorates:** Continued and expanded separate electorates for religious and minority groups.
- **Governor-General Powers:** Retained extensive powers, including veto authority and control over defense and foreign affairs.
- **Governors' Powers:** Provincial governors had special powers to override ministries and safeguard British interests.
- **Federal Court (1937):** Established a Federal Court to interpret constitutional matters and resolve disputes.
- **Division of Powers:** Introduced three legislative lists, Federal, Provincial, and Concurrent, to distribute authority.
- **Safeguards for British Control:** Key areas like defence, finance, and external affairs remained under British control.
- **Provincial Elections 1937:** Implemented provincial autonomy through elections, leading to the formation of ministries in provinces.

Provincial autonomy became a major feature of the Act. Provinces could now form elected governments. Political parties formed ministries after winning elections. These ministries became responsible for provincial administration. This reform increased Indian participation in governance.

Before this reform, provinces followed the dyarchy system. Dyarchy was introduced by the Government of India Act, 1919. Administrative powers were divided between two authorities. Indian ministers managed to transfer subjects. British officials managed reserved subjects.

Transferred subjects included education and agriculture. Reserved subjects included finance, police, and law and order. Because of this division, Indian ministers had limited authority. Many political leaders criticized the dyarchy system. They demanded greater provincial power.

The Government of India Act, 1935, abolished dyarchy in the provinces. Provincial legislatures gained greater authority over administration. The majority parties formed ministries after the elections. These ministry-controlled departments include health and agriculture. Provincial governments became more active in governance.

However, British authority remained important. The British Crown appointed the provincial governor. The governor retained special constitutional powers. He could intervene in administrative matters when necessary. These powers applied to law-and-order issues.

Provincial autonomy, therefore, expanded political participation. However, British oversight remained within the constitutional structure.

An important feature of the Act was the All-India Federation. A federation divides authority between central and regional governments. The Act proposed a federal political system for India. It aimed to unite British provinces and princely states. This structure attempted to balance national and regional governance.

The colonial administration directly governed British provinces. Hereditary rulers ruled princely states. However, they remained under British supervision. The Act divided legislative authority into three lists. These lists define the powers of each level of government.

The Federal List covered national matters such as defense. The Provincial List covered local administrative subjects. The Concurrent List allowed both the central and state governments to legislate. Central law prevailed in the event of a conflict. This arrangement attempted to balance authority.

However, the federal system never became operational. Many princely states refused to join the federation. They feared losing political authority. Without their participation, the federation could not begin. The federal provisions, therefore, remained theoretical. Although the federation failed, provincial reforms still operated. These reforms shaped the political environment of the late 1930s.

## The Elections of 1937

The Government of India Act 1935 introduced provincial autonomy. This reform created elected provincial governments. The new system required provincial elections to form ministries. Therefore, the British government organized elections in 1937. These elections became the first test of the new constitutional system.

| <b>Political Party</b>              | <b>Key Leaders</b>                                      | <b>Main Focus</b>       | <b>Major Demands / Policies/Manifestos</b>                                                                                     | <b>Nature of Politics</b>        |
|-------------------------------------|---------------------------------------------------------|-------------------------|--------------------------------------------------------------------------------------------------------------------------------|----------------------------------|
| <b>Indian National Congress</b>     | Jawaharlal Nehru, Vallabhbhai Patel, C. Rajagopalachari | Nationalism             | Complete independence (Swaraj), civil liberties, expansion of education, reduction of land revenue, and economic reforms       | All-India, broad-based           |
| <b>All-India Muslim League</b>      | Muhammad Ali Jinnah, Liaquat Ali Khan                   | Muslim political rights | Separate electorates, safeguards for Muslims, fair representation in jobs and legislatures, protection of religion and culture | Minority-focused, constitutional |
| <b>Unionist Party (Punjab)</b>      | Sir Sikandar Hayat Khan                                 | Agrarian stability      | Protection of farmers, rural development, and cooperation between communities                                                  | Regional, economic               |
| <b>Krishak Praja Party (Bengal)</b> | A. K. Fazlul Huq                                        | Peasant welfare         | Land reforms, rights of tenants, and reduction of landlord control                                                             | Regional, agrarian               |

*Table: 7.1 Manifesto of Political Parties in the 1937 Elections*

Political parties now had to compete in elections. They organized campaigns across different provinces. Candidates were nominated for many constituencies. Voters participated in the electoral process. These activities tested the practical operation of constitutional reforms.

Two major political parties emerged as dominant forces in these elections: the Indian National Congress and the All-India Muslim League. The Congress claimed to represent all Indians, while the Muslim League positioned itself as the representative of Muslim political interests

### **The Indian National Congress – Manifesto**

- Complete Independence (Swaraj) from British rule
- Civil liberties (freedom of speech, press, and association)
- Expansion of education across India
- Reduction of land revenue to ease burden on peasants
- Economic reforms for national development

### **The All-India Muslim League – Manifesto**

- Separate electorates for Muslims
- Safeguards for Muslim political rights
- Fair representation in government jobs and legislatures
- Protection of religion, culture, and identity

These elections, therefore, became politically significant. They revealed the strength of different political organizations. The results also shaped future political strategies. Provincial governments now depend on electoral outcomes. This situation changed the nature of colonial politics.

The electoral system created by the Act determined how elections were organized. Understanding this structure helps explain the election results.

**The Result of Elections of 1937**

| <b>Province</b>            | <b>Total<br/>Seats</b> | <b>Congress<br/>Seats</b> | <b>Muslim League<br/>Seats</b> | <b>Government Formed<br/>By</b>    |
|----------------------------|------------------------|---------------------------|--------------------------------|------------------------------------|
| Madras                     | 215                    | 159                       | 0                              | Congress                           |
| Bombay                     | 175                    | 86                        | 18                             | Congress                           |
| United Provinces<br>(U.P.) | 228                    | 133                       | 29                             | Congress                           |
| Central Provinces          | 112                    | 71                        | 0                              | Congress                           |
| Bihar                      | 152                    | 98                        | 0                              | Congress                           |
| Orissa                     | 60                     | 36                        | 0                              | Congress                           |
| NWFP                       | 50                     | 19                        | 0                              | Congress (Allies)                  |
| Bengal                     | 250                    | 54                        | 39                             | Krishak Praja Party<br>(Coalition) |
| Punjab                     | 175                    | 18                        | 2                              | Unionist Party                     |
| Sindh                      | 60                     | 8                         | 0                              | Coalition                          |
| Assam                      | 108                    | 38                        | 9                              | Congress (later)                   |

***Table 7.2: 1937 Elections Results***

The 1937 elections were held in eleven provinces of British India, including Punjab, Bengal, Bombay, Madras, the United Provinces, Bihar, Assam, Sindh, Orissa, and the North-West Frontier Province. Around 30 million people were eligible to vote, but participation remained limited due to property and education qualifications. A total of 1,585 legislative seats were contested, including 482 reserved for Muslims under the system of separate electorates to ensure minority representation.

## **Performance of the Indian National Congress**

The Indian National Congress performed strongly in the elections. It contested elections in most provinces. Congress organized extensive political campaigns. Its leaders mobilized voters across different regions. The party, therefore, gained significant electoral support.

Congress won approximately 716 seats in the legislature. This made it the largest political party. It secured clear majorities in several provinces. These provinces included Madras, the United Provinces, Bihar, Central Provinces, and Orissa. Congress later formed ministries in these regions.

Important provincial leaders headed these ministries. C. Rajagopalachari led the government in Madras. Govind Ballabh Pant headed the ministry in the United Provinces. Sri Krishna Sinha became the Premier of Bihar. B. G. Kher led the ministry in Bombay.

## **Analysis of Elections 1937**

The elections of 1937, held under the Government of India Act 1935, marked a turning point in British Indian politics by introducing provincial autonomy. The Indian National Congress emerged as the dominant party, winning about 716 out of 1,585 seats and forming ministries in six provinces (later seven with NWFP). However, it remained weak in Muslim-majority provinces such as Punjab and Bengal, where regional parties dominated. In contrast, the All-India Muslim League secured only about 109 seats, revealing its limited organizational strength and weak mass support.

These results exposed the weaknesses of the Muslim League and highlighted Congress dominance, leading to the practical application of majority rule. Congress's refusal to form coalition governments with the League deepened political divisions and restricted Muslim participation in governance. This experience increased mistrust and pushed Muslim leadership, under Muhammad Ali Jinnah, to reorganize the League through membership expansion and political mobilization.

The 1937 elections established Congress dominance but also triggered Muslim political consolidation, laying the foundation for the League's emergence as the representative voice of Muslims.

## **Performance of the All-India Muslim League**

The All-India Muslim League performed poorly in the 1937 provincial elections conducted under the Government of India Act 1935, exposing its limited political reach and organizational weakness at the time. Despite claiming to represent Muslim interests, the League secured only about 109 out of 482 Muslim-reserved seats and failed to win a majority in any Muslim-majority province, including Punjab, Bengal, Sindh, and NWFP.

In Punjab, it was decisively overshadowed by the Unionist Party, while in Bengal it faced strong competition from the Krishak Praja Party. Many Muslim voters preferred these regional parties, which had stronger local roots and greater influence.

This performance was particularly disappointing, as the League was unable to form governments or exert meaningful influence in provincial politics. Even in the United Provinces, where it performed relatively better, it was denied power-sharing by the Congress, further highlighting its marginal political position. The results revealed deep structural weaknesses, including its elite-centered leadership, weak grassroots organization, and limited appeal among rural Muslim populations.

However, under the leadership of Muhammad Ali Jinnah, this electoral failure became a strategic turning point. The League undertook significant reorganization, broadened its mass base, and gradually transformed into a dominant political force, ultimately paving the way for the demand for a separate Muslim state in the subcontinent.

## **Formation of Congress Ministries (1937–1939)**

Following the 1937 elections, the Indian National Congress formed ministries in six provinces Madras, Bombay, United Provinces, Bihar, Central Provinces, and Orissa and later extended its influence to a seventh province, the North-West Frontier Province (NWFP), through political alliances. This development marked the first practical implementation of provincial autonomy under the Government of India Act 1935. Although Congress initially hesitated due to the discretionary powers retained by provincial governors, it eventually agreed to assume office after receiving assurances. The formation of these ministries allowed Congress to translate its electoral success into administrative authority, establishing itself as the dominant political force in British India.



## **Refusal to Form Coalition with the Muslim League**

Despite having opportunities for inclusive governance, particularly in provinces like the United Provinces where Muslim League support could have enabled coalition arrangements, Congress largely refused to share power. It conditioned any cooperation on the Muslim League abandoning its separate political identity and merging with Congress. This position was rejected by Muslim League leadership, as it undermined their role as representatives of Muslim political interests. Consequently, Muslims were excluded from meaningful participation in provincial governments, which intensified feelings of political insecurity and reinforced concerns about majority domination.

## **Exercise of Majority Rule**

With clear electoral majorities in several provinces, Congress ministries governed on the principle of majority rule. This was the first significant experience of such governance in British India, where elected representatives exercised authority without substantial power-sharing with minority groups. While Congress leadership presented this as democratic and responsible governance, many Muslims perceived it as majoritarian rule that did not adequately protect minority rights. This experience contributed to a growing realization among Muslim leaders that constitutional safeguards were essential to prevent political marginalization.

## **Control over Key Departments**

Congress ministries exercised control over major administrative departments, including education, agriculture, public health, and local government. Through these departments, they implemented policies that shaped the social, economic, and cultural landscape of the provinces. Educational reforms, language policies, and administrative decisions reflected Congress priorities and ideology. However, in the absence of adequate Muslim representation, many of these policies were viewed with suspicion by Muslim communities, who feared that their cultural identity and socio-economic interests were not being adequately safeguarded.

Overall, the formation and functioning of Congress ministries between 1937 and 1939 not only demonstrated the working of provincial autonomy but also exposed the limitations of majoritarian governance in a diverse society. These developments played a crucial role in

shaping Muslim political consciousness and strengthened the demand for constitutional protections and a distinct political identity.

## **Atrocities Committed by Indian National Congress against Muslims**

During the Congress ministries (1937–1939), Muslim political concerns grew, gradually strengthening support for the All-India Muslim League. These concerns emerged across political, administrative, economic, cultural, and religious spheres and were widely discussed in contemporary reports.

A major issue was the limitation of the Government of India Act 1935. Although it introduced provincial autonomy, it failed to provide strong safeguards for minorities. This created fear among Muslims that majority rule could reduce their political influence. The situation became more serious after the 1937 elections, when Congress formed governments in several provinces and excluded the Muslim League in key areas such as the United Provinces, creating a clear sense of political marginalization.

During the period of Congress ministries (1937–1939), several developments were perceived by Muslims as discriminatory, contributing to a growing sense of political, economic, cultural, and religious marginalization.

### **Political Exclusion of the Muslims**

Muslims were politically marginalized during the Congress ministries as the Indian National Congress refused to form coalition governments with the All-India Muslim League unless it abandoned its separate identity. This exclusion weakened Muslim representation and limited their role in provincial governance.

### **Administrative Issues**

Muslims faced administrative biases in governance structures, where decision-making processes often did not reflect their interests. This created a perception of unequal treatment within provincial administrations.

## **Economic Exploitation of Muslims**

Economic policies, including agrarian reforms such as tenancy laws, were viewed by many Muslims particularly landlords as detrimental to their economic position, leading to a sense of economic insecurity.

## **Underrepresentation in Jobs**

Muslims remained underrepresented in government services and public sector employment. Reports such as the Pirpur and Sharif Reports highlighted these disparities, reinforcing concerns about limited access to state opportunities.

## **Cultural Alienation**

The promotion of Hindi and Congress-oriented cultural symbols in public institutions contributed to a sense of cultural dominance. Muslims felt increasingly alienated from the emerging national identity.

## **Educational Marginalization**

Educational reforms, particularly the Wardha Scheme, were criticized for not accommodating Muslim cultural and religious values. The emphasis on Hindi over Urdu further deepened concerns regarding identity and representation.

## **Religious Domination**

Policies and practices such as the promotion of Vande Mataram, along with reported restrictions on Azan and Juma prayers in some areas, were perceived as interference in religious practices, raising concerns about religious freedom.

These concerns were documented in the Pirpur Report (1938), the Sharif Report (1939), and the observations of A. K. Fazlul Huq.

These developments created a strong sense of insecurity among Muslims, leading to greater unity and increased support for the Muslim League. Under the leadership of Muhammad Ali Jinnah, the League emerged as the main representative of Muslim interests, preparing the ground for future political demands, including the idea of a separate state.

## **Reorganization of the All India Muslim League**

### **Leadership Role of Muhammad Ali Jinnah**

The experience of Congress ministries (1937–1939) strengthened the political leadership of Muhammad Ali Jinnah. He recognized that majority rule under Congress could undermine Muslim interests and therefore emphasized constitutional safeguards and effective representation. Through clear political direction and strategic leadership, Jinnah unified Muslim opinion and re-positioned the All-India Muslim League as a credible political force.

### **Membership Expansion**

After the 1937 elections exposed the organizational weaknesses of the Muslim League, Jinnah initiated large-scale membership campaigns across different provinces. These efforts expanded the party's base, strengthened its organizational structure, and increased political participation among Muslims. As a result, the League became more active, disciplined, and capable of mobilizing public support.

### **Emergence of All-India Muslim League as Sole Representative of Muslims**

The resignation of Congress ministries in 1939 created political space that the Muslim League effectively utilized. Under Jinnah's leadership, the League transformed into a broad-based representative platform. The observance of the Day of Deliverance further consolidated Muslim political sentiment. Consequently, the Muslim League emerged as the principal and widely recognized political voice of Muslims, marking a significant shift toward political unity and laying the foundation for a coherent constitutional strategy.

## **Conclusion**

The formation of congress ministries under 1935 India act failed to address the concerns of Indian Muslims and atrocities committed by the congress, strengthened Muslims resolve for the attainment of a separate homeland. We analyzed the 1937 elections and the formation of Congress ministries, which generated political, cultural, and administrative grievances among Muslims. These developments, in turn, strengthened Muslim political identity and led to the reorganization of the Muslim League under Muhammad Ali Jinnah. As a result, the League emerged as the principal representative of Muslims, laying the foundation for future political developments, including the demand for a separate homeland.

## **Lecture 08**

# **Lahore Resolution (1940) and Role of Muhammad Ali Jinnah**

### **Micro Learning Outcomes**

By the end of this lecture, students will be able to:

- Describe the background of the Lahore Resolution (1940).
- Explain the features of the Lahore Resolution (1940).
- Analyze the role of Muhammad Ali Jinnah in the Lahore Resolution (1940).

### **Introduction**

The Lahore Resolution marked a turning point in Muslim political history. It demanded independent states for Muslims in majority areas, shifting the focus from safeguards to a separate homeland. This resolution united Muslims under a clear objective and strengthened their political position. Jinnah's leadership provided direction and constitutional clarity, laying the foundation for the creation of Pakistan.

### **Need for Lahore Resolution**

After the elections of 1937, the political situation in British India changed significantly. The Indian National Congress formed governments in several provinces and gained strong political control. Muslims, represented by the All-India Muslim League, did not achieve similar success in these elections. This created a sense of political imbalance and uncertainty among Muslims.

The Congress ministries introduced policies that were viewed by Muslims as biased. Issues such as the promotion of Hindi, Bande Mataram in schools, and lack of Muslim representation increased tensions. Many Muslims felt that their religious and cultural identity was being ignored. These grievances led to distrust between Muslims and Congress leadership.

The Government of India Act 1935 also failed to satisfy Muslim demands. Although it provided provincial autonomy, it did not ensure effective safeguards for Muslim rights. Muslims feared that in a democratic system dominated by the Hindu majority, they would always remain politically weak.

At the same time, Muslim identity was becoming stronger. Leaders emphasized that Muslims were not just a minority but a separate nation with their own religion, culture, and traditions. There was a growing fear that without a separate homeland, Muslims would lose their identity and political voice.

As a result, Muslim leadership shifted from demanding minority rights to demanding a separate homeland. This marked a major change in political thinking and strategy.

These conditions led to a historic gathering where Muslims formally expressed their demands.

## **Lahore Resolution 1940**

### **Session, Timeline & Participants**

The Lahore Session was the 27th annual session of the All-India Muslim League, held at Minto Park, Lahore, from 22 to 24 March 1940. It was a landmark gathering in which Muslim political leadership came together to define the future direction of Muslim politics in British India. This was not a limited or regional meeting. Muslim leaders, delegates, and supporters came from different provinces of the subcontinent, including Punjab, Bengal, Sindh, the North-West Frontier Province (NWFP), the United Provinces (UP), Kashmir, and Balochistan. This wide participation reflected the collective concerns of Muslims across India.

The session was presided over by Muhammad Ali Jinnah, who was the President of the Muslim League. The resolution was formally moved by A. K. Fazlul Huq, the Premier of Bengal. It was supported by leaders from different regions, including Chaudhry Khaliquzzaman, Sardar Aurangzeb Khan, Sir Abdullah Haroon of Sindh, Qazi Muhammad Essa of Balochistan, and Pir Ziauddin Andrabi of Kashmir. Senior League figures such as Liaquat Ali Khan, Sir Sikandar Hayat Khan, and Khawaja Nazimuddin were also associated with the League leadership during this session.

On 22 and 23 March, detailed discussions were held on the political situation of Muslims and the failure of earlier constitutional arrangements. Leaders highlighted Muslim grievances and emphasized the need for a clear political solution. On 23 March, Jinnah delivered his historic address, explaining that Muslims were a separate nation with distinct identity, culture, and political interests. His speech provided direction and strengthened the demand for a separate homeland.

On 24 March 1940, the Lahore Resolution was adopted by the Muslim League. This marked a decisive step toward the demand for independent Muslim states. The session demonstrated that this demand represented the collective will of Muslims across the subcontinent.

The significance of this session becomes clearer when we examine the actual wording of the resolution.

### **Original Text of Lahore Resolution**

The Lahore Resolution, adopted on 24 March 1940 at the 27th annual session of the All-India Muslim League, stated:

“Resolved that it is the considered view of this session of the All-India Muslim League that no constitutional plan would be workable in this country or acceptable to the Muslims unless it is designed on the following basic principle, namely, that geographically contiguous units are demarcated into regions which should be so constituted, with such territorial readjustments as may be necessary, that the areas in which the Muslims are numerically in a majority as in the north-western and eastern zones of India should be grouped to constitute independent states in which the constituent units shall be autonomous and sovereign. That adequate, effective and mandatory safeguards shall be specifically provided in the constitution for minorities in these units and in the regions for the protection of their religious, cultural, economic, political, administrative and other rights and interests in consultation with them.”

This text clearly shows that Muslims demanded “independent states” where they could govern themselves. It emphasized autonomy and sovereignty, meaning full political control without domination by others. Although the word “Pakistan” was not used, the idea of a separate homeland was clearly presented.

The resolution also highlighted “Muslim majority areas,” such as Punjab, Bengal, Sindh, and NWFP, as the basis for these states. At the same time, it ensured safeguards for minorities, reflecting a commitment to fairness and protection of all communities.

From this text, we can clearly identify the main objectives of the resolution.

### **Objectives of Lahore Resolution**

the Lahore Resolution was the demand for independent Muslim states in the subcontinent. The Muslim League clearly stated that Muslims should have their own separate political units in areas where they were in a majority. This demand was based on the belief that Muslims could not secure their rights in a united India dominated by the Hindu majority. Therefore, a separate homeland was seen as necessary for their political survival.

Another important objective was to ensure political autonomy and sovereignty for Muslims. The resolution emphasized that the proposed states would be autonomous and sovereign, meaning they would have full authority over their internal and external affairs. This would allow Muslims to make decisions according to their own political and social values. It aimed to establish a system where Muslims could govern themselves independently.

The resolution also aimed at the recognition of Muslims as a separate nation. It rejected the idea that Muslims were merely a minority in India. Instead, it declared that Muslims had their own distinct identity based on religion, culture, and history. This recognition strengthened the Two-Nation Theory and gave legitimacy to the demand for a separate state.

Another objective was the protection of Muslim cultural, religious, and economic interests. The resolution aimed to safeguard Islamic traditions, language, and way of life. At the same time, it included provisions to ensure justice and protection for minorities living in Muslim-majority areas. This reflected a balanced approach toward governance and social harmony.

These objectives are further reflected in the key features of the resolution.

### **Features of Lahore Resolution**

The Lahore Resolution was the clear concept of a separate homeland for Muslims. It rejected the earlier demand of safeguards within a united India and instead presented Muslims as a distinct



nation. This was closely linked with the Two-Nation Theory, which argued that Muslims and Hindus were two separate nations with different religions, cultures, and social systems. This ideological shift gave a strong and permanent basis to the demand for Pakistan and the demand for independent and autonomous units. The resolution proposed that Muslim-majority regions should be grouped into “independent states,” where constituent units would be autonomous and sovereign. This meant full control over governance, laws, and administration. It also showed that Muslims wanted a constitutional and structured political solution rather than temporary arrangements.

The term “independent states” reflected flexibility in the demand. At that stage, it did not clearly define a single centralized state but allowed the possibility of more than one Muslim state. However, the underlying idea remained clear: Muslims must have political independence and self-rule. This flexibility helped unite leaders from different regions with varying political interests.

The resolution also emphasized “Muslim majority areas,” including Punjab, Bengal, Sindh, and NWFP, as the territorial basis of the proposed states. At the same time, it included a strong clause about safeguards for minorities. It ensured that non-Muslims living in these areas would have protection of their religious, cultural, and economic rights. This reflected a balanced and inclusive approach.

Another important feature was the constitutional and legal nature of the demand. The resolution was not emotional or revolutionary in tone but presented through formal political language. It aimed to achieve its goals through negotiations and legal processes.

The resolution demonstrated the unity of Muslim political voice. It was adopted unanimously by the Muslim League, showing agreement among leaders from different provinces. This unity strengthened the League’s position as the sole representative of Muslims.

## **Role of Muhammad Ali Jinnah**

Muhammad Ali Jinnah played a decisive role in shaping the Lahore Resolution and defending the Two-Nation Theory. By 1940, after decades of political experience (joining the Muslim League in 1913 and reorganizing it after 1934), he had concluded that Muslims were a separate

nation. His leadership transformed the Muslim League into a united and disciplined political force representing Muslims across India.

During the Lahore Session, Jinnah delivered his historic presidential address on 23 March 1940, in which he logically defended the Two-Nation Theory. His speech is considered one of the most important political statements in South Asian history.

“The Hindus and the Muslims belong to two different religious philosophies, social customs and literatures. They neither intermarry nor interdine together and, indeed, they belong to two different civilizations which are based mainly on conflicting ideas and conceptions. Their aspects on life and of life are different. It is quite clear that Hindus and Muslims derive their inspiration from different sources of history. They have different epics, different heroes, and different episodes. Very often the hero of one is a foe of the other and, likewise, their victories and defeats overlap.

To yoke together two such nations under a single state, one as a numerical minority and the other as a majority, must lead to growing discontent and the final destruction of any fabric that may be so built for the government of such a state.

Muslims are a nation according to any definition of a nation, and they must have their homelands, their territory and their state. We wish to live in peace and harmony with our neighbors as a free and independent people.”

In this address, Jinnah used logical arguments based on religion, history, culture, and politics to prove that Hindus and Muslims were two separate nations. He rejected the idea of a united India and showed that majority rule would lead to Muslim political weakness. His reasoning transformed the Two-Nation Theory into a practical political demand.

Jinnah also ensured the passage of the Lahore Resolution moved by A. K. Fazlul Huq and guided the Muslim League with unity and discipline. His leadership turned a theoretical idea into a powerful movement for Pakistan.

Despite strong leadership, the resolution faced different reactions from various groups.

## Reactions to Lahore Resolution

The Lahore Resolution was strongly rejected by the Indian National Congress, which considered it a threat to Indian unity. Congress leaders argued that India was a single nation and that partition on religious lines was unacceptable. The Hindu press reacted sharply and often critically. Several newspapers mocked the resolution and questioned its practicality. Notably, newspapers such as The Hindustan Times referred to it as the “Pakistan Resolution” in their editorials, even though the word “Pakistan” was not used in the original text. Some editorials also described it as “Jinnah’s Pakistan scheme” or “Jinnah ka Pakistan,” presenting it as a divisive political demand. This labeling, although intended as criticism, later popularized the term “Pakistan.”

It is important to understand that the Lahore Session was not a continuous procession but a structured political gathering consisting of meetings, speeches, and formal deliberations. While a large number of people attended, the resolution was debated and passed by elected representatives of the Muslim League. Critics from Congress and sections of the Hindu press tried to minimize its importance by portraying it as a limited or symbolic gathering. However, the participation of leaders from multiple provinces gave it national significance.

The British government adopted a cautious and strategic response. They neither accepted nor rejected the Lahore Resolution immediately. Instead, they observed the growing strength of the Muslim League and recognized it as a major political force. The British used this development to balance Congress and the Muslim League, keeping both engaged in negotiations. Their policy of delay allowed them to maintain control while the political situation evolved.

Among Muslims, the resolution received widespread support and enthusiasm. It provided a clear political objective and strengthened unity across different regions. Public meetings and discussions were held to explain its significance. Many Muslims viewed it as a practical solution to their political and cultural concerns. This support transformed the Muslim League into a mass political movement.

At the same time, Hindus living in Muslim-majority areas expressed concerns about their future. They feared loss of political influence and uncertainty regarding minority rights. These concerns increased communal tensions and led to further debate on the issue of safeguards.

These reactions highlight the broader importance of the resolution in shaping future politics.

## **Impact of Lahore Resolution**

The Lahore Resolution brought a major political transformation among Muslims of the subcontinent. It shifted Muslim politics from demanding minority safeguards to demanding complete independence. After 1940, the All-India Muslim League emerged as the sole spokesperson of Muslims. The Lahore Resolution, which was later clearly interpreted as the demand for Pakistan in the Delhi session of 1946, became popularly known as the Pakistan Resolution. This gave Muslims a clear political direction and unified them under one objective. The authority and influence of the Muslim League increased significantly after this development, especially in elections and negotiations.

Another important impact was the rise in communal polarization between Hindus and Muslims. The demand for separate states created a clear division in political thinking. Congress strongly opposed the idea, while Muslims increasingly supported it. This widened the political gap and reduced chances of Hindu-Muslim cooperation. Communal tensions increased, and both sides began to prepare for separate political futures. As a result, the idea of a united India became increasingly unrealistic.

The Lahore Resolution also had a deep impact on political developments between 1940 and 1947. It became the foundation for all future constitutional negotiations. Proposals such as the Cripps Mission (1942), the Wavell Plan (1945), and the Cabinet Mission Plan (1946) reflected the growing importance of Muslim demands. The Muslim League used the resolution as a clear policy framework in discussions with the British and Congress. Ultimately, it directly contributed to the partition of India and the establishment of Pakistan in 1947.

Another significant impact was mass mobilization and identity formation among Muslims. The resolution created strong political awareness among ordinary Muslims in both urban and rural areas. Public meetings, newspapers, and political campaigns helped spread its message across the subcontinent. Muslims increasingly identified themselves as part of a separate nation with a shared destiny. This strengthened support for the Pakistan Movement at the grassroots level.

Finally, the Lahore Resolution also had an international and constitutional impact. It brought the Muslim question to global attention, especially during and after World War II. It forced the British government to recognize the Muslim League as a key stakeholder in India's future. The

resolution also introduced a clear constitutional alternative to a unitary Indian system, making partition a practical political solution.

## **Conclusion**

The Lahore Resolution of 1940 stands as a historic turning point in the political struggle of Muslims in the subcontinent. It marked a clear shift from demanding minority safeguards within a united India to demanding independent Muslim states. This resolution provided a definite direction to Muslim politics and united them under a single objective. It also laid the ideological and constitutional foundation for the future state of Pakistan. By presenting a clear demand, the resolution transformed the Muslim League into a strong and organized political force.

The leadership of Muhammad Ali Jinnah was central to the success of this resolution. His vision, determination, and constitutional approach guided Muslims toward a realistic political solution. He successfully united Muslims from different regions and backgrounds under one platform. Through his logical arguments and clear leadership, he strengthened the demand for a separate homeland. His role in the Lahore Resolution firmly established him as the undisputed leader of the Pakistan Movement.

The Lahore Resolution directly contributed to the creation of Pakistan in 1947. It became the basis of all major political developments between 1940 and independence. The demand presented in Lahore gradually gained strength through negotiations, political efforts, and public support. Over time, this vision was achieved with the establishment of Pakistan as an independent state. Thus, the resolution served as the foundation for the emergence of a new nation. This event also provides important lessons for future generations. It highlights the importance of unity, strong leadership, and political awareness in achieving national goals. It shows that a clear vision, combined with collective effort and determination, can bring significant historical change.

## Lecture 09

### Final Phase of Pakistan Movement (1940–1947)

#### Micro Learning Outcomes

By the end of this lecture, students will be able to:

- Identify the key political developments between 1940 and 1946, including the Cripps Mission, Quit India Movement, Simla Conference, and the Elections of 1945–46.
- Explain the causes and significance of these events in shaping political relations between the All-India Muslim League and the Indian National Congress.
- Analyze how political negotiations, constitutional proposals, and electoral outcomes that shaped the demand for Pakistan and led to the partition of Subcontinent.

#### Introduction

The period from 1940 to 1947 represents the final and most decisive phase of the Pakistan Movement, during which the Muslims of the Subcontinent transformed their demand for a separate homeland into a political reality. This struggle was firmly based on the Two Nations Theory, which emphasized that Muslims and Hindus were two distinct nations with different religions, cultures, traditions, and social systems. Muslims feared that in a united India, their religious, political, and economic rights would not be protected. Under the dynamic leadership of Quaid-i-Azam Muhammad Ali Jinnah, Muslims united on a single platform and strengthened the role of the All-India Muslim League as the true representative of Muslim political aspirations.

The Lahore Resolution, passed on 23 March 1940 marked the decisive turning point in the Pakistan Movement. It declared that Muslims were not merely a minority but a separate nation and demanded that Muslim-majority regions in the northwest and northeast of India be constituted as independent states. This resolution made it clear to the British government that any future constitutional settlement in India could not be achieved without addressing Muslim political demands.

On the other hands, the outbreak of World War II made Britain dependent on India's support, but Congress's 1939 resignation and the Muslim League's demand for separate states created

a political deadlock. To end this political deadlock The British government sent different mission and gave different proposal to Indians. One of them was the Cripps Mission.

### **Cripps Mission (1942)**

The Cripps Mission (March 1942) was sent to India by the British government to secure full Indian cooperation for the World War II effort. as Japanese forces advanced in Southeast Asia. So, the Britain needed strong political support from Indian leaders because India was one of its most important colonies. However, political tensions between the British government, the Indian National Congress, and the All-India Muslim League were already very high. The British wanted cooperation in the war, but Indian political parties wanted constitutional reforms and a clear promise of independence.

To resolve this crisis, the British government sent Sir Stafford Cripps to India in March 1942. His mission was to present a new constitutional proposal and convince Indian leaders to support the war effort. so, let's talk about the main proposal.

#### **Main Proposals of the Cripps Mission**

The Cripps proposals included several important points:

- After the war, India would be granted Dominion Status, meaning it would have self government within the British Commonwealth.
- A new constitution would be prepared by Indian representatives.
- Most importantly, provinces would have the right to opt out of the future Indian union if they did not agree with the constitution.

This last point was very significant for Muslim politics. As Muslim League saw it as an indirect recognition that Muslim-majority areas could form a separate political arrangement in the future. Historians often say that this clause strengthened the League's argument that Muslims were a separate political nation.

However, the Cripps Mission failed because different political groups reacted differently to the proposals.

The Indian National Congress rejected the plan because it did not offer immediate independence and allowed the possibility of India's division.

The All-India Muslim League (AIML) rejected the Cripps Mission proposals of 1942 primarily because the plan did not openly promise the creation of a separate state of Pakistan. While the proposal offered an indirect possibility of separation for provinces, it was not the solid, obvious commitment to Pakistan that Muhammad Ali Jinnah demanded.

### **Why Did Mission Fail?**

The Cripps Mission of 1942 failed because its proposals did not satisfy either major political group in India. The Indian National Congress rejected the plan since it allowed provinces the option to opt out of a future union, which Congress saw as a threat to India's unity. The Muslim League, on the other hand, rejected it because it did not fully guarantee the creation of separate Muslim states.

This failure furthered Indian frustration with British rule, showing that Britain was unwilling to immediately grant meaningful independence despite India's contributions to the war effort. In response, the Congress decided that direct action was necessary, leading to the launch of the Quit India Movement in August 1942. The movement demanded the immediate withdrawal of the British from India and mobilized mass civil disobedience, strikes, and protests across the country, marking a decisive phase in India's freedom struggle.

### **Quit India Movement (1942)**

The Quit India Movement, launched in August 1942, was a decisive mass movement demanding the immediate withdrawal of the British from India. It was led by the Indian National Congress under the leadership of Mahatma Gandhi, who called for "Do or Die" as the guiding principle of civil disobedience. The movement emerged as a direct response to the failure of the Cripps Mission, which had promised postwar dominion status but failed to grant immediate independence or satisfy Indian leaders.

### **British Reaction and Suppression**

The British government reacted very quickly against it. Within days, many Congress leaders, including Gandhi and Jawaharlal Nehru, were arrested. Political gatherings were banned, and strict laws were imposed to stop protests. Because of this repression, the movement lost much of its leadership, although protests continued in different parts of India.



### **Position of the All India Muslim League**

The All-India Muslim League did not support the Quit India Movement. Because, Quaid-i-Azam Muhammad Ali Jinnah believed that immediate independence without constitutional safeguards would create a Hindu-majority government that might ignore Muslim interests.

Instead of joining Congress protests, the Muslim League continued its political work and focused on strengthening the demand for Pakistan. Moreover, the talks between Muhammad Ali Jinnah and Mahatma Gandhi in 1944 aimed to resolve differences over India's future. Gandhi supported the idea of united India, while Jinnah strongly demanded a separate Muslim state (Pakistan). The talks end too without any result.

### **Simla Conference (1945)**

The British arranged the Simla Conference in 1945 mainly to resolve the growing political deadlock in India and to prepare for a future transfer of power. The Simla Conference is also known as 'Wavell Plan' because it was proposed by the British Viceroy of India, Archibald Wavell, in 1945. He designed the plan to break the political deadlock between the All-India Muslim League and the Indian National Congress. The main aim of the conference was to create a new Executive Council that would include representatives from different political communities and give Indians a greater role in governance.

#### **The Wavell Plan**

- Reconstitution of the Viceroy's Executive Council with equal representation for Hindus and Muslims.
- Appointment of an Indian as the Defense Member to give Indians more say in wartime administration.
- Exclusion of the issue of independence or partition from immediate discussions; the plan focused on interim governance.
- Provision that major portfolios would be shared between Congress and the Muslim League, while smaller communities would be given representation too.

The biggest conflict at the conference was about who had the right to represent Muslims in the new Executive Council. The All-India Muslim League, led by Quaid-i-Azam Muhammad Ali Jinnah, argued that it was the only true representative of Indian Muslims and therefore should nominate all Muslim members. While, the Indian National Congress rejected the

Wavell Plan (1945) because it did not accept the claim of the All-India Muslim League to be the sole representative of all Muslims in India. Congress also opposed the plan's system of communal representation, which divided political power between Hindus and Muslims. Moreover, it believed that giving equal representation would ignore Congress's majority support and weaken its political authority.

Because neither side was willing to change its position, negotiations reached a deadlock.

Historians often argue that the failure of the Simla Conference made it increasingly difficult to maintain a united India. Instead of resolving tensions, it deepened political divisions and prepared the ground for later events such as the elections of 1945–46 and the Cabinet Mission Plan.

### **Elections 1945–46**

By the end of World War II, the British government realized that it could no longer continue colonial rule in India for a long time. Political pressure from Indian leaders was increasing, and new constitutional arrangements were expected. Therefore, elections were announced for the Central Legislative Assembly and Provincial Assemblies in 1945 and 1946.

At this stage, two major political parties dominated Indian politics:

- The Indian National Congress, which supported a united India.
- The All-India Muslim League, led by Quaid-i-Azam Muhammad Ali Jinnah, which demanded Pakistan based on the Two-Nation Theory.

The Muslim League fought the elections on a single, clear slogan Pakistan. Jinnah presented the elections as a choice between Muslim political independence and possible domination under a Hindu-majority government. Political rallies, newspapers, student organizations, and public speeches were used to mobilize Muslim voters.

Congress, on the other hand, campaigned for a united and independent India, emphasizing nationalism rather than communal identity. However, Under the leadership of Muhammad Ali Jinnah, the Muslim League won a majority of Muslim-reserved seats in both central and provincial legislatures. This victory proved that the League had become the sole representative of Muslims and strengthened its demand for the creation of Pakistan.

## Result of the Elections;

It also gained major victories in Muslim constituencies in provinces like Bengal, Punjab, and Sindh.

### Provincial Assembly Elections (1946)

| <b>Result of Provincial Assembly Elections (1946)</b> |                    |                           |                  |                                                        |
|-------------------------------------------------------|--------------------|---------------------------|------------------|--------------------------------------------------------|
| <b>Province</b>                                       | <b>Total Seats</b> | <b>Muslim League Wins</b> | <b>Approx. %</b> | <b>Political Significance</b>                          |
| Bengal                                                | 119                | 113                       | 95%              | League formed government; strong Pakistan support      |
| Punjab                                                | 86                 | 73                        | 85%              | Became largest Muslim party despite coalition politics |
| Sindh                                                 | 34                 | 27                        | 9%               | Strengthened League influence                          |
| NWFP                                                  | 36                 | 17                        | 47%              | Congress performed better here (regional variation)    |
| Assam (Muslim Seats)                                  | 34                 | 31                        | 91%              | Supported grouping with Muslim provinces               |
| <b>Total</b>                                          | <b>492</b>         | <b>425–430</b>            | <b>85–90%</b>    | Massive Muslim political consolidation                 |

Table: 9.1 The result of Provincial Assembly Elections (1946)

### Political Importance of the Elections

The elections of 1945–46 had several major consequences: like

#### 1. Strengthened Jinnah's Leadership:

Jinnah emerged as the undisputed spokesman of Muslims in negotiations with the British government.

#### 2. Changed British Policy:

The British recognized that any constitutional plan had to include the Muslim League because it had proven its popular support.

#### 3. Increased Political Polarization:

The clear division between Congress and the Muslim League made compromise more difficult and pushed politics closer to partition.

### The Cabinet Mission (1946)

After the Elections of 1945–46, it became clear that Indian politics was deeply divided. The Muslim League had won most Muslim seats and demanded Pakistan, while Congress still supported a united India with a strong central government. The British government realized that it needed a final constitutional plan before transferring power.

In March 1946, Britain sent three senior ministers, Lord Pethick-Lawrence, Sir Stafford Cripps, and A. V. Alexander to India. Together, they formed what is known as the Cabinet Mission. The plan included both short-term and long-term proposals. In the short term, it suggested forming an Interim Government, while in the long term, it proposed a system with a weak center and strong provinces.

#### Main Proposals of the Cabinet Mission Plan

Its key points included:

- India would remain a single union, responsible mainly for defense, foreign affairs, and communications.
- Provinces would form three groups:
  - o Group A: Hindu-majority provinces
  - o Group B: Muslim-majority provinces of the northwest
  - o Group C: Bengal and Assam
- Provinces would have significant autonomy and could later reconsider their position.

In addition to its constitutional proposals, the Cabinet Mission Plan suggested the formation of an Interim Government at the centre. The Interim Government was to include major political parties, especially the Indian National Congress and the All-India Muslim League. It was meant to act as a temporary government until a new constitution was prepared. The government would work under the existing system but with more participation of Indian leaders in running the country. The Viceroy would remain the head, while Indian ministers would manage most of the important departments. The Muslim League initially accepted the plan because it allowed Muslim-majority provinces to act together, which could eventually lead to Pakistan in practice, even if not immediately in name.

#### Reaction of Political Parties

The Muslim League, led by Quaid-i-Azam Muhammad Ali Jinnah, saw the grouping system as a way to protect Muslim political rights.

The Indian National Congress accepted the idea of a united India but interpreted the grouping arrangement differently, favoring a strong central government.

### **Why Did the Cabinet Mission Fail?**

The plan collapsed because Congress and the Muslim League could not agree on how it should be implemented. Congress wanted the provinces to be free from permanent groupings, while the Muslim League insisted that grouping was essential for Muslim political security.

When Congress announced its interpretation of the plan, the Muslim League felt that its position had been undermined and withdrew its acceptance. This marked the failure of the last major attempt to maintain a united India through constitutional compromise.

### **Importance of the Cabinet Mission in the Pakistan Movement**

Even though the mission failed, it played a very important role in history:

1. It showed that political unity between Congress and the Muslim League had become extremely difficult.
2. It convinced many leaders that partition might be the only solution to avoid continuous political conflict.
3. It strengthened the idea that Muslims required a separate political structure to protect their interests.

### **Direct Action Day**

After the Cabinet Mission Plan (1946) failed, political relations between Congress and the Muslim League became extremely tense. The Muslim League believed that Congress was trying to weaken Muslim political rights by changing the interpretation of the plan, especially regarding provincial groupings and autonomy.

Quaid-i-Azam Muhammad Ali Jinnah argued that peaceful negotiations had not produced a satisfactory solution. Therefore, the Muslim League announced that Muslims would demonstrate their political power through Direct Action in 16 August, 1946. For a peaceful show of unity and protest to support the demand for Pakistan.

Unfortunately, the situation quickly turned violent in some areas particularly in Bengal. Communal riots broke out in Calcutta and later spread to other parts of India. Thousands of people lost their lives.

Historians emphasize that the violence reflected the already fragile political atmosphere rather than the original intention of the Muslim League's leadership. Because of these

developments, Direct Action Day is often seen as a turning point that pushed events closer to the Mountbatten Plan and the creation of Pakistan.

### **Mountbatten Partition Plan (1947)**

By early 1947, political tensions in India had reached a critical point. The failure of the Cabinet Mission Plan and the communal violence that followed Direct Action Day convinced the British government that maintaining control over India was becoming impossible. To manage the transfer of power, Britain appointed Lord Louis Mountbatten as the last Viceroy of India in March 1947.

Mountbatten held meetings with major political leaders, including Quaid-i-Azam Muhammad Ali Jinnah, Jawaharlal Nehru, and Mahatma Gandhi. After studying the political situation, he concluded that the differences between Congress and the Muslim League were too deep to be resolved within a single State. So, gave his Plan which is also known as 3June Plan in History.

#### **Main Features of the Mountbatten Plan (June 3, 1947)**

On 3 June 1947, Lord Mountbatten announced a plan to divide British India into two independent countries: India and Pakistan. This plan suggested that areas with Muslim majorities would become Pakistan, while Hindu-majority areas would remain India. It also proposed the division of important provinces like Punjab and Bengal through boundary commissions, and allowed princely states to choose which country they wanted to join. Most importantly, it set a quick deadline for independence in August 1947, showing that the British wanted to leave India as soon as possible.

This plan was very important because it provided a clear and final solution to the long political conflict between the All-India Muslim League and the Indian National Congress. Muhammad Ali Jinnah accepted the plan because it ensured the creation of Pakistan, even though partition would bring challenges and sacrifices. Congress leaders also agreed, as they realized that partition was the only practical way to end political deadlock and gain independence.

The 3 June Plan was both a solution and a tragedy. It successfully led to independence, but it also caused mass migration, violence, and human suffering during partition. Therefore, it remains one of the most significant and far-reaching decisions in South Asian history.

**Independence and Partition (1947)**

After the acceptance of the Mountbatten Plan, the process of dividing British India began quickly. The Radcliffe Commission was formed to draw the boundaries between India and Pakistan. However, because the timeline was extremely short, many decisions were made in haste. This created deep resentment and led to disputes, making the partition process more painful for Pakistan.

On 14 August 1947, Pakistan emerged as an independent state, followed by India's independence on 15 August 1947. Quaid-i-Azam Muhammad Ali Jinnah became the first Governor-General of Pakistan, and the new nation began its journey under very challenging circumstances.

**Concluding Remarks**

The final phase of the Pakistan Movement (1940–1947) represents one of the most decisive periods in the history of South Asia. During these crucial years, the demand for a separate homeland evolved from a constitutional proposal into a powerful mass movement grounded in ideology, political organization, and strategic leadership of Quaid-i-Azam Muhammad Ali Jinnah. Under the visionary guidance, the Muslims of the Subcontinent transformed their political aspirations into achievable goal. Thus, the study of this period allows for a critical understanding of how ideas, leadership, democratic mandate, and political negotiation collectively shaped the emergence of Pakistan.

## **Lecture 10**

# **The Role of Women and Students in the Pakistan Movement**

### **Micro Learning Outcomes**

By the end of this lecture, students will be able to:

- Identify the key roles of women leaders, students, and youth organizations in the Pakistan Movement
- Explain how educational institutions and student bodies promoted the ideology and success of the Pakistan Movement.
- Analyze the political, social, and constitutional contributions of women leaders in the Pakistan Movement.

### **Introduction**

The Pakistan Movement was not only led by famous political leaders. Rather, it was a wide national struggle in which many groups of Muslim society took part. The Women played a very important role in Pakistan Movement. They came out of their homes, raised awareness, arranged meetings, and encouraged others to support the idea of Pakistan. Their courage and support gave strength to the movement. On the other side, Students were also very active in it. They spread ideas, organized rallies, and worked with great energy and discipline. They became the voice of change and helped All India Muslim League in their political struggle against the Congress. Together, women and students brought new energy to the Pakistan Movement. With their hard work, strong spirit, and dedication, the dream of Pakistan became a reality in 1947.

This lecture explores the contributions of prominent women leaders such as Fatima Jinnah, Begum Ra'ana Liaquat Ali Khan, and Begum Shaista Ikramullah, along with the role of student and youth organizations including the Muslim Students Federation, Aligarh Muslim University, and Islamia College Peshawar in the Pakistan Movement. Fatima Jinnah represented steadfast political support and motivated Muslim women nationwide. Begum Ra'ana Liaquat Ali Khan showed how political involvement could be connected to social



organization and institution-building, while Begum Shaista Ikramullah contributed intellectual and constitutional guidance to the movement and later helped shape Pakistan's constitution. Similarly, student organizations and educational institutions played a key role in spreading ideas and mobilizing grassroots support in the different part of India. The Muslim Students Federation acted as the youth wing of the Muslim League. Aligarh Muslim University provided intellectual support and guidance, while Islamia College Peshawar strengthened political mobilization in a strategically important region. Now, we discuss the role of Fatima Jinnah as a *Mādar-e Millat*.

## **Fatima Jinnah as a *Mādar-e Millat***

### **Biography**

Fatima Jinnah was born in 1893 in Karachi into a family that valued education and public service. At a time when higher education for Muslim women was rare, she trained as a dentist and became a qualified dental surgeon. Her education reflected her progressive thinking, independence, and commitment to public service, qualities that later defined her political career. Beyond being the sister of Quaid-i-Azam, she became an influential leader who inspired women across the subcontinent.

The role of Fatima Jinnah in the Pakistan Movement clearly shows how strong character, political understanding, and active participation can change the course of a nation. She is Known as *Mādar-e-Millat* (Mother of the Nation), she was not only the sister of Muhammad Ali Jinnah, but also a powerful leader. She motivated Muslim women, spread awareness, and played an active part in the movement. Her efforts helped strengthen the idea of the Pakistan Movement and encouraged greater participation from society, especially the women.

### **Political Engagement**

Fatima Jinnah's active political role began in the 1930s, when the All-India Muslim League was reorganized under the leadership of Quaid-i-Azam. After the death of her mother and later her sister-in-law, she took a central role in managing her brother's personal and political affairs. Her work soon went beyond helping in private, and she became active in Muslim League meetings, public events, and political gatherings. By doing this, she challenged the common belief that women should stay at home. A very important moment was her presence at the Lahore session in March 1940, where the Lahore Resolution was passed. Her participation showed that women were becoming part of politics and encouraged other

Muslim women to support the movement. Fatima Jinnah Contribution for Pakistan cannot be defined in words but for understanding her role, we can discuss her contribution in four points. Number one, the Symbolic Representation.

## **Contribution for the Pakistan Movement**

### **Symbolic Representation**

Fatima Jinnah embodied the dignity, resilience, and moral integrity of the Pakistan Movement. Her public appearances reinforced the perception that the struggle was not just a political campaign but a moral and national cause. Her visibility inspired women across Punjab, Bengal, Sindh, and the North-West Frontier Province to attend meetings, contribute financially, and actively support for Muslim League candidates. She also played a important role in organizational mobilization.

She played a pivotal role in encouraging the formation of women's branches of the All-India Muslim League, which undertook systematic efforts to educate women on political developments. These branches organized study circles, disseminated pamphlets, and arranged public gatherings. Women volunteers conducted door-to-door campaigns, particularly during the 1945–46 elections, which were crucial in establishing the Muslim League as the sole representative of Indian Muslims. Her efforts ensured women contributed significantly to this historic mandate.

### **Ideological Articulation**

Fatima Jinnah consistently emphasized that Muslims were a distinct nation with unique cultural and legal traditions. She connected the demand for Pakistan with broader principles of justice, equality, and representative governance. While she did not draft formal constitutional documents, her speeches and public statements reflected a sophisticated understanding of constitutionalism and democratic principles.

### **Legacy and Psychological Impacts**

Beyond organizational and symbolic contributions, Fatima Jinnah played a key psychological role. Her dignified presence alongside the Quaid-i-Azam projected unity, moral strength, and confidence, reassuring Muslims that they were capable of self-governance. She became a symbol of principled leadership and moral authority, leaving an enduring mark on the Pakistan Movement. After discussing the role of Fatima Jinnah, it is important to also

highlight the contributions of Begum Ra'ana Liaquat Ali Khan in strengthening women's role in the Pakistan Movement.

## **Begum Ra'ana Liaquat Ali Khan**

### **Biography**

She was born in 1905 and received higher education in economics and social sciences, which developed her analytical skills and intellectual confidence. Her academic background shaped her understanding of economic justice, social welfare, and the responsibilities of the state. As the wife of Liaquat Ali Khan, a leading figure of the Muslim League and the first Prime Minister of Pakistan, she held a prominent public position. However, her contributions were not limited to her association with him; she emerged as an independent leader, known for her organizational abilities, clear vision, and strong commitment to social reform. Now, we talk about her political engagement.

### **Political Engagement**

During the Pakistan Movement, Begum Ra'ana actively participated in public meetings, political campaigns, and mobilization efforts. She organized women's committees across different regions, emphasizing the importance of civic awareness and political education. Her speeches consistently highlighted that political independence must be paired with social progress, especially in the areas of education and economic participation for women. She encouraged women to understand constitutional developments, acquire political knowledge, and become active participants, transforming passive supporters into a vibrant force in the movement. Her leadership was particularly critical during the 1945–46 elections, when women's mobilization strengthened the Muslim League's organizational network at the grassroots level.

### **Contributions to Social Welfare and Institution Building**

The humanitarian crisis following after the partition in 1947 that presented unparalleled challenges for Pakistan, as millions of refugees migrated across the newly drawn borders. Begum Ra'ana Liaquat Ali Khan played a central role in organizing relief efforts for them, mobilizing women volunteers to provide medical aid, distribute food, and offer vocational training. Recognizing the need for long-term solutions, she founded the All-Pakistan Women's Association (APWA), a pioneering institution dedicated to women's education,

economic empowerment, and social welfare. APWA established schools, vocational centers, and health clinics, demonstrating that the ideals of the Pakistan Movement extended beyond political sovereignty to include social justice and human development. Apart from social and welfare contribution, now we will discuss her domestic contributions

### **Diplomatic and National Services**

Begum Ra'ana served as Pakistan's ambassador to several countries, enhancing the nation's international reputation and projecting the image of a progressive, inclusive state. She represented Pakistan at international forums, advocating cooperation, social development, and women's empowerment. Moreover, Begum Ra'ana Liaquat Ali Khan's life exemplifies how women's participation in the Pakistan Movement bridged the transition from colonial subjugation to independent statehood. She demonstrated that political sovereignty was a means to achieve a just and equitable society, linking independence with social reform.

## **Begum Shaista Ikramullah**

### **Biography**

Begum Shaista Ikramullah was born in 1915 in Bengal in a well-known and politically active family. She grew up in an environment that encouraged education and public service. At a time when very few Muslim women had access to higher education, she completed advanced studies and became one of the first Muslim women to earn a PhD degree.

Her education in literature and social sciences helped her develop strong thinking and analytical skills. It also prepared her to take part in important discussions about nation-building, minority rights, and constitutional development. This strong educational background later supported her work as a political thinker, activist, and diplomat. Begum Shaista Ikramullah represents the intellectual, constitutional, and diplomatic role of women in the Pakistan Movement. While many women participated through social work and public mobilization, she contributed with her strong academic background, understanding of constitutional matters, and international perspective. Her role shows that the Pakistan Movement was not only a political struggle but also an effort to build a strong constitutional system. Now, we will discuss her active role in Pakistan Movement, a key role in constitutional development and representing Pakistan on international platforms as a skilled diplomat.

## **Political Engagement**

Her political involvement intensified during the 1940s, particularly after the Lahore Resolution of 1940, when the demand for Pakistan gained momentum. She actively campaigned for the All-India Muslim League, especially in Bengal, where political dynamics were complex. Through speeches, writings, and public engagements, she articulated the constitutional rationale of the Two-Nation Theory, arguing that Muslims constituted a distinct political community whose cultural, legal, and religious identity required protection. Her advocacy emphasized that democracy in a religiously diverse subcontinent needed constitutional safeguards to protect minority rights. By grounding her arguments in reasoned constitutional principles rather than purely emotional appeals, she helped translate the ideological foundations of Pakistan into actionable political discourse.

Her efforts also focused on mobilizing educated Muslim women. By addressing public gatherings and engaging in intellectual debate, she demonstrated that women could participate meaningfully in politics and contributed to normalizing women's public agency within Muslim society.

## **Contributions to Constitutional Development**

After independence in 1947, Begum Shaista Ikramullah was elected to Pakistan's Constituent Assembly, playing a vital role in framing the country's constitution. She actively participated in debates concerning fundamental rights, minority protections, and women's representation, bridging Islamic principles with democratic governance. She challenged the notion that Islam confined women to domestic roles, highlighting historical examples of women's public participation and arguing for gender equality within an Islamic framework. Her interventions ensured that constitutional deliberations considered both religious identity and modern governance principles.

## **Diplomatic Career and Legacy**

Beyond her national contributions, she represented Pakistan at the United Nations, participating in discussions on human rights, social development, and international cooperation. Her diplomatic work strengthened Pakistan's global standing while advocating for social justice and gender equality.

Begum Shaista Suhrawardy Ikramullah's life illustrates the integration of education, political activism, and constitutional advocacy. She not only advanced the cause of Pakistan but also

ensured that women's political participation, constitutional safeguards, and Islamic-democratic principles were firmly embedded in the new nation's framework. There are also some other important names of women who actively participated in the Pakistan Movement and supported the creation of Pakistan.

## **Other Prominent Women in the Pakistan Movement**

Bi Amma (Abadi Bano Begum) was among the early pioneers who inspired political awareness and encouraged women to participate in national causes. Begum Jahan Ara Shahnawaz and Begum Shaista Ikramullah represented women at political and legislative levels, contributing to discussions and decision-making processes. Lady Abdullah Haroon and Begum Viqar-un-Nisa Noon also worked actively to promote the Muslim League's cause and encouraged women's involvement in political activities. Among the most powerful symbolic acts of the Pakistan Movement was carried out by Fatima Sughra in Lahore. In March 1947, amid intense political unrest and protests against British rule, she climbed the Punjab Civil Secretariat, removed the British Union Jack, and hoisted the Muslim League flag. This bold act, performed during a time of widespread tension and uncertainty, became a strong symbol of resistance and inspired greater participation, especially among women.

## **Socio-Political Barriers Faced by Women in the Subcontinent**

Women of the subcontinent faced numerous socio-political barriers during the Pakistan Movement that limited their active participation in public and political life. Deeply entrenched cultural norms confined women to the domestic sphere, where practices like purdah restricted their mobility and interaction outside the home. This seclusion made it difficult for women to directly engage in political activities or attend public gatherings. In addition, the patriarchal structure of society discouraged women from taking independent initiatives, as their roles were largely defined in relation to family responsibilities. Limited access to education further hindered their political awareness and ability to contribute effectively, particularly among middle- and lower-class women who lacked exposure to political discourse. Even when women participated, their involvement was often seen as supportive rather than leadership-oriented, with men occupying the central decision-making positions. Social criticism and moral scrutiny also acted as strong deterrents, as women who stepped into public life were often judged for defying traditional expectations. Furthermore, institutional barriers restricted their representation in formal political organizations, leaving

them with little influence over policy or strategic decisions. Despite these challenges, many women found alternative ways to contribute, such as organizing within their homes, mobilizing other women, spreading political awareness, and supporting nationalist efforts indirectly. Their participation, though constrained, demonstrated resilience and determination, as they navigated a complex social environment to play a meaningful role in the movement. Apart from the women role, the role of students is equally important to discuss here.

## **Role of Students and Youth Organizations**

The participation of students and youth organizations in the Pakistan Movement was one of the most dynamic and decisive elements of the struggle. While senior leadership formulated constitutional strategies and negotiated with the British government, it was the youth who carried the message of the Muslim League to towns, villages, and educational institutions across British India. Their activism transformed the movement into a mass-based phenomenon.

Students and youth organizations were decisive in the Pakistan Movement. While senior leaders negotiated and planned policies, youth disseminated the Muslim League's message across towns, villages, and educational institutions, transforming it into a mass movement.

Youth activism was marked by energy, idealism, and organizational flexibility. Students organized study circles to discuss constitutional proposals, provincial autonomy, and minority safeguards, developing a sophisticated understanding of political issues. They distributed pamphlets, held public meetings, and campaigned during the 1945–46 elections, ensuring Muslim League dominance.

Youth participation and their visible engagement of young men and women demonstrated widespread support and contributing to nation-building. A few prominent institutions and colleges were Muslim Students Federation (MSF), Students of Aligarh Muslim University (AMU), and Islamia College:

### **The Muslim Students Federation**

The All-India Muslim Students Federation (MSF) was established in 1937 under the guidance of Quaid-e-Azam Muhammad Ali Jinnah to organize Muslim students on a single platform and align them with the objectives of the All-India Muslim League. Its creation came at a time when student communities were becoming increasingly active in politics, and there was a need to channel their energy toward a unified political goal. The MSF aimed to develop

political awareness among Muslim youth and prepare them to support the demand for a separate Muslim homeland. The main focus of the MSF was to promote the ideology of Muslim nationalism, create unity among Muslim students, and strengthen their attachment to the Muslim League. It worked to educate students about their political rights, encourage discipline and leadership, and inspire them to actively participate in the struggle for independence. The federation also emphasized character-building and a sense of responsibility among young Muslims so they could contribute effectively to the future of the community.

In terms of its role in the making of Pakistan, the MSF proved to be highly influential. It organized student rallies, conferences, and campaigns across the subcontinent to spread the message of Pakistan. Its members played a key role in mobilizing public opinion, especially among the youth, and acted as volunteers during major political events such as the Lahore Resolution. MSF activists traveled to different areas to raise awareness, distribute pamphlets, and encourage support for the Muslim League. Their enthusiasm, organizational strength, and commitment helped transform the Pakistan Movement into a mass movement, making the MSF an important force in the creation of Pakistan. On the one hand,

### **Aligarh Muslim University**

The students of Aligarh Muslim University (AMU) were at the intellectual forefront of the movement. AMU acted as a center of political thought where students strongly supported the demand for Pakistan. Prominent figures associated with Aligarh included Liaquat Ali Khan, Chaudhry Khaliquzzaman, and Ishtiaq Hussain Qureshi, who were influenced by its environment and later emerged as important leaders. AMU students actively participated in political debates, wrote articles, distributed pamphlets, and took part in Muslim League campaigns, helping to shape public opinion in favor of Pakistan.

### **Islamia College Peshawar**

Islamia College Peshawar, established in 1913, played a central role in the North-West Frontier Province. Students conducted rallies, public lectures, and grassroots campaigns to promote the Muslim League's constitutional vision, particularly during the 1947 referendum determining the province's accession to Pakistan.

Islamia College Peshawar played a significant role in mobilizing Muslim youth, especially in the North-West Frontier Province. Students from these institutions showed great enthusiasm



by participating in protests, public meetings, and political campaigns. Islamia College Peshawar became a strong center of support for the Muslim League, with student leaders and activists encouraging unity and political awareness among Muslims in the region.

### **Concluding Remarks**

The role of women and students in the Pakistan Movement shows that the creation of Pakistan was a shared national effort based on strong beliefs, clear thinking, and organized action. Women leaders such as Fatima Jinnah, Begum Ra'ana Liaquat Ali Khan, and Begum Shaista Ikramullah played an important role by mobilizing people, building institutions, and supporting constitutional development. Their efforts widened the movement and helped secure a place for women in Pakistan's national and constitutional life. At the same time, student organizations, including the Muslim Students Federation, the students of Aligarh Muslim University, and Islamia College Peshawar, served as the driving force of grassroots mobilization. They disseminated the ideology of the Muslim League, organized electoral campaigns, and ensured mass support for the demand for Pakistan.

## **Lecture 11**

### **Early Problems of Pakistan**

#### **Micro Learning Outcomes**

By the end of this lecture, students will be able to:

- Identify the major early problems faced by Pakistan after independence in 1947.
- Explain the effects of partition on migration, economy, and administration in Pakistan.
- Analyze the long-term impact of Kashmir and water disputes on Pakistan's development.

#### **Introduction**

This lecture explores the critical challenges faced by Pakistan immediately after its independence in 1947. It covers the refugee crisis, the division of assets, the Radcliffe Award, water disputes, princely states' accession, and administrative problems. These events shaped the political, economic, and social foundations of the new state. We will examine the impact of partition on migration, resources, military capabilities, territorial disputes, and governance, highlighting both the struggles and resilience that defined Pakistan's early years. The lecture also emphasizes key conflicts like Kashmir and the long-term implications of decisions made during partition, providing insights into Pakistan's historical and geopolitical landscape.

#### **Early Problems of Pakistan**

After partition, Pakistan encountered numerous serious political, economic, social, and administrative problems and challenges. These problems were crucial in shaping the early years of Pakistan, as the country had to manage a wide range of complexities from its very inception.

#### **Refugee Problem**

The refugee problem was one of the most serious and urgent challenges faced by Pakistan after independence. The partition of British India led to a massive migration of people across the newly created borders. Millions of Muslims migrated from India to Pakistan, while Hindus and Sikhs moved from Pakistan to India. This migration is considered one of the largest in human history.

It is estimated that around six to seven million Muslims migrated to Pakistan within a short period. Most of these refugees settled in West Pakistan, particularly in Punjab, Sindh, and Karachi. The sudden arrival of such a large population created an enormous burden on the new state, which already lacked sufficient resources and infrastructure.

### **Quaid-i-Azam's Statement on Refugees**

Quaid-i-Azam Muhammad Ali Jinnah, in his speech, addressed the refugee crisis with compassion and determination. He said, "The refugees have endured unimaginable hardship, but their resilience will serve as the foundation of our great nation. Together, we will overcome these difficulties and build a prosperous future." This statement gave the refugees the courage to persevere and contribute to the development of Pakistan.

### **Violence and Human Suffering**

The migration was not peaceful. It was accompanied by widespread communal violence. Thousands of people were killed, injured, or displaced during riots. Trains carrying refugees were often attacked, and many families were separated forever.

Refugees arrived in Pakistan in a very poor condition. Many had lost their homes, belongings, and even family members. They were emotionally and physically exhausted. This created an urgent need for relief and rehabilitation.

### **Challenges Faced by the Government**

The government of Pakistan was newly formed and lacked resources. It faced immense difficulty in managing such a large number of refugees. There were several major challenges:

- **Housing:** There were not enough homes for refugees. Temporary camps were set up, but they were overcrowded.
- **Food and Water:** Providing basic necessities like food and clean water was a major issue.
- **Healthcare:** Many refugees were sick or injured, and medical facilities were limited.
- **Employment:** Refugees needed jobs to rebuild their lives, but opportunities were scarce.

Cities like Karachi and Lahore experienced a sudden population increase, putting pressure on infrastructure and services.

### **Settlement and Rehabilitation**

To solve the refugee problem, the government took several steps:

- Abandoned properties left by Hindus and Sikhs were allocated to Muslim refugees.
- Refugee camps were established for temporary shelter.
- Efforts were made to provide jobs and integrate refugees into society.

Despite initial difficulties, many refugees contributed positively to Pakistan's economy. They brought skills, experience, and determination, which helped in the development of industries, trade, and education.

### **Division of Assets**

After the refugee problem we are going to discuss another major problem faced by Pakistan after independence was the division of assets between India and Pakistan. At the time of partition, it was agreed that the resources of British India would be fairly divided between the two countries. These resources included financial assets, military equipment, administrative infrastructure, and government property.

Pakistan, being a newly created state, depended heavily on its share of these assets for survival. According to the agreement, Pakistan was entitled to receive 750 million rupees as its share of the cash balance. However, India initially paid only 200 million rupees and delayed the remaining 550 million rupees. This delay created a serious financial crisis for Pakistan. The government struggled to manage administrative expenses, pay salaries, and deal with the refugee problem.

In this difficult situation, Mahatma Gandhi played a key role by supporting justice and insisting that Pakistan should receive its rightful share of assets. In January 1948, he went on a hunger strike, which created moral pressure on the Indian government. As a result, India released the remaining 550 million rupees to Pakistan. His role was significant as it helped provide financial relief to Pakistan and ensured that partition agreements were honored, highlighting the importance of fairness in international relations. The division of assets issue highlights the difficulties faced by Pakistan in its early days. It also shows the importance of fairness and cooperation in international relations. Although the problem created tensions between India and Pakistan, it was partially resolved through Gandhi's intervention. Tragically, Mahatma Gandhi was assassinated on January 30, 1948, by Nathuram Godse, an extremist Hindu, largely because of his support for Pakistan and his insistence on fair

treatment in the division of assets. Gandhi's advocacy for justice, fairness, and communal harmony especially his efforts to ensure Pakistan received its rightful share provoked anger among extremists. His death marked the loss of a principled leader who prioritized ethical conduct and equitable solutions even amid intense political tensions.

After the partition, armed forces personnel were given the freedom to choose which country they wished to join. Muslim regiments opted for Pakistan, while non-Muslim regiments joined India. At the time of independence, Pakistan's army consisted of 150,000 personnel but had only 2,500 trained Muslim officers, falling short of the required 4,000 officers. To bridge this gap, Quaid-i-Azam Muhammad Ali Jinnah had to temporarily hire 500 British officers.

All 16 ordnance factories were located in India, and India refused to transfer any of them to Pakistan. This left Pakistan without the capacity to produce military goods. Eventually, India agreed to pay 60 million rupees as compensation for not handing over the ordnance factories. However, the military supplies India did agree to transfer were often old, worn, damaged, and obsolete, further hindering Pakistan's military capabilities.

The economic impact of the unfair division of assets was significant. Pakistan faced financial instability in its early days. Development projects were delayed, and the government had to rely on limited resources. Despite these challenges, Pakistan gradually improved its economic condition through careful planning and hard work.

To address financial challenges after the partition, Quaid-i-Azam established the State Bank of Pakistan on July 1, 1948, linking its role to the division of assets and ensuring economic stability for the new country.

### **Radcliffe Award: Unjust Division and Its Impacts**

Following the division of assets, the next major challenge was the Radcliffe Award. Announced in August 1947, it partitioned British India into India and Pakistan. Cyril Radcliffe, who had little knowledge of the region and faced severe time pressure, drew the boundary lines primarily based on religious majorities, though strategic, economic, and administrative considerations also influenced the final outcome. The guiding principle was to divide areas on the basis of religious majority; however, in practice, several strategic, economic, and administrative considerations influenced the final outcome. As a result, many Muslims found themselves on the Indian side of the border, while Pakistan received some areas that were not entirely homogeneous in terms of population.

In Punjab, three districts Ferozepur, Amritsar, and Gurdaspur had a 60% Muslim population but were awarded to India. In Gurdaspur, two Muslim-majority tehsils, Gurdaspur and Batala, were given to India, along with the Pathankot tehsil. Gurdaspur was crucial as it provided the only land route to Kashmir, giving India strategic access to the region. This decision, influenced by Mountbatten to appease India, laid the groundwork for long-term India-Pakistan hostility. Similarly, Ferozepur and Zira tehsils, with significant Muslim populations, became part of India, disrupting natural demographic alignments.

In Bengal, while East Bengal had a Muslim majority, it received only 40% of the area, lacking the resources of West Bengal. The Calcutta port was handed to India, disadvantaging Pakistan economically. A referendum in Sylhet resulted in a Muslim-majority decision to join Pakistan, but the overall division was imbalanced.

Punjab had a Muslim majority of about 55%, but the division did not follow population ratios. The boundary line cut through districts and villages, separating communities that had lived together for generations. This led to confusion and forced millions to migrate to areas with their religious majority.

The impact of these decisions was significant: large-scale migration occurred, economic networks especially in agriculture and trade were disrupted, and political tensions between India and Pakistan escalated. Pakistan viewed the allocation of territories as unjust, making the Radcliffe Award one of the most criticized and debated decisions in partition history.

## **Water Dispute**

Following the Radcliff award, the next major issue is the water dispute emerged as a direct consequence of the partition of Punjab's irrigation system between India and Pakistan. Before partition, the canal network in Punjab was one of the most developed irrigation systems in the world, supporting large-scale agriculture in both eastern and western parts of the province. This system depended on rivers such as the Indus and its tributaries, with water controlled through headworks that regulated the flow into canals. After partition, the division of this system created a situation where some of the most important headworks fell under Indian control, while the canal-fed agricultural lands extended into Pakistan.

The water dispute emerged after the 1947 partition, which divided Punjab's highly developed irrigation system. While the rivers flowed into Pakistan, key headworks such as Ferozepur (Sutlej) and Madhopur (Ravi) came under Indian control. This gave India the ability to

regulate water flowing into Pakistan's canals, creating a serious risk for its agriculture-based economy.

In April 1948, India temporarily stopped water supply to some Pakistani canals, causing immediate concern as crops and livelihoods were threatened, especially in regions like Multan and Bahawalpur. A temporary agreement restored the flow, but the issue remained unresolved.

The water dispute between India and Pakistan was finally addressed through the Indus Waters Treaty (1960), brokered by the World Bank. Under this agreement, Pakistan gained control over the western rivers (Indus, Jhelum, and Chenab), while India retained control over the eastern rivers (Ravi, Beas, and Sutlej). To manage this allocation, Pakistan constructed dams and canals, such as Mangla and Tarbela, to support its irrigation systems. This resolution alleviated the immediate crisis and strengthened Pakistan's water management capabilities, underscoring the importance of shared water resources between neighboring states.

However, the water dispute is far from settled. Even today, it remains a point of ongoing tension between India and Pakistan. Despite multiple attempts at resolution, the unequal distribution of water resources and control over key water channels continues to impact Pakistan's water security and agricultural output. The issue remains a critical and persistent challenge in India-Pakistan relations.

### **Princely States and Their Accession**

After the Radcliffe Award, the next major issue was the accession of the princely states. At the time of independence, princely states were ruled by local rulers who had autonomy over internal affairs but were under British control in matters of defense and foreign policy. After the British withdrawal, these states had to decide their future. The guiding principle was that states should consider geographical contiguity, the wishes of their people, and administrative practicality when deciding accession. Most princely states joined either India or Pakistan peacefully. States with Muslim-majority populations and geographical proximity to Pakistan were generally expected to accede to Pakistan, while Hindu-majority states closer to India were expected to join India. However, political interests, leadership decisions, and strategic considerations often influenced these choices.

### **Junagadh Dispute**

Junagadh was a small princely state located 300 miles south of Karachi, with a Muslim ruler, Nawab Mahabat Khan, and a predominantly non-Muslim population. In September 1947, the Nawab decided to accede to Pakistan. However, the accession created controversy due to Junagadh's geographical location, surrounded by Indian territory. Lord Mountbatten, the last British Viceroy, informed Pakistan that the accession of Junagadh was an encroachment on Indian sovereignty.

The princely state of Junagadh, along with its subordinate state Manavadar, became a controversial case during the partition of 1947. Junagadh was ruled by Nawab Mahabat Khan, a Muslim ruler governing a predominantly Hindu population. Despite its geographical location being surrounded by Indian territory, the Nawab decided to accede to Pakistan in September 1947, and the Instrument of Accession was formally accepted by Pakistan. Similarly, the state of Manavadar, which was under the rule of Khan Sahib of Manavadar, also chose to accede to Pakistan around the same time. These decisions were primarily made by the rulers without consulting the majority population. India opposed the accessions, citing violations of geographical contiguity and the people's wishes. On November 9, 1947, India took control of Junagadh and later held a referendum, integrating it into India. Pakistan protested, arguing the Nawab's decision should have been respected, which increased tensions and mistrust between the two countries.

### **Hyderabad Dispute**

Hyderabad, the largest and most prosperous princely state in British India, was located in the Deccan region. It had a Muslim ruler, the Nizam, but a predominantly Hindu population. The Nizam chose to remain independent rather than acceding to either India or Pakistan. At the time of partition, Hyderabad covered an area of approximately 82,698 square miles.

India rejected this decision, as Hyderabad was surrounded by Indian territory. On September 13, 1948, India launched "Operation Polo," a military operation to annex Hyderabad. Indian forces occupied Hyderabad on September 17, 1948, forcibly integrating the state into India after a brief conflict.

Pakistan supported Hyderabad's right to independence but could not intervene due to limited military and political capacity. This event heightened tensions between India and Pakistan, demonstrating India's determination to integrate princely states into its territory.



### **Kashmir: The Most Significant Issue**

The Kashmir issue remains the most important and long-standing dispute among the princely states, holding significant strategic, geographical, and political importance. Located at the northern borders of the Indian subcontinent, Jammu and Kashmir shares boundaries with Pakistan, India, and China. At the time of partition in 1947, the state covered an area of approximately 85,806 square miles.

Kashmir had a Muslim-majority population (approximately 75%), but it was ruled by Maharaja Hari Singh, a Hindu ruler. Initially, the Maharaja chose to remain independent, which created uncertainty and tension. To maintain administrative continuity, Pakistan and Kashmir signed a Standstill Agreement on 12 August 1947, which allowed trade, communications, and essential services to continue between Pakistan and the state, while deferring the question of formal accession. However, tensions escalated as the Maharaja delayed accession to either India or Pakistan. In October 1947, tribal militias from Pakistan entered Kashmir to support the local Muslim population against violence and oppression, prompting the Maharaja to seek military assistance from India. India agreed to help only on the condition that Kashmir accede to India, which the Maharaja signed through the Instrument of Accession on 26 October 1947. This event triggered the First India Pakistan War (1947–1948).

### **Quaid-i-Azam Muhammad Ali Jinnah's Stance**

Jinnah strongly opposed the Maharaja's accession to India, arguing that it was obtained under duress and did not reflect the will of the Kashmiri people. He insisted that Kashmir, as a Muslim-majority state, had the right to join Pakistan and demanded that a fair plebiscite be held to determine the wishes of the population.

“Kashmir is a Muslim state, and its people must be allowed to decide freely whether they want to join Pakistan or India. Its accession to India without the consent of the majority is unjust and unacceptable”.

As a result, Kashmir was divided into two parts:

- One part controlled by India (Jammu and Kashmir)
- The other part controlled by Pakistan (Azad Kashmir and Gilgit-Baltistan)

The boundary between the two sides, initially called the Ceasefire Line, was established under UN supervision to separate Indian and Pakistani forces. After the 1971 war, the Ceasefire Line was redefined and renamed the Line of Control (LoC) through the Simla Agreement in 1972, reflecting a bilateral understanding between India and Pakistan instead of UN oversight. Despite the change in name, the LoC remains the de facto boundary in Kashmir.

Kashmir has been the central issue in three major wars (1947-48, 1965 and 1971) between India and Pakistan, and numerous skirmishes have occurred over the years. The region continues to be a bone of contention between the two countries, making it a key obstacle to peace and stability in South Asia. The Kashmir dispute remains unresolved, with both countries maintaining strong positions over the region, and the issue continues to fuel tensions between India and Pakistan.

### **India's Double Standards in Princely State Accessions (1947–1948)**

After independence, princely states could choose to join Pakistan or India based on location and the people's wishes. Muslim-majority states like Junagadh and Manavadar signed the Instrument of Accession with Pakistan, but India ignored them, claiming the majority population was Hindu, and occupied these states. Similarly, Hyderabad, ruled by a Muslim Nizam, was forcibly annexed in September 1948 despite trying to remain independent.

In Kashmir, with a Muslim-majority population, India accepted the ruler's decision to accede, ignoring the people's wishes. This demonstrates a clear double standard, where India rejected accessions in some states but used the ruler's choice to claim Kashmir. These actions created lasting disputes and tension between Pakistan and India.

### **Administration Problems**

After the accession of the princely states, the next significant challenge was the administrative problem. At the time of partition in 1947, Pakistan faced serious administrative problems because it had to start from zero. Unlike India, Pakistan did not inherit a strong administrative system. Many trained civil servants decided to stay in India, leaving Pakistan with a shortage of experienced staff. This made it difficult to run government departments properly. Additionally, Pakistan lacked the necessary offices, records, and infrastructure since most administrative centers were in India.

The division of important services like railways, postal services, and communication systems was disorganized, which created more problems. At the same time, the government had to manage the refugee crisis caused by the partition, which added more pressure to an already weak administrative system. Maintaining law and order was also a challenge because of riots and the mass migration of people.

A major blow to Pakistan's leadership occurred when Quaid-i-Azam Muhammad Ali Jinnah, the founder of Pakistan, passed away in 1948. His leadership was crucial in the early days of Pakistan, and his death left a leadership gap. In 1951, the assassination of Prime Minister Liaquat Ali Khan worsened the situation, as Pakistan lost its most important political figure. This lack of strong leadership created instability and made it difficult for Pakistan to grow as a nation.

Pakistan also faced challenges due to its large size, especially the long distance of over 1,000 miles between East and West Pakistan. This distance made it hard to govern the entire country effectively, and it eventually contributed to the separation of East Pakistan (now Bangladesh) in 1971.

Another important issue was choosing a capital city. There was debate over which city should be the capital of Pakistan. In the end, Karachi was chosen because of its economic importance and infrastructure, but this decision showed how difficult it was to build a strong central government. Despite these problems, Pakistan worked hard to establish its administrative system, although many of these early challenges continued to affect the country in the years to come.

## **Conclusion**

Pakistan faced significant challenges immediately after its creation in 1947, including the refugee crisis, division of assets, disputes over princely states like Kashmir, and administrative weaknesses. These issues created instability, hindering the country's growth and development. Despite these hardships, Pakistan managed to stabilize itself through strong leadership and national unity. The early struggles shaped the country's political, economic, and administrative systems, with lasting impacts on its relations with India and its internal governance. Understanding these challenges is crucial in appreciating the resilience and determination of Pakistan's people during its formative years.

## Lecture 12

### The Constitution: Its Types and Significance

#### Micro Learning Outcomes

By the end of this lecture, students will be able to:

- Define the concept of a constitution and identify the key types of constitutions.
- Explain the structure, features, and importance of a constitution in organizing state institutions, limiting power, and protecting fundamental rights.
- Analyze the role of a constitution as both a legal framework and a social contract, and its impact on governance and citizens' rights.

#### Introduction

Every country in the world has some form of constitution, whether it is written down in a single book or exists in the form of traditions, customs, and laws. The constitution is the backbone of any state. It tells us how a country will be governed, who will hold power, what the limits of that power are, and what rights the citizens enjoy. Without a constitution, a state would be like a ship without a rudder, drifting without direction. In this lecture, the meaning of a constitution will first be explored, followed by an examination of definitions provided by renowned scholars, the various types of constitutions, their general features, and finally the significance of a constitution for any nation. Examples from India, Pakistan, the United Kingdom, and the United States of America will be used to develop a clearer and more practical understanding of the concept.

#### Meaning and Definition of Constitution

The word constitution comes from the Latin word ‘constitutio’, which means an arrangement, establishment, or regulation. In simple terms, a constitution is the basic set of rules and principles according to which a country is governed. It is the master document or the fundamental framework that creates the government, gives it power, and also puts limits on that power. It establishes the main organs of the state usually the legislature, the executive, and the judiciary and defines their powers and functions. It also describes the relationship between the government and the citizens.

To understand the constitution more deeply, let us look at the definitions given by two famous authors.

- **Famous Definition by Thomas Paine**

Thomas Paine (1737–1809), a famous political thinker and revolutionary, gave a very powerful definition of the constitution. He said: “A constitution is not the act of a government, but of a people constituting a government.” This definition is very important because it places the people at the center. According to Paine, the constitution does not belong to the government; rather, it belongs to the people. The government is merely a servant of the constitution, and the constitution is created by the people to establish and control that government. This idea teaches us that the ultimate authority in a state rests with the people, and the constitution is their tool to create order, protect their rights, and prevent the government from becoming oppressive.

- **Famous Definition by A.V. Dicey**

Quaid-i-Azam Muhammad Ali Jinnah, in his speech, addressed the refugee crisis with compassion and determination. He said, “The refugees have endured unimaginable hardship, but their resilience will serve as the foundation of our great nation. Together, we will overcome these difficulties and build a prosperous future.” This statement gave the refugees the courage to persevere and contribute to the development of Pakistan.

- **General Definition of the Constitution**

If we combine the wisdom of Paine and Dicey, we can arrive at a general and simple definition suitable for our understanding. A constitution is the supreme and fundamental law of a land, made by the people or their representatives, which establishes the structure of government, distributes powers among different organs of the state, regulates the relationship between the rulers and the ruled, and guarantees the basic rights and freedoms of the citizens. It is the foundation upon which the entire political and legal system of a country rests. Every law, every government action, and every court decision must be in line with the constitution. If any law or action violates the constitution, it can be declared invalid by the courts in many countries.

## **Types of Constitution**

Constitutions around the world can be classified in different ways. However, for the purpose of this course, we shall focus on the most basic and widely accepted classification: written and unwritten constitutions. Other classifications, such as rigid and flexible, federal and unitary, and presidential and parliamentary, will be discussed later under the general features of the constitution.

- **Written Constitution**

A written constitution is one that is drafted and enacted in the form of a single document or a set of legal documents at a particular time by a constituent assembly or a special body. It is usually the supreme law of the land, and all other laws must conform to it. A written constitution is generally detailed, systematic, and codified. The most famous example of a written constitution is the Constitution of the United States of America, which was drafted in 1787 and came into effect in 1789. It is one of the oldest written constitutions in the world and is relatively brief. It clearly divides power between the federal government and the states and establishes a presidential system of government with a strong emphasis on the separation of powers.

The current Constitution of Pakistan was adopted in 1973. It declares Pakistan as an Islamic Republic and provides for a federal parliamentary system. It contains provisions regarding the fundamental rights of citizens, the powers of the federal and provincial governments, and the role of Islam in the state. Like India and the USA, the Constitution of Pakistan is the supreme law, and any law inconsistent with it can be challenged in the Supreme Court. The main advantages of a written constitution are clarity, certainty, and stability. Citizens can read it and know exactly what their rights are and how the government should function. It also prevents arbitrary rule because the government must act within the limits set by the document.

- **Unwritten Constitution**

An unwritten constitution is one that is not enacted or codified in a single document. Instead, it consists of various sources such as historical documents, statutes, judicial decisions, conventions, and customs that have developed over a long period. This does not mean that nothing is written down. Rather, it means that the constitution is not found in one single, organized document called “The Constitution.” It includes common law decisions by courts,

constitutional conventions such as the convention that the monarch acts on the advice of the Prime Minister, and customs of Parliament. Because it is not codified in one place, the British constitution is remarkably flexible. The Parliament can change constitutional rules by passing ordinary laws, just as it would pass any other legislation. The main advantage of an unwritten constitution is its flexibility. It can adapt easily to changing times and new challenges without a difficult amendment process. However, its disadvantage is uncertainty. Ordinary citizens may find it difficult to know what the constitution exactly says because it is scattered across many documents and traditions.

## **Features of the Constitution**

Now that we have understood the basic types, let us look at the general features that constitutions display. It is under these features that we shall discuss other important aspects such as rigidity and flexibility, federal and unitary character, parliamentary and presidential systems, and more.

- **Supremacy of the Constitution**

A constitution is the highest law of the land. This means that no person, institution, or law is above the constitution. In countries with written constitutions like the USA, India, and Pakistan, the constitution is clearly declared as the supreme law. However, in the United Kingdom, which has an unwritten constitution, the doctrine of parliamentary supremacy applies. This means that the British Parliament is the supreme legal authority and can make or unmake any law. There is no higher law that Parliament cannot change. This is a unique feature that distinguishes the UK from the other three countries.

- **Fundamental Law and Stability**

The constitution is the fundamental law from which all other laws derive their validity. It provides stability and continuity to the political system. Even when governments change through elections, the constitution remains the same, ensuring that the basic rules of the game do not change. This feature is visible in all four countries. Whether it is the USA with its constitution of 1789, India with its constitution of 1950, Pakistan with its 1973 Constitution, or the UK with its centuries-old traditions, the constitution provides a stable foundation.

- **Distribution of Powers: Federal and Unitary**

One of the most important features of a constitution is how it distributes power between the central government and regional governments. A constitution may be federal or unitary.

In a federal constitution, powers are divided between the national government and the regional governments (such as states or provinces), and both levels of government are independent within their own spheres. The USA is a classic federal state where the Constitution clearly lists the powers of the federal government and leaves the rest to the states. India is also a federal state, though it has been described as “quasi-federal” because the central government has more powers than the states in certain matters, especially during emergencies. Pakistan is also a federation, with powers divided between the federal government and the four provinces. In a unitary constitution, all powers are concentrated in the central government, and local governments derive their authority from the center. The United Kingdom is the best example of a unitary state.

- **Separation of Powers**

Most constitutions recognize the principle of separation of powers, though the degree of separation varies. This principle, popularized by the French philosopher Montesquieu, suggests that the three main functions of government law-making, law-execution, and law-adjudication should be performed by separate organs to prevent the concentration of power. The USA follows a strict separation of powers. Congress makes laws, the President enforces them, and the Supreme Court interprets them. No member of one branch can belong to another.

- **Rigidity and Flexibility**

This feature refers to how easily a constitution can be amended or changed. A constitution may be rigid or flexible. A rigid constitution requires a special and difficult procedure for amendment, different from the ordinary law-making process. The USA has one of the most rigid constitutions. Article V requires a two-thirds majority in both houses of Congress and ratification by three-fourths of the states for an amendment. India also has a rigid constitution under Article 368, though the rigidity varies—some amendments require a simple special majority, while others also require ratification by half of the states. Pakistan also has a detailed amendment procedure under its 1973 Constitution, making it relatively rigid. A flexible constitution can be amended easily, often through the same procedure as



ordinary legislation. The United Kingdom has the most flexible constitution because Parliament can change any constitutional rule by passing an ordinary Act of Parliament. There is no special procedure required.

- **Bill of Rights and Fundamental Rights**

Modern constitutions usually contain a list of basic rights and freedoms that are guaranteed to all citizens and cannot be easily taken away. This is often called a Bill of Rights or Fundamental Rights. The USA has its Bill of Rights in the first ten amendments, guaranteeing freedoms of speech, religion, press, assembly, and fair trial. Pakistan also guarantees fundamental rights in its Constitution, including the right to life, liberty, equality, and freedom of speech, subject to reasonable restrictions and Islamic principles.

- **Parliamentary versus Presidential Government**

Constitutions also differ in the relationship between the executive and the legislature. In a presidential system, like that of the USA, the President is both the head of state and head of government, elected separately from the legislature, and not accountable to Congress. The President serves a fixed term and cannot be removed easily. In a parliamentary system, like that of the UK, India, and Pakistan, the head of government (the Prime Minister) is the leader of the majority party in Parliament and is accountable to the legislature. The government can be removed by a vote of no confidence. These countries also have a ceremonial head of state (a monarch in the UK, and a President in India and Pakistan) who acts on the advice of the Prime Minister.

- **Judicial Review**

An important feature of many constitutions is the power of courts to review laws and government actions to ensure they conform to the constitution. This is called judicial review. It is very strong in the USA. In Pakistan, the Supreme Court also exercises this power. In the UK, judicial review exists in a different form; courts can review the legality of government actions, but they cannot strike down Acts of Parliament because of parliamentary supremacy.

- **Preamble and Directive Principles**

Many written constitutions begin with a Preamble that declares the aims and objectives of the state. Pakistan's Constitution also has a Preamble that emphasizes the sovereignty of Allah and the principles of democracy, freedom, and equality. The USA has a short but powerful

Preamble stating the purposes of the Constitution. The Preamble to the Indian Constitution is famous for declaring India a sovereign, socialist, secular, democratic republic. The UK has no such single preamble.

## **Significance of the Constitution**

Having studied the meaning, types, and features of the constitution, we must now ask: why is the constitution so important? The significance of the constitution can be understood through the following points.

- **The constitution is the source of legitimacy.**

It provides legal and moral authority to the government. A government that acts according to the constitution is considered legitimate by the people. In the USA, India, Pakistan, and even the UK, the government derives its power from constitutional rules. Without a constitution, the rule of a government would be seen as arbitrary or dictatorial.

- **The constitution provides a framework for governance.**

It tells us how institutions will be created, how they will function, and how they will relate to one another. It brings order out of chaos. Whether it is the federal structure of the USA, the parliamentary democracy of the UK, or the complex system of India and Pakistan, the constitution serves as the blueprint.

- **The constitution protects individual rights.**

By guaranteeing fundamental rights and freedoms, the constitution acts as a shield for citizens against the misuse of power by the state. In all four countries we have studied, the constitution or constitutional traditions protect the dignity and liberty of the individual.

- **The constitution limits government power and prevents tyranny.**

By dividing powers among different organs, by providing for checks and balances, and by guaranteeing rights, the constitution ensures that no single person or group can become all-powerful. The separation of powers in the USA, the independent judiciary in India and Pakistan, and the rule of law in the UK all serve this purpose.

- **The constitution ensures stability and continuity.**

While governments may change every few years through elections, the constitution remains. This continuity helps in maintaining national stability. Businesses, institutions, and citizens can plan their lives knowing that the basic rules will not change with every new government.

- **The constitution is an instrument of social change.**

A constitution is not merely a static document; it can be a tool for achieving social justice and progress. Pakistan's Constitution emphasizes Islamic principles of social justice. The US Constitution, through amendments, has expanded rights to include all races and genders.

- **The constitution promotes national unity and identity.**

By laying down common values, goals, and rules, the constitution binds the diverse people of a nation together. In a vast and diverse country like India, the constitution is often described as the document that unites the nation. Similarly, in Pakistan, the constitution reflects the shared aspiration for an Islamic democratic state. In the USA, the constitution is a symbol of American democracy and freedom. In the UK, the constitutional traditions reflect the history and values of the British people. Finally, the constitution establishes the rule of law. It ensures that everyone, including the highest officials, is subject to the law. There is no arbitrary rule; everything must be done according to established rules and procedures. This principle is fundamental to all democratic societies.

## **Conclusion**

In conclusion, the constitution is the soul of a nation. It is more than just a legal document or a set of traditions; it is the living framework that gives life to the state. The lecture began by understanding that the constitution is the fundamental law made by the people to constitute and control their government. Famous definitions by Thomas Paine and A.V. Dicey were examined, leading to a general definition. The two main types of constitutions written and unwritten were then studied with reference to the USA, India, Pakistan, and the United Kingdom. The general features of a constitution were discussed, including supremacy, distribution of powers, separation of powers, rigidity and flexibility, fundamental rights, parliamentary and presidential systems, judicial review, and directive principles. Finally, the significance of the constitution was highlighted in terms of providing legitimacy, stability, rights, and unity to a nation.

## **Lecture 13**

# **Objectives Resolution 1949: Its Features and Significance**

### **Micro Learning Outcomes (MLOs)**

By the end of this lecture, students will be able to;

- Identify the date, main leaders, and basic purpose of the Objectives Resolution 1949 in Pakistan's constitutional development.
- Explain the main principles of the Objectives Resolution, including sovereignty of Allah, democracy, federalism, fundamental rights, and minority protection.
- Assess the impact of the Objectives Resolution on Pakistan's later constitutions (1956, 1962, and 1973) and evaluate its contemporary significance in shaping the relationship between Islam and the state.

## **Background and Necessity of the Objectives Resolution**

### **Introduction**

In the previous lecture the ideological and conceptual foundations of Pakistan's Constitution has been discussed. Building on that understanding, this chapter focuses on the Objectives Resolution of March 1949, a landmark in the constitutional history of Pakistan.

The Objectives Resolution was the first constitutional document that laid the foundation for the constitutional development of Pakistan. It provided clear guiding principles and a framework for lawmakers. By outlining key objectives in advance, it made the process of constitution-making more structured and manageable. These objectives were designed to reflect the aspirations of the people of Pakistan, particularly those who had endured difficulties under a Hindu-dominated majority before independence.

After the creation of Pakistan on 14 August 1947, a Constituent Assembly was established. This Assembly consisted of members who had been elected in the 1946 elections to the Central and Provincial Assemblies of British India. They represented the Muslim-majority

regions that became part of Pakistan. The Constituent Assembly was entrusted with two major responsibilities: to serve as the federal legislature and to draft a permanent constitution for the new state.

The first session of the Constituent Assembly was held in Karachi on 10 August 1947. It was presided over by Muhammad Ali Jinnah, who was elected as its first President. Until a new constitution could be formulated, Pakistan continued to operate under the adapted Government of India Act 1935, which served as an interim constitutional framework.

On 7 March 1949, Liaquat Ali Khan presented the Objectives Resolution in the Constituent Assembly. After discussion and deliberation, it was passed on 12 March 1949. This resolution became the guiding foundation for all future constitutions of Pakistan and holds a significant place in the country's constitutional and political development.

### **Necessity of the Objectives Resolution**

After its introduction, it became clear why the Objectives Resolution was so important for Pakistan. The country was still working under an old colonial law that did not reflect the goals for which Pakistan was created. There was confusion about the type of state Pakistan would become and the principles of its future constitution. The Objectives Resolution removed this uncertainty by declaring that sovereignty belongs to Allah, while authority would be exercised by the people through elected representatives. It also stressed democracy, fundamental rights, federalism, and an independent judiciary. In this way, it provided clear direction and acted as an ideological and constitutional road-map for Pakistan's permanent constitution.

### **The Ideological Foundation: Two-Nation Theory**

As discussed in previous lectures, the Two-Nation Theory was the main basis for the creation of Pakistan. It stated that Muslims and Hindus were two separate nations with different religions, cultures, and social systems. Pakistan was created so that Muslims could live their lives according to Islamic teachings.

The Objectives Resolution was needed to give constitutional shape to this ideology. Liaquat Ali Khan stated that the state could not remain neutral, as this would go against the very purpose of creating Pakistan. The Resolution clearly declared that Pakistan would be an

Islamic democracy, combining Islamic principles with modern democratic governance. In simple words, if Pakistan was created to follow Islamic values, then its constitution had to reflect that aim. The Objectives Resolution was the first practical step toward achieving this goal.

### **The Constitutional Vacuum after Independence**

After independence in August 1947, Pakistan faced a serious constitutional problem because it did not have its own permanent constitution. The country temporarily adopted the Government of India Act 1935, but this law was made for British colonial rule and did not reflect the ideology or needs of an independent Muslim state. This created uncertainty about the system of government, division of powers, and the role of Islam in the state. The situation caused confusion and political instability. Therefore, the Objectives Resolution was introduced to fill this gap and provide clear guiding principles for a new constitution.

### **Unifying Diverse Groups**

At the time of independence, Pakistan was a new state made up of different provinces, ethnic groups, languages, and political views. There were clear differences between East and West Pakistan and among regional interests. In this situation, national unity was very important. Without shared guiding principles, these differences could have caused greater political instability. The Objectives Resolution helped unite the people by presenting common constitutional principles based on Islam, democracy, fundamental rights, and federalism. By promoting equality, justice, and representation, it provided a common national direction and helped strengthen the foundations of the new state.

### **Reconciling Religion and Modern Democracy**

After independence, Pakistan faced an important question: how to combine Islamic principles with modern democracy. Many people wanted the state to reflect Islamic values, while others stressed representative government, rule of law, and fundamental rights. This created debate about whether religion and democracy could work together. The Objectives Resolution answered this by stating that sovereignty belongs to Allah, but authority would be exercised by the people through elected representatives. In this way, it balanced Islamic beliefs with democratic principles. It showed that Islam and democracy were not opposed, but could work together to provide Pakistan with a clear and stable constitutional system.

### **Constitutional Road-map: Providing Fundamental Rights**

The Objectives Resolution was necessary to provide a clear road-map for the constitution-making process. The interim arrangement the Government of India Act 1935 was a colonial

document containing no bill of rights or guarantees of fundamental freedoms. The Resolution filled this vacuum by promising that the future constitution would guarantee equality of status, opportunity, and before law; social, economic, and political justice; and freedom of thought, expression, belief, worship, and association. These provisions assured citizens that their new state would protect their basic freedoms.

### **Establishing Federalism**

Pakistan's geography and diversity demanded a federal structure. The country comprised two wings separated by a thousand miles, with multiple linguistic and ethnic communities. The Objectives Resolution addressed this by declaring that "Pakistan shall be a federation and its constituent units will be autonomous" . This was consistent with the original Pakistan Resolution of 1940, which had called for autonomous states in Muslim-majority areas . Federalism would allow regions to preserve their identities while distributing power between the centre and provinces, preventing excessive centralization.

### **Ensuring Independent Judiciary**

The Objectives Resolution recognized that an independent judiciary was essential for enforcing fundamental rights and resolving disputes between federation and provinces. It declared unequivocally that "the independence of the judiciary shall be fully secured" . This provision gave citizens confidence that they could seek justice against arbitrary state action. For minorities, an independent judiciary free from majoritarian pressures could serve as a check on legislative overreach and ensure their rights were respected.

### **Countering Religious Opposition**

After independence, some religious groups criticized the government for not clearly defining Pakistan as an Islamic state. They feared that the new leadership might adopt a purely secular system and ignore Islamic principles. This created pressure on the government to clarify the ideological direction of the country. The Objectives Resolution helped address these concerns by clearly stating that sovereignty belongs to Allah and that Islamic principles would guide the state.

## **Key Features of the Objectives Resolution 1949**

Let us now turn to the text itself. The Objectives Resolution is a remarkably succinct yet profound document. It is structured as a series of declaratory statements, and we can distill its essence into several interconnected features.

▪ Main Features of Objective Resolution

The following were the main features of Objectives Resolution.

- Sovereignty belongs to Almighty Allah alone
- Authority delegated by Him through the People to be exercised within the limits permitted
- Constitution is to be framed for Sovereign Independent Pakistan
- Power will be exercised through elected Representatives of the people.
- Democracy, freedom, equality, tolerance, and Social justice will be as dictated by Islam.
- Enabling Muslims to live in accordance with the teachings of Islam.
- Minorities will have total freedom to profess and practice their religion and develop their culture
- Safeguarding the legitimate interests of minorities, backward and depressed classes.
- Pakistan shall be a Federation with autonomous units. State's sovereignty and Territorial integrity will be protected.
- People of Pakistan should prosper and attain their rightful place in the comity of nations and make contributions towards international peace, progress, and happiness of humanity.

## **Objections and Discussion on the Objectives Resolution**

An academically sound study of Pakistan's constitutional history requires us to look not only at the purpose of a document but also at the debate and criticism surrounding it. The Objectives Resolution, although considered a foundational document, was one of the most controversial decisions taken by the Constituent Assembly. Its impact has continued to be debated by scholars, judges, and politicians. Ignoring these debates would give an incomplete and overly positive picture of Pakistan's constitutional development.



## **Opposition from Non-Muslim Members**

The strongest opposition to the Objectives Resolution came from the non-Muslim members of the Constituent Assembly. Out of 75 members, the 10 non-Muslim members present voted against it after their amendments were rejected by the Muslim League majority. They believed the Resolution conflicted with Quaid-i-Azam Muhammad Ali Jinnah's speech of 11 August 1947, which promised equal citizenship regardless of religion.

The Pakistan National Congress, representing Hindu minorities, strongly criticized the Resolution. Leaders such as Sris Chandra Chattopadhyaya argued that in a multi-religious country, the state must remain neutral. He claimed that the phrase "equal rights as enunciated by Islam" was unclear and could not guarantee real equality for non-Muslims. He warned that minorities might be treated as second-class citizens and feared the Resolution would increase divisions rather than unity. Birat Chandra Mandal also argued that Jinnah had envisioned a secular state and that the Resolution marked a departure from that idea.

## **Support from Religious Leaders**

On the other hand, religious scholars supported the Resolution. Maulana Shabbir Ahmad Usmani maintained that Islam is a complete system of life that includes political and social guidance. Historian Dr. Ishtiaq Hussain Qureshi defended the Resolution against criticism. Although not a member of the Assembly, Maulana Abul A'la Maududi influenced the emphasis on the sovereignty of Allah. However, some religious supporters later expressed disappointment because the Resolution did not lead to strong Islamic reforms in practice. The voting pattern revealed a clear religious divide, increasing mistrust between communities.

## **Criticism from Muslim Members**

Criticism also came from Muslim members with modernist views. Mian Iftikharuddin did not oppose the Resolution but questioned its wording. He warned that separating "the State" from "the people" could allow power to shift away from citizens to an unaccountable authority. He emphasized that Islam has no priesthood and that ultimate authority should remain with the people. He feared the Resolution might later justify a theocratic or undemocratic system instead of a democratic Islamic state focused on justice.

## **Later Criticism and Long-Term Effects**

Later scholars and activists highlighted practical contradictions. Rubina Saigal pointed to tension between declaring Islam the state religion and guaranteeing equality before the law. Journalist Ayaz Amir called the Resolution largely symbolic. Some critics argued it was passed too quickly without sufficient debate. Others noted that military rulers like General Zia-ul-Haq later used the idea of divine sovereignty to legitimize authoritarian rule, shaping long-term political debates in Pakistan.

## **Comparison of the Constitutions vis-à-vis Preamble (Objectives Resolution 1949)**

The Objectives Resolution, passed on 12 March 1949, is regarded as the foundation of Pakistan's constitutional development. It laid down guiding principles for the Constitutions of 1956, 1962, and 1973. The Resolution declared that sovereignty belongs to Allah, while authority would be exercised by the people through elected representatives. It emphasized democracy, freedom, equality, social justice, federalism, judicial independence, and minority protection. These principles appeared in later constitutions, though their implementation differed.

### **Sovereignty and Representative Government**

Regarding sovereignty and representative government, the 1956 Constitution introduced a parliamentary system with a National Assembly, but political instability weakened it. The 1962 Constitution under Ayub Khan replaced it with an indirect system called Basic Democracies, concentrating power in the President. The 1973 Constitution restored parliamentary democracy, reflecting the original spirit of the Resolution.

### **Federal Structure and Provincial Autonomy**

On federalism, the Resolution supported provincial autonomy. The 1956 Constitution attempted parity between East and West Pakistan, but the One Unit scheme caused dissatisfaction. The 1962 Constitution was highly centralized. The 1973 Constitution improved federal balance by establishing the Senate, Council of Common Interests, and National Finance Commission.

## **Democracy, Equality, and Social Justice**

The Resolution also promised democracy, equality, and social justice. While these ideals existed in 1956, instability limited them. The 1962 system allowed controlled democracy. The 1973 Constitution reaffirmed welfare and justice through its Principles of Policy.

## **Fundamental Rights**

Fundamental rights were guaranteed in all constitutions, The 1956 Constitution included enforceable fundamental rights but allowed restrictions during emergencies. The 1962 Constitution initially did not include strong rights protections, though they were added later through amendments. The 1973 Constitution provided the most comprehensive protections.

## **Independence of the Judiciary**

The 1956 Constitution established courts with powers of judicial review, but political pressures affected judicial independence. The 1962 Constitution reduced judicial powers due to strong presidential authority. The 1973 Constitution strengthened the judiciary by separating it from the executive and expanding the powers of the Supreme Court to protect fundamental rights.

## **Protection of Minorities**

The 1956 and 1973 Constitutions included provisions for minority rights and representation. However, in practice, minorities sometimes faced challenges despite constitutional guarantees. The 1962 Constitution focused more on national unity and less on specific minority protections.

## **Core Islamic Principles Enshrined in the Resolution**

The Objectives Resolution began with the Islamic principle of the sovereignty of Allah, or *Hakimiyyat-e-Ilahi*, declaring that the authority of the state is delegated by Allah through the people and must be exercised within His limits. As G.W. Choudhury notes, this was a clear departure from Western secular constitutions where sovereignty rests entirely with the people.

The Resolution established key Islamic principles that became central to Pakistan's constitutional identity. It emphasized that Muslims should be able to organize their lives according to the teachings of the Quran and Sunnah. It promoted Islamic concepts of democracy, freedom, equality, tolerance, and social justice, reflecting a vision of a just society guided by moral and spiritual values, as noted by Javed Iqbal.

It also guaranteed fundamental rights, including equality before the law, social and economic justice, and freedom of thought and belief, while protecting minority rights. Stephen P. Cohen highlights that this framework uniquely reconciled Islamic values with modern democratic principles, creating a distinctive constitutional model.

### **Influence on the 1956 Constitution**

The 1956 Constitution was Pakistan's first written constitution and incorporated the Objectives Resolution as its preamble, giving it constitutional status. It declared Pakistan an "Islamic Republic," making it the first constitution in the Muslim world to adopt this title officially.

Several Islamic provisions were directly drawn from the Objectives Resolution. No law could be enacted that contradicted the injunctions of Islam as in the Quran and Sunnah. The constitution established institutions for Islamic research and instruction to guide the reconstruction of society on an Islamic basis. Directive principles required the state to enable Muslims to organize their lives according to Islamic teachings. An Islamic ideology council was created to advise the legislature on Islamic matters.

As Hamid Khan and M. Sohail Bhatti note, these measures marked the first systematic effort to implement the Islamic vision of the Objectives Resolution. However, the 1956 Constitution lasted only two years, being abrogated by martial law in 1958, which limited full implementation of these principles.

### **Islamic Elements in the 1962 Constitution**

The 1962 Constitution, introduced under President Ayub Khan's military regime, initially removed "Islamic" from Pakistan's name, calling it simply the "Republic of Pakistan." Strong public and religious pressure led to its restoration as the "Islamic Republic of Pakistan"

in 1963. According to G.W. Choudhury, this constitution took a modernist approach to Islamic provisions while retaining the core principles of the Objectives Resolution.

The Constitution included Islamic features such as a provision that no law could contradict Islam and established an Advisory Council of Islamic Ideology to guide the government. As Safdar Mahmood notes, it required the President to be a Muslim and emphasized Islamic education, moral standards, social justice, and equality, reflecting the Objectives Resolution.

However, Stephen P. Cohen observes that the 1962 Constitution represented a more controlled interpretation of Islamic principles, concentrating power in the executive and limiting parliamentary democracy. Despite these limitations, it preserved Pakistan's Islamic character and maintained continuity with the Objectives Resolution.

### **The 1973 Constitution and the Objectives Resolution as Substantive Law**

The 1973 Constitution marked the most comprehensive incorporation of the Objectives Resolution's Islamic principles. In 1985, through the Revival of Constitution Order, the Objectives Resolution was made a substantive part of the constitution as Article 2A, giving it legal force rather than serving merely as a preamble. Hamid Khan describes this as a watershed moment, elevating the Resolution from an aspirational document to binding constitutional law.

The Constitution includes extensive Islamic provisions directly derived from the Objectives Resolution. It declares Islam as the state religion and requires that the President and Prime Minister be Muslims. Its "Principles of Policy" chapter obligates the state to enable Muslims to organize their lives according to the Quran and Sunnah, eliminate *riba* (interest), promote Islamic moral standards, and strengthen ties with the Muslim world. M. Sohail Bhatti notes that these provisions represent the fullest expression of the Islamic vision of the Objectives Resolution.

The Constitution also strengthened the Council of Islamic Ideology and established the Federal Shariat Court to ensure laws comply with Islam. Javed Iqbal highlights that these institutions provide mechanisms for continuous Islamization of laws. Minority rights were also protected, reflecting the Resolution's emphasis on tolerance and equality. Safdar Mahmood concludes that the 1973 Constitution successfully balanced Islamic principles with

democracy, federalism, and fundamental rights, proving the enduring relevance of the Objectives Resolution.

## **Conclusion**

Dear Students, the Objectives Resolution of 1949 was more than a political document; it was the foundational charter defining Pakistan's identity. It filled the constitutional vacuum after colonial rule, guided the Constituent Assembly, and translated the Two-Nation Theory into a governance framework. By declaring that sovereignty belongs to Allah but is exercised by the people as a sacred trust, it balanced Islamic principles with democratic values. The Resolution guaranteed fundamental rights, protected minorities, and established federalism and judicial independence. Preserved as Article 2A in the 1973 Constitution, it remains the ideological cornerstone, ensuring equality, minority rights, and democratic participation.

## Chapter 14

# Early Constitutional Developments in Pakistan (1947–1956)

### Micro Learning Outcomes (MLOs)

**By the end of this lecture, students will be able to;**

- Remember the major constitutional developments in Pakistan from 1947 to 1956, including the interim constitutional framework.
- Explain the role of the Government of India Act 1935 and discuss the key challenges in early constitution-making.
- Analyse the main reasons for delays in constitution-making process in Pakistan.

### Introduction

After independence, Pakistan faced the urgent challenge of building a stable constitutional framework for the new state. During this period, several important debates and developments shaped the direction of the country's constitutional evolution. This chapter will guide through this journey in three key parts. First Government of India Act 1935 and its role as Pakistan's interim constitution will be examined. Second, the work of the Basic Principles Committee will be discussed; finally, the reasons behind the long delay in framing Pakistan's first constitution in 1956 will be analyzed.

### Role of the Government of India Act 1935

The Government of India Act 1935 was adopted as an Interim Constitution of Pakistan. After independence in August 1947, Pakistan faced an immediate and serious challenge: the new state needed a constitutional framework to govern the country. Since Pakistan did not yet have its own constitution, the leadership relied on legal arrangements inherited from British rule. Two important instruments played a key role in this process: the Indian Independence Act of 1947 and the Government of India Act of 1935.

The Indian Independence Act 1947 passed by the British Parliament, formally ended British colonial rule in the subcontinent and created two independent Dominions, India and Pakistan. The Act also declared that, until the new states prepared their own constitutions, the Government of India Act, 1935, would serve as their interim constitutional framework, with necessary modifications.

## **Key Features of the Act 1935**

### **1. Office of the Governor-General**

After independence, the Governor-General became the head of state of Pakistan and exercised significant executive powers, including the appointment of the Prime Minister and ministers.

### **2. Federal Structure**

The Act introduced the idea of a federal system, dividing powers between the central government and the provinces. Although the full federal scheme was not completely implemented

### **3. Provincial Autonomy**

Provincial governments were given authority over certain administrative and legislative matters, and elected provincial ministries were responsible for governing the provinces.

### **4. Bicameral Legislature at the Centre**

The Act proposed a bicameral federal legislature, consisting of:

- **Council of State** (Upper House)
- **Federal Assembly** (Lower House)

Although the federal part was not fully implemented in British India, the concept influenced Pakistan's later constitutional developments.

### **5. Division of Powers**

The Act clearly divided legislative powers into **three lists**:

- **Federal List** (subjects controlled by the central government)
- **Provincial List** (subjects controlled by provinces)
- **Concurrent List** (subjects shared by both)



This framework guided Pakistan's early legislative system.

## **6. Independent Judiciary**

The Act provided for the establishment of an **independent judicial system**. It created the **Federal Court**, which served as the highest court for constitutional interpretation before the establishment of Pakistan's Supreme Court.

## **7. Separate Electorates**

The Act continued the system of **separate electorates**, where different religious communities elected their own representatives.

## **8. Emergency Powers of the Governor-General**

The Governor-General possessed extensive reserve and emergency powers, allowing him to override elected institutions when necessary.

## **9. Continuation of the Administrative System**

The Act ensured the continuation of the existing administrative and bureaucratic system inherited from British India. This helped Pakistan maintain governmental continuity during the early years of independence.

## **10. The Paradoxical Role of the Act**

Thus, the Act had a paradoxical role in Pakistan's early history. On one hand, it was a colonial framework with serious limitations and undemocratic features. On the other hand, it provided a ready-made administrative structure that allowed the government, judiciary, civil service, and military institutions to function during the early years of independence.

## **The First Constituent Assembly of Pakistan**

The First Constituent Assembly of Pakistan was established on 14 August 1947 under the Indian Independence Act 1947 to frame the constitution of Pakistan. Muhammad Ali Jinnah served as its first President. The assembly also acted as the central legislature of the country. It passed the **Objectives Resolution** in 1949, which laid the ideological foundation of Pakistan's constitution. However, the assembly was dissolved on 24 October 1954 by Governor-General **Ghulam Muhammad**.

## Delays in Constitution Making

Formation of the Basic Principles Committees:

Between **1947 and 1956**, Pakistan made continuous efforts to establish permanent constitutional framework. Before drafting a constitution, the **Constituent Assembly** needed to define the basic principles for governance.

The **Objectives Resolution** was presented on **7 March 1949** and adopted on **12 March 1949**, becoming the **grundnorm** of Pakistan's constitutional development. On the same day, the **Basic Principles Committee (BPC)** was formed by **Khawaja Nazimuddin** on the advice of **Prime Minister Liaquat Ali Khan** to outline the principles for drafting the future constitution.

### First Basic Principles Committee (BPC) Report, 1950

The **First BPC Report** was the first formal attempt to outline Pakistan's constitutional framework. It was presented to the **Constituent Assembly on 28 September 1950** by **Prime Minister Liaquat Ali Khan**. The committee was tasked with defining the basic constitutional principles in light of the **Objectives Resolution of 1949**.

#### Key Features

- Proposed a **parliamentary system** with a **bicameral legislature**.
- The **President (Head of State)** was to be a **Muslim**, elected for a **five-year term**, with powers to dissolve the legislature.
- **Upper House**: Equal representation for all provinces.
- **Lower House**: Directly elected by the people.
- **Urdu** recommended as the **only state language**.
- Ensured that **no law would contradict the Qur'an and Sunnah**.

#### Why it was Rejected

- **East Bengal** opposed it because equal provincial representation reduced its **population majority**.
- The proposal of **Urdu as the sole national language** caused strong protests in East Pakistan.

## Outcome

Due to intense criticism and political deadlock between **East and West Pakistan**, the report was **withdrawn for revision**.

## Second Basic Principles Committee (BPC) Report, 1952

The **Second BPC Report** was presented to the **Constituent Assembly on 22 December 1952 by Prime Minister Khawaja Nazimuddin**. After the failure of the First BPC Report, it aimed to resolve the political deadlock between **East and West Pakistan**.

### Key Features

- **Parity Principle:** Proposed **equal representation for East and West Pakistan** in the federal legislature, regardless of population.
- **Bicameral Legislature:**
- **House of Units:** 120 seats (60 East, 60 West).
- **House of People:** 400 seats (200 East, 200 West).
- **Board of Ulema:** Suggested a body of religious scholars to review laws to ensure they did not contradict the **Qur'an and Sunnah**.
- **Head of State:** The **President was required to be a Muslim**.
- The report **remained silent on the national language issue**.

### Why did it fail?

- East Pakistan opposed the parity formula and demanded representation based on population.
- Religious groups criticized the unclear role of Islam and Sharia in the proposed constitution.
- Smaller provinces feared excessive centralization of power.
- Frequent changes in government and leadership hindered consensus.
- Strong criticism from political parties and public led to rejection of the report.

## Outcome

The Second BPC Report led to a complete political stalemate. The friction became so intense that it eventually led to the **dismissal of Prime Minister Khawaja Nazimuddin** in April 1953 by Governor-General Ghulam Muhammad.

### **Third Basic Principles Committee (BPC) Report)/ Bogra Formula**

The **Third BPC Report** was presented in **1953** by **Prime Minister Muhammad Ali Bogra** in the Constituent Assembly to overcome the deadlock created by the earlier BPC reports and to finalize the constitutional framework.

#### **Key Features**

- Introduced the **parity formula**, giving **equal representation to East and West Pakistan** in the central legislature.
- Proposed a **federal system** with a **bicameral legislature**.
- Recognized **Islam as a guiding principle** of the constitution.
- Included **fundamental rights** and an **independent judiciary**.

#### **Outcome**

The report helped break the constitutional deadlock and **paved the way for the drafting of the 1956 Constitution**, although the **dissolution of the First Constituent Assembly in 1954** delayed the final adoption of the constitution.

### **Major Challenges Faced by the First Constituent Assembly of Pakistan**

The **First Constituent Assembly of Pakistan (1947–1954)** faced numerous challenges that hindered its ability to frame a constitution. Among these, nine major issues dominated the constitutional debates: **federalism, representation in the legislature, the electoral system, the national language, the form of government, and the Islamic character of the state**. These were joined by **a leadership vacuum, military-political instability, frequent changes of Government, and bureaucratic interference**. These conflicts ultimately delayed constitution-making and contributed to the eventual **dissolution of the assembly in 1954**.

#### **1. The Issue of Federalism**

One of the earliest and most significant issues before the Constituent Assembly was deciding whether Pakistan should adopt a unitary or federal system of government. Pakistan was geographically divided into two wings East Pakistan and West Pakistan, which were

separated by more than a thousand miles of Indian Territory. Both wings also consisted of multiple provinces and regions with distinct political and cultural identities.

## **2. Demand for Provincial Autonomy**

Many provincial leaders, especially from East Bengal, Sindh, and the North-West Frontier Province, demanded a federal structure that would provide substantial autonomy to the provinces. They feared that a strong central government might dominate provincial affairs and undermine regional interests.

On the other hand, some political leaders and bureaucrats believed that Pakistan needed a strong central government to maintain national unity and stability. The country was facing serious challenges, including refugee rehabilitation, economic problems, and security threats. For this reason, they argued that excessive provincial autonomy could weaken the state.

The debate over federalism continued for several years. Eventually, the constitution-makers agreed on a federal system, but with considerable powers reserved for the central government. This compromise reflected the need to balance national unity with provincial rights.

## **3. The Issue of Representation in the Federal Legislature**

Another major issue was how different regions of Pakistan would be represented in the federal legislature. The central conflict was between population-based representation and equal representation (parity) between East and West Pakistan.

East Pakistan had a larger population, accounting for more than half of the total population of the country. Therefore, leaders from East Pakistan argued that representation in the national legislature should be based on population, which would naturally give them a majority.

However, Politicians from West Pakistan were concerned that population-based representation would allow East Pakistan to dominate the central government. To avoid this situation, they proposed the principle of **parity**, which meant equal representation for both wings regardless of population.

This disagreement created a long political deadlock. Neither side was willing to compromise easily, and many constitutional proposals failed because they could not reconcile these competing demands.

#### 4. The Issue of Separate or Joint Electorates

The question of **electoral arrangements** was another important issue before the Constituent Assembly. During British rule in India, elections were often conducted on the basis of **separate electorates**, where Muslims, Hindus, and other communities voted for their own representatives. After independence, Pakistani leaders debated whether the country should continue with **separate electorates** or adopt a **joint electorate system**.

Supporters of **separate electorates** argued that this system protected minority rights by ensuring that minority communities could elect their own representatives. They believed that without separate electorates, minority voices might be overshadowed by the Muslim majority.

On the other hand, several political leaders and members of the Constituent Assembly favored **joint electorates**, arguing that all citizens should vote together regardless of religion in order to promote national unity and democratic equality. This disagreement created political debate during the early constitutional discussions of Pakistan and contributed to delays in reaching a consensus on the future electoral system.

#### 5. The Issue of National Language

Pakistan inherited significant **linguistic diversity** at the time of independence, but after the birth of Pakistan Urdu was declared as National language of Pakistan. Urdu had historically served as a symbol of Muslim cultural identity in the subcontinent and had played an important role in the Pakistan Movement. However, this decision was strongly opposed by leaders and intellectuals in **East Pakistan**, where **Bengali** was spoken by the majority of the population. They argued that Bengali should also be recognized as a national language because it was the mother tongue of more than half of Pakistan's citizens.

##### Language Movement

The language controversy became particularly intense in East Pakistan. In **1952**, students and activists organized protests demanding the recognition of Bengali as a national language. These protests, known as the **Language Movement**, resulted in clashes with the authorities and the deaths of several protesters.

#### 6. The Issue of Parliamentary or Presidential System

Another critical issue faced by the Constituent Assembly was determining the structure of the executive branch. Many political leaders favoured the parliamentary system, as they were

familiar with it from the British constitutional tradition. Under this system, the prime minister and cabinet are responsible to the legislature, and the government can be removed through parliamentary procedures. Supporters believed that this system would promote democratic accountability and ensure that the government remained answerable to the elected representatives of the people.

**On the other hand**, some leaders suggested adopting a **presidential system**, where the president would be directly elected and would exercise significant executive authority. They argued that a strong president could provide stable leadership and prevent political instability.

## 7. The Issue of the Islamic Character of the State

Perhaps the most important and sensitive issue before the Constituent Assembly was defining the Islamic character of the Pakistani state. Pakistan had been created in the name of Islam, and many citizens expected the new state to reflect Islamic principles in its political and legal system.

However, there was no complete agreement on what exactly constituted an Islamic state. Some religious scholars believed that the constitution should strictly follow Islamic law (Sharia) and that religious scholars should have a central role in governance.

Other political leaders believed that Pakistan should be a modern democratic state inspired by Islamic values, rather than a theocratic system governed directly by religious authorities.

In **March 1949**, the Constituent Assembly adopted the **Objectives Resolution**, which attempted to reconcile these different viewpoints.

Despite the Objectives Resolution, debates about the Islamic character of the state continued throughout the constitution-making process. The challenge was to balance Islamic principles with democratic governance and minority rights.

## 8. Leadership Vacuum

Pakistan lost two of its most important leaders within the first few years of independence. Quaid-e-Azam Muhammad Ali Jinnah, the founding father and Governor-General of Pakistan, passed away in September 1948. His death created a leadership vacuum at a crucial stage of nation-building.

Similarly, Liaquat Ali Khan, Pakistan's first Prime Minister was assassinated in 1951. His death further destabilized the political environment. After these losses, Pakistan lacked strong and stable leadership capable of guiding the constitution-making process effectively.

### 9. Political Instability and Frequent Changes of Government

Political instability was another major reason behind the delay. After the death of Liaquat Ali Khan, Pakistan experienced frequent changes in government. Several prime ministers came to power within a short period, including Khawaja Nazimuddin, Muhammad Ali Bogra, and Chaudhry Muhammad Ali.

These frequent changes in leadership disrupted the continuity of the constitution-making process. Each new government introduced different priorities and approaches, which further complicated the drafting of the constitution.

### 10. Bureaucratic and Military Influence in Politics

After **1947**, the process of constitution-making in Pakistan was significantly affected by the **bureaucracy and military**, who wielded considerable influence over political affairs. The **civil service**, inherited from the British, often acted as a stronghold of power, guiding or obstructing political decisions, while the **military**, seen as a guardian of national security, increasingly involved itself in governance. Their influence created a climate of **political caution and instability**, as elected representatives were frequently constrained or overruled. This **interference delayed consensus** on key constitutional issues.

### The Dissolution of the First Constituent Assembly (1954)

In October 1954, Governor-General Ghulam Muhammad dissolved Pakistan's first Constituent Assembly, citing its inefficiency in framing a constitution. The Speaker of the Assembly, **Maulvi Tamizuddin Khan**, challenged this action in the **Sindh Chief Court**, which initially declared the dissolution illegal and supported Tamizuddin Khan. However, the government appealed the decision to the **Federal Court of Pakistan**, where Chief Justice **Muhammad Munir** overturned the earlier ruling. The Federal Court held that the Governor-General's assent was necessary for laws passed by the Constituent Assembly, effectively validating the dissolution. This judgment strengthened executive authority over the legislature and had a lasting impact on Pakistan's constitutional and political development.



## **The Second Constituent Assembly of Pakistan 1955**

It was formed in **1955** after the dissolution of the **First Constituent Assembly of Pakistan** by the Governor-General **Ghulam Muhammad** in 1954. Its members were indirectly elected by the provincial assemblies of both East and West Pakistan. The main task of this assembly was to frame a constitution for the country. Under the leadership of **Chaudhry Muhammad Ali**, the assembly successfully drafted and passed the **Constitution of Pakistan 1956**, which was enforced on 23 March 1956 and declared Pakistan as the **Islamic Republic of Pakistan**. The assembly also supported the One Unit Scheme to merge the provinces of West Pakistan into a single administrative unit. However, its work ended in 1958 when President **Iskander Mirza** imposed martial law with the support of **Ayub Khan**, bringing the constitutional government to an end.

## **Conclusion and the Path to 1956**

The period from 1947 to 1956 was a critical and turbulent phase in Pakistan's constitutional history. The adoption of the Government of India Act 1935 as an interim constitution was a practical necessity, but it carried colonial features such as strong executive powers that later created political problems. During this time, Pakistan faced several challenges, including the language controversy, disputes over political representation, and tensions between the centre and the provinces. The Basic Principles Committee attempted to prepare a constitutional framework, but its efforts were hindered by weak political institutions, limited consensus, and executive interference, especially the dissolution of the Constituent Assembly in 1954, which introduced the Doctrine of Necessity. Finally, after nine years of struggle, Pakistan adopted its first constitution on 29 February 1956, establishing a federal parliamentary system and declaring the country the Islamic Republic of Pakistan. However, this constitution lasted only two and a half years, as the military coup of 1958 imposed martial law and ended the democratic experiment.

## Lecture 15

### Constitutions of Pakistan (1956, 1962, and 1973)

#### Micro Learning Outcomes

By the end of this lecture, students will be able to:

- Identify the key features of the 1956, 1962, and 1973 Constitutions of Pakistan.
- Understand the comparative significance of all the three constitutions of Pakistan.
- Analyse the reasons behind the failure of the 1956 and 1962 Constitutions and the success of the 1973 Constitution.

#### Introduction

A constitution is not just a legal document; it reflects a nation's vision, defines how power is distributed, protects citizens' rights, and establishes the structure of government. Since the creation of Pakistan on 14 August 1947, the country has struggled to develop a stable and permanent constitutional system. The founding leaders of Pakistan wanted the new state to be democratic, based on the rule of law, respectful of fundamental rights, and guided by the principles of Islam. However, converting these ideals into a practical constitutional framework was not easy. Pakistan faced many challenges, including political disagreements, regional differences, ethnic diversity, varying interpretations of Islam, and changing international conditions.

#### Overview of the Constitution of 1956

After gaining independence in 1947, Pakistan did not have a permanent constitution. Instead, it operated under the interim **Government of India Act 1935**. The task of creating a new framework fell to the first Constituent Assembly. The deadlock was partially broken by the **Objectives Resolution (1949)**, which laid the foundation for an Islamic democratic state, and the **One Unit Scheme (1955)**, which merged the provinces of West Pakistan into a single entity to match the political weight of East Pakistan. Finally, under the leadership of Prime Minister **Chaudhry Muhammad Ali**, the constitution was passed on February 29, 1956, and implemented on **March 23, 1956**.

## **Salient Features of the Constitution of 1956**

### **1. Islamic Republic**

One of the most significant features of the 1956 Constitution was that it officially declared Pakistan an “Islamic Republic.” This provision reflected the ideological foundation of the country and the aspirations of the Muslim population.

The constitution also emphasized that no law would be enacted contrary to the teachings of Islam as laid down in the Quran and Sunnah. It also provided for the establishment of institutions such as the Islamic Advisory Board to guide the government on Islamic matters.

### **2. Federal System of Government**

The constitution introduced a federal system, recognizing the existence of different provinces and regions within the country. Pakistan consisted of two major wings: East Pakistan and West Pakistan. The constitution distributed powers between the central government and the provinces, although the centre retained significant authority. This arrangement aimed to maintain national unity while allowing some degree of provincial autonomy.

### **3. Parliamentary Form of Government**

- The 1956 Constitution adopted a parliamentary system of government
- The President served as the ceremonial head of state.
- The Prime Minister was the head of government and exercised executive authority.
- The Prime Minister and the cabinet were responsible to the National Assembly.

This structure was intended to ensure democratic accountability, where the government remained answerable to elected representatives.

### **4. Unicameral Legislature**

The constitution established a unicameral legislature known as the National Assembly of Pakistan. The assembly consisted of 300 members, equally divided between East Pakistan and West Pakistan. This arrangement was based on the principle of parity, which meant equal representation for both wings despite the population advantage of East Pakistan.

## **5. Fundamental Rights**

The constitution guaranteed several fundamental rights to citizens. These included:

- Freedom of speech and expression
- Freedom of religion
- Freedom of association
- Equality before the law
- Protection of life and property

## **6. Independent Judiciary**

The constitution ensured the independence of the judiciary. The Supreme Court of Pakistan was established as the highest judicial authority.

## **7. National Language**

The constitution recognized Urdu and Bengali as the national languages of Pakistan. This decision was made after intense political debate and the language movement in East Pakistan.

## **8. Adult Franchise**

The constitution introduced the principle of adult franchise setting the age at 21 and allowing both men and women to vote equally.

# **Reasons for Failure of the 1956 Constitution**

## **1. Political Instability**

One of the main reasons for the failure of the 1956 Constitution was political instability. Between 1956 and 1958, several prime ministers came to power in a short period, which made it difficult to maintain stable governance and implement constitutional provisions effectively.

## **2. Weak Political Parties**

Political parties in Pakistan were poorly organized and lacked strong ideological foundations. Many politicians were more interested in gaining power than strengthening democratic institutions. As a result, parliamentary politics became dominated by personal rivalries and shifting alliances.

### **3. Bureaucratic and Military Influence**

Another factor was the increasing influence of the bureaucracy and the military in political affairs. Civilian governments often depended on bureaucrats and military leaders for administrative support. Over time, this imbalance allowed the military and bureaucracy to gain significant political power, which undermined democratic institutions.

### **4. Failure of the Parliamentary System**

Although the constitution introduced a parliamentary system, the political environment in Pakistan was not conducive to its success. The frequent changes in government and the absence of strong party discipline created instability in the National Assembly. This instability weakened public confidence in parliamentary democracy and created opportunities for non-democratic forces to intervene.

### **5. Regional Tensions between East and West Pakistan**

Despite the principle of parity, tensions between East Pakistan and West Pakistan continued. Many people in East Pakistan believed that they were politically and economically marginalized. These regional grievances created dissatisfaction with the constitutional system and contributed to political unrest.

### **6. Imposition of Martial Law in 1958**

The immediate cause of the constitution's failure was the military coup of October 1958. President Iskander Mirza, in collaboration with General Ayub Khan, abrogated the constitution and imposed martial law. Soon afterward, Ayub Khan removed Iskander Mirza and assumed full control of the government. This marked the beginning of Pakistan's first period of military rule and brought the 1956 Constitution to an abrupt end.

## **Constitution of Pakistan 1962: Salient Features and Reasons for Failure**

The **1962 Constitution** lies in the political chaos following the 1958 military coup. After General **Ayub Khan** seized power and abrogated the 1956 Constitution, he argued that a British-style parliamentary system was unsuitable for Pakistan's "genius." He introduced the **Basic Democracies** system in 1959 to create a loyal electoral college and appointed the **Shahabuddin Commission** to draft a new framework. However, Ayub Khan ignored many

of the Commission's democratic recommendations, instead enforcing a **Presidential System** keep all the power in his own hands. It failed to sustain political legitimacy and collapsed in 1969 amid widespread protests and political unrest.

## **Salient Features of the Constitution of 1962**

### **1. Presidential Form of Government**

One of the most important features was a presidential system. Under this system, the President was both the head of state and the head of government.

The President held extensive executive powers, including the authority to appoint ministers, governors, and other high officials. Unlike the parliamentary system, the executive was not directly responsible to the legislature. This arrangement significantly strengthened the position of the president and centralized political authority.

### **2. Strong Executive Authority**

The constitution gave the President wide powers in the administration of the country. He could issue ordinances, control the executive machinery, and influence legislative processes. The president also had the power to appoint the cabinet, which was responsible to him rather than to the legislature.

### **3. Basic Democracies System**

Another key feature of the constitution was the introduction of the Basic Democracies system. Under this system, a network of approximately 80,000 Basic Democrats was created at the local government level. These Basic Democrats were elected representatives who performed local administrative functions. They also formed the electoral college responsible for electing the President and members of the national and provincial assemblies. Ayub Khan argued that this system promoted grassroots democracy and local participation. However, critics believed that it limited direct public participation and strengthened the control of the central government over political processes.

### **4. Unicameral Legislature**

The 1962 Constitution established a unicameral legislature known as the National Assembly. The assembly consisted of 156 members, with equal representation for East Pakistan and West Pakistan. This arrangement continued the principle of parity.

## **5. Indirect Elections**

Unlike the constitution of 1956, which allowed direct elections based on adult franchise, the 1962 Constitution introduced indirect elections. Members of the National Assembly, provincial assemblies, and the president were elected by the Basic Democrats rather than by the general population. This system significantly reduced the direct role of the public in choosing their national leaders.

## **6. Limited Fundamental Rights**

Initially, the 1962 Constitution did not include a comprehensive list of fundamental rights, which attracted strong criticism from political leaders and the public. Due to pressure from opposition parties and civil society, the constitution was later amended to include fundamental rights, such as freedom of speech, equality before the law, and protection of civil liberties.

## **7. Role of Islam in the Constitution**

An Islamic Advisory Council was established to recommend ways of bringing laws in accordance with Islamic principles. However, compared with the 1956 Constitution, the Islamic provisions were initially less prominent.

## **8. National Language**

The constitution recognized Urdu and Bengali as the national languages of Pakistan. This aimed to address tensions between East and West Pakistan regarding language issues.

## **9. Independent Judiciary**

The 1962 Constitution maintained the independence of the judiciary and continued the role of the Supreme Court as the highest judicial authority. The judiciary had the power to interpret the constitution and ensure that government actions remained within legal limits.

## **Reasons for the Failure of the 1962 Constitution**

### **1. The "One-Man" Presidential System**

The Constitution concentrated nearly all powers in the hands of the President (Ayub Khan). He could appoint the Cabinet, Governors, and judges, and even veto legislation. This left the

National Assembly powerless, leading to a sense of **political deprivation** among other politicians and the public.

## 2. The Basic Democracies (BD) System

Instead of direct elections, Ayub Khan introduced an indirect system where only 80,000 "Basic Democrats" could vote for the President and Assemblies. The general public felt **disconnected from the government**, as they had no direct say in who ruled the country. This system was widely criticized as a tool for corruption and manipulation.

## 3. East Pakistan's Sense of Alienation

The 1962 Constitution did not address the grievances of East Pakistan. Despite the "Principle of Parity," the central government remained dominated by the West Pakistani elite and the military. The lack of **provincial autonomy** fueled the "Six Point Movement" by Sheikh Mujibur Rahman, which eventually led to the separation of East Pakistan.

## 4. Suppression of Political Parties

Initially, the 1962 Constitution banned political parties. Even when they were later allowed, they faced heavy restrictions. Without a platform for healthy political debate, the opposition turned to **street protests and strikes** (agitations) to express their frustration.

## 5. The 1965 War and Tashkent Declaration

The 1965 war with India weakened the economy and the government's image. The subsequent **Tashkent Declaration** (the peace treaty) was viewed by many, including Zulfikar Ali Bhutto, as a diplomatic surrender. This sparked massive student and labor protests that Ayub Khan could not control.

## 6. President's Health Problems and Military Pressure

By 1969, Ayub Khan's health declined, and his grip on power loosened. Instead of following his own constitution (which required the Speaker of the Assembly to take over), he handed power directly to the Army Chief, **General Yahya Khan**, who immediately abrogated the constitution and imposed Martial Law.



## The 1973 Constitution of Pakistan: Key Features, Significance, and Continued Relevance

After the collapse of the 1962 Constitution in March 1969, General **Yahya Khan** took over, imposed Martial Law, and issued the **Legal Framework Order (LFO) of 1970** to provide a roadmap for the country's first-ever direct general elections. These elections were held in December 1970, but the results led to a massive political deadlock between the Awami League in East Pakistan and the Pakistan People's Party (PPP) in West Pakistan. This crisis eventually escalated into a civil war, Indian intervention, and the tragic **separation of East Pakistan** (the creation of Bangladesh) in December 1971. In the aftermath, a humiliated military leadership handed over power to **Zulfikar Ali Bhutto**, who became the first civilian Chief Martial Law Administrator and President. Recognizing that a broken nation could only be held together by a legal consensus, Bhutto's government drafted an **Interim Constitution in 1972** before forming a parliamentary committee to create a permanent document.

The permanent constitution was passed by the National Assembly on 12 April 1973 and came into force on 14 August 1973. Unlike the earlier constitutions of, the 1973 Constitution was developed through a broad political consensus among major political parties. It established a federal parliamentary system, defined the rights of citizens, and incorporated Islamic principles within a democratic framework. Today, it remains the supreme law of Pakistan.

### Key Features of the 1973 Constitution

#### 1. Federal Parliamentary System

- The Constitution of 1973 establishes a parliamentary system of government in Pakistan.
- According to Article 90, the executive authority of the federation is exercised by the Federal Government, consisting of the Prime Minister and the Federal Ministers.
- The Prime Minister is the head of government and is elected by the National Assembly under Article 91.
- The President, under Article 41, is the ceremonial head of the state and is elected by an electoral college consisting of members of Parliament and provincial assemblies.
- This arrangement ensures that the government remains accountable to the elected representatives of the people.

## **2. Federal Structure and Provincial Autonomy**

- Pakistan is declared a federal republic under Article 1, which defines the territories of the federation, including the provinces and other regions.
- The constitution divides powers between the federal government and the provinces through the Federal Legislative List (Article 70 and Fourth Schedule).
- The Council of Common Interests (Article 153) was established to resolve disputes between the federal government and the provinces and to ensure coordination in matters of national importance. This institution plays a key role in maintaining federal harmony.

## **3. Bicameral Legislature**

The Constitution introduced a bicameral Parliament consisting of two houses:

- National Assembly

The National Assembly, established under Article 51, represents the people of Pakistan and is elected through direct elections based on population. It holds primary legislative authority and forms the government.

- Senate

The Senate, established under Article 59, represents the provinces equally, ensuring that smaller provinces have an equal voice in federal legislation. This helps maintain balance within the federation.

## **4. Islamic Provisions**

The Constitution reflects the Islamic identity of Pakistan through several provisions.

- Article 2 declares that Islam shall be the state religion of Pakistan.
- Article 227 states that all laws must be brought in conformity with the Quran and Sunnah, and no law shall be enacted that is contrary to Islamic teachings.
- The Council of Islamic Ideology (Article 228) was created to advise Parliament on whether laws conform to Islamic principles.
- The Federal Shariat Court, established under Article 203, has the authority to examine whether laws are consistent with Islamic injunctions.

These provisions aim to ensure that the legal system of Pakistan reflects Islamic principles while maintaining democratic governance.

## **5. Fundamental Rights**

The Constitution guarantees a comprehensive list of fundamental rights to citizens under Part II (Articles 8–28).

Some important rights include:

- Laws inconsistent with fundamental rights are void.
- Security of person and protection of life and liberty.
- Safeguards regarding arrest and detention.
- Inviolability of the dignity of man.
- Freedom of speech and expression.
- Freedom to profess and practice religion.
- Equality of all citizens before the law.

These rights form the foundation of democratic governance and protect individual freedoms.

## **6. Independent Judiciary**

The Constitution establishes an independent judiciary to uphold the rule of law.

- Article 175 provides for the establishment of the Supreme Court, High Courts, and subordinate courts.
- Article 184 grants the Supreme Court the power of original jurisdiction in matters of public importance relating to fundamental rights.
- The judiciary also exercises the power of judicial review, ensuring that laws and executive actions comply with the constitution.

## **7. Protection of Minority Rights**

The Constitution provides safeguards for religious minorities in Pakistan.

- It guarantees freedom to profess, practice, and propagate religion.
- It protects the educational rights of minorities.
- It directs the state to safeguard the legitimate rights and interests of minorities.

## **8. National Language**

It declares that Urdu shall be the national language of Pakistan, while English may continue to be used for official purposes until arrangements are made for the complete adoption of Urdu. The constitution also allows provinces to promote and develop their regional languages.

## **9. A written Constitution**

The 1973 Constitution is categorized as "written" because its provisions are deliberately codified into a single, comprehensive legal document. Unlike unwritten constitutions (such as the UK's), which rely heavily on conventions and common law, the 1973 constitution acts as the **supreme law** which defines, separates, and limits the powers of the Legislature, Executive, and Judiciary. It consists of 12 parts, 280 articles, and 6 schedules.

## **Significance of the 1973 Constitution**

### **1. Constitution Based on Political Consensus**

One of the most important aspects is that it was adopted through national consensus. Major political parties from different regions supported the constitution, which gave it strong legitimacy.

### **2. Restoration of Democracy**

After years of military rule under General Ayub Khan and General Yahya Khan, the constitution restored parliamentary democracy and strengthened representative institutions.

### **3. Council of Common Interests**

Through institutions such as the Senate (Article 59) and the Council of Common Interests (Article 153), the constitution ensures that all provinces participate in national decision-making. This helps maintain political balance within the federation.

### **4. Longevity and Stability**

The 1973 Constitution has remained the basic legal framework of Pakistan for more than fifty years. Although it has faced periods of suspension during military rule, it has always been restored as the central governing document. The constitution has been amended several times to address changing political needs.

## **5. Foundation of Democratic Governance**

Today, the 1973 Constitution continues to regulate the structure of government, the distribution of powers, and the protection of citizens' rights. It provides the legal framework through which political disputes can be resolved through constitutional means.

## **6. Rigid Procedure**

It is considered a rigid constitution because it requires a two-thirds majority in both the National Assembly and the Senate for amendments, meaning it cannot be easily changed by any government.

## **Concluding Remarks**

The constitutional history of Pakistan reflects the country's continuous struggle to establish a stable and democratic political system. The 1956 Constitution laid the foundation of Pakistan as an Islamic republic with a parliamentary structure but failed due to political instability. The 1962 Constitution introduced a strong presidential system under military influence, yet lacked democratic legitimacy. In contrast, the 1973 Constitution emerged through national consensus and successfully combined federalism, parliamentary democracy, and Islamic principles. Despite challenges and amendments, it has remained the most enduring constitutional framework of Pakistan, guided the country's governance and safeguarded fundamental rights for over five decades.

## Lecture 16

### Structure of State: Conceptual Framework

#### Micro Learning Outcomes (MLOs)

By the end of this lecture, students will be able to:

- Recall the definition of the state and its four essential elements.
- Differentiate between state and government in terms of their nature, functions, and continuity.
- Explain the structure of the state and describe the functions of its main organs: legislature, executive, and judiciary.
- Discuss the concepts of separation and concentration of powers with relevant examples from state systems.
- Analyze the system of Checks and Balances in the constitutional framework of states.

#### Introduction

The structure of the state provides a conceptual framework for understanding how political power is organized, distributed, and exercised within a society. It includes the essential elements of the state population, territory, government, and sovereignty as well as the distinction between the state and government. It also explains the three organs of the state: legislature, executive, and judiciary, along with the principles of separation and concentration of powers. In addition, it highlights the mechanism of checks and balances, which ensures accountability and prevents the misuse of authority.

## **Understanding the Structure of State**

### **Definition and Purpose of State**

Harold J. Laski's definition of the State emphasizes that "Every state in the modern world is a territorial community in the name of which some agent or agents exercise sovereignty. By sovereignty is meant the legal competence to issue orders without a need to refer to a higher authority. The orders so issued constitute law, and are binding upon all who come within their jurisdiction".

In general, a state is a politically organized community of people living within a defined territory under a government that exercises sovereignty. It is different from society or nation because a state must have four essential elements: population, territory, government, and sovereignty. Without these elements, a state cannot exist as a legal and political authority.

The purpose of the state is to organize collective life and maintain order in society. It provides laws, institutions, and authority through which people live peacefully and securely. The state protects citizens from internal disorder, crime, violence, and external threats. It also provides justice through courts and legal institutions. The shadow of the state falls upon almost every human activity.

Beyond maintaining law and order, the state performs a wide range of welfare and developmental functions. In Pakistan, these responsibilities are exercised through constitutional institutions such as the legislature, executive, and judiciary, as well as administrative structures including the civil service, provincial governments, and local governments. Together, these institutions work to ensure governance, public service delivery, accountability, and socio-economic development.

In addition to maintaining order, the state protects fundamental rights and outlines the duties and responsibilities of its citizens. It gives citizens legal identity, political participation, and constitutional protection. In Pakistan, the Constitution of 1973 serves as the supreme legal framework for the exercise of state authority. Within this constitutional order, the state seeks to maintain stability, protect national sovereignty, uphold justice, advance public welfare, and organize society through the rule of law and constitutional governance.

## Essential Elements of a State

A state has four essential elements: population, territory, government, and sovereignty. The state is a political association that exercises sovereign jurisdiction within defined territorial borders. In contrast to government which is merely one of its parts the state encompasses all public bodies and exercise impersonal authority on the basis of assumption that it represents the permanent interests of society. A state can exist as an independent political entity only when it possesses four essential elements.

- I. **Population:** Population means the people living in a state, connected through citizenship, law, and political identity despite differences of religion, language, culture, or region. Population size differs from state to state; India and China have very large populations, while Vatican City has one of the smallest populations. A population becomes a source of strength when it is educated, skilled, healthy, and productive, contributing to national development. Vice versa, when it is uneducated, unemployed, and unhealthy, it becomes a burden on the state. In Pakistan's context, its large youthful population can become a major national asset if developed through education, skills, healthcare, employment, civic sense, and national unity. There is no fixed minimum or maximum population required for a state; however, the population must be sufficient to sustain governance and ensure the functioning of political and administrative systems. Ancient philosophers such as Plato proposed an ideal population of about 5,040 citizens, whereas Aristotle argued that a state should have a population large enough to achieve self-sufficiency but small enough to allow effective administration and maintain political order.
- II. **Territory:** It is the fixed geographical area of a state, including land, rivers, mountains, deserts, coastal areas, natural resources, and airspace within recognized boundaries. It is essential for statehood because all authority, laws, defence, and sovereignty operate within it. States vary in size, from large countries like Russia and China to small ones like Vatican City, but importance depends on strategic and economic value rather than size alone. Territory is a strength when it is resource-rich, fertile, strategically located, and connected to trade routes, while it becomes a weakness when it is landlocked, resource-poor, disputed, or difficult to manage. Access to the sea generally provides advantages in trade and



connectivity, while landlocked states may face limitations but can still progress through cooperation and effective policies.

- III. **Government:** It is the 3<sup>rd</sup> element of State. **Aristotle says** “Government is the supreme authority within a state which rules over its citizens and ensures the good life.” Government is the institutional authority of the state that formulates and enforces laws, maintains order, and ensures the welfare of citizens.

Government maintains order, protects citizens, collects taxes, provides services, promotes welfare, and represents the state internally and externally. Governments are generally classified into different types such as democracy, monarchy, dictatorship, theocracy, and republic, depending on how authority is exercised and who holds power in the state. In a democracy, power rests with the people through elected representatives. For example, Pakistan has a federal parliamentary democratic system where the Prime Minister is the head of government and Parliament plays a key role in law-making under the Constitution. In contrast, the United States follows a presidential system in which the President is both head of state and government, and there is a strong separation of powers between the executive, legislature, and judiciary.

**Sovereignty:** It is an essential element of state. It means the supreme authority of the state and is directly linked with state power. It gives the state final authority to make laws, enforce decisions, maintain order, protect borders, conduct foreign policy, and represent itself internationally. Its main attributes are supremacy, permanence, universality, indivisibility, independence, exclusiveness, and legality.

Sovereignty has two dimensions;

1. **Internal Sovereignty**, which means final legal and political authority over all individuals within the territory.
2. **External Sovereignty**, which means independence in relations with other states.

Sovereignty is the supreme authority of the state to govern itself without internal or external interference. It has different dimensions, including **legal sovereignty**, which refers to the authority recognized by law to make and enforce laws; **political sovereignty**, which refers

to the ultimate source of political power, usually the people; and **popular sovereignty**, the principle that state authority derives from the consent of the people. Sovereignty enables a state to exercise independent control over its territory, population, and government.

For instance, Pakistan is considered a complete state because it possesses all four elements. In contrast, Somaliland has a defined population, territory, and functioning government, but it lacks widespread international recognition and full external sovereignty. Therefore, it is often described as a de facto state rather than a fully recognized sovereign state.

### **Distinction between State and Government**

The **state** and the **government** are closely related but distinct concepts in political science. The state is a permanent political and legal organization, while the government is its working machinery that operates it. The government is considered the 'brain' of the state, responsible for making and implementing state policies and it perpetuates state's existence. According to J. W. Garner, "Government is the agency through which the will of the state is formulated, expressed, and realized." The principal differences between the State and the Government are following;

| <b>Basis</b> | <b>State</b>                                                                                                                                                                            | <b>Government</b>                                                                                                                            |
|--------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------|
| Nature       | It is a permanent political and legal entity.<br><br>It is an inclusive association that encompasses all the institutions of the public realm and embraces all the members of community | It is a temporary administrative institution.<br><br>Systems of government can be reformed and remodeled.                                    |
| Composition  | Includes population, territory, government, and sovereignty                                                                                                                             | Only one part of the state                                                                                                                   |
| Authority    | Has supreme sovereignty<br><br>Absolute and unlimited authority                                                                                                                         | Exercises authority on behalf of the state                                                                                                   |
| Continuity   | It remains permanent even when governments change.                                                                                                                                      | It changes through elections or other political processes within the time-frame prescribed by the constitution.                              |
| Function     | Provides overall framework of political system<br><br>It represents the permanent interests and collective will of the individuals of society.                                          | Implements laws and runs day-to-day administration<br><br>It represents the political preferences of those who are in power at a given time. |
| Examples     | Pakistan and United States (as a state)                                                                                                                                                 | Government of Pakistan and Government of United States (e.g., elected leadership and institutions)                                           |

**Table: 16.1 Distinction between the State and the Government**

## **Organs of the State and Their Functions**

The state performs its functions through three principal organs: the legislature, executive, and judiciary. Each organ has distinct responsibilities, but all work together to ensure effective governance, administration, and justice.

### **1. Legislature: The Organ Responsible for Representation and Law-Making**

The legislature is the law-making organ of the state and the representative voice of the people. In a democracy, laws are enacted through elected representatives rather than the personal will of rulers. Its primary functions include making laws, representing public interests, approving public policies and budgets, and holding the executive accountable through oversight and debate. In this way, the legislature serves as a vital link between public opinion and state policy.

Parliament in different countries may be either unicameral (one house) or bicameral (two houses), depending on the constitutional structure of the state. In bicameral systems, it consists of a lower house that represents the people and an upper house that represents regions or Provinces. For instance, Pakistan and India have bicameral legislatures consisting of two houses: a lower house (National Assembly in Pakistan and Lok Sabha in India) and an upper house (Senate in Pakistan and Rajya Sabha in India).

### **2. Executive: Implementation of Laws and State Administration**

The executive, as the second branch of the state, is responsible for implementing laws passed by the legislature and managing the administration. It translates laws and policies into practical action through various institutions, departments, and officials. Without the executive, laws remain ineffective as they cannot be enforced or applied in a society.

In Pakistan's parliamentary system, the Prime Minister is the head of government, and the Cabinet assists in policy-making and administration. The executive includes federal and provincial ministers, civil services, police, administrative departments, and public agencies. It maintains law and order, collects taxes, prepares budgets, implements development projects, manages public services, responds to emergencies, and protects national security. However, it must remain within constitutional and legal limits and must answer for its performance before representative and judicial institutions.

### **3. Judiciary: Interpretation of Laws and Dispensation of Justice**

Judiciary the branch of Government, and the system of courts that interprets laws and provides justice. It is the body of judges in a constitutional system. The power, authority and role of judiciary may vary from country to country. but It resolves disputes between individuals, between citizens and the state, and among different institutions. It also safeguards constitutional rights and ensures that all state institutions operate within legal limits. The judiciary plays a vital role because laws require interpretation, and they may be understood differently by individuals and institutions.

In Pakistan, the judiciary is constitutionally independent, meaning it is separate from the executive and legislature. It is responsible for interpreting laws, protecting fundamental rights, and ensuring justice without external influence or pressure. Courts protect citizens when rights are violated. If a person is illegally detained, courts may order relief. If a public authority misuses power, courts may examine the legality of that action. In the Constitution of Pakistan, equality before law is guaranteed under Article 25, which states that all citizens are equal before the law and are entitled to equal protection of the law.

### **Interdependence and Coordination of State Organs**

The legislature, executive, and judiciary are separate organs of the state, but they function in close coordination and interdependence to ensure effective governance. Each organ performs its specific role law-making by the legislature, implementation by the executive, and interpretation by the judiciary while also cooperating and exercising checks on one another to maintain balance and accountability. This relationship ensures that state institutions work smoothly within the constitutional framework.

This discussion leads to the concept of **separation of powers and concentration of power**, which explains how authority is distributed among different organs to prevent the misuse or over-centralization of state power.

### **Separation and Concentration of Powers**

The theory of separation of powers, introduced by the French philosopher Montesquieu, states that the three organs of the state the Legislature (law-making),

the Executive (law-enforcement), and the Judiciary (law-interpreting) must remain independent of one another. If these powers are combined in the same hands, liberty is destroyed. The purpose of this separation is to create a system of checks and balances, where no single organ becomes too powerful or develops tyrannical authority.

In contrast, the theory of concentration of powers (or fusion of powers) argues that the Executive and Legislature should work together rather than remain isolated. The executive emerges from the Legislature and is accountable for it. This ensures harmony, efficiency, and quick decision-making, as the same team both makes and implements laws.

These two theories directly shape the structure of governments worldwide.

**In a Presidential form of Government**, such as the United States, the theory of separation of powers is strictly applied. The President is elected separately and heads the Executive. The Congress makes laws. The Supreme Court interprets the constitution. Members of the Executive cannot sit in the Legislature. Each branch acts as a check on the other: the President can veto laws, Congress can impeach the President, and the Judiciary can declare laws unconstitutional. This prevents dictatorship but may create deadlock between branches.

**In a Parliamentary form of Government**, such as the United Kingdom and Pakistan, the theory of concentration of powers is applied. The Prime Minister and the Cabinet are members of Parliament. The Executive is drawn from and remains answerable to the Legislature. This fusion allows smooth governance because the government enjoys the confidence of the majority and can pass laws quickly. However, to prevent the abuse of this concentrated power, the Judiciary is kept strictly independent to protect the constitution and fundamental rights.

Under the 1973 Constitution, Pakistan follows a parliamentary system. The Prime Minister is the real executive, while the President is the constitutional head of state with ceremonial powers. The Prime Minister and Cabinet sit in the National Assembly and are collectively responsible for it.

Despite the fusion between Executive and Legislature, Pakistan maintains a separate and independent Judiciary. The Supreme Court and High Courts can exercise judicial review, striking down any law or executive action that violates the constitution. This ensures that even within a concentrated system, the rule of law remains supreme. Thus, in Pakistan, the three organs are separate in function but connected in governance, creating balance, accountability, and constitutional order.

## **Mechanism of Checks and Balances**

Checks and balances is a constitutional mechanism in which the powers of the state are distributed among the legislature, executive, and judiciary, and each organ is enabled to limit, supervise, and hold the others accountable. The main purpose is to prevent the concentration of power and ensure that all institutions function within constitutional limits.

### **Key points of checks and balances:**

- Prevents concentration of power in one institution
- Ensures accountability of all state organs
- Maintains constitutional supremacy and rule of law
- Promotes transparency and responsible governance
- Balances authority among legislature, executive, and judiciary

In Pakistan, this system operates through parliamentary control over the executive, judicial review by courts, constitutional limits on all institutions, and oversight by bodies such as the Election Commission and Auditor-General. Together, these mechanisms ensure balance, accountability, and stability in the state structure.

## **Conclusion**

In conclusion, the structure of the state is based on a comprehensive constitutional and institutional framework that includes the elements of the state, the organs of government, the distinction between state and government, and the principles of separation and concentration of powers. The system of checks and balances further ensures that no organ becomes overly powerful. Together, these components promote effective governance, political stability, rule of law, and constitutional order, which are essential for the functioning of modern states.

## Lecture 17

### The Legislature in Pakistan

#### Micro Learning Outcomes (MLOs)

By the end of this lecture, students will be able to:

- Define the concept, structure, and importance of the legislature in general and in Pakistan.
- Explain the composition, powers, and functions of Parliament, including the National Assembly, Senate, President, and Prime Minister under 1973 Constitution.
- Analyze the powers, and functions of the Legislature of Pakistan within the framework of the 1973 Constitution.

#### Introduction

The previous lecture on **State Structure** discussed the concept of the state, its elements population, territory, government, and sovereignty and the three organs of government: legislature, executive, and judiciary. This lecture focuses on the **Legislature of Pakistan (Parliament or Majlis-e-Shoora)**, the main law-making and representative body. It consists of the President, National Assembly, and Senate. The lecture covers its composition, functions, legislative procedure, committee system, financial powers, constitutional amendment process, parliamentary accountability, role of the opposition, and vote of no confidence. Understanding Parliament is essential for appreciating democratic governance, federal representation, constitutional supremacy, and the rule of law in Pakistan.

**Note:** In this lecture, the terms **Legislature, Parliament, and Majlis-e-Shoora** are used interchangeably.

#### Legislature: Meaning, Types and Importance

The term **legislature** is derived from the Latin words *lex* (law) and *latus* (to carry or propose), meaning a body that makes or enacts laws. As an institution, the legislature is a representative organ of government responsible for lawmaking, public representation, policy deliberation,



budget approval, and oversight of the executive branch. It serves as a forum where elected representatives debate national issues and formulate laws for the governance of the state.

Legislatures are generally classified into two main types:

### **1. Unicameral Legislature**

A unicameral legislature consists of **one legislative chamber or house**. All legislative powers are exercised by a single representative body. This system is often adopted in smaller or unitary states (For example; New Zealand and China) because it is simpler, less costly, and allows for quicker lawmaking.

### **2. Bicameral Legislature**

A bicameral legislature consists of **two legislative chambers**, usually known as the **Upper House** and **Lower House**. Laws generally require approval from both houses before enactment. Examples of bicameral legislatures include Pakistan, where Parliament consists of the National Assembly and the Senate and the United Kingdom, where Parliament comprises the House of Commons and the House of Lords. In each case, the two chambers work together in the legislative process while providing broader representation and checks and balances within the system of government. The choice of structure depends on population, federal or unitary character of the state, need for representation, and the desire to review laws carefully before final approval. Its advantages include wider representation, better review of legislation, protection of smaller units, and prevention of hasty law-making. Its disadvantages may include delay in legislation, higher cost, and possible disagreement between the two houses.

The legislature is a key organ of the state that represents the people's will, makes laws, and ensures accountability of the executive. It provides legal rules for governance, public order, taxation, rights, and administration. It also promotes transparency and democratic legitimacy, making it essential for the functioning of a constitutional state.

## **Parliament of Pakistan**

The Parliament of Pakistan (Majlis-e-Shoora) is the supreme legislative institution of the country responsible for making laws, approving the budget, and overseeing the executive. Pakistan has adopted bicameral legislature under the 1973 Constitution, consists of the President, the National Assembly, and the Senate. As the cornerstone of Pakistan's parliamentary democracy, it represents both the people and the federating units of the state.

### **Evolution of the Legislature in Pakistan**

The legislative system of Pakistan has evolved through different constitutional phases. After 1947, the Government of India Act 1935 served as the interim framework. The 1956 Constitution introduced a parliamentary system with a unicameral legislature, while the 1962 Constitution established a presidential system with a unicameral legislature where real executive authority was concentrated in the office of the President.. The 1973 Constitution restored parliamentary democracy and created a bicameral Parliament consisting of the National Assembly and the Senate. In Pakistan's federal system, the National Assembly represents population, while the Senate ensures equal provincial representation, promoting balanced decision-making, protecting smaller units, improving legislative scrutiny, and strengthening democracy.

### **Structure of the Legislature of Pakistan**

The Legislature of Pakistan is bicameral, consisting of Upper and lower houses. It has three main components the President, the National Assembly, and the Senate.

#### **The President of Pakistan**

The President of Pakistan is the **federal executive head of state** and serves as a symbol of the federation's unity. Unlike the Prime Minister, the President's role is largely ceremonial under Pakistan's parliamentary system, though certain constitutional powers provide authority in specific circumstances.

### Qualifications

- A candidate must be a Muslim, at least 45 years of age, qualified to be a member of the National Assembly, and not holding any office of profit under the government.

### Elections

- The President is elected for a five-year term by an Electoral College consisting of members of the National Assembly, Senate, and 4 Provincial Assemblies under Article 41.
- The President is eligible for re-election to the president office but no person will be a President for more than two consecutive terms.

### Tenure

- The President serves a fixed term of five years.

### Removal or Impeachment

- The impeachment process is provided under Article 47 of the Constitution.
- If the President violates the Constitution, commits gross misconduct, or becomes incapable, a resolution can be initiated in either House of Parliament.
- If passed by a **two-thirds majority of the total membership of both Houses**, the President is removed from office.
- This ensures that the President is indirectly elected and remains accountable within the parliamentary system.

The Acting President performs the duties of the President when the office is vacant or the President is absent. The Chairman Senate acts as President, and if unavailable, the Speaker National Assembly assumes the role. The Acting President exercises all presidential powers temporarily and ensures continuity of constitutional and state functions until a new President is elected.

### **Duties and Legislative Powers of the President**

The President is a constitutional component of Parliament under Article 50.

- He summons, prorogues, and dissolves Parliament on the advice of the Prime Minister.
- He may address Parliament and communicate policy priorities.
- He gives assent to bills passed by both Houses, which is necessary for law-making.
- Under Article 75, he may return an ordinary bill (except money bills) for reconsideration, but must assent if passed again.
- Under Article 89, he may issue ordinances when Parliament is not in session, which have temporary force of law.
- He ensures budget and financial legislation are presented before Parliament.
- Under Article 58(2)(b), he had discretionary power to dissolve the National Assembly, now repealed.
- He acts as a formal link between the executive and legislature, ensuring constitutional law-making.

### **The Prime Minister of Pakistan**

The Prime Minister of Pakistan serves as the chief executive of the federal government under the parliamentary system and holds the real authority in the parliamentary system under the 1973 Constitution. He works in coordination with his Cabinet. The Prime Minister is responsible to the National Assembly and must maintain its confidence to remain in office.

#### **Qualifications**

- Must be a Muslim according to constitutional requirements.
- Must be a citizen of Pakistan and a member of the National Assembly.
- Must be at least 25 years of age (minimum qualification to be an MNA).
- Must be elected as leader of the majority party or coalition in the National Assembly.

- Must be of sound mind and not disqualified by any law or court order.

#### Election

- The Prime Minister is elected by the **National Assembly under Article 91**.
- A simple majority of members present and voting is required.

#### Tenure

- The Prime Minister remains in office as long as he/she enjoys the confidence of the National Assembly.
- Can be removed through a vote of no confidence under Article 95.

#### Duties and Legislative Powers of the Prime Minister

- Leader of the majority in the National Assembly and key figure in law-making.
- Sets and controls the **legislative agenda** in Parliament.
- Government bills are introduced through ministers under his/her direction.
- Ensures passage of laws by maintaining **majority support**.
- Plays a central role in **budget approval** in Parliament.
- Coordinates parliamentary debates and party members for effective legislation.
- He/she has influence in **summoning or advising dissolution of the National Assembly**, affecting the legislative timetable.

#### Voter Qualifications in Pakistan

A person can vote to elect a member of the National Assembly if he/she is a Pakistani citizen, at least 18 years old, has a valid CNIC, is registered in the electoral roll of the constituency, and is not disqualified by law or declared of unsound mind.

#### Qualifications of the Members of the Parliament

A person to be elected as a member of Parliament must be a Pakistani citizen, at least 25 years old for National Assembly and 30 years for Senate, and a registered voter. He/she must be of good character with honesty and integrity, not of unsound mind or bankrupt, and must not hold

any office of profit under the government. All constitutional requirements under the Constitution of Pakistan and Election Act, 2017 must also be fulfilled.

## The National Assembly

The National Assembly is the **lower house** of Parliament and represents the people of Pakistan. It plays a key role in law-making, especially financial legislation such as the budget and taxation.

- **Composition:** Members are directly elected from constituencies (Each Province) on the basis of population, along with reserved seats for women and non-Muslims. Therefore, provinces with larger populations receive more seats than smaller provinces.
- **Election:** Direct elections under the Election Act, 2017. Reserved seats are allocated to parties on proportional representation.
- **Term:** It is a temporary house with a five-year term unless dissolved earlier.
- **Speaker & Deputy Speaker:** Elected by the members of the National Assembly from among themselves. They preside over sessions and maintain order.
- **Removal:** Speaker or Deputy Speaker can be removed through a majority vote of the total membership of the Assembly.
- **Sessions:** Summoned by the President; must meet regularly, and gaps between sessions cannot exceed constitutional limits.
- **Quorum:** One-fourth of total membership is required to conduct proceedings.
- **Majority Vote:** Ordinary decisions and bills are passed by a simple majority of members present and voting.
- **Dissolution:** The President may dissolve the National Assembly on the advice of the Prime Minister under Article 58(1) of the 1973 Constitution; the President no longer has an independent power to dissolve the Assembly at discretion.

## The Senate

The Senate is the permanent upper house of Parliament and represents the provinces equally, ensuring federal balance in legislation.

- **Composition:** Indirectly elected members representing provinces and federating units.

- **Election:** Members are elected by Provincial Assemblies and other constitutional bodies.
- **Chairman & Deputy Chairman:** Elected by the Senators from among themselves to preside over proceedings.
- **Removal:** Can be removed through a majority vote of the Senate.
- **Sessions:** Like the National Assembly, sessions are summoned and conducted under constitutional rules.
- **Quorum:** One-fourth of total membership is required.
- **Majority Vote:** Decisions are taken by a simple majority.
- **Dissolution:** The Senate is a permanent house and cannot be dissolved.

**Table 17.1 Distribution of Seats in Parliament of Pakistan**

| House                                                                                                                              | Punjab | Sindh | Khyber Pakhtunkhwa | Balochistan | ICT | Women | Non-Muslims | Total |
|------------------------------------------------------------------------------------------------------------------------------------|--------|-------|--------------------|-------------|-----|-------|-------------|-------|
| <b>National Assembly</b>                                                                                                           | 141    | 61    | 45                 | 16          | 3   | 60    | 10          | 336   |
| <b>Senate</b>                                                                                                                      | 23     | 23    | 23                 | 23          | 4   |       |             | 96    |
| The seat distribution shown above reflects the composition of Parliament under the Constitution of Pakistan as applicable in 2026. |        |       |                    |             |     |       |             |       |

**Note:** In the National Assembly, seats of women and non-Muslims are reserved and allocated through proportional representation. \*In the Senate, reserved seats for women and non-Muslims are included within the total provincial representation.

## Powers and Functions of Legislature

In Pakistan's parliamentary system, both houses of Majlis-e-Shoora have equal powers of legislation, whereas National Assembly have more powers in financial matters. Budget is exclusively passed by National Assembly. some other functions and powers of Majlis-e-Shoora re as under:

## Legislation

The core responsibility of the legislature is to legislate laws for the country. It includes making new laws to address emerging social, political, and economic needs of society. It also involves amending existing laws to update or improve them according to changing circumstances. In addition, the legislature has the power to repeal or remove outdated laws that are no longer relevant or useful. Through these functions, the legislature ensures that the legal system remains effective, modern, and aligned with the needs of the state and its people.

The legislative procedure in Pakistan begins with a bill, which is a proposed law introduced in Parliament to create, amend, or repeal existing laws. A bill may be introduced as a government bill or a private member bill. It becomes an Act of Parliament after passing through several constitutional stages, including readings, committee review, and approval by both Houses.

In the first reading, the bill is formally introduced. The second reading involves a general debate on its principles and objectives. During the committee stage, the bill is examined in detail, and amendments may be proposed. This is followed by the report stage and the third reading, where the final version is voted upon.

In Pakistan, an ordinary bill is passed by a simple majority (more than 50% of members present and voting), while a constitutional amendment bill requires a two-thirds majority of the total membership of each House. After approval by both Houses, the bill is sent to the President for assent under Article 75. Once assented, it becomes law.

If the President returns the bill (except a money bill), Parliament may reconsider it. If passed again, the President is constitutionally bound to give assent within the prescribed time, otherwise it becomes law automatically.

Bills are generally classified into four types: ordinary, money, finance, and constitutional amendment bills, covering general, financial, and constitutional matters.

## Financial Functions

In financial procedure, the **annual budget** is the most important document, prepared by the executive but approved by the National Assembly under Articles 80–83, ensuring parliamentary



control over taxation and public spending. It also has the power to approve the **imposition, increase, or withdrawal of taxes**. Through these functions, the legislature controls public finances and ensures accountability and transparency in financial matters.

### **Legislative Role in the Appointment of Judges**

In Pakistan, the legislature does not directly appoint judges but plays an indirect oversight role. Under the 1973 Constitution, judges are appointed on the recommendation of the Judicial Commission, and these nominations are reviewed by a Parliamentary Committee of Parliament members, which may confirm or reject them. This ensures transparency while maintaining judicial independence.

### **Electoral Functions**

Under the 1973 Constitution of Pakistan, the legislature performs an **electoral function** in selecting key constitutional offices. The President is elected under constitutional provisions, while the Prime Minister is chosen through a majority vote in the National Assembly. The Senate is formed through indirect elections, and reserved seats are filled through proportional representation. These processes ensure democratic representation in the formation of constitutional institutions.

### **Amendment in the Constitution**

The legislature has the power to **amend the Constitution under the Constitution of Pakistan 1973**. Constitutional amendments are introduced through a constitutional amendment bill. Through this function, the legislature can revise and update the constitutional framework to address changing political, social, and administrative needs while maintaining constitutional continuity. The Constitution of Pakistan is rigid in nature when it comes to amendments. This rigidity helps protect the Constitution from frequent or arbitrary changes.

Under **Articles 238 and 239 of the 1973 Constitution**, a constitutional amendment requires:

- Approval by a **two-thirds majority of the total membership** of both the National Assembly and the Senate.

- If the amendment affects the boundaries or rights of a province, it must also be approved by a **two-thirds majority of the concerned Provincial Assembly**.

### **Accountability and Oversight of the Executive**

Parliamentary accountability means that the executive (Prime Minister, Cabinet, and ministers) is answerable to the legislature for its policies, decisions, administration, and use of public funds. In Pakistan, this accountability is ensured through various mechanisms. Members of Parliament can ask questions to ministers regarding government performance and public issues. Debates and motions allow discussion on national matters and criticism of government actions. Standing committees examine bills and review the performance of ministries in detail, while the Public Accounts Committee ensures financial accountability by auditing government expenditure. Parliament also controls public spending through the budget and demands for grants. Additionally, ministers remain politically responsible for their departments under the principle of ministerial responsibility. A **vote of no confidence** allows the National Assembly to remove the Prime Minister if he/she loses majority support. If passed by a simple majority of the total membership, the Prime Minister must resign and a new leader is elected. A key example is the April 2022 vote of no confidence, which removed Prime Minister Imran Khan and led to the election of Shehbaz Sharif as Prime Minister.

### **Structure of Provincial Legislature in Pakistan**

At the provincial level in Pakistan, the legislature is unicameral and consists of a Provincial Assembly in each province. Members of the Provincial Assembly (MPAs) are directly elected for a five-year term, unless dissolved earlier. The Governor, appointed by the President on the advice of the Prime Minister, represents the Federation and gives assent to provincial bills. The Speaker and Deputy Speaker are elected from the Assembly to conduct proceedings. Provincial assemblies make laws on provincial subjects and oversee provincial governance, while the Chief Minister, elected by majority, heads the provincial executive. At the provincial level, the legislature performs the same law-making, financial, and oversight functions as the federal legislature within provincial subjects.

**Table 17.2: Members of Provincial Assemblies in Pakistan**

| Province                                                                                                                           | Total Seats | Directly Elected Seats | Reserved Seats for Women | Reserved Seats for Non-Muslims |
|------------------------------------------------------------------------------------------------------------------------------------|-------------|------------------------|--------------------------|--------------------------------|
| Punjab                                                                                                                             | 371         | 297                    | 66                       | 8                              |
| Sindh                                                                                                                              | 168         | 130                    | 29                       | 9                              |
| Khyber Pakhtunkhwa                                                                                                                 | 145         | 115                    | 26                       | 4                              |
| Balochistan                                                                                                                        | 65          | 51                     | 11                       | 3                              |
| The seat distribution shown above reflects the composition of Parliament under the Constitution of Pakistan as applicable in 2026. |             |                        |                          |                                |

### **Functions of Provincial Assemblies**

Provincial Assemblies in Pakistan make laws on provincial subjects and oversee provincial governments. These include areas such as education, health, agriculture, local government, police, public order, irrigation, transport, tourism, energy, minerals, and culture, ensuring effective governance and development at the provincial level.

### **Role of Opposition in Legislature**

The opposition consists of political parties that do not hold a majority in the National Assembly and are led by the leader of the opposition. It strengthens democracy by holding the government accountable, questioning policies, highlighting public concerns, and participating in parliamentary debates and committees. Currently, the opposition is led by Omar Ayub Khan under PML(N) Govt. 4<sup>th</sup> term.

## Significance of the Legislature in Pakistan

1. **Law-making authority:** The legislature is the primary body responsible for making, amending, and repealing laws in Pakistan, ensuring proper legal governance.
2. **Representation of people and provinces:** It reflects the will of citizens through the National Assembly and ensures provincial equality through the Senate.
3. **Financial control:** It approves the national budget, taxation, and public expenditure, keeping government spending under parliamentary supervision.
4. **Accountability and oversight:** The legislature monitors the executive through questions, debates, committees, and motions to ensure transparency and good governance.
5. **Strengthening democracy and federation:** It promotes democratic values, protects fundamental rights, and maintains balance between federal and provincial governments.

## Conclusion

The legislature is a key organ of the state and a foundation of Pakistan's parliamentary democracy. Through its law-making, financial, electoral, and oversight functions, it represents the people and ensures government operates within constitutional limits. The bicameral Parliament (National Assembly and Senate) ensures both popular representation and federal balance. By making laws, approving budgets, checking the executive, and amending the Constitution, the legislature protects democracy, safeguards citizens' interests, and upholds the rule of law in Pakistan.

# **Lecture 18**

## **The Executive in Pakistan**

### **Micro Learning Outcomes (MLOs)**

By the end of this lecture, students will be able to:

- Define the Executive (Meaning, types and significance) and explain its basic role in governance in general.
- Describe the structure of the Executive under the 1973 Constitution of Pakistan.
- Explain the roles and functions of key executive authorities, including the President, Prime Minister, and Federal Cabinet.
- Analyze the role of the civil bureaucracy in policy implementation and the functioning of federal and provincial administration in Pakistan.

### **Introduction**

The previous lecture introduced the Legislature in Pakistan as one of the three key organs of the state under the 1973 Constitution. It covered the structure and functions of Parliament, including the National Assembly, Senate, President, and Prime Minister, as well as provincial legislatures. It also explained the legislative process, financial and constitutional roles, parliamentary accountability, and the role of the opposition, emphasizing Parliament's importance in democratic governance and federal representation.

This lecture examines the concept, structure, and significance of the Executive in Pakistan. It highlights the constitutional foundations of the executive and explains its functioning within Pakistan's parliamentary system. It also discusses the Bureaucracy which is the permanent administrative machinery of the state that assists the executive in implementing laws, policies, and government decisions.

Primary Source: Constitution of the Islamic Republic of Pakistan, 1973

## **Meaning and Significance of Executive**

The term "executive" is derived from the Latin word *exsequi*, meaning "to carry out" or "to execute." In political science, the executive refers to the branch of government responsible for implementing laws passed by the legislature, administering public affairs, and managing the day-to-day functions of the state. In practical terms, it includes the President, Prime Minister, Federal Cabinet, and the civil bureaucracy that works at both federal and provincial levels.

In modern democratic systems, the executive plays a central role in policy making, governance, and public administration. It is responsible for maintaining law and order, conducting foreign relations, ensuring national security, and providing public services. The effectiveness of governance largely depends upon the efficiency and competence of the executive because it serves as the operational arm of the state, translating laws and policies into practical action. Therefore, the executive is indispensable for maintaining political stability, ensuring good governance, and achieving national development objectives.

## **Types of Executives**

There are several types of executives, which can be classified as follows:

### **1. Nominal Executive and Real Executive**

- Nominal Executive or Ceremonial head with constitutional powers but limited actual authority (e.g., the President of Pakistan).
- Real Executive exercises actual executive powers and makes policy decisions (e.g., the Prime Minister of Pakistan).

### **2. Single Executive and Plural Executive**

- Single Executive authority is concentrated in one person (e.g., the President of the United States).
- Plural Executive power is shared by several individuals (e.g., the Switzerland Federal Council).

### 3. Parliamentary Executive and Presidential Executive

- Parliamentary Executive is drawn from and accountable to the legislature (e.g., Pakistan and the United Kingdom).
- Presidential Executive is separate from the legislature and elected independently (e.g., the United States).

### 4. Political Executive and Permanent Executive

- **Political Executive:** Elected political leaders who formulate policies (e.g., Prime Minister and Ministers).
- **Permanent Executive:** Civil servants or bureaucracy who implement policies and remain in office irrespective of changes in government.

## The Executive in Pakistan under 1973 Constitution

Pakistan follows a parliamentary system, which is a form of representative democracy where the Executive in Pakistan derives its authority from the Constitution of the Islamic Republic of Pakistan, 1973. Articles 41–100 establish the federal executive, while Articles 129–140 provide for the provincial executive. These provisions create a parliamentary system in which the Prime Minister and Cabinet exercise real executive authority and are accountable to Parliament.

The executive does not function in isolation; it interacts closely with the legislature and judiciary:

- **With the Legislature:** The executive implements laws passed by Parliament. Ministers are often members of the National Assembly or Senate, linking the executive directly to the legislative process. The legislature monitors executive performance through question sessions, debates, and parliamentary committees.
- **With the Judiciary:** The judiciary ensures that executive actions comply with the Constitution. If the executive exceeds its authority or violates citizens' rights, the courts can nullify its actions (Articles 199 and 184).



This relationship prevents the concentration of power. While the executive runs the state, it cannot override laws or ignore judicial rulings. Similarly, Parliament cannot bypass the executive in administrative functions.

The executive in Pakistan consists of two parts:

### **1. Political Executive**

The elected leadership responsible for policy-making.

Components:

- President
- Prime Minister
- Federal Cabinet
- Ministers of State
- Advisers and Special Assistants

### **2. Permanent Executive**

The civil bureaucracy responsible for implementing government policies.

Components:

- Federal Secretaries
- Civil Servants
- Administrative Officers
- Government Departments

## **Structure of Federal Executive**

### **The President of Pakistan**

The President of Pakistan is a constitutional head of state and serves as a symbol of the federation's unity. Unlike the Prime Minister, the President's role is largely ceremonial under Pakistan's parliamentary system, though certain constitutional powers provide authority in specific circumstances in Pakistan. The 1973 Constitution defines the President's position, functions, and limitations to ensure balance between symbolic and executive authority.

### **President's Secretariat**

The President's Secretariat is the administrative office located at Aiwan-e-Sadr in Islamabad, which assists the President in constitutional and ceremonial functions and coordinates with the Prime Minister's Secretariat and Central Secretariat on official matters.

### **Executive and Ceremonial Powers and Functions of the President**

#### **Executive Powers and Functions**

- Appoints the Prime Minister (from the National Assembly majority party)
- Appoints Governors of provinces on advice of the Prime Minister
- Appoints key constitutional and high officials (on advice), including judges of superior courts
- Acts as the constitutional head for execution of federal laws
- Gives assent to bills passed by Parliament to become law
- Summons, prorogues, and may dissolve the National Assembly on advice
- Acts on the advice of the Prime Minister and Cabinet in most executive matters
- Ensures continuity of the constitutional and administrative system of the state

### **Ceremonial Powers and Functions**

- Acts as the symbolic Head of State and represents national unity
- Represents Pakistan in international relations during state visits and receives foreign heads of state and dignitaries
- Accepts Letters of Credence from ambassadors and high commissioners, formally recognizing diplomatic representatives
- Awards civil and military decorations and national honours for distinguished services
- Presides over national functions, official ceremonies, and events of national importance
- Represents the continuity, dignity, and sovereignty of the Pakistani state

### **Emergency Powers**

The President may proclaim an emergency, usually on the advice of the Prime Minister and the Federal Government, in the following situations:

- When Pakistan faces war or external threats.
- When the security or stability of the country is seriously threatened due to internal disturbance.
- Financial Emergency may be proclaimed when the financial stability or credit of Pakistan is threatened or endangered.

During an emergency, the Federal Government may exercise wider powers to restore security, maintain constitutional order, and protect national interests.

### **Prime Minister of Pakistan and Federal Cabinet**

In Pakistan's parliamentary system, the Prime Minister (PM) is the chief executive of the country and the most powerful figure in the federal government. Constitutionally, the Prime Minister is the head of government, responsible for forming the federal executive. Unlike the President, who

is largely ceremonial, the Prime Minister holds real executive powers, guiding domestic and foreign policies, defense, and administrative decisions. The Federal Cabinet, composed of ministers, assists the PM in implementing policies, running government departments, and ensuring accountability to Parliament.

### **Prime Minister's Secretariat**

It is the highest Executive office of the Federal Government, which supervises all other affairs of the Government. It is working under the direct control of PM, who is accountable to the Parliament for its working.

### **Powers and Responsibilities of the Prime Minister**

The Prime Minister holds significant constitutional powers and responsibilities, including:

- Directs the federal government and its ministries as the Chief Executive of the Federation (Article 90).
- Oversees the implementation of laws and policies approved by Parliament.
- Coordinates federal and provincial programs to ensure effective governance.
- Appoints federal ministers and allocates portfolios; also appoints advisers and special assistants (Articles 91–92).
- Leads formulation and implementation of national policies in areas such as economy, security, and foreign affairs through the Cabinet system.
- Issues executive decisions and directives within constitutional limits.
- Represents the government of Pakistan in international meetings and diplomatic engagements
- Maintains coordination with Parliament, judiciary, and provincial governments for smooth governance.

## **Composition of Federal Cabinet**

The Federal Cabinet is the collective decision-making body that assists the Prime Minister in governance. Its formation and composition are guided by the Constitution:

- Cabinet Ministers are usually selected from among the members of Parliament (National Assembly or Senate).
- Members are appointed by the President on the PM's advice (Article 91).
- The Cabinet consists of federal ministers, ministers of state, and advisors, each heading specific ministries.
- The PM can reshuffle the Cabinet, assign portfolios, and form committees to manage specialized tasks.

## **Executive Role of the Federal Cabinet**

- Policy formulation: Drafts and approves new policies before submission to Parliament.
- Implementation: Supervises ministries to ensure laws and policies are executed efficiently.
- Coordination: Acts as a bridge between federal and provincial governments.
- Decision-making: Collective discussions ensure diverse viewpoints are considered in national governance.

The Cabinet operates under the PM's leadership, but collective consultation ensures broader ownership of decisions. For example, economic reforms or budget proposals are discussed in Cabinet meetings before being presented to Parliament, demonstrating shared responsibility and accountability.

## **Federal Minister**

A Federal Minister is the political head of a Ministry in Pakistan. He or she formulates and supervises policies, oversees the administration of the ministry, and is collectively responsible to the National Assembly.

## **Minister for State**

A Minister for State is the political head of a Division or a junior minister attached to a Ministry, assisting the Federal Minister in managing specific functions assigned by the Prime Minister and helping in policy implementation and parliamentary affairs.

## **Provincial Executive of Pakistan**

Like the Federal Government, each of Pakistan's four provinces Punjab, Sindh, Khyber Pakhtunkhwa, and Balochistan has its own provincial executive. The organization and functions of provincial government are the same as the Federal Government. Articles 129–140A of the Constitution of Pakistan, 1973 deal with the Provincial Executive. They define the structure, powers, and functions of provincial governments that consists of the Governor, the Chief Minister, and the Provincial Cabinet.

### **Structure, Powers and Functions of Pakistan Provincial Executive**

#### **Governor (Provincial Executive)**

The Governor is the constitutional head of the province and acts as the representative of the federation. He is appointed by the President of Pakistan on the advice of the Prime Minister. In a parliamentary system, the Governor performs mainly ceremonial and constitutional duties. These include giving assent to bills passed by the Provincial Assembly, summoning and proroguing the Assembly, and appointing the Chief Minister. In practice, the Governor acts on the advice of the Chief Minister and Provincial Cabinet in most matters.

#### **Chief Minister (Provincial Executive)**

The Chief Minister is the head of government and the chief executive authority of the province. He is elected by the Provincial Assembly and is responsible for running the provincial government. The Chief Minister leads the Provincial Cabinet, formulates and implements policies, oversees provincial administration, and ensures law and order. He exercises real

executive powers and remains in office as long as he enjoys the confidence of the Provincial Assembly.

### **Functions and Powers of Provincial Executive**

- Implements laws passed by the Provincial Assembly
- Formulates and executes provincial policies
- Maintains law and order through provincial administration
- Manages key departments such as education, health, agriculture, and finance
- Prepares and implements provincial budget and development plans
- Coordinates with the federal government on shared subjects
- Oversees civil bureaucracy and provincial service delivery
- Ensures collective responsibility to the Provincial Assembly

Similar to the federal parliamentary system, the Governor serves as the nominal executive, whereas the Chief Minister and Provincial Cabinet exercise actual executive authority and are accountable to the Provincial Assembly.

## **Civil Bureaucracy: The Permanent Executive of Governance (Federal and Provincial)**

The civil bureaucracy is the administrative backbone of the state, responsible for implementing government policies, maintaining public services, and supporting the executive in decision-making. In Pakistan, the bureaucracy works closely with the Prime Minister and Federal Cabinet to ensure the laws and policies passed by Parliament are executed efficiently. The structure, role, and challenges of civil bureaucracy are critical for understanding how governance functions at both federal and provincial levels.

### **Central (Federal) Secretariat**

The Central or Federal Secretariat is the main administrative hub of the Government of Pakistan, located in Islamabad, where federal ministries and divisions operate under Federal Secretaries. It is responsible for policy formulation, coordination, and implementation of national policies

across all sectors of government through various ministries, attached departments, and regulatory bodies.

### **Provincial Secretariat (Pakistan)**

The Provincial Secretariat is the main administrative headquarters of the provincial government responsible for policy formulation, coordination, and implementation of government decisions at the provincial level under the Chief Minister and Provincial Cabinet. It consists of various departments such as Education, Health, Finance, and Home, each headed by a Provincial Secretary who is a senior civil servant responsible for policy execution, administrative control, and coordination with attached departments and field offices to ensure effective governance. In Pakistan, Provincial Secretariats are located in four provinces: Punjab Secretariat in Lahore, Sindh Secretariat in Karachi, Khyber Pakhtunkhwa Secretariat in Peshawar, and Balochistan Secretariat in Quetta.

### **Bureaucratic Officials**

#### **Federal Secretary**

At the federal level, the senior-most civil servant is the Cabinet Secretary of Pakistan (not Chief Secretary). Federal ministries/divisions are headed by Federal Secretaries.

#### **Chief Secretary**

The Chief Secretary is the senior-most civil servant and administrative head of a provincial government, responsible for coordinating all provincial departments and implementing government policies.

#### **Secretary**

A Secretary is the administrative head of a federal or provincial ministry/division, responsible for policy implementation and overall management of the department.



### **Additional Secretary**

An Additional Secretary assists the Secretary and supervises major wings or sectors of a ministry or department.

### **Joint Secretary**

A Joint Secretary heads a specific wing or subject area and assists in policy formulation and administrative coordination.

### **Deputy Secretary**

A Deputy Secretary manages a particular branch or section and handles day-to-day administrative and policy matters under the supervision of senior officers.

## **Administrative Structure**

### **Ministry**

A Ministry is the highest administrative unit of the Federal Government responsible for formulating and implementing policies in a specific sector. Pakistan currently has more than 35 federal ministries, such as the Ministry of Finance, Ministry of Foreign Affairs, and Ministry of Interior. At the **provincial level**, ministries (commonly called departments) perform the same functions within the province under the Chief Minister and Provincial Cabinet. For example, Provincial Finance Department, Health Department, and Education Department carry out policy implementation in their respective sectors.

### **Division**

A Division is an administrative unit within a federal ministry that deals with a specific area of government business and is headed by a Federal Secretary. Some ministries consist of one or more divisions. At the **provincial level**, the equivalent structure is generally organized as departments and sub-departments rather than formal divisions.

### **Attached Departments**

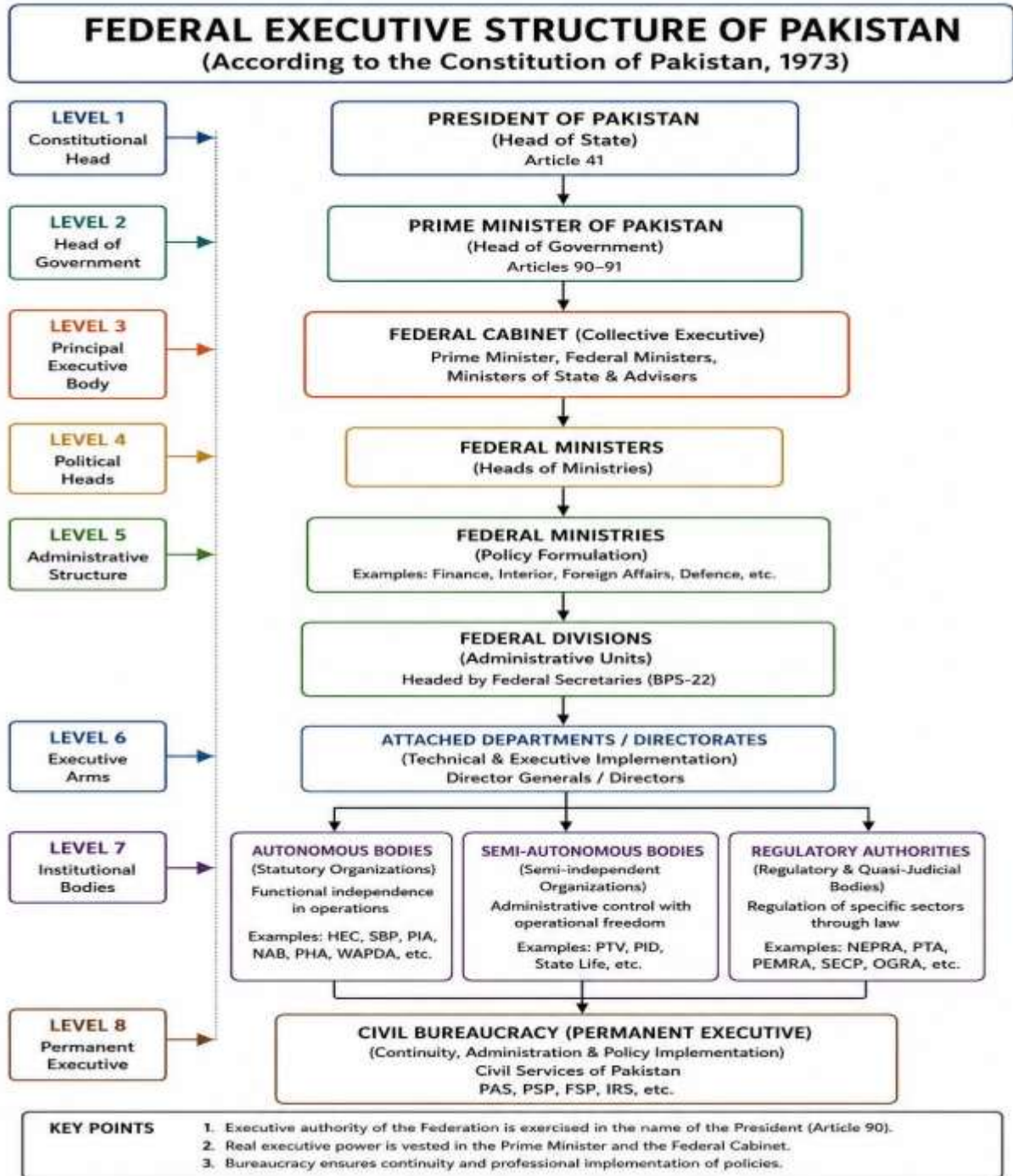
Attached Departments assist ministries and divisions by performing specialized technical, regulatory, or executive functions and implementing government policies. At the **provincial level**, similar attached departments work under provincial ministries/departments to ensure policy execution at the operational level, such as police departments, health services, and education directorates.

### **Autonomous and Semi-Autonomous Bodies**

These are organizations established by the government to perform specific functions with varying degrees of administrative and financial independence. At both **federal and provincial levels**, such bodies exist to improve efficiency and specialization in governance.

- Autonomous Bodies: Enjoy substantial operational independence (e.g., Higher Education Commission).
- Semi-autonomous Bodies: Operate under government supervision but have limited administrative autonomy (e.g., Pakistan Electronic Media Regulatory Authority).

Chart: 18.1 Federal Executive Structure of Pakistan



Source: Compiled by the author (2026) using information from the Constitution of Pakistan, 1973.

## **Role of Bureaucracy in Policy Formulation and Implementation**

The bureaucracy plays a dual role in governance: advising the executive and executing policies at federal and provincial level.

- Assists political leadership (Ministers/Chief Ministers) in preparing policies
- Provides technical advice, data, and expert recommendations
- Drafts policies, laws, and regulations at federal and provincial levels
- Coordinates between ministries/divisions and departments for policy approval
- Implements government policies through administrative machinery
- Ensures continuity of governance regardless of political changes
- Monitors and evaluates policy outcomes and reports progress
- Maintains coordination between federal and provincial governments for effective execution

The bureaucracy bridges the gap between political decisions and administrative action, maintaining stability and continuity in governance, regardless of political changes.

## **Challenges and Reforms in Pakistan's Executive Branch**

Despite its crucial role, the civil bureaucracy faces several challenges:

- **Political Interference:** Frequent political changes affect appointments, transfers, and promotions, weakening administrative neutrality.
- **Inefficiency and Corruption:** Bureaucratic red tape, delays, and misuse of resources reduce policy effectiveness.
- **Rigid Structure:** Hierarchical rigidity limits innovation and responsiveness to emerging issues.
- **Capacity Gaps:** Inadequate training, technology, and resources hinder performance, especially in remote areas.

To address these challenges, several reforms have been suggested and implemented:

- **Performance-based Evaluation:** Officers are assessed on results rather than tenure alone.
- **Digital Governance:** Introduction of e-governance and automation reduces delays, increases transparency, and enhances citizen services.
- **Civil Service Training:** Continuous professional development programs enhance skills in policy analysis, administration, and leadership.
- **Anti-corruption Measures:** Strengthening institutions like the National Accountability Bureau (NAB) and internal audits improves accountability.

For example, e-governance initiatives in the Federal Board of Revenue and provincial tax departments have streamlined services, reduced human interference, and improved efficiency. Similarly, performance contracts for secretaries and ministers encourage goal-oriented administration.

## **Relationship of the Executive with the Legislature**

In Pakistan's parliamentary system, the relationship between the executive and the legislature is characterized by interdependence and accountability. The Prime Minister and the Federal Cabinet are drawn from Parliament and remain collectively responsible to the National Assembly, which can remove the government through a vote of no confidence. At the same time, the executive plays a dominant role in the legislative process by initiating most bills, determining the parliamentary agenda, and influencing policy making through its parliamentary majority. This relationship reflects the principle of fusion of powers rather than strict separation of powers. Critically, while parliamentary control mechanisms such as question hour, debates, and committees are intended to ensure executive accountability, in practice a strong executive supported by a disciplined party majority often dominates the legislature, thereby limiting effective parliamentary oversight and weakening the system of checks and balances.

## **Conclusion**

The Executive is the central pillar of governance in Pakistan, responsible for implementing laws, administering public affairs, and maintaining state stability under the 1973 Constitution. It operates within a parliamentary framework where authority is shared among the President, Prime Minister, Federal Cabinet, and civil bureaucracy. The President serves as a symbolic head of state, while the Prime Minister leads the government and policy direction with the support of the Cabinet. The civil bureaucracy ensures continuity, expertise, and effective implementation at federal and provincial levels. Together, these institutions ensure coordination, accountability, and efficient governance by linking legislative decisions with practical administrative execution nationwide.

## **Lecture 19**

### **The Judiciary in Pakistan**

#### **Micro Learning Outcomes (MLOs)**

At the end of this lecture, students will be able to:

- Define the judiciary and explain its significance in general and particularly in Pakistan's constitutional system.
- Describe the constitutional structure, powers and jurisdiction of the judicial system in Pakistan.
- Explain the functions of the judiciary, including the administration of justice, interpretation of laws, judicial review, and protection of fundamental rights.
- Evaluate the contemporary challenges facing Pakistan's judiciary

#### **Introduction**

In the previous lecture, the structure, types, and functions of the Executive in Pakistan were examined. The constitutional roles of the Prime Minister, President, and Cabinet, along with the implementation of laws and policies through ministries and departments, were discussed. The lecture explained the hierarchy, responsibilities, and constitutional position of the executive within Pakistan's system of government.

This lecture examines the concept of the judiciary, its constitutional role, judicial structure, and major functions in Pakistan. It explains the principle of the separation of the judiciary from the executive, the relationship between federalism and the judiciary, and their importance in ensuring judicial independence, constitutional supremacy, and the rule of law. The lecture also highlights contemporary challenges facing Pakistan's judicial system and recent developments under the Constitution of 1973.

## **Judiciary: Meaning and Concept**

The Judiciary is one of the three principal pillars of the state, alongside the legislature and the executive. Its primary responsibility is to interpret and apply the law, resolve legal disputes, and ensure that justice is administered fairly and impartially. In a constitutional democracy like Pakistan, the judiciary acts as the guardian of the Constitution, ensuring that all individuals and state institutions act within the limits prescribed by law.

## **Role and Functions of Judiciary**

### **1. Interpretation of Laws**

The judiciary interprets the Constitution and statutory laws enacted by the legislature. When legal provisions are ambiguous or disputes arise regarding their meaning, the courts provide authoritative interpretations to ensure uniform application of the law.

### **2. Administration of Justice**

The courts adjudicate civil, criminal, constitutional, and administrative cases by applying legal principles and evidence. Their objective is to provide fair, impartial, and timely justice while protecting the rights of all parties.

### **3. Guardian of Constitutional Supremacy**

Under the Constitution of Pakistan, 1973, the Constitution is the supreme law of the land. The judiciary ensures that all laws, executive actions, and governmental decisions conform to constitutional provisions. If any law or action violates the Constitution, the courts may declare it unconstitutional through the power of judicial review.

### **4. Protection of Fundamental Rights**

The judiciary safeguards the Fundamental Rights of the citizens of any state. Citizens may approach the superior courts when they believe their constitutional rights have been violated, and the courts can provide appropriate legal remedies.



## **5. Upholding the Rule of Law**

The judiciary ensures that every person and every public authority is subject to the law. No individual, regardless of position or status, is above the Constitution. This principle promotes equality before the law, accountability, and good governance.

## **6. Resolution of Disputes**

The judiciary settles disputes involving:

- Individuals (civil and criminal cases)
- Businesses and organizations
- Provincial and federal governments
- Constitutional institutions
- The state and its citizens

## **Importance of Judiciary as Organ**

By resolving these disputes peacefully and according to law, the judiciary contributes to social order and political stability. The judiciary plays a vital role in maintaining justice, peace, and stability in both society and the state. It protects the Constitution, safeguards fundamental rights, ensures the rule of law, and resolves disputes fairly and impartially. By holding individuals and public authorities accountable to the law, the judiciary promotes public confidence in the legal system and strengthens democratic governance and constitutional order.

## **The Judicial System of Pakistan Under 1973 Constitution**

The judiciary is the third important pillar of state that responsible for interpreting laws and proving justice to the citizens of Pakistan. The judiciary is the system of courts and judges established at federal and provincial level under the Constitution of Pakistan.

## **The Federal Judicial Structure of Pakistan**

The judicial system of Pakistan is organized in a hierarchical structure under the Constitution of Pakistan, 1973. Each court has a defined jurisdiction and performs specific judicial functions. The system is broadly divided into Superior Judiciary, Subordinate Judiciary, and Specialized Courts and Tribunals. Hamid Khan (2009) describes the Pakistan judicial system as a multi-layered structure based on the Constitution of 1973 and various laws made by Parliament. The hierarchy of courts, from top to bottom, is as follows:

### **The Supreme Court of Pakistan (SCP)**

#### **Structure of SCP**

The Supreme Court of Pakistan is the highest court in the country. It is established under Article 176 of the Constitution of Pakistan 1973. The permanent seat of the Supreme Court is in Islamabad and also holds sittings in Lahore, Karachi, Peshawar, and Quetta through its branch registries.

The Supreme Court is headed by the Chief Justice of Pakistan. Article 177 of the Constitution says that the Chief Justice is appointed by the President. The other judges of the Supreme Court are also appointed by the President after consultation with the Chief Justice. The 26th Constitutional Amendment (2024) introduced a Judicial Commission and Parliamentary Committee for the appointment of the Chief Justice, making the process more transparent.

#### **Powers of SCP**

The Supreme Court has original jurisdiction, which means it can directly hear certain cases. Under Article 184(3), any person can directly approach the Supreme Court for the enforcement of fundamental rights in matters of public importance. The Supreme Court also has appellate jurisdiction, meaning it hears appeals from the High Courts. Under recent constitutional reforms (2025), constitutional matters assigned to the **Federal Constitutional Court (FCCP)** are no longer exercised by the Supreme Court. The Supreme Court continues to function as Pakistan's apex court for appeals and other jurisdiction assigned by the Constitution.

- **Appellate Jurisdiction (Article 185):** Hears appeals from High Courts and other courts as provided by law.
- **Original Jurisdiction (Article 184):** Decides disputes between the Federation and Provinces and other matters assigned by the Constitution.
- **Advisory Jurisdiction (Article 186):** Gives legal opinions to the President on questions of public importance.
- **Power to Do Complete Justice (Article 187):** May issue any order necessary to ensure complete justice in cases before it.
- **Binding Decisions (Articles 189 & 190):** Its judgments are binding on all other courts, and all executive and judicial authorities are required to act in aid of the Supreme Court.

## **Federal Shariat Court (FSC)**

### **Structure of FSC**

The Federal Shariat Court is a unique court in Pakistan. It was established by President Zia-ul-Haq in 1980 through Article 203C of the Constitution. The main job of this court is to examine the laws of Pakistan and decide whether they are in line with the teachings of Islam as given in the Holy Quran and Sunnah.

Among its landmark rulings, in 2022 the FSC declared all legal provisions relating to interest as un-Islamic, ordering the government to completely abolish interest rates and implement an interest-free banking system within five years a ruling later challenged by the State Bank of Pakistan in the Supreme Court.

The Federal Shariat Court consists of eight judges, including the Chief Justice. Three of these judges must be Islamic scholars (Ulema).

### **Functions of FSC**

- The Federal Shariat Court also has appellate jurisdiction over criminal cases involving Hudood offences (offences with fixed punishments in Islamic law).
- Appeals from the Federal Shariat Court go to the Shariat Appellate Bench of the Supreme Court.

## **Federal Constitutional Court of Pakistan (FCCP)**

### **Structure of FCCP**

The Federal Constitutional Court of Pakistan (FCCP) is a constitutionally established judicial institution mandated to strengthen constitutional governance and provide authoritative adjudication of constitutional matters in the Islamic Republic of Pakistan. The Court was established in November 2025 through the Twenty-Seventh Constitutional Amendment, under Articles 175F and 175L of the Constitution of Pakistan. This landmark reform represents a significant evolution in Pakistan's judicial framework by creating a specialized constitutional forum dedicated exclusively to the interpretation, enforcement, and preservation of constitutional provisions.

Pursuant to this amendment, the original constitutional jurisdiction was transferred from the Supreme Court of Pakistan to the Federal Constitutional Court, ensuring focused, efficient, and expert adjudication of constitutional questions, free from the burden of ordinary appellate litigation. The court holds exclusive jurisdiction over constitutional interpretation, federal-provincial disputes, and fundamental rights enforcement, with its rulings binding on all courts, including the Supreme Court.

The Federal Constitutional Court formally commenced its constitutional functions on 13 November 2025. On 14 November 2025, Justice Amin-ud-Din Khan took oath as the first Chief Justice of the Federal Constitutional Court of Pakistan at Aiwan-e-Sadr, Islamabad administered by the President of Pakistan. The oath-taking ceremony was attended by senior members of the judiciary and other distinguished dignitaries.

At its inception, six Judges were appointed to the Court, ensuring representation from all provinces of Pakistan. The initial bench comprised six judges, serving until the age of 68. The President appoints judges on the Prime Minister's advice, with subsequent Chief Justice nominations handled by a Special Parliamentary Committee. High Court judges require only five years of eligibility for appointment, reduced from the previous seven. Following are the first bench of judges;

1. Justice Syed Hasan Azhar Rizvi
2. Justice Aamir Farooq
3. Justice Ali Baqar Najafi
4. Justice Muhammad Karim Khan Agha
5. Justice Rozi Khan Barrech
6. Justice Syed Arshad Hussain Shah

### **Core Constitutional Functions of FCCP**

The Federal Constitutional Court (FCCP) became operational on 12 January 2026. The principal functions of the Federal Constitutional Court include:

- Resolution of disputes between the Federation and the Provinces (Article 175E(1))
- Enforcement of Fundamental Rights (Article 175E(3))
- Adjudication and authoritative interpretation of constitutional questions (Article 175E(5))
- Preservation of constitutional supremacy and the federal balance

Now, the Federal Constitutional Court of Pakistan stands as a guardian of the Constitution, committed to upholding the rule of law, safeguarding constitutional values, and ensuring the dispensation of justice strictly in accordance with the Constitution and the law. The court's creation remains deeply controversial. Critics argue the executive controls judicial appointments without objective criteria, threatening judicial independence. Supporters, however, justify the restructuring as a necessary step to modernize the judiciary and address a backlog exceeding 56,000 pending cases at the Supreme Court level. (fccp.gov.pk,2026)

## **Structure and Hierarchy of the Provincial Judiciary**

### **High Courts**

Pakistan has five High Courts, one for each province and one for the Islamabad Capital Territory:

- Lahore High Court (Punjab)
- Sindh High Court (Sindh)
- Peshawar High Court (Khyber Pakhtunkhwa)
- Balochistan High Court (Balochistan)
- Islamabad High Court (Islamabad Capital Territory)

Established under Article 192 of the Constitution of Pakistan, 1973, each High Court is headed by a Chief Justice and consists of other judges appointed according to the constitutional procedure. The Chief Justice is responsible for the administrative supervision of the High Court, including the allocation of cases, constitution of benches, and overall management of the court. High Courts exercise original, appellate, constitutional, and supervisory jurisdiction within their territorial jurisdiction. Under Article 199, they may issue constitutional writs to enforce fundamental rights and ensure that public authorities act within the law.

### **District and Sessions Courts**

At the district level, every district in Pakistan has a District and Sessions Court. This is a very important court because it is the first major court that most people deal with in their daily lives. A District Judge usually deals with civil matters. A Sessions Judge deals with serious criminal cases. In practice, the District and Sessions Judge is an important judicial officer in a district. Additional District and Sessions Judges also work under the district judicial system.

Sessions Courts have the power to try serious criminal cases, including murder and robbery cases. They also hear appeals from the lower civil and criminal courts. The District Courts are the backbone of the justice system in Pakistan because they handle the largest number of cases and serve the common people directly.

## **Civil Courts**

Civil Courts are established under the Civil Courts Ordinance 1962. They handle civil matters, meaning disputes between private parties about property, contracts, money, and family matters. Civil Courts are of different levels, including the court of Senior Civil Judge and Civil Judge. The hierarchy within civil courts depends on the financial value of the case and the subject matter.

## **Magistrate Courts**

Magistrate Courts handle criminal cases at the lower level. There are two types of magistrates in Pakistan: Judicial Magistrates and Executive Magistrates. Judicial Magistrates work under the High Court and handle criminal trials. Executive Magistrates work under the provincial government and deal with matters of public order and administration. After the 18th Amendment (2010), there has been a greater effort to separate the judicial and executive functions of magistrates. Magistrate Courts are the first point of contact for criminal matters for the common people.

## **Special Courts and Tribunals**

Besides the regular courts, Pakistan also has many Special Courts and Tribunals. These courts are set up for specific types of cases. Some important examples are:

- Anti-Terrorism Courts (ATC): These courts deal with terrorism-related cases under the Anti-Terrorism Act 1997.
- Accountability Courts: These courts deal with corruption cases under the National Accountability Bureau (NAB) Ordinance.
- Labour Courts and Tribunals: These deal with disputes between workers and employers.
- Banking Courts: These deal with financial and banking disputes.
- Family Courts: These deal with marriage, divorce, and maintenance cases under the Family Courts Act 1964.

These special courts exist because regular courts are very busy and some types of cases need special expertise. Pakistan has created many new special courts and tribunals as the legal needs of the country have grown more complex.

## **Role and Functions of the Judiciary**

### **1. Administration of Justice**

The primary function of the judiciary is to administer justice by resolving civil, criminal, and constitutional disputes according to the law. Courts ensure fair and impartial decisions. Article 37(d) of the Constitution of Pakistan, 1973 emphasizes the provision of inexpensive and expeditious justice.

### **2. Interpretation of the Constitution and Laws**

The judiciary interprets the Constitution and laws when their meaning is unclear or disputed. This ensures the uniform application of the law and protects constitutional supremacy. Under the constitutional framework up to 2026, the Federal Constitutional Court (FCCP) hears constitutional matters assigned to it, while the Supreme Court remains Pakistan's apex court.

### **3. Judicial Review**

The judiciary reviews laws and executive actions to ensure they comply with the Constitution. If a law or action violates the Constitution, the Supreme Court and High Courts may declare it unconstitutional under Articles 184 and 199.

### **4. Protection of Fundamental Rights**

The judiciary safeguards the Fundamental Rights guaranteed under Articles 8–28 of the Constitution. The superior courts provide remedies against violations of these rights and may exercise constitutional jurisdiction where appropriate.

### **5. Settlement of Federal–Provincial Disputes**

The Supreme Court has original jurisdiction under Article 184(1) to resolve disputes between the Federation and Provinces. This helps maintain constitutional balance and strengthens Pakistan's federal system.

### **6. Constitutional Check on the Legislature and Executive**



The judiciary ensures that the legislature and executive act within the limits of the Constitution. Through judicial review, the superior courts may invalidate unconstitutional laws or executive actions, thereby upholding the rule of law, separation of powers, and constitutional governance.

## **Contemporary Challenges Facing the Judiciary in Pakistan**

Despite constitutional safeguards, Pakistan's judiciary faces several important challenges:

- 1. Delay in Disposal of Cases:** Many civil and criminal cases take years to be decided because of lengthy legal procedures and limited judicial resources.
- 2. Large Case Backlog:** A high number of pending cases in the Supreme Court, High Courts, and subordinate courts affects the timely delivery of justice.
- 3. Need for Judicial Reforms:** Continuous reforms are needed to improve court efficiency, simplify procedures, and expand access to justice.
- 4. Digitalization of Courts:** The introduction of e-filing, virtual hearings, and digital case management has improved court administration, but implementation remains uneven across the country.
- 5. Maintaining Judicial Independence:** The judiciary must remain free from political and external influence and judges perform their duties without political pressure, external influence, or personal bias. An independent judiciary ensures fair trials, protects fundamental rights, and upholds the Constitution and the rule of law.

The Al-Jehad Trust Case (1996) is a landmark case that strengthened judicial independence in Pakistan. The Supreme Court ruled that the appointment of judges should be based on merit and made through meaningful consultation with the Chief Justice, rather than solely at the discretion of the executive. The judgment reinforced the independence of the judiciary and the principle of separation of powers.

**6. Political Interference and Institutional Clashes:** At times, tensions have arisen between the judiciary, legislature, and executive over constitutional powers and judicial decisions. A notable example is the Lawyers' Movement (2007–2009), which advocated for the restoration of judicial independence and reinforced the principles of separation of powers, constitutional governance, and the rule of law.

## **7. Implementation of Constitutional Reforms**

Recent judicial reforms require effective implementation to strengthen the rule of law and improve public confidence in the judicial system.

## **Key Takeaways**

- The judiciary is an independent organ of the state established under the **Constitution of Pakistan, 1973**.
- Pakistan's judicial system comprises the **Supreme Court, Federal Constitutional Court (where applicable under the amended constitutional framework), Federal Shariat Court, High Courts, subordinate courts, and specialized courts and tribunals**.
- The judiciary exercises **original, appellate, advisory, constitutional, and judicial review** jurisdiction.
- Judicial appointments to the superior judiciary are governed by **Article 175A** and related constitutional provisions.
- The judiciary plays a central role in protecting **constitutional supremacy, fundamental rights, and the rule of law**.
- Constitutional reforms, particularly the **Eighteenth Amendment (2010), Twenty-Sixth Amendment (2024)**, and subsequent constitutional developments up to **2026**, have continued to shape Pakistan's judicial system and its institutional framework.

## **Lecture 20**

### **Federalism and the Distribution of Powers**

#### **Micro Learning Outcomes (MLOs)**

By the end of this lecture, students will be able to:

- Define the concept and key features of federalism and differentiate between federal and unitary systems using relevant examples.
- Explain the evolution of federalism in Pakistan, including the reasons for its adoption
- Analyze the constitutional basis of the distribution of powers in Pakistan by examining how authority is divided between the federation and provinces.
- Evaluate the contemporary challenges of federalism in Pakistan

#### **Introduction**

In the previous lecture, we examined the judicial system of Pakistan, its constitutional position, and its role in upholding the rule of law. We discussed the structure and jurisdiction of the Supreme Court, High Courts, and subordinate courts, along with their key functions. We also explored the judiciary's role in judicial review, the protection of fundamental rights, and the maintenance of constitutional supremacy.

In this lecture, we will examine the concept of federalism and the constitutional distribution of powers in Pakistan. We will discuss the federal structure established under the 1973 Constitution, the division of legislative, administrative, and financial powers between the federation and the provinces, and the role of key institutions in maintaining cooperative federalism. Finally, we will explore the challenges and significance of federalism in promoting national unity, provincial autonomy, and effective governance.

## **Federalism: Concept and Definition**

In general terms, federalism means any kind of association of autonomous units. Federalism is a system of government in which powers are divided by the constitution between one central (federal) government and several regional (provincial) governments.

**Roger Hillman explains federalism as:** Federalism is a system of government in which the powers and functions of governments are divided by a constitution between the central government and sub-units.

**K.C. Wheare defines federalism as:** the method of dividing powers so that the general and regional governments are, each, within a sphere, coordinate and independent. (Nazir, 2008)

Shared sovereignty lies at the heart of the idea. Sovereignty means supreme authority, and in a federation, it is split the Centre is supreme in some matters, such as defence and currency, while the provinces are supreme in others closer to daily life. Federalism is often summed up in the phrase “unity in diversity”, because it joins different communities into one nation while still allowing each region to keep its own identity. In short, federalism means self-rule plus shared rule: provinces govern themselves in their own subjects and join in governing the whole country through common institutions.

## **Key Characteristics of a Federal System**

- **Written Constitution:** A federal system is based on a written constitution that clearly defines and distributes powers between the federal and provincial or state governments.
- **Constitutional Supremacy:** The constitution is the supreme law of the land, and all governments and institutions must act in accordance with its provisions.
- **Division of Powers:** Legislative, administrative, and financial powers are constitutionally allocated between the federal and provincial governments to ensure shared governance.
- **Independent Judiciary:** An independent judiciary interprets the constitution and resolves disputes between the federation and the provinces.

- **Bicameral Legislature:** Most federations have a bicameral legislature consisting of a lower house representing the population and an upper house representing the federating units.
- **Provincial/State Representation:** Federating units are constitutionally represented in national decision-making, usually through the upper house, ensuring that the interests of all regions are protected.
- **Provincial/State Representation:** Federating units are constitutionally represented in national decision-making, usually through the upper house, ensuring that the interests of all regions are protected.

## **Theoretical Foundations of Federalism**

### **1. Principle of Subsidiarity (Johannes Althusius)**

Johannes Althusius proposed the principle of subsidiarity, which states that public affairs should be managed by the lowest level of government capable of addressing them effectively. Higher levels should intervene only when lower levels cannot perform the task efficiently. This strengthens local governance, promotes citizen participation, and keeps decision-making close to the people.

### **2. Decentralization Theory (Wallace E. Oates)**

According to Wallace E. Oates, public services are delivered more efficiently when decisions are made by the lowest effective level of government, as local authorities better understand citizens' needs. However, functions requiring national coordination such as defence, foreign affairs, and macroeconomic policy should remain with the federal government. In Pakistan, this theory supports greater provincial and local autonomy in areas such as education, health, and local development.

### 3. Cooperative Federalism

The concept of cooperative federalism emphasizes that federal and provincial governments should share responsibilities and work together rather than operate independently. Effective federalism requires continuous intergovernmental coordination through constitutional institutions, such as the Council of Common Interests (CCI), to address shared issues like water, energy, and natural resource management.

### Federal and Unitary Systems (Systems of Government)

Countries organize the distribution of governmental powers primarily through two constitutional systems: the federal system and the unitary system. Some political scientists also recognize the confederal system, although it is uncommon in the modern world.

**A unitary system** concentrates constitutional authority in the central government, while local or provincial (regional) governments exercise only those powers delegated by the centre, which may modify or withdraw them according to law. It promotes administrative efficiency and policy uniformity but may limit provincial autonomy and local participation. Examples include France, Japan, China, and Saudi Arabia.

**A federal system** is one in which the Constitution divides powers between the federal (central) government and the provincial or state governments. Each level derives its authority directly from the Constitution and exercises its powers within its constitutional jurisdiction. Federalism promotes provincial autonomy, democratic participation, and the accommodation of cultural and regional diversity, but it may also increase administrative costs, create policy differences, and require continuous coordination between governments. Examples include the United States, Canada, Australia, India, and Pakistan.

**A confederal system** is an association of sovereign states that voluntarily delegate limited powers to a common central authority while retaining their independence. It preserves the sovereignty of member states and promotes cooperation; however, the central authority has limited powers, making decision-making slower and coordination during national crises more difficult. A modern example often discussed as having confederal characteristics is the European Union. The member states of the EU remain sovereign countries but cooperate on areas such as trade, legislation, and

economic policy through common institutions. However, the EU is not a true confederation in the classical sense; it is a unique political and economic union.

### Choosing a System of Government

Countries adopt federal or unitary systems according to their history, geographical size, cultural diversity, and administrative needs. Federalism is generally preferred by large and diverse countries because it constitutionally shares powers between the central and provincial governments, whereas a unitary system is often adopted to promote centralized decision-making, administrative efficiency, and policy uniformity.

**Table 20.1: Comparison of Federal and Unitary Systems**

| <b>Basis</b>                                       | <b>Federal System</b>                                                                                                                     | <b>Unitary System</b>                                                                                                            |
|----------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------|
| <b>Constitutional Authority</b>                    | The Constitution divides powers between the federal and provincial/state governments.                                                     | The Constitution vests supreme authority in the central government, which may delegate powers to local governments.              |
| <b>Provincial Authority</b>                        | Provincial/state governments exercise constitutionally guaranteed powers that cannot be withdrawn unilaterally by the federal government. | Local or regional/provincial governments exercise powers delegated by the central government, which may modify or withdraw them. |
| <b>Best Suited For</b>                             | Large, geographically extensive, or culturally diverse countries.                                                                         | Relatively small or more homogeneous countries, or states preferring centralized administration.                                 |
| <b>Examples</b>                                    | United States, Canada, Australia, Germany, India, Pakistan                                                                                | United Kingdom, France, Japan, China                                                                                             |
| Source: Compiled by Author using different sources |                                                                                                                                           |                                                                                                                                  |

## Federalism in Pakistan

### Rationale for Adopting Federalism as System

Pakistan adopted federalism because its geographical, linguistic, cultural, and ethnic diversity made a unitary system unsuitable. The country comprises diverse regions with distinct identities and unevenly distributed resources such as agriculture, ports, minerals, hydropower, and natural

gas. Federalism provided a constitutional framework to preserve national unity while ensuring provincial participation in governance.

Following independence in 1947, one of the major constitutional issues was the distribution of powers between the federation and the provinces. These debates delayed the adoption of the first Constitution until 1956, as the provinces demanded greater autonomy while the federal government sought sufficient authority to maintain national cohesion. This balance between central authority and provincial autonomy has remained a defining feature of Pakistan's constitutional development.

In 1955, the One-Unit Scheme merged the provinces of West Pakistan into a single administrative unit to create parity with East Pakistan and simplify governance. However, the scheme concentrated power at the centre and was widely criticized for undermining provincial identities, particularly in Sindh and Balochistan. Owing to strong public opposition, it was abolished in 1970, and the original provinces were restored.

The separation of East Pakistan in 1971 highlighted the importance of political inclusion, provincial autonomy, and equitable power-sharing within a federation. These lessons strongly influenced the federal structure established under the 1973 Constitution.

The constitutional foundation of Pakistan's federal system is laid down in Article 1 of the 1973 Constitution, which declares Pakistan a Federal Republic. The federation consists of Punjab, Sindh, Khyber Pakhtunkhwa, and Balochistan, while the Islamabad Capital Territory is administered by the federal government. Azad Jammu and Kashmir and Gilgit-Baltistan have separate administrative arrangements, whereas the former FATA and PATA (Article 246) were historical tribal areas that were later integrated into Khyber Pakhtunkhwa.

An essential feature of Pakistan's federal structure is the Senate, established under Article 50 of the Constitution. As the upper house of Parliament, it provides equal representation to all four provinces, regardless of population size. This ensures that smaller provinces, such as Balochistan, have the same representation as larger provinces like Punjab, thereby protecting provincial interests and balancing the population-based representation of the National Assembly. The Senate thus serves as a key institution for safeguarding the federal principle in Pakistan.



## **Constitutional Distribution of Powers**

### **Basis of Distribution of Powers**

The 1973 Constitution establishes a federal system by constitutionally dividing legislative powers between the federation and the provinces. This distribution aims to balance national unity with provincial autonomy while ensuring that each level of government performs functions within its constitutional jurisdiction. The distribution of powers is the way the constitution assigns subjects to each tier of government. It serves four purposes. It prevents the concentration of authority in one place, which protects against misuse of power. It improves administrative efficiency by placing each task at the right level. It widens democratic participation, because more decisions are taken close to the people. And it improves policy responsiveness, letting regions shape policy to their own conditions. In Pakistan this distribution is set out in Articles 141 to 144 and detailed in the Fourth Schedule, which lists the subjects and gives rules for settling any conflict between federal and provincial law.

Some subjects are assigned exclusively to the federation because they require national uniformity, including defence, foreign affairs, currency, citizenship, communications, and international trade. In contrast, provinces legislate on matters affecting provincial needs, such as health, education, agriculture, local government, culture, and social welfare, enabling policies to reflect local priorities and conditions. The 18th Amendment (2010) significantly strengthened federalism in Pakistan by abolishing the Concurrent Legislative List and transferring most of its subjects to the provinces. This expanded provincial legislative and administrative authority, enhanced provincial autonomy, and shifted the balance of power from the federal government to the provinces.

### **Federal Legislative List**

The Federal Legislative List (FLL), provided in the Fourth Schedule of the Constitution, contains subjects of national importance on which only Parliament may legislate. These include defence, foreign affairs, currency, citizenship, railways, telecommunications, and international trade, ensuring uniform national policies.

### **Provincial Legislative Authority**

Provincial Assemblies have the authority to legislate on matters assigned to the provinces, including health, education, agriculture, local government, culture, and provincial law and order. This enables provinces to formulate policies according to their regional needs and priorities.

### **Abolition of the Concurrent Legislative List**

The Eighteenth Amendment (2010) abolished the Concurrent Legislative List, transferring most of its subjects to the provinces. This reform significantly strengthened provincial autonomy by expanding provincial legislative and administrative powers.

### **Residuary Powers and Provincial Autonomy**

Under the Constitution, residuary powers subjects not included in the Federal Legislative List belong to the provinces. This principle reinforces provincial autonomy and allows provinces to legislate on matters not expressly assigned to the federation.

### **Role of Parliament and Provincial Assemblies**

Parliament legislates on subjects contained in the Federal Legislative List, while Provincial Assemblies make laws on provincial and residuary matters. Together, they ensure that legislative authority is exercised according to the constitutional distribution of powers, maintaining the federal balance.

Cooperative federalism requires the federal and provincial governments to work together on matters of shared interest. It promotes coordination in areas such as water, energy, and natural resources, supports joint decision-making, and provides institutional mechanisms to resolve disputes, ensuring effective and harmonious governance.

### **Institutions Supporting Federalism**

#### **Council of Common Interests (CCI)**

The Council of Common Interests (CCI) is the main forum of cooperation. Its constitutional basis is Articles 153–154. In composition it is made up of the Prime Minister as chairman, the four Chief Ministers, and three federal members, so the provinces have a guaranteed seat at the table. Its

functions cover water resources, energy policy, the use of natural resources, and inter-provincial coordination. Its significance for federal stability is high, because by letting provinces influence national policy and settle disputes peacefully, it turns possible confrontation into negotiation.

### **National Finance Commission (NFC)**

Fiscal federalism refers to the distribution of financial resources between the federal and provincial governments, ensuring that each level has adequate funds to perform its constitutional responsibilities. In Pakistan, this system is governed by the National Finance Commission (NFC) under Article 160 of the Constitution, which recommends the distribution of federally collected revenues between the federation and the provinces.

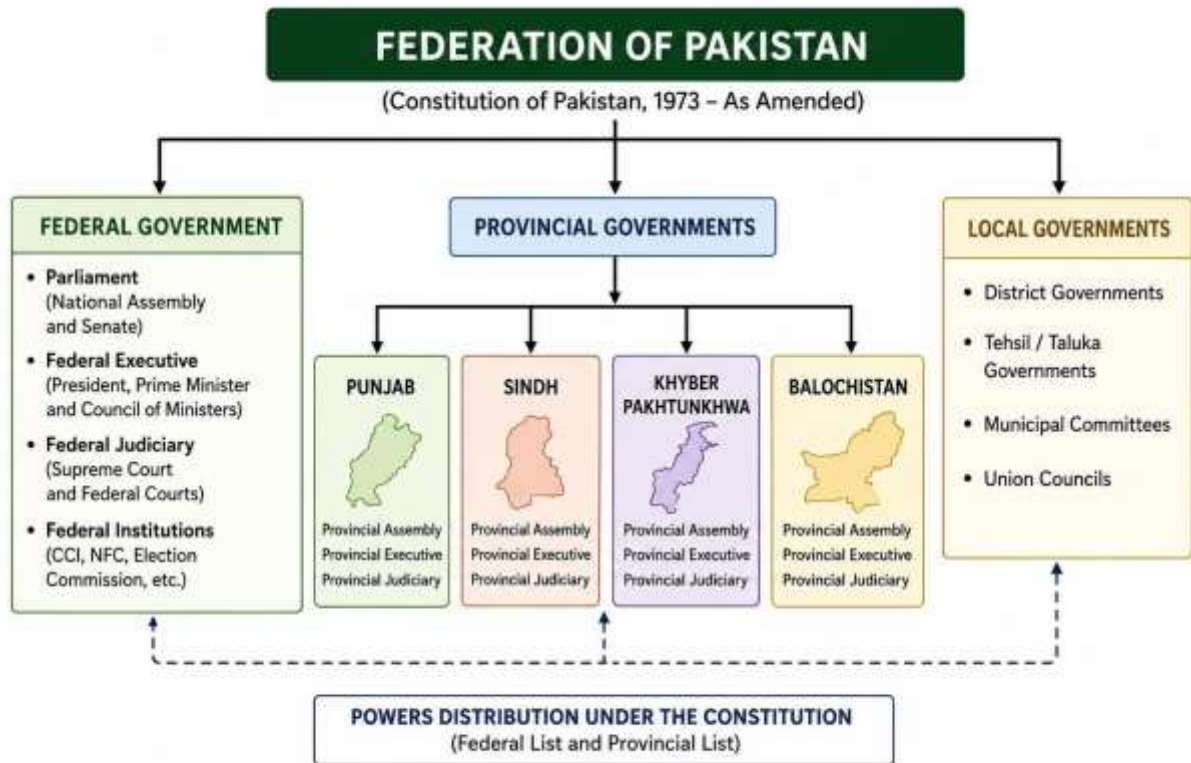
The 7th NFC Award, implemented in 2010, expanded the resource distribution formula beyond population to include poverty, revenue generation, and area, while increasing the provincial share of federal revenues. Although the Constitution envisages a new NFC Award every five years, no consensus has yet been reached on a successor, so the 7th NFC Award continues to govern revenue distribution. The NFC remains central to fiscal federalism by supporting provincial finances and promoting balanced national development.

### **Senate as the House of Federation**

The Senate, established under Article 50, represents the federating units equally. Regardless of population, each province has the same representation, protecting provincial interests and balancing the population-based representation of the National Assembly.

### **Other Coordination Mechanisms**

In addition to the CCI and NFC, institutions such as the **National Economic Council (NEC)** and regular federal–provincial meetings facilitate consultation on development planning, economic policy, and matters requiring intergovernmental cooperation.



**Chart: 20.1 Federation of Pakistan**

## Challenges of Federalism in Pakistan

### 1. Centre–Province Relations

Maintaining a balance between federal authority and provincial autonomy remains a major challenge in Pakistan's federal system. Provincial autonomy enables provinces to exercise constitutional, political, administrative, and financial powers within their respective jurisdictions. However, political differences and constitutional disputes between the federation and provinces can hinder policy implementation, delay development projects, and affect effective governance.

### 2. Fiscal Imbalance and Resource Distribution

Although provinces are responsible for major sectors such as health, education, and development, they have limited revenue-generating capacity and rely significantly on transfers through the National Finance Commission (NFC) Award. Strengthening provincial fiscal capacity remains

essential for meaningful autonomy, while persistent concerns over fiscal equity and resource distribution may contribute to provincial grievances, particularly in Balochistan, where issues of development and resource sharing have remained significant.

### **3. Water and Natural Resource Disputes**

The unequal distribution of water, natural gas, minerals, and hydropower has led to inter-provincial disputes over resource allocation and ownership. The Kalabagh Dam controversy illustrates the challenges of balancing provincial concerns with national development priorities.

### **4. Capacity Differences Among Provinces**

The provinces differ in administrative capacity, institutional strength, and financial resources. These disparities affect the quality of public service delivery and contribute to uneven socio-economic development across the country.

### **5. Weak Local Government System**

Despite Article 140-A of the Constitution requiring elected local governments, implementation has often been inconsistent. Limited devolution of powers to local governments weakens grassroots democracy, public participation, and local accountability.

### **6. Political and Administrative Coordination**

Federalism requires continuous coordination between the federation and the provinces in areas of shared responsibility. Weak institutional coordination, overlapping functions, and political disagreements can result in policy inconsistency and administrative inefficiency. The differing approaches adopted by the federal and provincial governments during the COVID-19 pandemic highlighted the importance of cooperative federalism and effective intergovernmental coordination.

### **Future of Federalism in Pakistan**

The future of federalism lies in completing and strengthening this framework by deepening provincial autonomy through effective implementation of the 18th Amendment, ensuring a fair and sustainable fiscal system, and devolving power to the local level in line with Article 140-A. Alongside this, improved provincial revenue generation, stronger intergovernmental coordination, and equitable resource distribution are essential to reduce dependency, resolve disputes, and address provincial disparities. Ultimately, Pakistan's federal success depends on transforming constitutional arrangements into practical, cooperative governance that fulfills both the principles of self-rule and shared rule at every tier of the state.

### **Conclusion**

Federalism is the constitutional framework that enables Pakistan to preserve national unity while accommodating its regional, linguistic, and cultural diversity. By distributing powers between the federation and the provinces, it promotes democratic participation, accountable governance, and effective public service delivery. The 1973 Constitution, further strengthened by the 18th Constitutional Amendment, has expanded provincial autonomy by transferring significant legislative and administrative powers to the provinces. Despite these reforms, challenges such as fiscal dependence, resource-sharing disputes, uneven institutional capacity, and weak local governance continue to affect the effective functioning of the federal system. Institutions including the Senate, the Council of Common Interests (CCI), and the National Finance Commission (NFC) play a crucial role in promoting intergovernmental coordination and resolving federal–provincial issues. The continued success of Pakistan's federal system depends on strengthening institutions, ensuring equitable resource distribution, and fostering cooperative governance to achieve democratic stability, national integration, and sustainable development.

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## Lecture 21

### Fundamental Rights in Pakistan

#### Micro Learning Outcomes (MLOs)

At the end of this lecture, students will be able to:

- Define human rights and fundamental rights and state their basic features.
- Explain Articles 8–28 of the Constitution of Pakistan with examples.
- Analyze enforcement and emergency provisions regarding fundamental rights in the Constitution of Pakistan.

#### Introduction

In the previous lecture, we discussed the federal structure of Pakistan, the distribution of powers between the federation and the provinces, and the impact of the 18th Constitutional Amendment on provincial autonomy. In the present lecture, we will discuss the concept of human rights, their significance in modern societies, and the fundamental principles that ensure the dignity, equality, and freedom of all individuals.

Human rights are among the most important principles of modern civilization. They are the basic rights and freedoms that belong to every person regardless of nationality, race, religion, gender, language, or social status. These rights are based on the inherent dignity and equality of all human beings and aim to ensure freedom, justice, and peace in society. Over time, the protection of human rights has become a central concern of nations and international organizations, particularly after the adoption of the Universal Declaration of Human Rights (UDHR) by the United Nations in 1948.

Pakistan, as a democratic state, has incorporated a comprehensive set of fundamental rights in the Constitution of 1973. These rights reflect both universal human rights principles and the Islamic values of justice, equality, and respect for human dignity. Articles 8 to 28 of the Constitution of 1973 provide important safeguards for the protection of citizens' rights and freedoms, while the judiciary and other institutions play a vital role in their enforcement. This lecture explores the concept of human rights, examines scholarly perspectives, highlights the importance of fundamental rights, and analyses the constitutional provisions and mechanisms

established in Pakistan for their protection and enforcement, including the circumstances under which certain rights may be suspended during a state of emergency.

## **Definitions of Human Rights**

### **Harold J. Laski**

According to Harold Laski: “Rights are those conditions of social life without which no man can seek, in general, to be himself at his best.” This definition emphasizes that rights are necessary for the development of an individual's personality and potential.

### **Jacques Maritain**

Maritain viewed human rights as rights that arise from human dignity and moral values. He believed that every person deserves respect simply because they are human.

## **Importance of Fundamental Rights**

Fundamental rights are the cornerstone of a democratic and constitutional state. They are the basic rights and freedoms guaranteed by the Constitution to protect individuals from arbitrary actions of the state and to ensure the full development of human personality. These rights are derived from the broader concept of human rights and are considered essential for maintaining justice, liberty, equality, and the rule of law in society. Without fundamental rights, democratic institutions cannot function effectively, and citizens cannot enjoy a secure and dignified life.

The importance of fundamental rights can be understood through the following dimensions:

- **Preservation of Human Dignity**

The primary purpose of fundamental rights is to protect the inherent dignity of every individual. Human dignity refers to the intrinsic worth and value possessed by every person. Fundamental rights safeguard individuals against degrading treatment, discrimination, exploitation, and arbitrary interference in their personal lives. By recognizing the dignity of all citizens, these rights establish the moral foundation of a just society.

- **Protection of Individual Liberty**

Liberty is one of the most cherished values in any democratic society. Fundamental rights protect personal freedom by ensuring that individuals can think, speak, move, and act freely within the limits prescribed by law. Rights such as freedom of speech, freedom of movement,



and freedom of religion enable citizens to make independent choices and participate actively in social and political life. Without these freedoms, individuals would be vulnerable to oppression and authoritarian control.

- **Establishment of Equality and Non-Discrimination**

Fundamental rights promote equality by ensuring that all citizens are treated equally before the law. They prohibit discrimination based on race, religion, ethnicity, gender, language, or social status. Equality is essential for creating a society where opportunities are distributed fairly and every individual can contribute to national development. The principle of equality also strengthens social cohesion by reducing divisions and prejudices among different groups.

- **Limitation of State Power**

A constitutional government derives its authority from the law, but unchecked power can lead to abuse and tyranny. Fundamental rights serve as constitutional restraints on governmental authority by defining limits beyond which the state cannot interfere in the lives of citizens. They prevent arbitrary arrests, unlawful detention, censorship, and other forms of governmental excess. In this way, fundamental rights act as a shield against the misuse of power.

- **Strengthening Democratic Governance**

Democracy is not merely a system of elections; it is a system that requires the active participation of informed and empowered citizens. Fundamental rights such as freedom of expression, freedom of association, and freedom of assembly enable citizens to voice their opinions, organize political activities, and hold public officials accountable. These rights foster political awareness and strengthen democratic institutions by ensuring that governments remain responsive to the people.

- **Promotion of Rule of Law and Justice**

Fundamental rights are closely linked with the concept of the rule of law, which requires that all individuals and institutions, including the government, are subject to the law. These rights ensure that citizens have access to fair legal procedures and protection against arbitrary actions. Through judicial remedies and constitutional safeguards, individuals can seek justice when their rights are violated. Consequently, fundamental rights enhance public confidence in the legal system and promote a culture of accountability.

- **Facilitation of Human Development**

The development of a nation depends on the development of its people. Fundamental rights create an environment in which individuals can pursue education, employment, creativity, and personal growth. Rights related to education, freedom of thought, and access to information contribute to intellectual development, while economic freedoms encourage innovation and productivity. Thus, fundamental rights are essential for both individual advancement and national progress.

- **Protection of Minority Communities**

In pluralistic societies, minority groups often face the risk of marginalization and discrimination. Fundamental rights provide constitutional protection to religious, linguistic, ethnic, and cultural minorities by guaranteeing equal treatment and preserving their identities. These protections help maintain social harmony and ensure that diversity becomes a source of strength rather than conflict. Respect for minority rights is also a key indicator of a mature and democratic society.

- **Promotion of Religious Freedom and Tolerance**

Religious freedom is a fundamental aspect of human liberty. Fundamental rights allow individuals to profess, practice, and propagate their religion without fear of persecution. By protecting religious diversity, these rights promote tolerance, mutual respect, and peaceful coexistence among different faith communities. Such protections are particularly important in multicultural societies where people of various religious backgrounds live together.

- **Enhancement of National Unity and Social Stability**

A society in which citizens feel secure and respected is more likely to remain peaceful and stable. Fundamental rights foster a sense of belonging by assuring citizens that their freedoms and interests are protected by the Constitution. When people trust that they will receive equal treatment and justice, they are more likely to support state institutions and contribute positively to national development. Therefore, fundamental rights serve as an important instrument for strengthening national integration and political stability.

- **Encouragement of Good Governance and Accountability**

Fundamental rights promote transparency and accountability in governance by enabling citizens to access information, criticize public policies, and demand responsible conduct from

public officials. A free press, independent judiciary, and active civil society all depend upon the protection of fundamental rights. These mechanisms help reduce corruption, improve public administration, and ensure that government actions remain subject to public scrutiny.

- **Alignment with International Human Rights Standards**

In the contemporary world, states are expected to uphold internationally recognized human rights norms. Fundamental rights incorporated in national constitutions reflect the principles enshrined in international instruments such as the Universal Declaration of Human Rights (1948). By guaranteeing these rights, states demonstrate their commitment to human dignity, social justice, and global standards of civilized governance.

## **Fundamental Rights and the Constitution of Pakistan**

The Constitution of the Islamic Republic of Pakistan, 1973, serves as the supreme legal framework for the protection of fundamental rights and freedoms of its citizens. The constitutional commitment to fundamental rights has evolved gradually since the creation of Pakistan. Its foundation was laid by the **Objectives Resolution of 1949**, which declared that the state would ensure democracy, freedom, equality, tolerance, and social justice in accordance with the principles of Islam. The Resolution also emphasized that adequate provisions would be made for safeguarding the legitimate rights and interests of minorities and for guaranteeing fundamental rights to all citizens. These principles were subsequently incorporated into the **Constitution of 1956**, Pakistan's first constitution, which formally recognized a range of fundamental rights, including equality before law, freedom of speech, freedom of religion, and protection of life and property. The **Constitution of 1962** continued this constitutional tradition by retaining and expanding several fundamental rights, although certain limitations existed under the presidential system. The constitutional development reached its most comprehensive form in the **Constitution of 1973**, which consolidated and strengthened the protection of fundamental rights within a democratic parliamentary framework.

Drawing upon both universal human rights principles and the Islamic ideals of justice, equality, and human dignity, the 1973 Constitution guarantees an extensive range of rights designed to protect individuals from arbitrary state action and discrimination. These rights are enshrined in **Part II, Chapter 1 (Articles 8–28)** of the Constitution and include the protection of life and liberty, equality before law, freedom of speech and expression, freedom of religion, freedom of association, freedom of movement, protection of property, and the right to education. The

Constitution not only recognizes these rights but also provides effective legal mechanisms for their enforcement through an independent judiciary. Furthermore, **Article 8** declares that any law inconsistent with fundamental rights shall be void to the extent of such inconsistency, thereby establishing the supremacy of constitutional rights over ordinary legislation. Thus, the constitutional history of Pakistan demonstrates a continuous commitment to the protection of citizens' rights, beginning with the Objectives Resolution and culminating in the comprehensive framework of the 1973 Constitution. Fundamental rights, therefore, constitute the cornerstone of Pakistan's constitutional order and play a vital role in promoting democracy, the rule of law, social justice, and human dignity. Now we will discuss these articles one by one for better understanding.

- **Protection of life and liberty (Article 9)**

Article 9 of the Constitution of Pakistan guarantees the protection of life and liberty of every citizen, meaning that no person can be deprived of life or personal freedom except in accordance with law. Liberty includes not only physical freedom but also the right to live with dignity, such as the freedom to eat, sleep, work, and move without unlawful restrictions or bodily restraints. This right is applied in various legal situations, including arrest and detention, which must follow proper legal procedures, and conviction and sentence, which are only valid after a fair trial.

- **Protection provided as to Confinement and Custody (Article 10)**

The article 10 provides protection to every citizen of state that no one may be detained without due process of law. If anyone is arrested may be produced before the Magistrate within twenty-four hours of such arrest. Said article relates to safeguards against arrest and detention. It recognizes the right of the Government to arrest and detain. The first right of a person, after his arrest and detention is that he must be informed as to why he has been arrested. The detaining authority will have to give its reasons for detention. This duty of the State gives right to the individual to seek the remedy against the arrest. So, the first right is that he must be allowed the Lawyer facility.

- **Slavery, Forced Labor, Etc. Prohibited (Article 11)**

Article 11 declared that any kind of slavery, forced labour etc. is prohibited in Pakistan. To some extent, has been redundant in the sense that no slavery is in existence in this country. So

far as the forced labour is concerned, that too is prohibited<sup>45</sup> except in case of compulsory services for public purposes or by a person undergoing punishment for an offence, which shows that from prisoners, the State can get forced labour. Usually, consent is given by the Guardian regarding his child, and the child works in such factories, but as no remedy is sought against, therefore, it is to be according to law, whereas it is in derogation of this fundamental right. In Indian **Safeguard against the double jeopardy (Article 12 & 13):**

The Article 12&13 declared that no person is to be prosecuted twice for the same offence, and this principle is called “double jeopardy”. This rule is based on the principle of ‘Natural Justice’, and not on the principle of ‘Equity’, which itself is based on just, fair and good conscious. The Constitution provide safeguard against double jeopardy. No one can be convicted twice for the same act. It shows that this shelter has been assured in contradiction of retrospective penalty, which is only possible in criminal laws.

- **Safeguard as to Self-respect (Article 14)**

Article 14 of the Constitution of Pakistan guarantees the dignity of man and the privacy of the home. It ensures that every individual is treated with respect and is protected from any form of humiliation, torture, or inhuman treatment. This article clearly prohibits authorities from subjecting any person to physical or mental abuse without lawful justification.

- **Safeguard as to Freedom of Movement (Article 15)**

Article 15 declared that each resident should have the privilege to stay in, and, subject to any sensible confinement forced by law in people in general intrigue, enter and move uninhibitedly all through every part of State and live in any part of State.

- **Freedom of Assembly (Article 16)**

Article 16 declared that citizens have the right to gather peacefully for meetings, protests, and demonstrations. This right strengthens democratic participation and public expression. However, assemblies must remain peaceful and within legal boundaries.

- **Freedom of Association (Article 17)**

Article 17 declared that every citizen of the State has the right to make association for their well fare in a peaceful manner. A group of persons who join for some common purpose or object is called an association. A Union is also association, which is created by law, and which

is a special type of association. A society is an association which is also to be recognized by law. A political party is an association. Thus, there are many types of associations, and the Constitution guarantees the right to form associations.

- **Freedom of Trade, Business, and Profession (Article 18)**

Article 18 declared every citizen has the right to choose any lawful profession or business. It ensures economic freedom and the ability to earn a livelihood. The state may regulate professions for public interest and safety.

- **Safeguard as to Freedom of Speech (Article 19)**

Article 19 declared every citizen of the State has equal freedom of speech. Speech may not be derogatory or violent against any person expressly or impliedly. However, the right to speak freely and opportunity of press are liable to sensible confinements forced by law. If he unjustly attacks an individual, the person defamed may sue for damages, and if the words, on the other hand, are written or printed and shows treason or immorality, he can be tried for the offence of misdemeanour either by information or indictment.

- **Right to Information (Article 19A)**

Article 19A declared Citizens have the right to access information from public institutions. It promotes transparency and accountability in government. This right strengthens good governance and reduces corruption.

- **Freedom of Religion (Article 20)**

Article 20 declared Every person is free to follow, practice, and promote their religion. It ensures respect for religious diversity in society. The state protects this freedom equally for all citizens.

- **Protection Against Religious Taxation (Article 21)** Article 21 declared no citizen can be forced to pay taxes for another religion. It protects religious freedom and financial fairness. The state ensures no misuse of public funds for religious coercion.

- **Rights in Educational Institutions (Article 22)**

Article 21 declared no student can be forced to receive religious education of another faith. It protects religious identity in educational settings. Students are free to learn according to their own beliefs.

- **Right to Acquire Property (Article 23)**

The Article 23 declared Every citizen has the right to buy, own, and possess property. It supports economic independence and personal security. This right is exercised according to law.

- **Protection of Property Rights (Article 24)**

Article 24 declared no one's property can be taken without legal justification. If taken for public purpose, fair compensation must be given. It protects citizens from arbitrary state action.

- **Equality of Citizens (Article 25)**

Article 25 declared that all citizens are equal before the law. No discrimination is allowed on any social or personal basis. The state must provide equal protection to everyone.

- **Right to Education (Article 25 A)**

Article 25A declared that the state must provide free and compulsory education for children aged 5 to 16. It ensures equal educational opportunities for all. This right promotes national development and literacy.

- **Equal Access to Public Places (Article 26)**

Article 26 declared that all citizens can use public places without discrimination. This includes parks, libraries, and public facilities. It promotes equality and social inclusion.

- **Equality in Public Employment (Article 27)**

Article 27 declared that all citizens have equal opportunity in government jobs. No unfair preference or discrimination is allowed. It ensures merit-based recruitment in public service.

- **Preservation of Language, Culture, and Heritage (Article 28)**

Article 28 declared that citizens have the right to preserve their language and culture. It protects cultural identity and diversity in society. The state encourages respect for all cultural traditions.

## **Enforcement Mechanisms of Fundamental Rights in Pakistan**

In Pakistan, fundamental rights are not only written in the Constitution but are also protected through strong enforcement mechanisms. The judiciary is the main guardian of these rights, especially the High Courts and the Supreme Court. Under Article 199, High Courts can issue writs such as Habeas Corpus, Mandamus, Prohibition, Certiorari, and Quo Warranto to protect citizens from illegal actions of the state or public authorities. These writs ensure that no person is unlawfully detained, that public officials perform their duties, and that illegal decisions can be reviewed and corrected. The Supreme Court, under Article 184(3), also has the power to directly take notice of matters involving public importance related to fundamental rights. In addition to courts, institutions such as the Federal Ombudsman, National Commission for Human Rights (NCHR), and provincial human rights bodies help in addressing complaints and protecting citizens' rights. Together, these mechanisms ensure that fundamental rights are not just theoretical promises but practical protections available to every citizen of Pakistan.

## **Suspension of Rights during Emergency in Pakistan**

The Constitution of Pakistan also allows the temporary suspension or limitation of certain fundamental rights during a national emergency, but only under strict constitutional procedures. When the country faces serious threats such as war, internal disturbance, or a breakdown of law and order, the President may declare an emergency under Articles 232, 233, or 234. During such situations, some rights may be restricted to maintain national security, public order, and stability of the state. However, this suspension is not absolute or unlimited, as it is subject to constitutional safeguards and parliamentary approval. Even during emergencies, the core principles of justice and human dignity cannot be completely removed.



The purpose of such suspension is not to eliminate rights permanently but to temporarily balance individual freedoms with the survival and security of the state. In Pakistan's constitutional framework, this provision reflects the idea that rights and state security must operate in harmony during extraordinary circumstances.

## **Conclusion**

Human rights and fundamental rights form the foundation of a just, democratic, and civilized society. At the global level, human rights emphasize the dignity and equality of all human beings, while at the national level, the Constitution of Pakistan transforms these principles into enforceable fundamental rights under Articles 8–28. These rights protect citizens' life, liberty, equality, religion, education, and property, while also placing limits on the powers of the state. Through constitutional safeguards, judicial enforcement, and institutional support, Pakistan ensures that these rights are not merely theoretical but practically protected. However, during extraordinary situations such as emergencies, certain rights may be temporarily restricted to maintain national security, though always under constitutional control. Overall, the lecture highlights that the protection of rights is essential for strengthening democracy, rule of law, and social justice in Pakistan.

## Lecture 22

### Civil and Political Rights in Pakistan

#### Micro Learning Outcomes (MLOs)

By the end of this lecture, students will be able to:

- Identify the major civil and political rights guaranteed under the 1973 Constitution of Pakistan.
- Explain the significance and constitutional protection of civil and political rights in Pakistan.
- Analyze the role of constitutional provisions and judicial decisions in protecting civil and political rights in Pakistan.

#### Introduction

In the previous lecture, Fundamental Rights were discussed as the constitutional guarantees that protect the liberty, dignity, equality, and security of individuals in Pakistan. These rights establish the legal foundation for safeguarding citizens from arbitrary state action and ensuring the rule of law.

This lecture focuses on Civil and Political Rights, which form an important category of Fundamental Rights in Pakistan. It examines major civil rights such as the right to life and liberty, protection against arbitrary arrest and detention, the right to a fair trial, freedom of religion, and equality before the law. The lecture also discusses key political rights, including freedom of assembly, freedom of association, freedom of speech and expression, the right to vote, and participation in public affairs. It highlights the significance of these rights, their limitations, and the role of the judiciary in protecting them through landmark decisions. A proper understanding of civil and political rights is essential for appreciating how individual freedoms, democratic participation, legal equality, and the rule of law are maintained in Pakistan.

## **Distinction between Civil Rights and Political Rights**

Civil rights are rights that protect individuals from undue interference by the state and ensure the protection of personal freedoms, human dignity, liberty, equality, and security. These rights are enjoyed by all citizens regardless of their political involvement and are primarily intended to safeguard individuals from discrimination, injustice, and abuse of power. Major civil rights in Pakistan include the Right to Life and Liberty, Freedom of Religion, Equality Before Law, and Protection against Arbitrary Arrest and Detention. These rights are mainly protected under Articles 9, 10, 10A, 14, 20, and 25 of the Constitution of Pakistan, 1973.

Political rights enable citizens to participate actively in the political and democratic processes of the state. These rights focus on citizen involvement in governance, public decision-making, and the formation of public policy. Political rights are generally exercised through political participation and civic engagement, allowing citizens to influence government actions and hold public officials accountable. Important political rights include the Right to Vote, Freedom of Association, Freedom of Speech and Expression, and the Right to Form Political Parties. These rights are primarily protected under Articles 17 and 19 of the Constitution of Pakistan, 1973, along with electoral rights provided through election laws.

## **Civil Rights enshrined in 1973 Constitution**

Civil rights are the fundamental rights and freedoms that protect the life, liberty, dignity, and equality of individuals. These rights safeguard citizens from arbitrary interference by the state and ensure equal treatment under the law. In Pakistan, civil rights include the Right to Life and Liberty, Safeguards against Arrest and Detention, Right to Fair Trial, Protection of Human Dignity, Freedom of Movement, Freedom of Religion, and Equality Before Law, among others. Together, these rights provide legal protection for individuals, promote justice and human dignity, and ensure that every citizen can enjoy personal freedoms within the framework of the Constitution and the rule of law.

## **Right to Life and Liberty**

The Right to Life and Liberty is one of the most fundamental rights guaranteed by the Constitution of Pakistan. Article 9 states that no person shall be deprived of life or liberty except in accordance with law. This right protects individuals from unlawful killings, arbitrary detention, and unjust restrictions on personal freedom. The Supreme Court of Pakistan has interpreted the right to life broadly, extending it beyond mere physical existence to include the right to live with dignity, safety, and access to a healthy environment. As the foundation of all other rights, it ensures that individuals can enjoy their freedoms and participate fully in society.

## **Safeguards against Arrest and Detention**

Article 10 provides important protections for individuals who are arrested or detained by state authorities. It requires that an arrested person be informed of the reasons for arrest and be given an opportunity to consult legal counsel. The Constitution also requires that detainees be produced before a magistrate within the prescribed period. These safeguards help prevent arbitrary detention and ensure that law enforcement agencies exercise their powers within legal limits. By protecting personal liberty, Article 10 strengthens the rule of law and prevents misuse of state authority.

## **Right to Fair Trial and Due Process**

The Right to Fair Trial and Due Process, guaranteed under Article 10A, ensures that every individual is treated fairly during legal proceedings. This right requires that cases be heard by independent and impartial courts and that accused persons have a reasonable opportunity to present their defense. It also guarantees transparency, procedural fairness, and equality before judicial institutions. The inclusion of Article 10A reflects the importance of justice and accountability in Pakistan's legal system and protects individuals from wrongful convictions and unfair legal treatment.

## **Inviolability of Human Dignity**

Article 14 declares that the dignity of man and the privacy of home shall be inviolable. This provision recognizes that every individual deserves respect and protection regardless of social, economic, or political status. It prohibits torture, degrading treatment, and coercion, particularly for the purpose of extracting evidence. The protection of human dignity serves as a cornerstone of

human rights by ensuring that state institutions and public authorities treat all individuals with fairness, respect, and humanity.

### **Freedom of Movement**

Article 15 grants citizens the right to move freely throughout Pakistan and to reside and settle in any part of the country. This freedom allows individuals to pursue educational, economic, and social opportunities without unnecessary restrictions. It also promotes national integration by enabling citizens to travel and live across different regions of Pakistan. However, this right may be subject to reasonable restrictions imposed by law in the interests of public safety, national security, or public order.

### **Freedom of Religion**

Article 20 guarantees every citizen the right to profess, practice, and propagate their religion. This provision protects religious freedom and allows individuals to follow their beliefs without fear of discrimination or coercion. It also recognizes Pakistan's religious diversity by safeguarding the rights of minority communities. Freedom of religion promotes tolerance, mutual respect, and peaceful coexistence among different religious groups, contributing to social harmony and national unity.

### **Freedom to Manage Religious Institutions**

Article 21 protects religious communities from being compelled to pay taxes for the support of any religion other than their own. It also safeguards the autonomy of religious institutions in managing their religious affairs. This provision ensures that individuals and communities can practice and maintain their religious traditions without undue interference from the state. By protecting religious institutions, the Constitution promotes religious freedom and respect for diverse faith communities.

### **Protection against Discrimination in Educational Institutions**

Article 22 protects individuals from discrimination in educational institutions based on religion. It ensures that no student is required to receive religious instruction or participate in religious activities relating to a faith other than their own. This provision promotes equality in education

and protects the religious freedom of students belonging to different faiths. It also contributes to creating an inclusive educational environment that respects diversity and individual beliefs.

### **Right to Property**

Article 24 guarantees every citizen the right to acquire, own, hold, and dispose of property in any part of Pakistan, subject to the Constitution and the law. It also protects individuals from being deprived of their property except in accordance with the law, and where property is acquired for a public purpose, fair compensation must be provided (Article 24).

### **Equality Before Law and Equal Protection of Law**

Article 25 guarantees that all citizens are equal before the law and entitled to equal protection of the law. This principle ensures that legal rules are applied fairly and impartially to all individuals regardless of religion, ethnicity, gender, social status, or political affiliation. Equality before law is a fundamental requirement of democratic governance and the rule of law. It protects citizens from discrimination and ensures that public authorities remain accountable under the same legal framework as ordinary citizens.

### **Equality of Access to Public Places**

Article 26 ensures that all citizens have equal access to places intended for public use, such as parks, roads, educational institutions, and public facilities. It prohibits discrimination on race, religion, caste, sex, residence, or place of birth. This right promotes social inclusion and equal participation in public life by ensuring that all individuals can benefit from public services and facilities without unfair restrictions or exclusion.

### **Non-Discrimination in Public Services**

Article 27 prohibits discrimination in appointments to public service because of religion, race, caste, sex, residence, or place of birth. The purpose of this provision is to ensure that all citizens have equal opportunities to serve in public institutions based on merit and qualifications. By promoting fairness and equal access to government employment, Article 27 strengthens social justice, reduces inequality, and supports an inclusive system of public administration in Pakistan.

## **Right to Culture**

Article 28 guarantees that any section of citizens having a distinct language, script, or culture has the right to preserve, promote, and develop it. It also allows them to establish institutions for the preservation and advancement of their language, script, and culture, subject to the law.

## **Importance of Civil Rights**

Civil rights are essential for protecting individual freedom, human dignity, equality, and security within society. These rights safeguard citizens from arbitrary actions of the state and ensure equal treatment under the law regardless of religion, ethnicity, gender, or social status. Civil rights such as the right to life and liberty, freedom of religion, equality before law, and protection against unlawful detention enable individuals to live with dignity and security. By promoting justice, preventing discrimination, and limiting the abuse of power, civil rights strengthen the rule of law and contribute to a fair, stable, and democratic society.

## **Political Rights enshrined in 1973 Constitution**

Political rights are the rights that enable citizens to participate actively in the governance and democratic processes of the state. These rights allow individuals to express political opinions, engage in public affairs, elect representatives, seek public office, and influence government policies through lawful and constitutional means. Political rights are essential for ensuring popular participation, government accountability, and representative democracy. In Pakistan, these rights are protected through various constitutional provisions and democratic institutions, enabling citizens to play an active role in shaping public policy and contributing to the political development of the country.

## **Freedom of Assembly**

Article 16 of the Constitution of Pakistan guarantees citizens the right to assemble peacefully and without arms. This right allows individuals to participate in public meetings, rallies, demonstrations, and other lawful gatherings to express their views on social, political, and economic issues. Freedom of assembly is an important feature of democratic governance because

it enables citizens to collectively voice their concerns and influence public policy. However, this right is subject to reasonable restrictions imposed in the interests of public order and security.

### **Freedom of Association and Right to Form Political Parties**

Article 17 guarantees citizens the right to form associations, unions, and political parties. This right enables individuals to organize collectively for social, professional, economic, and political purposes. Through political parties and civil society organizations, citizens can participate in democratic processes, advocate for public interests, and contribute to policymaking. Freedom of association strengthens democratic institutions by encouraging political participation and civic engagement.

### **Freedom of Speech and Expression**

Article 19 guarantees the freedom of speech and expression, allowing citizens to express their opinions and exchange ideas on matters of public importance. This right plays a vital role in democratic governance by promoting public debate, accountability, and informed decision-making. It enables citizens, journalists, and civil society organizations to discuss government policies and social issues openly. However, the exercise of this freedom is subject to constitutional restrictions relating to national security, public order, morality, and the integrity of Pakistan.

### **Right to Information**

Article 19A provides citizens with the right to access information in matters of public importance. This right promotes transparency and accountability by allowing the public to obtain information regarding the functioning of government institutions. Access to information enables citizens to make informed decisions, participate effectively in democratic processes, and hold public officials accountable for their actions. It is an important tool for strengthening good governance and reducing corruption.

### **Right to Vote**

The right to vote is a fundamental political right that enables citizens to participate in the democratic process by electing their representatives. While the electoral framework is governed by election laws, this right is rooted in the constitutional principle of political participation under



Article 17 and the representative institutions established under Articles 51 and 106 relating to the National and Provincial Assemblies. Through voting, citizens influence public policies, choose their representatives, and ensure that government authority is based on the will of the people.

### **Right to Contest Elections**

The right to contest elections allows eligible citizens to seek public office and represent the people in elected institutions. Article 17 supports political participation, while Articles 62 and 63 prescribe the qualifications and disqualifications for membership of Parliament. This right enables citizens to participate directly in governance and promotes democratic competition within the constitutional framework.

### **Right to Peaceful Protest and Political Participation**

The right to peaceful protest allows citizens to express their opinions and concerns regarding public issues and government policies through lawful demonstrations and campaigns. This right is supported by Article 16 (Freedom of Assembly), Article 17 (Freedom of Association), and Article 19 (Freedom of Speech and Expression). Peaceful political participation strengthens democratic accountability and provides citizens with a constitutional means of expressing public opinion.

### **Right to Petition Government Authorities**

Citizens have the right to submit petitions, complaints, and requests to government authorities regarding matters of public importance or personal grievances. This right is linked to Article 19, which protects freedom of expression, and Article 19A, which guarantees access to information. The right to petition promotes communication between citizens and public institutions and supports transparency and accountability in governance.

### **Importance of Political Rights**

Civil and political rights are essential for protecting individual freedom, human dignity, equality, and democratic participation. Civil rights safeguard citizens from arbitrary actions of the state and ensure equal treatment under the law, while political rights enable individuals to participate in

governance, express their views, and influence public decision-making. Together, these rights strengthen the rule of law, promote accountability and transparency, protect minority interests, and encourage active citizenship. They also help maintain social stability, support democratic institutions, and ensure that government authority is exercised in accordance with constitutional principles. In a democratic society, the effective protection of civil and political rights is crucial for achieving justice, good governance, and sustainable national development.

## **Case Law Illustrations**

The following cases demonstrate how Pakistani courts have protected civil and political rights and strengthened the rule of law.

### **Shehla Zia and Others v. WAPDA (PLD 1994 SC 693)**

The case arose when residents of Islamabad challenged the construction of a high-voltage electricity grid station in a residential area. The petitioners argued that electromagnetic radiation from the grid station could pose serious health risks to the local population and therefore threatened their fundamental rights.

The case primarily involved:

Right to Life and Liberty (Article 9), Human Dignity (Article 14) and Equality and Protection of Citizens.

The Supreme Court of Pakistan adopted a broad interpretation of the Right to Life under Article 9. The Court held that the term "life" does not merely mean physical existence but includes all aspects that contribute to a healthy, safe, and dignified life. The Court observed that environmental hazards affecting human health could constitute a violation of the constitutional right to life. This case is considered one of the most important human rights judgments in Pakistan because it expanded the scope of the Right to Life beyond mere survival. The judgment established that citizens are entitled to live in a safe and healthy environment and that state authorities must consider the impact of their actions on public welfare. The case strengthened constitutional protections related to life, liberty, human dignity, and state accountability, demonstrating the judiciary's commitment to protecting fundamental rights.

## **B. Benazir Bhutto v. Federation of Pakistan (PLD 1988 SC 416)**

This case was filed by Benazir Bhutto challenging restrictions imposed on political activities during a period of political transition in Pakistan. The petition raised concerns regarding citizens' ability to participate freely in political processes and exercise democratic rights.

The case concerned: Freedom of Speech and Expression (Article 19), Freedom of Association (Article 17), Equality Before Law (Article 25), Political Participation and Democratic Rights

The Supreme Court emphasized that the Constitution guarantees citizens the right to participate in political activities, form political parties, and express political opinions. The Court held that democratic freedoms are essential components of a constitutional system and that unreasonable restrictions on political participation violate fundamental rights. The judgment reinforced the importance of freedom of speech, freedom of association, and democratic participation in Pakistan. It recognized that political rights are indispensable for representative government and constitutional democracy. The case strengthened protections against arbitrary restrictions on political activities and highlighted the state's responsibility to respect and protect citizens' civil and political freedoms. The decision remains a landmark precedent for safeguarding democratic rights and ensuring that all citizens have equal opportunities to participate in the political process.

## **Conclusion**

Civil and Political Rights are fundamental to the protection of human dignity, individual freedom, and democratic governance. These rights ensure that citizens are protected from arbitrary actions of the state while enabling them to participate actively in political, social, and civic life. The Right to Life and Liberty safeguards personal security and human dignity, Freedom of Speech, Religion, and Association promotes democratic participation and pluralism, Equality Before Law ensures fairness and non-discrimination, and Safeguards against Arbitrary Arrest protect individuals from unlawful detention and abuse of power. The Constitution of Pakistan provides a comprehensive framework for the protection of these rights, while the judiciary plays a crucial role in interpreting and enforcing constitutional guarantees. The effective protection of civil and political rights strengthens the rule of law, promotes justice and accountability, and contributes to the development of a democratic, inclusive, and rights-based society.

## Lecture 23

### Responsibilities of Citizens in the Constitution of Pakistan

#### Micro Learning Outcomes (MLOs)

By the end of this lecture, students will be able to:

- Identify the key responsibilities of citizens in Pakistan and their role in a democratic society.
- Explain the provisions of the Constitution of Pakistan (1973) regarding loyalty to the state and obedience to law.
- Analyze major civic responsibilities, including voting, public participation and accountability in strengthening democratic governance.

#### Introduction

In the previous lecture, we examined the concept of civil and political rights and their significance in ensuring individual liberty, equality, political participation, and protection under the law. These rights constitute an essential component of democratic governance and enable citizens to actively engage in the political and social life of the state. However, the effective exercise of rights is closely linked to the fulfillment of corresponding responsibilities, as a democratic society requires a balance between individual freedoms and civic obligations. The concept of citizenship extends beyond the enjoyment of rights and privileges; it also encompasses a set of duties and responsibilities that individuals owe to the state and society. The Constitution of Pakistan, 1973, not only guarantees fundamental rights but also emphasizes the responsibilities of citizens, particularly loyalty to the state and obedience to the Constitution and law. Understanding citizens' responsibilities is therefore essential for developing an informed, participatory, and constitutionally conscious citizenry capable of contributing to the democratic and socio-political development of Pakistan.

## **Concept of Rights and Duties/Responsibilities**

Rights and duties are fundamental components of citizenship and are essential for the effective functioning of any democratic society. Although they are closely interconnected, they serve different purposes within the relationship between the individual and the state. Rights refer to the legal, political, social, and civil entitlements guaranteed to individuals by the Constitution and laws of a country. These rights enable citizens to live with dignity, freedom, and equality while protecting them from arbitrary actions by the state or other individuals. Examples include the right to life, freedom of expression, freedom of religion, the right to education, and the right to participate in political processes. Rights empower citizens by providing them with opportunities to develop their potential and contribute to society.

Duties, in contrast, are the obligations and responsibilities that citizens owe to the state, society, and fellow citizens. They require individuals to act in ways that support social order, national unity, and the common good. Civic duties include obeying the Constitution and laws, paying taxes, respecting the rights of others, protecting public property, participating in democratic processes, and contributing to national development. Unlike rights, which individuals can claim and enjoy, duties require citizens to perform certain actions for the benefit of society. Duties ensure that the exercise of individual rights does not infringe upon the rights and freedoms of others and that the interests of the community are protected. In a democratic system, rights and duties are complementary rather than opposing concepts. Rights cannot be effectively protected unless citizens fulfill their duties, and duties cannot be meaningfully performed without the protection of fundamental rights. For example, while citizens have the right to freedom of expression, they also have a duty to exercise this freedom responsibly and within constitutional limits. Similarly, while individuals enjoy the benefits of public services and state protection, they are expected to contribute to the functioning of the state through tax compliance and respect for the law. Therefore, a balanced relationship between rights and duties is essential for maintaining constitutional order, promoting democratic governance, and ensuring the stability and progress of the state.

## **The Concept and Meaning of Citizenship**

Citizenship is a concept that dates to Ancient Greece. "The modern concept of citizenship has its roots in Ancient Greece, where citizens participated in public affairs and governance." In the Greek city-states, particularly Athens, citizenship was closely associated with participation in political life, public decision-making, and civic responsibilities. Citizens were expected not only to enjoy certain privileges but also to contribute actively to the affairs of the state. This early understanding of citizenship laid the foundation for modern democratic systems, where citizens are regarded as essential participants in governance and nation-building. The term describes the relationship between an individual and a state; the state offers citizens protection, while the citizens owe their loyalty to the state. Citizenship, therefore, provides both freedoms and duties, which individuals are expected to honour. This relationship is based on mutual obligations: the state guarantees rights, security, and legal protection, while citizens are expected to respect the laws, support national institutions, and contribute to the welfare of society. In modern constitutional democracies, citizenship serves as the legal and political bond that connects individuals to the state and enables them to participate in public life.

Citizens have both rights and responsibilities. These responsibilities include supporting and defending the nation and often the constitution; participating in the political process, including voting; staying informed about issues on the local, state, and national levels; respecting and obeying laws; and respecting others' beliefs, opinions, and rights. In democratic societies, responsible citizenship requires active engagement in civic affairs, informed decision-making, and a commitment to the common good. Citizens who fulfill these responsibilities contribute to political stability, social harmony, and the effective functioning of democratic institutions in a state.

## **Responsibilities of the Citizens Under the 1973 Constitution of Pakistan**

The Constitution (1973) of the Islamic Republic of Pakistan provides the legal foundation of citizenship and establishes the relationship between citizens and the state. It recognizes citizens as the primary beneficiaries of constitutional protections and democratic governance. The Constitution not only grants rights and freedoms but also imposes responsibilities that are essential for maintaining the sovereignty, stability, and democratic character of the state. Through various constitutional provisions, it seeks to promote justice, equality, liberty, and human dignity while ensuring that citizens actively contribute to national development and constitutional governance. The constitution also emphasizes that citizenship carries obligations. Every citizen is required to remain loyal to the state and uphold the Constitution as the supreme law of the land.

### **Democratic Participation of Citizens**

The Constitution recognizes citizens as essential participants in the democratic process. Pakistan's political system is founded on the principle of representative democracy, where citizens exercise their political rights through elections and public participation. Citizens have the right to vote, express political opinions, join political parties, and engage in public affairs. Article 17 guarantees the freedom of association, including the right to form and become members of political parties. Through these democratic rights, citizens contribute to policymaking, influence governance, and hold public officials accountable. Democratic participation strengthens the legitimacy of government institutions and ensures that state authority reflects the will of the people.

### **Loyalty to the State as a Constitutional Duty**

While the Constitution grants extensive rights to citizens, it also imposes important duties and responsibilities. Article 5 explicitly states that loyalty to the State is the basic duty of every citizen and that obedience to the Constitution and law is an inviolable obligation wherever a citizen may be. This provision highlights the reciprocal nature of citizenship, where individuals not only enjoy constitutional protections but are also expected to respect and uphold the constitutional order. Loyalty to the state involves safeguarding national sovereignty, respecting state institutions, and

acting in a manner that promotes national unity and stability. By emphasizing obedience to the Constitution, Article 5 reinforces the principle that constitutional supremacy is essential for democratic governance and the rule of law.

### **Citizens as Stakeholders in National Development**

The Constitution views citizens as active stakeholders in the progress and development of the nation. National development is not solely the responsibility of government institutions; it requires the participation and cooperation of citizens in social, economic, political, and cultural spheres. Through education, employment, entrepreneurship, community service, and civic engagement, citizens contribute to the advancement of society and the achievement of national goals. Responsible citizens promote social harmony, support democratic institutions, and participate in initiatives that improve public welfare. The constitutional framework encourages citizens to play a constructive role in nation-building by exercising their rights responsibly and fulfilling their obligations toward society and the state.

### **Responsibility to Pay Taxes**

Paying taxes is one of the most important civic responsibilities of citizens in a modern state. Taxes constitute the primary source of government revenue and enable the state to provide essential public services such as education, healthcare, security, infrastructure, and social welfare programs. By paying taxes honestly and on time, citizens contribute directly to national development and the effective functioning of public institutions. The Constitution of Pakistan, 1973, emphasizes obedience to the Constitution and law under Article 5, making tax compliance an important civic obligation. Tax revenues support economic growth, public welfare, and the delivery of services that benefit society. Moreover, paying taxes promotes accountability, strengthens state capacity, and helps ensure the equitable distribution of public resources. Therefore, a responsible taxpayer not only fulfills a legal requirement but also plays a vital role in the progress, stability, and prosperity of the nation.



## **Digital Citizenship and Constitutional Responsibility**

In the twenty-first century, citizenship extends into the digital world. Digital citizenship refers to the responsible, ethical, and lawful use of digital technologies, the internet, and social media. The Constitution of Pakistan provides guidance for responsible online behavior through Article 19 (freedom of speech and expression), Article 19A (right to information), and Article 14 (protection of human dignity and privacy). Responsible digital citizens verify information before sharing it, avoid misinformation and cyberbullying, protect personal data, respect intellectual property rights, and comply with cyber laws. They also use digital platforms constructively for education, communication, public awareness, and civic engagement. Ethical online conduct promotes democratic participation, social harmony, and the protection of constitutional values in the digital age.

## **Civic Participation of Citizens and Nation-Building**

Civic participation is a fundamental pillar of a strong democratic system, as it ensures that citizens remain actively involved in public life and contribute meaningfully to the functioning of the state. It is through civic engagement that individuals transform from passive observers into active stakeholders of democracy. When citizens take part in political, social, and community affairs, they help shape policies, strengthen institutions, and ensure that governance remains aligned with public needs and expectations. The importance of civic participation can be clearly understood through its key outcomes.

### **Strengthens Democracy**

Active civic participation is essential for strengthening democratic institutions. The Constitution of Pakistan supports citizen involvement through Article 17 (freedom of association) and Article 19 (freedom of speech and expression). By participating in elections, public discussions, political parties, and community activities, citizens help make democratic processes more representative and accountable. Civic engagement enables people to communicate their concerns to policymakers, promotes transparency and public oversight, and enhances the effectiveness of democratic governance. As a result, active citizenship contributes to a more inclusive, responsive, and stable democratic system.

## **Enhances Public Trust in Government**

Civic participation helps build public trust in government institutions and democratic processes. When citizens are involved in public affairs and have opportunities to express their views, they are more likely to view government actions as transparent and accountable. The Constitution supports such participation through **Article 17** (freedom of association), **Article 19** (freedom of speech and expression), and **Article 19A** (right to information). These provisions encourage communication between citizens and the state and promote public oversight of government activities. Greater transparency and accountability strengthen confidence in public institutions, encourage cooperation between citizens and government, and contribute to more effective and legitimate governance.

## **Encourages Responsible Governance**

Civic engagement promotes responsible and accountable governance by ensuring that public officials remain answerable to the citizens they serve. An informed and active citizenry helps monitor government performance, identify shortcomings, and demand transparency in public affairs. The Constitution facilitates such oversight through **Article 19** (freedom of speech and expression) and **Article 19A** (right to information), which enable citizens to express concerns and access information on matters of public importance. Through public awareness, lawful participation, and constructive criticism, citizens encourage transparency, discourage corruption, and contribute to more effective and responsive governance.

## **Promotes Social Cohesion and National Unity**

Civic participation plays an important role in promoting social cohesion and national unity by encouraging cooperation among people from diverse cultural, ethnic, and social backgrounds. Through involvement in community projects, public welfare initiatives, and civic activities, citizens develop mutual understanding, respect, and a sense of collective responsibility. Such engagement helps reduce social divisions and strengthens social harmony. Consistent with the constitutional principles of equality and non-discrimination under **Article 25**, civic participation fosters inclusivity and contributes to national integration, peace, and stability.

## **Contributes to National Development**

Civic participation contributes significantly to national development by involving citizens in social, economic, and community initiatives that support public welfare and progress. Through community service, public consultation, and participation in development programs, citizens assist in improving education, healthcare, infrastructure, and other public services. Such involvement complements the state's efforts to achieve social and economic well-being, as emphasized in **Articles 37 and 38** of the Constitution. By fostering cooperation between citizens and public institutions, civic engagement strengthens governance and promotes sustainable national development.

## **Engagement in Community Welfare Activities**

Engagement in community welfare activities reflects the social responsibility of citizens toward society. Responsible citizens contribute to education, healthcare, environmental protection, poverty reduction, and social harmony through voluntary service and community initiatives. Such activities may include supporting charitable organizations, participating in local development projects, assisting vulnerable groups, and promoting public awareness on social issues. These efforts strengthen social bonds, encourage collective responsibility, and complement the state's role in achieving social and economic development. The significance of public welfare is highlighted in the **Principles of Policy**, particularly **Articles 37 and 38** of the Constitution, which emphasize social justice and the well-being of citizens.

## **Contemporary Relevance of Citizens' Responsibilities in Pakistan**

The responsibilities of citizens remain highly relevant in contemporary Pakistan, where democratic governance, social cohesion, and national development depend on active and responsible citizenship. Duties such as loyalty to the state, obedience to the Constitution and law, participation in democratic processes, payment of taxes, and respect for diversity help strengthen institutions and promote political stability.

While citizens increasingly participate in elections, public debates, and community initiatives, challenges such as political polarization, misinformation, intolerance, and tax evasion highlight

the need for greater civic awareness. The responsible exercise of rights and fulfillment of civic duties are essential for upholding democratic values, national unity, and the rule of law in Pakistan.

The principles embodied in Article 5 of the Constitution of Pakistan, 1973, which emphasize loyalty to the state and obedience to the Constitution and law, remain particularly relevant in the contemporary context. Citizens play a vital role in upholding constitutional supremacy by supporting democratic processes, rejecting unconstitutional actions, promoting constitutional awareness, and holding public officials accountable through lawful means. Ultimately, the success of democracy and constitutional governance depends not only on state institutions but also on the active participation and responsible conduct of citizens. Therefore, the fulfillment of civic responsibilities remains indispensable for ensuring political stability, social harmony, democratic development, and the long-term progress and prosperity of Pakistan.

## **Conclusion**

In conclusion, the responsibilities of citizens form the foundation of a stable, democratic, and progressive state. A democratic system cannot function effectively without the active participation, awareness, and cooperation of its citizens. By fulfilling their civic duties, respecting the Constitution, obeying laws, and engaging constructively in public life, citizens contribute to strengthening national unity, ensuring good governance, and promoting social harmony. Moreover, constitutional supremacy and civic participation together create a balanced and accountable system where rights are protected and responsibilities are observed. When citizens remain loyal to the state, uphold democratic values, and actively take part in civic affairs, they help build strong institutions and a just society. Ultimately, responsible citizenship is not only a legal or moral obligation but also a vital force for national development, political stability, and long-term prosperity.

## Lecture 24

### The Principles of Policy

#### Micro Learning Outcomes (MLOs)

By the end of this lecture, students will be able to:

- Identify the constitutional provisions (Articles 29–40) relating to the Principles of Policy in the Constitution of Pakistan, 1973.
- Explain the nature, purpose, and constitutional status of the Principles of Policy.
- Examine the role of the Principles of Policy in promoting governance, social justice, and welfare in Pakistan.

#### Introduction

In the previous lecture on Responsibilities of Citizens, we examined the duties and obligations of citizens towards the State, including loyalty to the Constitution, obedience to the law, protection of national interests, and constructive participation in society. Alongside these responsibilities, the Constitution also assigns important duties to the State to ensure the welfare, development, and well-being of its citizens. In this lecture, we will study the Principles of Policy (Articles 29–40) of the Constitution of Pakistan, 1973, their nature and constitutional status, and their role in promoting Islamic values, social justice, economic welfare, democratic participation, minority rights, and good governance in Pakistan.

#### Meaning and Concept of Principles of Policy

If Fundamental Rights tell citizens what rights they possess, the Principles of Policy tell the government what goals it should pursue to establish an Islamic, democratic, and welfare-oriented society. Contained in Part II, Chapter 2 (Articles 29–40) of the Constitution of Pakistan, 1973, they provide a constitutional framework for guiding state action and governance. Unlike Fundamental Rights, they are not enforceable through courts, and citizens cannot challenge laws solely for failing to implement them. Instead, they serve as constitutional directives that encourage the State to promote social justice, economic welfare, equality, democratic participation, and Islamic values. While Fundamental Rights provide legally enforceable protections, the Principles of Policy outline

long-term objectives that the State should progressively achieve according to its available resources and capabilities. Thus, they represent the constitutional vision of Pakistan as an Islamic welfare state committed to the well-being and development of its people.

### **Nature and Constitutional significance of the Principles of Policy**

The Constitution of the Islamic Republic of Pakistan, 1973, not only establishes the structure of government and guarantees Fundamental Rights to citizens but also provides a set of guiding principles known as the Principles of Policy. Their nature can be understood through five interrelated characteristics that collectively define their constitutional significance.

#### **Directive and Advisory Nature**

The Principles of Policy are primarily directive in nature, meaning they guide the State in making laws, policies, and administrative decisions rather than creating immediate legal obligations. This directive role is clearly reflected in Articles 29–40, such as Article 31 (Islamic way of life), Article 32 (local government), Article 34 (women’s participation), and Article 38 (economic welfare), all of which set broad objectives for the State to achieve. The framers of the Constitution intended these provisions to provide a long-term vision for national development, allowing flexibility in how goals are implemented according to changing circumstances and available resources. Therefore, the Principles of Policy act as a constitutional roadmap that guides public authorities toward social justice, democracy, and Islamic values without prescribing rigid methods of enforcement.

#### **Non-Justiciable Constitutional Provisions**

The Principles of Policy are non-justiciable, meaning they cannot be enforced in courts, as stated in Article 30 of the Constitution of Pakistan, 1973. Citizens cannot challenge laws or government actions solely for not fully implementing these principles, since they mainly involve policy-making, economic planning, and administrative decisions best handled by elected representatives. However, they are still constitutionally important, as courts may use them for interpretation and understanding the broader objectives of the Constitution.

### **Positive Obligations upon the State**

Unlike Fundamental Rights, which often impose limitations on governmental power, the Principles of Policy impose positive obligations upon the State to take active measures for improving the social and economic conditions of the people. This feature is evident throughout Articles 31–40. Article 31 requires the promotion of Islamic values and institutions; Article 35 obligates the State to protect marriage, family, mothers, and children; Article 36 requires protection of minorities; Article 37 directs the State to eradicate social evils and expand educational opportunities; while Article 38 requires the provision of basic necessities and the reduction of economic inequalities. These provisions do not merely prohibit harmful actions; they require affirmative state intervention. The Constitution expects the government to actively promote welfare, justice, equality, and development. This characteristic reflects the philosophy of the modern welfare state, where governments are not limited to maintaining law and order but are also responsible for promoting social progress and public welfare. Consequently, the Principles of Policy transform the State from a passive regulator into an active agent of social and economic development.

### **Progressive and Resource-Dependent Nature**

The Principles of Policy are progressive and resource-dependent, meaning their objectives under Articles 29–40 is to be achieved gradually rather than immediately. For example, Articles 37 and 38 require the State to promote education, reduce illiteracy, and ensure basic necessities like food, housing, healthcare, and social welfare, all of which depend on available financial and institutional resources. Since Pakistan is a developing country, the Constitution recognizes that these goals must be implemented step by step according to national capacity and priorities. Therefore, the Principles of Policy serve as a long-term development framework guiding continuous social, economic, and political progress rather than immediate outcomes.

### **Reflection of Pakistan's Islamic and Welfare-State Ideology**

The Principles of Policy reflect Pakistan's constitutional identity as both an **Islamic and welfare state**. Article 31 promotes the Islamic way of life through the teachings of the Qur'an and Sunnah, Islamic education, Arabic learning, and institutions such as Zakat and Auqaf, while Article 38(f) emphasizes the elimination of Riba. At the same time, Articles 34–38 focus on welfare objectives, including women's participation, family protection, minority rights, education, healthcare, labour welfare, social justice, and economic equality. Together, these provisions integrate Islamic values

with welfare-state principles to form a comprehensive constitutional vision for governance. To better understand this vision, this lecture examines Articles 29–40 in detail, exploring their nature, constitutional status, and significance in promoting social justice, economic welfare, democratic participation, minority rights, women’s empowerment, and international peace, while highlighting how they guide governance and public policy in Pakistan toward achieving long-term national objectives.

## **Key Constitutional Provisions of the Principles of Policy**

### **Foundation of the Principles of Policy (Article 29)**

Article 29 forms the constitutional foundation of the Principles of Policy by defining their scope, responsibility, and implementation mechanism. Clause (1) states that all state organs, authorities, and persons performing public functions must act in accordance with these principles as far as their responsibilities allow. Clause (2) adds that their implementation depends on the availability of resources, meaning the State cannot be compelled by courts if financial or administrative capacity is lacking. Clause (3) requires the President and Provincial Governors to present annual reports to Parliament and Provincial Assemblies on the implementation of these principles, ensuring political accountability and periodic review of their progress.

Article 29 tells us three things:

1.      Universality: Every government body must consider these Principles.
2.      Flexibility: Implementation depends on what the country can afford.
3.      Accountability: The government must report progress annually to the legislature.

### **Responsibility and Non-Justiciable Nature of the Principles of Policy (Article 30)**

Article 30 establishes the implementation mechanism and constitutional status of the Principles of Policy. It provides that the responsibility for determining whether state actions comply with these principles’ rests with the relevant organs and authorities of the State. The article further states that



no law or government action can be challenged in a court of law merely because it is inconsistent with the Principles of Policy, nor can legal proceedings be initiated against the State or its officials for failing to implement them. As a result, the Principles of Policy are considered directory rather than mandatory in nature. They serve as constitutional guidelines for governance and public policymaking, creating moral and political obligations for the State rather than legally enforceable duties. This distinguishes them from Fundamental Rights (Articles 8–28), which are justiciable and can be enforced through the courts.

### **Islamic Way of Life (Article 31)**

Article 31 reflects the Islamic foundation of the Constitution and directs the State to create conditions that enable Muslims to live their lives in accordance with the teachings of the Holy Qur'an and Sunnah. It requires the State to promote understanding of Islamic principles and values at both the individual and collective levels. To achieve this objective, the Constitution emphasizes the teaching of the Holy Qur'an and Islamiyat, encourages the learning of Arabic, promotes unity among Muslims, and calls for the proper organization of Islamic institutions such as Zakat, Ushr, Auqaf, and Mosques. The influence of Article 31 can be seen in various state policies and initiatives, including the inclusion of Islamiyat as a compulsory subject in educational institutions, the administration of Zakat and Ushr systems through relevant government bodies, the regulation of religious endowments by Auqaf departments, and the promotion of Arabic language education. Through these measures, Article 31 seeks to strengthen Pakistan's Islamic identity and ensure that public policies reflect the moral and social values of Islam.

### **Promotion of Local Government Institutions (Article 32)**

Article 32 emphasizes the importance of local government institutions as a means of promoting democratic participation at the grassroots level. It directs the State to encourage local governments composed of elected representatives and to ensure special representation for peasants, workers, and women, thereby giving marginalized groups a voice in local decision-making. The objective of this provision is to bring governance closer to the people, improve public participation, and strengthen democratic accountability. Over the years, Pakistan has introduced various local government systems, including the Basic Democracies System, Local Government Ordinances, and provincial local government laws following the 18th Constitutional Amendment. Despite these efforts, the effectiveness of local governments has often been affected by political and

administrative challenges, highlighting the continuing gap between constitutional aspirations and practical implementation. Through Article 32, the Constitution recognizes local government as a vital institution for democratic governance and community development.

### **Discouraging Parochial and Similar Prejudices (Article 33)**

Article 33 directs the State to discourage parochial, racial, tribal, sectarian, and provincial prejudices among citizens to promote national unity and social cohesion. As Pakistan is a diverse country with multiple ethnic, linguistic, tribal, and religious communities, this provision seeks to prevent divisions that may undermine national integration and stability. The article emphasizes the importance of fostering a shared national identity above ethnic, tribal, sectarian, or provincial loyalties and encourages equal treatment of all citizens regardless of their background. Despite this constitutional commitment, Pakistan has experienced challenges such as ethnic tensions, sectarian conflicts, and regional disparities, which have occasionally affected social harmony. These challenges demonstrate that achieving the objectives of Article 33 requires not only constitutional provisions but also effective governance, inclusive policies, education, and sustained efforts to promote tolerance, mutual respect, and national solidarity.

### **Full Participation of Women in National Life (Article 34)**

Article 34 states that steps shall be taken to ensure the full participation of women in all spheres of national life. This provision reflects the State's commitment to gender inclusion and equal opportunities. Pakistan has made progress through reserved seats for women in legislatures, greater representation in the judiciary, civil service, education sector, law enforcement agencies, and the armed forces, as well as laws protecting women from harassment and violence. However, challenges such as low female literacy rates, cultural barriers, gender-based violence, and unequal access to opportunities continue to limit women's participation, particularly in rural areas. Therefore, the effective realization of Article 34 requires not only constitutional guarantees but also practical measures that promote women's empowerment and meaningful participation in national development.

### **Protection of Family, Mother, and Child (Article 35)**

Article 35 of the Constitution of Pakistan, 1973 states that the State shall protect marriage, the family, the mother, and the child. It recognizes the family as the basic unit of society and places responsibility on the State to strengthen and safeguard it through proper legal and social measures. This includes ensuring a stable legal framework for marriage and divorce, promoting family

welfare, and supporting healthy family structures. The article also provides special protection for mothers through maternity benefits, healthcare, and workplace safeguards, while also ensuring children's rights through education, protection from child labour, and prevention of abuse and exploitation. In practice, this constitutional mandate is reflected in laws such as the Child Marriage Restraint Act, the Maternity Benefits Ordinance, and various child protection laws aimed at ensuring the welfare of families, mothers, and children.

### **Protection of Minorities (Article 36)**

Article 36 of the Constitution of Pakistan, 1973 provides that *"The State shall safeguard the legitimate rights and interests of minorities, including their due representation in the Federal and Provincial services."* This provision reflects the Constitution's commitment to equality, religious freedom, and the protection of minorities in Pakistan. Article 36 recognizes religious minorities such as Christians, Hindus, Sikhs, Parsis, Kalash, and others as equal citizens who are entitled to safeguard their religious, cultural, educational, and social rights. It also ensures their representation in public services and state institutions to promote their participation in national life. The aim is to create an inclusive society where all citizens enjoy equal rights and opportunities under the law.

### **Promotion of Social Justice and Eradication of Social Evils (Article 37)**

Article 37 is a comprehensive constitutional directive aimed at promoting social justice, education, welfare, and moral development in Pakistan. It requires the State to protect the educational and economic interests of backward classes and underdeveloped areas, eliminate illiteracy, and provide free and compulsory education. The article also emphasizes the expansion of technical, professional, and higher education based on merit, the provision of inexpensive and speedy justice, and the establishment of humane working conditions, including maternity benefits and protection of children from unsuitable employment. Furthermore, it encourages balanced regional development, equal participation in national activities, and the decentralization of administration for efficient governance. Article 37 also directs the State to discourage social evils such as prostitution, gambling, drug abuse, obscenity, and the consumption of alcohol except for legally permitted purposes. Overall, this article reflects the Constitution's commitment to creating an educated, just, welfare-oriented, and morally responsible society.

### **Promotion of Social and Economic Well-Being of the People (Article 38)**

Article 38 embodies the welfare-state philosophy of the Constitution by directing the State to promote economic justice, reduce inequality, and improve the quality of life of all citizens. It requires the State to raise living standards, prevent the concentration of wealth in a few hands, and ensure fair relations between employers and employees as well as landlords and tenants. The article further emphasizes the provision of employment opportunities, social security, and necessities such as food, clothing, housing, education, and healthcare for those unable to earn a livelihood. It also seeks to reduce disparities in income and earnings, eliminate **Riba (interest)** from the economic system, and ensure fair provincial representation in federal services and public institutions. Reflecting both Islamic economic principles and welfare-state ideals, Article 38 aims to establish a more equitable and socially responsible economic order. However, persistent poverty, income disparities, and unequal distribution of resources indicate that achieving these constitutional objectives remains a significant challenge for Pakistan.

### **Participation of People in Armed Forces (Article 39)**

Article 39 states that "The State shall enable people from all parts of Pakistan to participate in the Armed Forces of Pakistan." This provision aims to ensure that the Armed Forces reflect the country's geographical, ethnic, and cultural diversity. It guarantees equal opportunities for citizens from all provinces, regions, and backgrounds to serve in the military, thereby promoting inclusiveness and national representation. By preventing the concentration of military participation within any single region or ethnic group, Article 39 strengthens national integration, unity, and a shared sense of ownership in one of the country's most important institutions. It also reinforces the principle that the Armed Forces are a national institution representing all segments of Pakistani society.

### **Strengthening Bonds with the Muslim World (Article 40)**

Article 40 of the Constitution of Pakistan, 1973 outlines the fundamental principles of the country's foreign policy and directs the State to preserve and strengthen fraternal relations among Muslim countries based on Islamic unity, support the common interests of the peoples of Asia, Africa, and Latin America, promote international peace and security, foster goodwill and friendly relations among all nations, and encourage the peaceful settlement of international disputes. This provision reflects Pakistan's commitment to international cooperation, diplomacy, and peaceful coexistence. In practice, Article 40 has influenced Pakistan's active membership in organizations such as the

Organization of Islamic Cooperation (OIC), its consistent support for the Palestinian cause and other issues affecting Muslim communities, its engagement with developing countries of the Global South, and its advocacy for resolving international conflicts, including the Kashmir dispute, through dialogue and peaceful means. Thus, Article 40 provides the constitutional foundation for Pakistan's efforts to promote regional stability, international cooperation, and global peace.

## **Evaluating the Effectiveness of the Principles of Policy**

Despite their significance, the Principles of Policy face several limitations and implementation challenges. The most important weakness is their non-justiciable nature, which means that citizens cannot seek judicial enforcement if the State fails to implement them, making their realization largely dependent on the political will of successive governments. In practice, implementation has often been inconsistent, as governments may prioritize other concerns or lack the commitment required to achieve these constitutional objectives. Although Article 29(3) requires regular reporting on the implementation of the Principles of Policy, this constitutional obligation has not always been fulfilled effectively, reducing accountability. Moreover, many of the goals envisioned under Articles 37 and 38 such as universal education, social security, healthcare, poverty reduction, and the provision of necessities require substantial financial and administrative resources. Economic constraints, budgetary limitations, and competing national priorities have therefore slowed progress toward the full realization of these constitutional aspirations.

## **Conclusion**

The Principles of Policy (Articles 29–40) are the soul of Pakistan's constitutional vision. They transform Pakistan from merely a political entity into an Islamic welfare state committed to social justice, economic equity, and moral uplift. While they are not enforceable in courts, they represent the moral and political commitments of the State to its people. For a country like Pakistan facing challenges of poverty, inequality, illiteracy, and ethnic diversity these Principles provide a roadmap for progress. However, they remain aspirational until citizens, civil society, and political leadership collectively work to transform them into reality. As students of political science, law, or public administration, your role is to critically analyze, advocate for, and contribute to the realization of these constitutional ideals. Understanding them is the first step toward building a more just and equitable Pakistan.

## Lecture 25

### Contemporary Human Rights Issues in Pakistan

#### Micro Learning Outcomes (MLOs)

By the end of this lecture, students will be able to:

- Identify the major contemporary human rights issues in Pakistan.
- Explain the constitutional and institutional mechanisms for protecting human rights.
- Analyse the role of constitutional institutions and judicial interventions in promoting and protecting human rights.

#### Introduction

In the previous lecture, we examined the **Principles of Policy** contained in the Constitution of Pakistan. These principles guide the State in promoting social justice, equality, welfare, and the protection of citizens' rights. Although they are not directly enforceable by the courts, they provide important constitutional guidelines for policymaking and governance.

Building upon that discussion, this lecture examines the major contemporary human rights issues in Pakistan, including minority rights, women's rights, child rights, labour rights, freedom of expression, digital privacy, and environmental justice. It also explains the constitutional safeguards, institutional mechanisms, and judicial role in protecting these rights. Finally, the lecture highlights selected case studies to demonstrate how constitutional protections are implemented in practice.

#### Contemporary Human Rights Issues in Pakistan

Pakistan has made considerable progress in strengthening its constitutional framework for human rights. However, the implementation of these rights continues to face numerous challenges. Rapid population growth, economic inequality, social discrimination, technological changes, and security concerns have created new human rights issues that require comprehensive policy responses. Some of the most important contemporary human rights issues are discussed below.

## **Minority Rights**

Pakistan is a multicultural and multi-religious country where Muslims constitute the majority, while Hindus, Christians, Sikhs, Parsis, Bahá'ís, Kalash, and other religious communities form important minority groups. The Constitution guarantees religious freedom and equal citizenship to all citizens regardless of their faith.

Despite these constitutional guarantees, minority communities continue to face several challenges.

### **Religious Discrimination**

Some minority communities experience discrimination in education, employment, housing, and public services. Social prejudice and misconceptions sometimes limit equal opportunities and affect their full participation in national life.

### **Political Representation**

The Constitution provides reserved seats for minorities in Parliament and Provincial Assemblies. Nevertheless, minority representatives often have limited influence over major policy decisions because of their relatively small numerical strength in legislative institutions.

### **Security Concerns**

At different times, places of worship and members of minority communities have been targeted by extremist violence. Protecting all citizens regardless of religion remains one of the State's primary constitutional responsibilities.

### **Social Inclusion**

Building an inclusive society requires promoting tolerance, interfaith harmony, and equal opportunities for every citizen. Educational institutions, media, civil society, and religious leaders all have important roles in reducing prejudice and encouraging peaceful coexistence.

## **Women's Rights**

Women's rights have received increasing attention in Pakistan during the past two decades. Legal reforms, educational opportunities, and greater political participation have improved the status of women in many sectors. However, several challenges still remain.

### **Gender-Based Violence**

Violence against women continues to be one of the most serious human rights concerns. Domestic violence, workplace harassment, forced marriages, honor-related crimes, and sexual violence negatively affect women's physical and psychological well-being. Although laws have been enacted to address these crimes, effective implementation remains a continuing challenge.

### **Educational Barriers**

Female literacy has improved considerably, yet significant disparities continue to exist between urban and rural areas. Poverty, inadequate educational facilities, cultural practices, and early marriages often prevent girls from completing higher education.

### **Economic Inequality**

Many women continue to experience unequal employment opportunities, wage disparities, limited access to financial resources, and underrepresentation in leadership positions. Increasing women's economic participation remains essential for sustainable national development.

### **Healthcare Challenges**

Access to quality healthcare remains unequal, particularly in rural and remote areas. Maternal healthcare, reproductive health services, nutrition, and medical facilities require continuous improvement to ensure better health outcomes for women.

### **Child Rights**

Children constitute one of the most vulnerable segments of society. Protecting their rights is essential for the country's future social and economic development.

### **Child Labour**

Despite legal restrictions, many children continue to work in agriculture, domestic service, workshops, factories, and informal sectors. Child labour often deprives children of education and healthy development.

### **Access to Education**

Although Pakistan has expanded educational opportunities, millions of children remain out of school due to poverty, inadequate infrastructure, geographical barriers, and socioeconomic inequalities. Universal access to quality education remains an important national objective.

### **Child Abuse and Exploitation**

Cases of physical abuse, neglect, trafficking, child begging, and online exploitation continue to raise serious human rights concerns. Strengthening child protection mechanisms remains an important responsibility of both government institutions and society.

### **Early and Forced Marriages**

In some regions, early marriages continue to affect children's education, health, and overall development. Raising awareness and ensuring effective implementation of child protection laws remain essential for safeguarding children's rights.



## **Labour Rights**

Labour rights are closely linked with social justice and economic development. Every worker has the right to fair wages, safe working conditions, reasonable working hours, and protection from exploitation. However, many workers in Pakistan continue to face significant challenges.

A large proportion of the workforce is employed in the informal sector, where workers often lack written contracts, social security, healthcare benefits, and legal protection. Bonded labour continues to exist in certain sectors despite legal prohibitions. Similarly, occupational safety standards require further improvement in many industries to reduce workplace accidents and protect workers' health. Women's participation in the labour force also remains comparatively low due to cultural, educational, and economic barriers. Improving labour rights contributes not only to economic growth but also to social stability, poverty reduction, and sustainable development.

## **Freedom of Expression**

Freedom of expression is one of the most important features of a democratic society. It enables citizens to express their opinions, criticize public policies, exchange ideas, and participate in democratic decision-making. In Pakistan, Article 19 of the Constitution guarantees freedom of speech, freedom of expression, and freedom of the press, subject to reasonable restrictions in the interests of national security, public order, morality, the glory of Islam, and the integrity of the State. The rapid growth of television channels, newspapers, online news portals, and social media has greatly expanded opportunities for public debate. Citizens can now communicate ideas more easily than ever before and actively participate in discussions on national issues.

Despite these constitutional guarantees, freedom of expression continues to face several challenges. Journalists sometimes encounter security threats, legal pressures, and censorship while performing their professional duties. The increasing use of digital media has also created concerns regarding misinformation, fake news, hate speech, and online harassment. Policymakers therefore face the difficult task of balancing freedom of expression with responsible communication, national security, and public order. A free, independent, and responsible media remains essential for promoting transparency, accountability, democratic governance, and public awareness.

## **Digital Rights and Privacy**

The rapid expansion of information technology has created a new category of human rights known as digital rights. As more people use smartphones, social media, online banking, and digital government services, protecting personal information has become increasingly important.

One of the major concerns is data privacy. Citizens expect their personal information to remain secure and protected from unauthorized access or misuse. Governments and private organizations therefore have a responsibility to ensure proper data protection. Another growing concern is cyber harassment, particularly against women, children, journalists, and public figures. Online bullying, identity theft, cyberstalking, and the misuse of personal information have become important human rights issues in the digital age. At the same time, governments must also address cybercrime, online fraud, extremist content, and misinformation without unnecessarily restricting legitimate freedom of expression. Achieving this balance remains one of the major policy challenges for modern democratic states.

## **Rights of Persons with Disabilities**

Human rights also include the protection and inclusion of persons with disabilities. Every individual has the right to education, employment, healthcare, mobility, and equal participation in society regardless of physical or mental disability. Although Pakistan has introduced laws and policies to improve accessibility, many persons with disabilities continue to face barriers in education, employment, transportation, and public infrastructure. Inclusive education, accessible public buildings, assistive technologies, vocational training, and employment opportunities are important measures that promote equal participation and social inclusion. Protecting the rights of persons with disabilities is not merely a legal obligation but also a reflection of a compassionate and inclusive society.

## **Environmental and Climate Justice**

Environmental protection has increasingly become a human rights issue. Clean air, safe drinking water, healthy food, and a pollution-free environment are essential for protecting human health and ensuring sustainable development. Pakistan is among the countries highly vulnerable to climate change. Floods, droughts, heatwaves, glacier melting, water scarcity, and environmental degradation directly affect people's health, livelihoods, housing, and food security. Industrial pollution, deforestation, poor waste management, and rapid urbanization further contribute to environmental challenges. Protecting the environment therefore also means protecting

fundamental human rights. Government institutions, civil society organizations, and citizens all share responsibility for promoting environmental conservation and sustainable development for future generations.

## **Constitutional and Institutional Protection of Human Rights**

Recognizing these contemporary challenges, Pakistan has established a comprehensive constitutional and institutional framework for protecting human rights. These protections are found in the Constitution, legislation, judicial institutions, and independent organizations that work together to promote equality, justice, and the rule of law.

### **Constitutional Protection of Human Rights**

The Constitution of Pakistan serves as the supreme law of the country and provides the primary legal framework for the protection of human rights. It guarantees a wide range of Fundamental Rights that are enforceable through the courts, ensuring that every citizen enjoys equal protection under the law. The Constitution safeguards the right to life, liberty, human dignity, freedom of speech and expression, freedom of religion, equality before the law, and protection against discrimination. It also emphasizes the participation of women in all spheres of national life and directs the State to protect the rights and interests of minority communities. Furthermore, it promotes religious freedom by allowing individuals to practice and profess their faith freely while protecting diversity within educational institutions. Any law that is inconsistent with these Fundamental Rights can be declared invalid, thereby reinforcing the supremacy of the Constitution. Collectively, these constitutional guarantees provide a strong legal foundation for protecting civil, political, social, and religious rights and for promoting equality, justice, and democratic governance in Pakistan.

### **Government Measures for Human Rights Protection**

The Government of Pakistan has introduced several legal and administrative measures to strengthen human rights protection. To enhance political participation, the Constitution provides reserved seats for minorities and women in Parliament and Provincial Assemblies, ensuring that underrepresented groups have a voice in the legislative process. Several important laws have also been enacted to strengthen women's rights, including the Protection Against Harassment of Women at the Workplace Act, 2010, the Protection Against Harassment of Women at the Workplace (Amendment) Act, 2022, the Anti-Rape (Investigation and Trial) Act, 2021, and federal

and provincial laws relating to domestic violence and inheritance rights. The Government has also introduced scholarship programmes, welfare initiatives, and financial assistance schemes to support disadvantaged communities, improve educational opportunities, and reduce socioeconomic inequalities.

For minority communities, various initiatives have focused on preserving places of worship, promoting interfaith harmony, recognizing minority religious festivals, and encouraging equal participation in national development. Child protection authorities, labour departments, social welfare organizations, and provincial human rights departments also contribute to implementing laws designed to protect vulnerable groups. Although significant progress has been made, effective implementation, institutional capacity, and public awareness remain essential for ensuring that these protections achieve their intended objectives.

### **Role of the Judiciary**

An independent judiciary is one of the strongest constitutional safeguards for protecting human rights. Through judicial review, constitutional petitions, and *Suo Motu* jurisdiction, the Supreme Court and High Courts ensure that government actions remain consistent with the Constitution and Fundamental Rights.

The judiciary has played an important role in protecting religious minorities, advancing women's rights, safeguarding freedom of expression, protecting workers' rights, and strengthening democratic governance. By interpreting constitutional provisions and ensuring accountability, the courts provide an effective mechanism for citizens seeking protection against violations of their constitutional rights. The judiciary therefore serves as the guardian of the Constitution and an essential institution for protecting democracy, justice, equality, and the rule of law.

### **Human Rights Commission of Pakistan (HRCP)**

One of the most prominent organizations working for human rights in Pakistan is the Human Rights Commission of Pakistan (HRCP). Established in 1986 and formally registered in 1987, HRCP is an independent, non-governmental, and non-partisan organization dedicated to promoting and protecting human rights in accordance with the Constitution of Pakistan and internationally recognized human rights standards. Although HRCP is not a government institution, it has earned national and international recognition for its contribution to human rights advocacy, research, and public awareness. Its reports are frequently used by policymakers,

researchers, journalists, and civil society organizations to assess the human rights situation in Pakistan.

### **Monitoring Human Rights Violations**

One of the primary responsibilities of HRCP is to monitor and document human rights conditions throughout the country. The organization conducts fact-finding missions, investigates complaints, and prepares annual reports covering issues such as:

- Minority rights
- Women's rights
- Child rights
- Labour rights
- Freedom of expression
- Access to justice
- Enforced disappearances
- Electoral rights
- Prison conditions

These reports help identify emerging human rights challenges and provide recommendations for legal and institutional reforms.

### **Advocacy and Public Awareness**

HRCP actively promotes human rights awareness through seminars, conferences, workshops, research publications, policy dialogues, and educational campaigns. The organization also collaborates with universities, civil society organizations, lawyers, journalists, and government institutions to encourage reforms that strengthen democracy, constitutionalism, and the rule of law. By educating citizens about their constitutional rights and responsibilities, HRCP contributes to building a more informed and democratic society.

### **Contribution to Human Rights Protection**

Over the years, HRCP has become an important bridge between citizens, state institutions, and the international human rights community. It regularly highlights issues affecting women, minorities, children, workers, journalists, and other vulnerable groups. Through constructive engagement with policymakers and public institutions, HRCP encourages accountability, transparency, and good governance. Although HRCP itself cannot enforce laws, its research, advocacy, and public

engagement have significantly influenced human rights discussions and policy reforms in Pakistan.

## **Other Human Rights Institutions**

Besides HRCP, several constitutional and statutory institutions also contribute to the protection of human rights.

### **National Commission for Human Rights (NCHR)**

The National Commission for Human Rights is an independent statutory body established to investigate human rights violations, review existing laws, advise the government on policy reforms, and promote human rights education. It also monitors Pakistan's compliance with national and international human rights obligations.

### **National Commission on the Status of Women (NCSW)**

The National Commission on the Status of Women works to promote gender equality and women's empowerment. It reviews laws affecting women, conducts research, recommends legal reforms, and advises the government on policies aimed at improving women's social, political, and economic status.

### **National Commission for Minorities**

The National Commission for Minorities promotes religious harmony and safeguards the rights of minority communities. It monitors the implementation of constitutional protections, addresses complaints, and recommends measures to improve the welfare and security of minority citizens.

### **Federal Ombudsman (Wafaqi Mohtasib)**

The Federal Ombudsman provides an accessible mechanism for citizens to seek redress against maladministration by government departments. Although its jurisdiction mainly concerns administrative matters, it contributes to protecting citizens' rights by promoting fairness, transparency, and accountability in public administration. Together, these institutions strengthen Pakistan's human rights framework by complementing the constitutional role of Parliament, the executive, and the judiciary.

## **Case Study 1**

### **Protection of Minority Rights: Supreme Court Judgment (PLD 2014 SC 699)**

One of the most significant judicial decisions concerning human rights in Pakistan was delivered by the Supreme Court in 2014 following attacks on members of the Christian community and places of worship.

Recognizing that religious freedom is guaranteed under the Constitution, the Supreme Court held that minority communities are equal citizens of Pakistan and deserve full constitutional protection.

The Court issued several important directions to the Federal and Provincial Governments.

These included:

- Establishing a National Council for Minorities to monitor minority rights.
- Creating a special police force to protect places of worship.
- Taking effective measures to prevent hate speech and religious intolerance.
- Developing educational policies that promote religious harmony and tolerance.
- Ensuring the effective implementation of constitutional safeguards relating to minority rights.

This judgment is widely regarded as a landmark decision because it reaffirmed the constitutional principles of equality, religious freedom, and protection of minorities. It also demonstrated how judicial intervention can strengthen constitutional governance and encourage public institutions to fulfill their constitutional responsibilities.

## **Case Study 2**

### **Protection Against Harassment of Women at the Workplace**

Women's participation in education, public service, business, and professional careers has increased significantly over the past two decades. However, workplace harassment remained a major challenge affecting women's dignity, security, and equal employment opportunities. To address this issue, Pakistan enacted the Protection Against Harassment of Women at the Workplace Act, 2010, which was further strengthened through the 2022 Amendment. The law requires both public and private organizations to establish inquiry committees to investigate complaints of workplace harassment. It also requires employers to adopt a Code of Conduct and provide a safe working environment for employees. Where complaints arise, affected individuals have the right to seek legal remedies through designated institutional mechanisms and the courts.

The judiciary has played an important role in interpreting and enforcing this legislation, thereby strengthening women's constitutional rights under Articles 25 and 34 of the Constitution.

This legal framework has encouraged greater awareness, institutional accountability, and protection for women in workplaces across Pakistan, although continuous efforts are still required to ensure effective implementation.

## **Conclusion**

Human rights constitute one of the fundamental pillars of constitutional democracy and good governance. The Constitution of Pakistan provides extensive guarantees for the protection of life, liberty, equality, religious freedom, freedom of expression, and social justice. At the same time, contemporary challenges—including minority rights, women's rights, child protection, labour rights, digital privacy, environmental concerns, and freedom of expression—continue to test the effectiveness of these constitutional guarantees.

Pakistan has responded to these challenges through constitutional provisions, legislative reforms, judicial oversight, and the establishment of specialized institutions such as the Human Rights Commission of Pakistan, the National Commission for Human Rights, the National Commission on the Status of Women, and the National Commission for Minorities. Landmark judicial decisions and progressive legislation further demonstrate the country's commitment to strengthening human rights protection. Ultimately, the protection of human rights is a shared responsibility. Effective governance, an independent judiciary, accountable institutions, an informed citizenry, and active civil society are all essential for ensuring that the constitutional promise of dignity, equality, justice, and freedom is realized in its true letter and spirit. Through continued legal reforms, institutional strengthening, and public awareness, Pakistan can further advance its commitment to human rights and democratic governance for present and future generations.



## **Lecture 26**

### **Constitutional Amendments: Procedure and Process**

#### **Micro Learning Outcomes (MLOs)**

By the end of this lecture, students will be able to:

- Define the concept of constitutional amendment.
- Explain the constitutional amendment process in Pakistan.
- Apply the constitutional amendment procedure to constitutional cases in Pakistan.

#### **Introduction**

In the previous lecture, we discussed the contemporary human rights issues in Pakistan, with particular focus on minority rights, women's rights, freedom of expression, and the role of courts and institutional mechanisms in protecting these rights. Building on that discussion, we explored the evolving human rights landscape in Pakistan and examined the challenges and measures aimed at strengthening the protection and promotion of fundamental rights.

Pakistan is a country with a written constitution. A written constitution tells us the rules for running the government, the rights of people, and the duties of rulers. But times change. Society changes. New problems come. So, there must be a way to update the constitution. This process of updating or changing the constitution is called constitutional amendment.

This lecture will explain what constitutional amendments are, how they are done in Pakistan, what role the Parliament plays, what the President does, and what limits exist on these amendments.

#### **Definition and Concept of Amendment**

The word 'amendment' comes from the Latin word 'emendare', which means 'to correct' or 'to improve'. In simple words, a constitutional amendment means making a change, addition, or removal in the Constitution through a legal process.

Every constitution needs to be changed from time to time. If a constitution cannot be changed, it becomes old and useless. But if it can be changed too easily, it loses its importance. So, every country finds a balance. Pakistan has also found this balance in its 1973 Constitution.

Scholars have explained amendments in different ways. G.W. Choudhury, a very important Pakistani scholar, wrote that constitutional amendments are necessary for the survival of a political system. He said:

"A constitution that cannot be amended is a constitution that cannot survive" (Choudhury 1959, p. 14).

This means that if a constitution is too rigid, it will break under pressure. If it is too flexible, it has no value. Pakistan's constitution tries to be in the middle.

### **Rigid and Flexible Constitutions**

There are two basic types of constitutions based on how easy or hard it is to change them:

- **Rigid Constitutions:** These are hard to change. They require a special process and often a large majority in Parliament. The 1973 Constitution of Pakistan is mostly rigid. You cannot change it by a simple majority vote.
- **Flexible Constitutions:** These can be changed like ordinary laws. The British constitution is an example. It can be changed by a simple Act of Parliament.

Pakistan has a rigid constitution, which means it is difficult to amend. This is done on purpose. It protects the basic rights of people and the structure of government from being changed easily for political reasons.

From a scholarly perspective, the purpose of having a rigid amending formula is to ensure that the fundamental law of the land is not changed carelessly. He notes that the constitution-makers of 1973 deliberately made the amendment procedure difficult to protect the document from temporary political majorities (Khan 2016, p. 312).

Lawrence Ziring, the American scholar who studied Pakistan's politics, also notes that Pakistan's constitutional history has been marked by frequent changes. He writes that between 1947 and 1999, the constitution was amended many times, and these amendments often reflected the political interests of those in power rather than the needs of the people (Ziring 1997, p. 5).

## **Procedure for Amendment (Article 239)**

The main law for amending Pakistan's 1973 Constitution is written in Article 239. This article tells us exactly how an amendment can be made. Let us look at it step by step.

Article 239 has several sub-clauses. Together, they tell us how to change different parts of the constitution.

### **Introduction and Approval of Amendment Bills**

First, Article 239(1) says that a bill to amend the constitution can be introduced in either house of Parliament – the National Assembly or the Senate. This is different from an ordinary bill, which often starts only in the National Assembly. Second, Article 239(2) says that if the bill is about changing the Federal Legislative List (the list of subjects on which the federal government can make laws) or changing the provisions related to the provinces, then it must also be passed by the provincial assemblies. Specifically, it needs to be passed by not less than half of the total provincial assemblies. This means that at least two out of four provincial assemblies must agree. This is an important protection for the provinces. It means the federal government cannot take away the rights of provinces without their agreement. Third, Article 239(3) says that if the bill does not involve provincial matters, it only needs to be passed by Parliament. No provincial assembly approval is needed.

### **Requirement of Two-Thirds Majority**

Fourth, Article 239(4) tells us about the majority needed. A constitutional amendment bill must be passed by a two-thirds majority of the total membership of each house of Parliament. This means it is not enough to have a simple majority (more than half). You need two-thirds of all members – not just those present and voting, but the total membership. This is a very high bar. For example, the National Assembly has 336 seats. For a constitutional amendment, you need at least 224 votes (which is two-thirds of 336). Even if many members are absent, you still need 224 votes. This makes amendments difficult unless there is very wide support. Similarly, the Senate has 100 seats. You need at least 67 votes in the Senate. G.W. Choudhury, in his *Constitutional Development in Pakistan*, explained that the two-thirds majority requirement was borrowed from the experience of

many democratic countries. He noted that this requirement ensures that only changes with wide national support can pass (Choudhury 1969, p. 88).

## **Role of Parliament**

Parliament is the most important institution in the amendment process. In Pakistan, Parliament has two houses:

**The National Assembly (Lower House):** This is the directly elected house. It represents the people of Pakistan directly. Members of the National Assembly (MNAs) are elected by voters from their constituencies.

**The Senate (Upper House):** This is the upper house. It represents the federating units – the four provinces, the Islamabad Capital Territory, and the tribal areas. Members of the Senate (Senators) are elected by provincial assemblies.

For a constitutional amendment, both houses must agree. The bill must pass with a two-thirds majority in both houses. This is called a bicameral requirement.

## **Process of Amendment**

The process starts when a bill is introduced. Any member of Parliament can introduce a constitutional amendment bill. The bill is then discussed and debated. Members of Parliament speak for or against it. Changes are suggested. This is called the committee stage and the debate stage. After debate, a vote is taken. If the bill gets a two-thirds majority in the house where it was introduced, it goes to the other house. The other house also debates it and votes. If both houses pass it with a two-thirds majority, it goes to the President.

If the two houses disagree, a joint session can be held. In a joint session, members of both houses meet together and vote. The bill needs a two-thirds majority of total membership in this joint session. The Parliament's central role in amendments reflects the principle of parliamentary sovereignty. In Pakistan's constitutional system, Parliament is the supreme legislative body, and this supremacy is expressed most clearly in the amendment process (Khan 2016, p. 318).

However, this parliamentary role has not always been clean. In Pakistan's history, many constitutional amendments were passed under pressure or with a majority that was not genuinely free. It is clear from Zulfikar Ali Bhutto's government and during military-controlled governments, where the Parliament sometimes passed amendments under political coercion or manipulation (Ziring 1997, p. 323).

Ahmad Saeed, in his book *Trek to Pakistan*, discusses how political culture affects Parliament's role in amendments. He argues that in Pakistan, the political parties and their leadership often control how members vote, and individual members rarely vote against their party (Saeed 2003, p. 78). This is called party discipline or 'whipping'. It means that in practice, an amendment depends on whether the ruling party or coalition has a two-thirds majority. If it does, it can pass almost any amendment it wants, unless the courts stop it.

### **Presidential Assent for Amendment**

After Parliament passes a constitutional amendment bill, it goes to the President of Pakistan. This step is called Presidential Assent. The word 'assent' means agreement or approval. Under Article 239(5), when a bill has been passed by both houses with the required majority (and by provincial assemblies if needed), the President must give his assent. The President signs the bill, and it becomes part of the constitution.

### **Can the President Refuse Assent?**

An important question is: Can the President refuse to sign a constitutional amendment bill?

The answer is: No, not really. Under the 1973 Constitution, especially after the Eighteenth Amendment, Pakistan has a parliamentary system. In a parliamentary system, the President is a ceremonial (symbolic) head of state. Real power lies with the Prime Minister and the Cabinet. However, before the Eighteenth Amendment, the President had more power. Under the Eighth Amendment (1985), the President had many executive powers. He could even dismiss Parliament. In that era, the President's assent was more meaningful. After the Eighteenth Amendment (2010), the President's role became mainly ceremonial. He is expected to give assent once Parliament has passed a bill according to the proper procedure.

In the parliamentary systems, the role of the head of state in the legislative process is largely formal. In case of Pakistan's original 1973 Constitution, the President was supposed to be a ceremonial figure, but this changed over time as the President gained real powers through amendments (Choudhury 1969, p. 102). As for the Presidential Assent required for amendment in Pakistan's political history is concerned, in practice the Pakistani Presidents have sometimes delayed giving assent for political reasons, although legally they are required to give it. It should be noted that the constitution of Pakistan does not give the President the power to refuse assent on a constitutional amendment (Hussain 2006, p. 152).

There is a time limit as well. If the President does not give assent within a certain number of days, the bill is deemed (considered) to have received assent. This means the President cannot simply sit on the bill and stop it from becoming law. Once assent is given, the amendment becomes part of the constitution. It is published in the official gazette (the government's official publication). From that date, the new provision is the law of the land.

It is important to understand that Presidential Assent in Pakistan is not like the Presidential Veto in the United States. In the U.S., the President can refuse to sign a bill, and Congress must then pass it with a two-thirds majority to override the veto. In Pakistan, there is no such veto power for constitutional amendments. Parliament's decision is final.

## **Limitations on Constitutional Amendment in Pakistan**

Although Parliament has the authority to amend the Constitution of Pakistan, this power is not absolute. The Constitution contains several safeguards to ensure that amendments are made only after careful deliberation and broad political consensus. These limitations protect the democratic system, the federal structure, and the constitutional identity of the state while preventing arbitrary or unilateral changes.

**Special Parliamentary Procedure:** The Constitution requires a rigorous amendment procedure under Articles 238 and 239. A constitutional amendment cannot be passed by a simple majority; instead, it must secure the support of at least two-thirds of the total membership of both the National Assembly and the Senate. This special majority requirement ensures that amendments

reflect the collective will of a broad spectrum of elected representatives rather than the interests of a temporary political majority. By making constitutional amendments more difficult than ordinary legislation, the Constitution promotes stability and prevents frequent or politically motivated changes to the supreme law of the country.

**Protection of the Federal Structure:** Pakistan follows a federal system in which powers are divided between the federal government and the provinces. The Constitution provides additional safeguards for this arrangement. If a proposed constitutional amendment affects the powers, boundaries, or representation of a province, it must also be approved by the concerned Provincial Assembly with a two-thirds majority. This requirement protects provincial autonomy and ensures that the federal government cannot unilaterally alter the constitutional balance between the federation and the provinces. It also strengthens cooperative federalism by requiring the participation and consent of provincial governments in matters that directly affect their constitutional rights and authority.

**Islamic Character of the Constitution:** The Constitution of Pakistan recognizes Islam as a fundamental feature of the state. Article 2-A incorporates the Objectives Resolution into the Constitution, affirming that sovereignty belongs to Allah Almighty and that Muslims shall be enabled to live according to the teachings of Islam. Although the Constitution does not expressly prohibit amendments relating to these provisions, many constitutional scholars argue that Parliament cannot fundamentally alter or remove the Islamic character of the Constitution. Such amendments would face significant constitutional, political, and social challenges because the Islamic identity of the state is regarded as one of the defining features of Pakistan's constitutional framework.

**Judicial and Constitutional Safeguards:** The judiciary also plays an important role in protecting the Constitution. Although Pakistan has not fully adopted the Basic Structure Doctrine, the Supreme Court has, in several cases, discussed whether Parliament's power to amend the Constitution is subject to constitutional limits. While the Court has generally been cautious about invalidating constitutional amendments, it has indicated that Parliament's amendment power may not be entirely unrestricted. Furthermore, every constitutional amendment must strictly comply

with the procedures prescribed in Articles 238 and 239. Amendments passed without following these constitutional requirements may be challenged before the courts. These judicial and procedural safeguards help ensure that constitutional amendments remain consistent with the rule of law and the principles of constitutional governance.

## **Important Constitutional Amendments in the 1973 Constitution of Pakistan**

The 1973 Constitution has been amended 27 times so far. Each amendment went through this process. Some important amendments include:

**The Eighth Amendment (1985):** This was passed during General Zia-ul-Haq's government. It added Article 58(2)(b) to the constitution, which gave the President the power to dismiss the National Assembly. This amendment changed the balance of power between the President and the Prime Minister significantly.

**The Seventeenth Amendment (2003):** This was passed during General Pervez Musharraf's government. It again gave powers to the President and validated Musharraf's actions.

**The Eighteenth Amendment (2010):** This is considered one of the most important amendments. It removed the Eighth Amendment and took away the President's power to dismiss Parliament. It also devolved many powers from the federal government to the provinces. It is seen as a major step toward real parliamentary democracy and federalism in Pakistan. Mahboob Hussain, in *The Parliament of Pakistan*, explains that the procedure in Article 239 is very important because it makes Parliament the central institution for constitutional change. He says that without Parliament's approval, no amendment is valid (Hussain 2006, p. 145).

## **Conclusion**

Constitutional amendments are very important. They allow the constitution to adapt to changing times. In Pakistan, the procedure for amendment is written in Article 239 of the 1973 Constitution. The process requires a two-thirds majority in both houses of Parliament. For changes affecting provinces, provincial assembly approval is also needed. After Parliament passes a bill, the



President gives his assent, and the change becomes part of the constitution. Parliament plays the central role in amendments. It is the elected representative body that decides whether a change is needed. The President's role is mainly formal – he cannot veto a constitutional amendment.

There are also important limits on the amendment power. The Basic Structure Doctrine, though not fully accepted in Pakistan, suggests that some parts of the constitution cannot be changed even by a two-thirds majority. These include the democratic nature of the government, judicial independence, fundamental rights, and the federal structure.

Pakistan's constitutional history shows that amendments have sometimes been used for good purposes (like the Eighteenth Amendment) and sometimes for political purposes that harmed democracy (like the Eighth Amendment). Understanding the amendment procedure helps us evaluate whether constitutional changes are being made for the right reasons and in the right way.

## Lecture 27

# Executive Power and Constitutional Engineering (8th, 13th and 17th Amendments)

### Micro Learning Outcomes (MLOs)

By the end of this lecture, students will be able to:

- Define constitutional engineering and identify the 8th, 13th, and 17th Amendments.
- Explain how Article 58(2)(b) changed executive power in Pakistan.
- Compare the objectives and effects of the 8th, 13th, and 17th Amendments.

### Introduction

In the previous lecture, we discussed the concept of constitutional amendments, the procedure prescribed under Article 239 of the Constitution, the role of Parliament and the President in the amendment process, and the debate regarding constitutional limitations under the basic structure doctrine. We also explored the significance and practical application of constitutional amendments in Pakistan's constitutional development.

One of the most important stories in Pakistan's constitutional history is about who holds real executive power – the President or the Prime Minister. The 1973 Constitution was clearly designed as a parliamentary system. In this system, real power is supposed to rest with the elected Prime Minister and the Cabinet, while the President plays a mostly ceremonial role. However, this fundamental balance was disturbed and then restored several times through constitutional amendments. Three amendments are especially important in this story: the Eighth Amendment (1985), the Thirteenth Amendment (1997), and the Seventeenth Amendment (2003). Each of these amendments either concentrated enormous power in the office of the President or took it away from him and returned it to Parliament. Together, they show how constitutional engineering – the deliberate use of formal legal changes to shift political power from one institution to another – has shaped Pakistan's governance for decades.

## **Executive Power and Constitutional Engineering**

### **The 1973 Constitution**

The 1973 Constitution, framed under Prime Minister Zulfikar Ali Bhutto, created a federal parliamentary republic. The President was the constitutional head of state but had no real executive authority. The Prime Minister, as head of government, controlled the Cabinet, the civil administration, and all policy-making. Parliament was supreme. This was a clean parliamentary model, similar to that of the United Kingdom and India. The constitution was designed to prevent the concentration of power in one office and to ensure that the government remained continuously accountable to the elected Parliament. The 1973 Constitution in its original form was considered one of the most democratic constitutions Pakistan had ever had (Choudhury 1969, p. 145). Without understanding this original design, it is impossible to appreciate just how dramatic and damaging the changes introduced by the Eighth and Seventeenth Amendments.

### **What is Constitutional Engineering?**

The term 'constitutional engineering' means using constitutional amendments not simply to improve governance but to deliberately redesign the political system in a way that benefits those who hold power at the time. It is the practice of writing or changing constitutional rules to achieve specific political outcomes rather than to serve the long-term interests of the nation. In Pakistan, this practice has been very common. Both military governments and elected governments have at different times used constitutional amendments to shift power in their favour, to weaken opponents, or to give legal cover to actions that would otherwise be considered unconstitutional (Khan 2016, p. 289).

In a healthy parliamentary democracy, executive power belongs to the Prime Minister, who commands the majority in the elected Parliament and is directly accountable to it. The President is a figurehead who performs ceremonial duties. But in Pakistan, this arrangement was repeatedly altered through constitutional changes. The result was decades of confusion about where real executive power actually resided. This confusion directly affected the quality of governance, the stability of governments, the relationship between civilian and military institutions, and the trust of ordinary people in their political system. Understanding these three amendments is therefore

essential for understanding why Pakistani democracy has faced so many crises and why governments have so often failed to serve the people effectively (Ziring 1997, p. 412).

## **The 8th Amendment in the 1973 Constitution**

After Zulfikar Ali Bhutto was removed from power through a military coup in July 1977, General Zia-ul-Haq took control of Pakistan. Zia ruled under martial law for several years, during which the constitution was first suspended and then restored in a heavily modified form. When Zia decided to allow a partial return to civilian politics in 1985, he faced a serious problem. He wanted the appearance of democratic governance, but he could not afford to let an elected Prime Minister actually hold real power because that would mean losing control of the country. To solve this problem, he introduced the Eighth Amendment to the 1973 Constitution (Ziring 1997, p. 453).

The political objective behind the Eighth Amendment was therefore very clear. Zia wanted to retain executive control while giving the outward appearance of a return to democracy. He needed a constitutional tool that would allow him – as President – to dismiss any elected government that became too independent or too challenging to his authority. The Eighth Amendment gave him exactly that tool. It transformed Pakistan's parliamentary system into a quasi-presidential one, in which the President held powers that no head of state in a genuine parliamentary system would ever possess (Khan 2016, p. 301).

## **The 1985 Elections and the Provisional Constitutional Order (PCO)**

Before the Eighth Amendment was passed, Zia introduced the Provisional Constitutional Order (PCO) of 1981, which fundamentally altered the existing legal framework and weakened the position of the courts. When elections were held in 1985 on a non-party basis, the newly elected Parliament – already operating under Zia's tightly controlled conditions – passed the Eighth Amendment. Critics pointed out that this Parliament had no real independence. It was elected without political parties being allowed to contest, which meant the results heavily favoured candidates loyal to the military government. The Eighth Amendment was therefore not a product of genuine parliamentary democracy but of a carefully controlled political process designed to legitimise Zia's continued dominance over Pakistan's political system (Hussain 2006, p. 134).

### **Article 58(2)(b) and Presidential Dissolution Powers**

The most controversial and consequential provision introduced by the Eighth Amendment was Article 58(2)(b). This article gave the President of Pakistan the power to dissolve the National Assembly if, in his judgment, the government of the federation could not be carried on in accordance with the provisions of the constitution and an appeal to the electorate was necessary. In simple words, the President could send home an elected Prime Minister and the entire Parliament if he personally decided that things were not going well. He did not need any court order, any Parliament resolution, or any other formal process. This was an enormous power that no elected official had any way to challenge before it was exercised (Government of Pakistan 1973, Article 58).

The phrase 'in his judgment' is the most important part of this article. It meant that the President did not need to prove anything to any court or anybody. He simply had to form his own personal opinion that the government had failed. This made the power almost impossible to challenge before it was used. It placed the entire elected government permanently at the mercy of one person – the President – who was not directly elected by the people and was not accountable to Parliament in the same way the Prime Minister was. This single provision fundamentally reversed the parliamentary character of the 1973 Constitution and turned the President into the most powerful figure in the state (Khan 2016, p. 305).

### **How Article 58(2)(b) Was Used in Practice**

Between 1988 and 1996, Article 58(2)(b) was used four times to dismiss elected governments, making it one of the most destructive provisions in Pakistan's constitutional history. President Ghulam Ishaq Khan used it in August 1990 to dismiss Benazir Bhutto's first government and again in April 1993 to dismiss Nawaz Sharif's first government. President Farooq Leghari used it in November 1996 to dismiss Benazir Bhutto's second government. Each time, the presidential order came suddenly, without warning, and new elections were called. No elected government during this period was able to complete its full five-year term (Ziring 1997, p. 491).

The practical effect of Article 58(2)(b) on Pakistan's governance was very serious. Every Prime Minister lived under the constant threat of dismissal. This made it very difficult to govern effectively or to make long-term policy decisions. Prime Ministers had to spend an enormous amount of their time and energy managing their relationship with the President and the military

establishment rather than focusing on the real needs of the people. The result was chronic political instability, weak governments that could not deliver, and a democratic process that never had the chance to mature. Pakistan's politics during this decade became a cycle of elections, dismissals, and fresh elections, with no government able to build the institutional strength needed for real democratic progress (Hussain 2006, p. 138).

## **13th Amendment and Restoration of the Parliamentary System in Pakistan**

By early 1997, the political situation in Pakistan had become deeply unsatisfactory for everyone. The electorate was tired of unstable governments and repeated dismissals. In the February 1997 elections, Nawaz Sharif won a massive two-thirds majority in the National Assembly – enough to amend the constitution without needing the support of any other party. Nawaz Sharif had himself been a direct victim of Article 58(2)(b) when President Ghulam Ishaq Khan dismissed his government in 1993. He had experienced firsthand how this single article could destroy an elected government overnight. He was therefore personally determined to remove this weapon from the President's hands as his very first priority after taking office (Khan 2016, p. 342).

The Thirteenth Amendment was passed by Parliament in April 1997, just a few weeks after Nawaz Sharif's election victory. It was passed with remarkable speed and with broad political support. Even opposition parties agreed that Article 58(2)(b) was harmful to the democratic process and that its removal was necessary. This was a significant moment of political consensus in Pakistan's history – a rare occasion when almost all political forces agreed on a constitutional change because they all understood how damaging the existing provision had been. The amendment was widely seen as a genuine restoration of what the original 1973 Constitution had intended (Hussain 2006, p. 142).

The Thirteenth Amendment deleted Article 58(2)(b) from the constitution entirely. This single deletion was enormously significant. Without this power, the President returned to his original ceremonial role under the 1973 Constitution. The Prime Minister once again became the most powerful executive figure in the country, accountable to Parliament and to the people rather than to the President. Power was returned to the elected Parliament and to the government that commanded its confidence. The amendment also removed some other provisions that the Eighth

Amendment had introduced, including certain presidential powers over key government appointments. Together, these changes represented a very significant restoration of the parliamentary character of the constitution. Constitutional engineering that had served military and presidential interests for over a decade was finally being reversed through a genuine democratic process (Khan 2016, p. 345).

## **17th Amendment and Reconfiguration of Executive Powers**

In October 1999, General Pervez Musharraf overthrew Nawaz Sharif's elected government through a military coup. Like General Zia before him, Musharraf ruled through martial law and then sought constitutional cover when he decided to allow a partial return to elected politics. Elections were held in 2002, and a new Parliament was assembled, but Musharraf had already appointed himself President in 2001. He needed Parliament's formal approval to legitimize both his own position and the many changes he had already made to the constitution through his Legal Framework Order (LFO) of 2002. The LFO had restored Article 58(2)(b), given the President extensive powers over key military and civilian appointments, increased the Senate's seats, and created a new National Security Council that gave a formal constitutional role to the military chiefs (Ziring 1997, p. 540).

The Seventeenth Amendment was passed by Parliament in December 2003. Its main purpose was to give constitutional validity to Musharraf's LFO. By incorporating the LFO's provisions into the constitution through a formal parliamentary amendment, the government could argue that all of Musharraf's changes were now properly authorized by Parliament and were therefore constitutionally legitimate. The amendment also validated Musharraf's continuation as both President and Chief of Army Staff, which was itself deeply controversial since the constitution did not allow a serving military officer to hold the civilian office of President at the same time (Hussain 2006, p. 156).

The Seventeenth Amendment restored Article 58(2)(b) and with it the President's power to dissolve the National Assembly at his personal discretion. The elected Prime Ministers under Musharraf – first Zafarullah Khan Jamali and then Shaukat Aziz – were largely subordinate figures. Real executive authority remained with Musharraf as President and as head of the military. Parliament passed the Seventeenth Amendment only after lengthy negotiations between Musharraf's political allies and the religious political alliance known as the Muttahida Majlis-e-Amal (MMA). Like the

Eighth Amendment, the Seventeenth Amendment was widely criticized as another example of constitutional engineering using formal parliamentary procedure to give civilian clothing to what was essentially continued military rule (Saeed 2003, p. 112).

## **Impacts of these Amendments on Democratic Governance in Pakistan**

Looking at the Eighth, Thirteenth, and Seventeenth Amendments together, a very clear and troubling pattern emerges. Each time a military government needed to institutionalize its power within a civilian framework, it used constitutional amendments to shift executive authority to the presidency. Each time a genuinely elected civilian government came to power with a large majority, it tried to restore parliamentary supremacy by reversing those changes. This back-and-forth cycle caused enormous damage to Pakistan's constitutional and democratic development over more than two decades. It meant that the constitution was never stable, never truly trusted, and that constitutional rules were seen by everyone – politicians, military, courts, and citizens – as tools of political competition rather than as permanent and principled national commitments (Khan 2016, p. 390).

The repeated manipulation of Article 58(2)(b) – its introduction in 1985, its removal in 1997, and its restoration in 2003 – made it very difficult for democratic institutions to grow and strengthen. When governments know they can be dismissed at any moment, they cannot plan for the long term or make difficult but necessary decisions. Ministers cannot develop and implement policies that take years to produce results. Civil servants become cautious and uncommitted because they do not know which government they will be serving next year. Foreign investors lose confidence because the political and legal environment is unpredictable. All of these harmful effects ultimately hurt the ordinary citizen most, because it is the ordinary citizen who depends on stable governance for education, health, and economic opportunity (Ziring 1997, p. 558).

The final resolution to this long cycle of constitutional engineering came with the Eighteenth Amendment in April 2010. Passed under President Asif Ali Zardari with the support of all major political parties, the Eighteenth Amendment permanently deleted Article 58(2)(b) from the constitution and restored the genuinely parliamentary character of the 1973 Constitution. It was a product of genuine political consensus and broad parliamentary support, unlike the Eighth and



Seventeenth Amendments which were both products of military pressure and controlled political processes. Since the Eighteenth Amendment was passed, no President has used dissolution powers against an elected government. Pakistan has also seen multiple peaceful democratic transitions of power, which is itself a significant achievement for a country with Pakistan's constitutional history (Hussain 2006, p. 162).

The story of these three amendments teaches important lessons. First, a constitution is only as strong as the political culture that surrounds it – even the best rules can be misused by those determined to do so. Second, constitutional engineering weakens the entire political system, not just its opponents, because it destroys public trust in the constitution as a neutral framework. Third, lasting constitutional change requires genuine consensus. The Eighteenth Amendment, built on broad political agreement, has proved far more durable than either the Eighth or the Seventeenth Amendments, both of which were imposed under pressure. Every generation must actively protect the Constitution from short-term political manipulation (Khan 2016, p. 400).

## Conclusion

The Eighth, Thirteenth, and Seventeenth Amendments represent the most dramatic episode of constitutional engineering in Pakistan's history. The Eighth Amendment (1985) transformed Pakistan from a parliamentary system into a quasi-presidential one by inserting Article 58(2)(b), which gave the President the unchecked power to dissolve Parliament and dismiss elected governments. This power was used four times between 1988 and 1996, making stable and effective democratic governance virtually impossible. The Thirteenth Amendment (1997) removed Article 58(2)(b) and restored parliamentary supremacy, giving Pakistan its best chance since 1973 of functioning as a true parliamentary democracy. However, this restoration did not last. The Seventeenth Amendment (2003) brought Article 58(2)(b) back and concentrated executive power once again in the presidency under General Musharraf. Together, these three amendments show how Pakistan's constitution was repeatedly used as an instrument of political competition rather than as a stable framework for governance. The lesson is simple: a constitution serves the people only when it is respected by all political actors, when changes are made through genuine consensus rather than military pressure, and when no individual or institution uses it to extend their own power. Pakistan's journey from the Eighth Amendment to the Eighteenth Amendment is a lesson in the true cost of constitutional engineering.

## Lecture 28

# The 18th Amendment: Parliamentary Supremacy and Federalism

### Micro Learning Outcomes (MLOs)

By the end of this lecture, students will be able to:

- Describe the background and major features of the Eighteenth Amendment.
- Explain how the Eighteenth Amendment strengthened parliamentary supremacy and federalism in Pakistan.
- Analyze the constitutional significance and implementation of the Eighteenth Amendment.

### Introduction

In the previous lecture, we discussed the evolution of executive power in Pakistan through the 8th, 13th, and 17th Constitutional Amendments. We examined the political circumstances that led to these constitutional changes, the shifting balance of authority between the President and the Prime Minister, and their long-term impact on parliamentary democracy and democratic governance in Pakistan.

Building upon that discussion, this lecture focuses on one of the most significant constitutional developments in Pakistan's political history—the Eighteenth Constitutional Amendment, 2010. The amendment is widely regarded as a milestone in Pakistan's constitutional evolution because it restored parliamentary democracy, strengthened provincial autonomy, and rebalanced the relationship between the federation and the provinces. It also reversed several constitutional changes introduced during periods of military rule and reaffirmed the democratic spirit of the 1973 Constitution.

This lecture examines the historical background of the Eighteenth Amendment, the factors that led to its adoption, and its significance for parliamentary supremacy and federalism. It also explains

how the amendment reshaped Pakistan's constitutional framework by strengthening democratic institutions and promoting cooperative federalism.

## Historical Background

The 1973 Constitution established Pakistan as a parliamentary federal democratic republic, placing executive authority in the hands of the Prime Minister and making Parliament the central institution of democratic governance. It also distributed powers between the federation and the provinces, thereby strengthening the federal structure of the state.

However, Pakistan's constitutional development was interrupted by periods of military rule, during which several amendments altered the original parliamentary framework. The Eighth Amendment (1985) significantly expanded the powers of the President by introducing Article 58(2)(b), which authorized the President to dissolve the National Assembly and dismiss elected governments under certain circumstances. This provision shifted the balance of power away from Parliament and contributed to political instability during the democratic governments of 1988–1999.

Although the Thirteenth Amendment (1997) removed this presidential power, the Seventeenth Amendment (2003) restored many of these provisions during General Pervez Musharraf's regime. As a result, the President once again exercised extensive constitutional authority, while demands for restoring parliamentary democracy and strengthening provincial autonomy continued to grow.

A major breakthrough came with the signing of the Charter of Democracy (2006) by Benazir Bhutto and Nawaz Sharif. The Charter called for the restoration of the original spirit of the 1973 Constitution, parliamentary supremacy, judicial independence, and greater provincial autonomy. These objectives gained further momentum after the Lawyers' Movement (2007–2009), which emphasized constitutional supremacy, the rule of law, and an independent judiciary.

Following the General Elections of 2008, the newly elected democratic government established the Parliamentary Committee on Constitutional Reforms (PCCR) under the chairmanship of Senator Raza Rabbani. After extensive consultations among all major political parties, the committee proposed comprehensive constitutional reforms. These recommendations were adopted by Parliament as the Constitution (Eighteenth Amendment) Act, 2010, which was passed with

broad political consensus and became one of the most significant constitutional reforms in Pakistan's history.

## **Major Factors Behind the Eighteenth Amendment**

Several political, constitutional, and institutional factors contributed to the adoption of the Eighteenth Amendment.

### **Restoration of Parliamentary Democracy**

One of the principal objectives was to restore the parliamentary system originally established under the 1973 Constitution. Political leaders believed that executive authority should remain with the elected Prime Minister and Parliament rather than the President.

### **Reversal of Military-Era Constitutional Changes**

Another major objective was to reverse constitutional changes introduced during periods of military rule, particularly those that expanded presidential authority at the expense of Parliament. The amendment sought to restore the original constitutional balance between state institutions.

### **Strengthening Provincial Autonomy**

There was widespread political consensus that provinces should exercise greater control over matters directly affecting their citizens. Greater provincial autonomy was viewed as essential for strengthening federalism, improving governance, and accommodating Pakistan's regional diversity.

### **Implementation of the Charter of Democracy**

The Charter of Democracy provided the political foundation for constitutional reform. Many of its recommendations—including parliamentary supremacy, judicial independence, constitutional continuity, and provincial autonomy—were incorporated into the Eighteenth Amendment.

## **Strengthening Democratic Institutions**

Political parties also sought to strengthen constitutional institutions such as Parliament, the judiciary, the Election Commission of Pakistan, and the Council of Common Interests. Strong institutions were considered essential for ensuring democratic stability and preventing future constitutional crises.

## **Political Consensus**

Unlike many earlier constitutional amendments, the Eighteenth Amendment was based on broad political consensus. Representatives of government and opposition parties worked together through the Parliamentary Committee on Constitutional Reforms to develop a reform package acceptable to all major stakeholders. This spirit of cooperation contributed significantly to the legitimacy and durability of the amendment.

## **Parliamentary Supremacy under the Eighteenth Amendment**

The Eighteenth Amendment marked a turning point in Pakistan's constitutional development by restoring the parliamentary character of the 1973 Constitution. It shifted the balance of power from the Presidency back to Parliament and the elected government, thereby reinforcing democratic governance. The amendment reaffirmed the principle that executive authority should remain accountable to Parliament, which represents the will of the people.

## **Restoration of the Parliamentary System**

The Constitution of 1973 originally established Pakistan as a parliamentary democracy in which the Prime Minister serves as the Chief Executive while the President acts as the constitutional Head of State. However, constitutional amendments introduced during military rule gradually altered this arrangement by expanding presidential powers.

The Eighteenth Amendment restored the original parliamentary structure by transferring executive authority back to the elected government. It reaffirmed that the Prime Minister, supported by the Cabinet, is responsible for managing the affairs of the State, while the President performs constitutional functions in accordance with the Constitution.

This restoration strengthened democratic governance by ensuring that executive authority remained with elected representatives who are directly accountable to Parliament and ultimately to the people.

### **Reduction of Presidential Powers**

One of the most significant achievements of the Eighteenth Amendment was the reduction of presidential authority. The amendment repealed **Article 58(2)(b)**, which had empowered the President to dissolve the National Assembly and dismiss elected governments. During the late 1980s and 1990s, this provision had been used several times, resulting in frequent political instability and interruptions in the democratic process. By removing this power, the amendment significantly reduced the possibility of unilateral dismissal of elected governments. The continuity of parliamentary governments became dependent on constitutional procedures rather than presidential discretion. The amendment also required the President to act on the advice of the Prime Minister or the Federal Cabinet in most executive matters. This restored the President's position as a constitutional Head of State rather than an active executive authority.

### **Restoration of the Prime Minister's Constitutional Authority**

With the reduction of presidential powers, the office of the Prime Minister regained its constitutional importance. The Prime Minister once again became the principal executive authority responsible for directing national policy, supervising the Federal Cabinet, coordinating government departments, and implementing parliamentary decisions. The Cabinet, headed by the Prime Minister, became collectively responsible to the National Assembly. This principle of collective responsibility ensures that ministers remain accountable for government decisions and can be questioned by Parliament regarding their policies and performance. As a result, executive authority became more transparent and subject to parliamentary oversight, strengthening democratic accountability.

### **Enhancing the Role of Parliament**

The Eighteenth Amendment reinforced Parliament's central position within Pakistan's constitutional framework. As the highest representative institution, Parliament became the primary forum for lawmaking, public debate, constitutional amendments, and executive accountability. Members of Parliament exercise oversight through parliamentary questions, debates, committee

meetings, and legislative scrutiny. Ministers are required to explain government policies, answer questions raised by legislators, and justify public expenditure. This strengthened Parliament's ability to monitor executive performance and ensure that government decisions remain consistent with constitutional principles and public interests.

### **Enhanced Role of Parliamentary Committees**

One of the important institutional reforms introduced by the Eighteenth Amendment was the increased role of Parliamentary Committees. Parliamentary Committees examine proposed legislation, review the performance of ministries, scrutinize government expenditure, and investigate matters of public importance. These committees provide opportunities for members from both the government and opposition to participate in policymaking through detailed discussions and bipartisan consultation. The committee system promotes transparency, improves legislative quality, and enables Parliament to perform more effective oversight of executive institutions.

### **Promoting Democratic Accountability**

A fundamental objective of parliamentary democracy is to ensure that those exercising executive authority remain accountable to elected representatives. The Eighteenth Amendment strengthened democratic accountability by restoring Parliament's supervisory role over the executive branch. Government ministers are collectively responsible to Parliament and must defend their policies before elected representatives. Parliamentary debates, committee proceedings, and legislative oversight encourage transparency and responsible decision-making. This constitutional arrangement reduces the concentration of power in a single office and promotes checks and balances among state institutions.

### **Judicial Appointments and Institutional Balance**

The Eighteenth Amendment also introduced important reforms relating to the appointment of judges to the superior judiciary. Previously, judicial appointments often became a source of constitutional controversy regarding the respective roles of the executive and judiciary. The amendment established the Judicial Commission of Pakistan, which recommends appointments to the superior courts based on professional qualifications and judicial experience. The recommendations of the Judicial Commission are reviewed by a Parliamentary Committee,

creating a constitutional mechanism that involves both judicial and parliamentary institutions. Although certain aspects of this procedure were later refined through the Nineteenth Constitutional Amendment, the Eighteenth Amendment introduced a more structured and transparent appointment process intended to strengthen judicial independence while maintaining parliamentary participation.

### **Strengthening the Election Commission of Pakistan**

Free, fair, and transparent elections are essential for parliamentary democracy. The Eighteenth Amendment strengthened the constitutional status of the Election Commission of Pakistan (ECP) by making the appointment of the Chief Election Commissioner and members more consultative and bipartisan. Instead of unilateral appointments, the process now requires consultation between the Prime Minister and the Leader of the Opposition, followed by parliamentary scrutiny. This reform aimed to enhance the independence, neutrality, and credibility of the Election Commission, thereby increasing public confidence in the electoral process.

### **Reinforcing Constitutional Institutions**

The Eighteenth Amendment also revitalized several constitutional institutions that are essential for democratic governance. The Council of Common Interests (CCI) was strengthened and required to meet regularly to resolve disputes between the federation and the provinces. This improved coordination on matters of shared national importance. The National Economic Council (NEC) was also reinforced to promote balanced economic planning and ensure provincial participation in national development strategies. By strengthening these constitutional bodies, the amendment encouraged consultation, cooperation, and consensus among different levels of government.

### **Strengthening Federalism through the Eighteenth Amendment**

One of the most important features of the Eighteenth Amendment was the enhancement of provincial autonomy. Since the adoption of the 1973 Constitution, there had been continuous debate over the distribution of powers between the federal government and the provinces. Many political parties and provincial governments believed that excessive centralization had weakened the federal system and limited the ability of provinces to address local needs effectively. The Eighteenth Amendment attempted to restore the constitutional balance by devolving administrative and legislative powers from the federation to the provinces. These reforms



strengthened the role of provincial governments and enabled them to exercise greater authority in matters directly affecting their citizens.

### **Abolition of the Concurrent List**

The most significant federal reform introduced by the Eighteenth Amendment was the abolition of the Concurrent List. Before the amendment, both Parliament and the Provincial Assemblies had the authority to legislate on subjects included in the Concurrent List. In practice, however, the federal government often exercised greater influence over these matters, reducing provincial autonomy. The Eighteenth Amendment abolished the Concurrent List and transferred most of its subjects to the provinces. As a result, Provincial Assemblies became the primary legislative authorities for these areas, allowing provincial governments to formulate policies according to their own social, economic, and administrative needs. This reform significantly strengthened Pakistan's federal system by giving provinces greater constitutional authority.

### **Devolution of Legislative and Administrative Powers**

Following the abolition of the Concurrent Legislative List, numerous responsibilities were transferred to the provinces.

Some of the major devolved subjects included:

- Education
- Health
- Culture
- Environment
- Labour
- Social welfare
- Tourism
- Population welfare
- Youth affairs
- Local government

The transfer of these functions enabled provincial governments to design policies that better reflected regional priorities and local circumstances. For example, provincial governments gained greater authority over curriculum development, healthcare planning, labour regulations, environmental protection, and cultural promotion. This decentralization was expected to improve public service delivery by bringing decision-making closer to the people.

### **Expansion of Provincial Autonomy**

The Eighteenth Amendment considerably enhanced provincial autonomy by expanding both legislative and administrative authority. Provincial governments became more responsible for planning, implementing, and monitoring development projects within their respective jurisdictions. They also acquired greater flexibility in designing policies suited to local economic, cultural, and geographical conditions. This increased autonomy encouraged provinces to assume greater responsibility for governance while reducing excessive dependence on the federal government. The amendment also reinforced the constitutional principle that Pakistan's federation should function through cooperation rather than centralization.

### **Strengthening the Council of Common Interests (CCI)**

The Council of Common Interests (CCI) occupies a central position in Pakistan's federal system because it coordinates relations between the federation and the provinces on matters of shared importance. Recognizing its significance, the Eighteenth Amendment strengthened the constitutional status of the Council. The amendment requires the Council to meet regularly and resolve disputes relating to federal-provincial relations, natural resources, electricity, water, and other matters falling within its jurisdiction. Regular meetings of the Council promote dialogue, consultation, and consensus among governments, thereby reducing intergovernmental conflicts and strengthening cooperative federalism.

### **Promoting Fiscal Federalism**

Effective federalism requires not only political authority but also adequate financial resources. The Eighteenth Amendment complemented the principles of fiscal federalism by reinforcing the importance of the National Finance Commission (NFC). The NFC Award determines the distribution of financial resources between the federal government and the provinces. Following

the Eighteenth Amendment, provinces assumed greater responsibilities in sectors such as education, health, and social welfare, making equitable financial distribution even more important. Greater provincial financial resources enabled provincial governments to undertake development projects and improve public services according to local priorities.

### **Provincial Ownership of Natural Resources**

The amendment also strengthened provincial participation in matters relating to natural resources. It recognized the importance of consultation between the federation and the provinces regarding the development and management of natural resources. This approach promotes equitable sharing of benefits and encourages cooperation in sectors such as energy, mining, and infrastructure development. By increasing provincial participation in resource management, the amendment contributed to stronger federal-provincial relations and greater trust among the federating units.

### **Challenges in Implementation**

Although the Eighteenth Amendment brought significant constitutional reforms, its implementation has also presented several challenges. One major challenge has been the administrative capacity of provincial governments. After receiving additional responsibilities, some provinces faced difficulties due to limited institutional capacity, shortage of trained personnel, and inadequate administrative infrastructure. Another challenge relates to financial resources. While provinces acquired greater responsibilities, effective service delivery requires sufficient financial capacity, efficient budgeting, and sound fiscal management. Coordination between the federation and the provinces has also remained an important issue. National policies in sectors such as education, healthcare, environmental protection, and disaster management require continuous cooperation among different levels of government. Differences in provincial policies have sometimes resulted in variations in educational standards, healthcare services, and administrative practices across the country. Maintaining national coordination while respecting provincial autonomy continues to require effective institutional mechanisms.

Finally, the successful implementation of devolved governance depends upon strengthening provincial institutions, improving administrative efficiency, promoting transparency, and ensuring accountability in public administration.

## Conclusion

The Eighteenth Constitutional Amendment, enacted in 2010, is one of the most comprehensive constitutional reforms since the adoption of the 1973 Constitution. It restored parliamentary supremacy by reducing presidential powers, strengthening the office of the Prime Minister, and reinforcing the authority of Parliament and other constitutional institutions. At the same time, it significantly strengthened Pakistan's federal structure by abolishing the Concurrent Legislative List, devolving legislative and administrative powers to the provinces, and enhancing the role of institutions such as the Council of Common Interests and the National Finance Commission.

Despite implementation challenges relating to administrative capacity, financial resources, and intergovernmental coordination, the amendment remains a milestone in Pakistan's constitutional evolution. It reflects the country's commitment to democratic governance, constitutional supremacy, and cooperative federalism. Its continued success depends upon effective implementation, institutional strengthening, and constructive cooperation between the federation and the provinces to achieve the objectives envisioned by the framers of the amendment.

## Lecture 29

# Judicial, Security, Territorial and Armed Forces Reforms (19th, 21st, 25th and 27th Amendments)

### Micro Learning Outcomes (MLOs)

By the end of this lecture, students will be able to:

- Describe the major features of the 19th, 21st, 25th, and 27th Constitutional Amendments.
- Explain the constitutional significance of these amendments in Pakistan's governance.
- Analyse the impact of these amendments on the judiciary, national security, territorial administration, and civil-military relations.

### Introduction

In the previous lecture, we discussed the 18th Constitutional Amendment as a landmark reform in Pakistan's constitutional history. We examined the political consensus behind its enactment, the restoration of parliamentary supremacy, the expansion of provincial autonomy through the abolition of the Concurrent List, and its institutional, judicial, and long-term constitutional significance.

Building upon that discussion, this lecture focuses on four important constitutional amendments that addressed specific institutional challenges faced by Pakistan after the Eighteenth Amendment. These amendments introduced reforms relating to the judiciary, national security, territorial administration, and the constitutional framework governing the armed forces. While each amendment responded to different political and constitutional circumstances, together they demonstrate the ability of the Constitution to evolve in response to changing national needs. The Nineteenth Amendment refined the judicial appointment process following concerns raised after the Eighteenth Amendment. The Twenty-First Amendment introduced temporary constitutional provisions to address the growing threat of terrorism through military courts. The Twenty-Fifth Amendment integrated the former Federally Administered Tribal Areas (FATA) into Khyber Pakhtunkhwa, extending constitutional rights and the regular judicial system to the region. More recently, the Twenty-Seventh Amendment introduced constitutional changes relating to the appointment and tenure of the Chiefs of the Armed Forces. This lecture examines the background, major provisions, and constitutional significance of these four amendments and explains how they contributed to strengthening Pakistan's constitutional and institutional framework.

## **The Nineteenth Constitutional Amendment (2011): Judicial Reforms**

### **Background**

The Eighteenth Constitutional Amendment introduced a new procedure for appointing judges to the superior judiciary through the creation of the Judicial Commission of Pakistan and a Parliamentary Committee. The purpose was to make judicial appointments more transparent and participatory by involving both judicial and parliamentary institutions. However, soon after the amendment was enacted, several constitutional petitions were filed before the Supreme Court. Some legal experts argued that certain provisions relating to the Parliamentary Committee could affect judicial independence and alter the balance between the judiciary and Parliament. While hearing these petitions, the Supreme Court did not invalidate the Eighteenth Amendment. Instead, it suggested that Parliament reconsider some procedural aspects of the judicial appointment process to ensure greater transparency and preserve judicial independence. Responding to these observations, Parliament enacted the Nineteenth Constitutional Amendment in 2011. Rather than replacing the judicial appointment system established by the Eighteenth Amendment, the amendment refined its procedures and clarified the respective roles of the Judicial Commission and the Parliamentary Committee.

### **Major Features of the Nineteenth Amendment**

#### **Strengthening the Judicial Commission**

The amendment revised the composition and working of the Judicial Commission of Pakistan to improve its effectiveness and transparency. The Commission continued to play the primary role in recommending appointments to the Supreme Court and High Courts. It comprises senior judges, legal professionals, and representatives of the executive, thereby ensuring that appointments are based on professional competence, integrity, and judicial experience. By retaining the Judicial Commission as the principal recommending body, the amendment reinforced the importance of judicial expertise in selecting judges.

#### **Refining the Role of the Parliamentary Committee**

The Nineteenth Amendment also clarified the role of the Parliamentary Committee responsible for reviewing the recommendations of the Judicial Commission. The Committee retained its oversight function, but its procedures became more structured. If the Committee rejected a recommendation, it was required to record reasons for its decision. This requirement enhanced transparency and reduced

the possibility of arbitrary decision-making. The amendment therefore created a more balanced relationship between judicial independence and parliamentary oversight.

### **Promoting Judicial Independence**

Judicial independence is one of the fundamental principles of constitutional democracy. Courts must be able to decide cases impartially without political interference. The Nineteenth Amendment sought to strengthen this principle by ensuring that judges are appointed through an institutional process involving consultation rather than unilateral executive action. An independent judiciary protects the Constitution, safeguards fundamental rights, and ensures that all public authorities act within the limits prescribed by law.

### **Constitutional Significance of the Nineteenth Amendment**

Although the Nineteenth Amendment introduced relatively limited changes compared to the Eighteenth Amendment, its constitutional significance was considerable.

- It improved the mechanism for appointing judges while preserving judicial independence.
- It promoted greater institutional balance by defining the respective roles of the judiciary and Parliament.
- It demonstrated that constitutional disagreements could be resolved through dialogue between constitutional institutions rather than political confrontation.
- The amendment strengthened public confidence in Pakistan's judicial system by making the appointment process more transparent and accountable.

## **The Twenty-First Constitutional Amendment (2015): Security Reforms**

### **Background**

The Twenty-First Constitutional Amendment emerged during one of the most challenging periods in Pakistan's security history. For more than a decade, Pakistan faced serious threats from terrorism and violent extremism. Terrorist attacks targeted civilians, educational institutions, places of worship, security personnel, and public infrastructure. These attacks caused heavy loss of life and created widespread insecurity throughout the country. The situation reached a tragic turning point on 16 December 2014, when terrorists attacked the Army Public School (APS) in Peshawar, resulting in the martyrdom of more than 140 people, most of them schoolchildren. The attack shocked the nation and generated broad political consensus that extraordinary measures were required to combat terrorism. Following the APS tragedy, representatives of all major political parties agreed on a comprehensive

counter-terrorism strategy known as the National Action Plan (NAP). One of its important recommendations was the establishment of temporary military courts for the speedy trial of terrorism-related offences. To provide constitutional protection for these courts, Parliament enacted the Twenty-First Constitutional Amendment in 2015.

## **Major Features of the Twenty-First Amendment**

### **Constitutional Recognition of Military Courts**

The amendment provided constitutional support for the establishment of military courts to try certain categories of terrorism-related offences committed by individuals belonging to terrorist organizations. These courts were intended to function as a temporary measure to assist the existing criminal justice system during an exceptional security situation. The objective was to ensure the swift prosecution of individuals involved in acts of terrorism while strengthening the State's capacity to respond to serious security threats.

### **Temporary Constitutional Measure**

An important feature of the Twenty-First Amendment was its temporary nature. The constitutional authorization for military courts was granted for two years only. Parliament considered this to be an exceptional response to extraordinary security circumstances rather than a permanent change to Pakistan's judicial system. This temporary character reflected Parliament's intention that ordinary civilian courts should remain the principal institutions responsible for the administration of justice.

### **Support for the National Action Plan**

The amendment formed an important component of the National Action Plan, which included measures aimed at eliminating terrorism, improving intelligence coordination, regulating extremist organizations, strengthening law enforcement agencies, and preventing terrorist financing. Military courts were therefore one element of a broader national strategy designed to restore peace, improve public security, and strengthen the rule of law.

### **Parliamentary Consensus**

One of the notable aspects of the Twenty-First Amendment was the broad political consensus that accompanied its adoption. Following the APS attack, government and opposition parties largely agreed that exceptional constitutional measures were necessary to address the immediate security crisis. This consensus enabled Parliament to pass the amendment with substantial support, reflecting a unified national response to terrorism.



## **Constitutional Significance of the Twenty-First Amendment**

The Twenty-First Amendment represented an extraordinary constitutional response to an extraordinary security challenge. It demonstrated Parliament's willingness to adopt temporary constitutional measures in response to exceptional national circumstances while retaining constitutional procedures for making such changes. At the same time, the amendment generated important constitutional debates. Supporters argued that military courts were necessary to strengthen national security and ensure the speedy trial of terrorism-related offences during a period of severe instability. Critics, however, expressed concerns regarding due process, fair trial guarantees, and the long-term implications of expanding military jurisdiction over certain categories of cases. These debates highlighted the continuing challenge of balancing national security with the protection of fundamental rights within a constitutional democracy. The experience also underscored the importance of strengthening civilian law enforcement institutions and the regular judicial system to address future security challenges through ordinary constitutional mechanisms.

## **The Twenty-Fifth Constitutional Amendment (2018): Territorial**

### **Reforms**

#### **Background**

Before 2018, the Federally Administered Tribal Areas (FATA) occupied a unique constitutional position within Pakistan. The region was administered directly by the federal government under a separate legal and administrative framework that differed from the rest of the country. For many decades, FATA was governed under the Frontier Crimes Regulation (FCR), 1901, a colonial-era law introduced during British rule. Under this system, significant administrative authority rested with the Political Agent, while many constitutional protections and judicial remedies available elsewhere in Pakistan were not fully applicable to the people of FATA. Unlike other provinces, residents of FATA had limited access to the regular judicial system. The jurisdiction of the Supreme Court of Pakistan and the Peshawar High Court did not extend to the region, restricting citizens' access to constitutional remedies and judicial review. Over time, political leaders, constitutional experts, civil society organizations, and tribal representatives increasingly argued that FATA should be integrated into Pakistan's constitutional framework. They believed that the people of the region should enjoy the same constitutional rights, democratic representation, and access to justice as other citizens of Pakistan. Following extensive consultations, parliamentary debates, and recommendations made by various

reform committees, Parliament enacted the Twenty-Fifth Constitutional Amendment in May 2018, formally merging FATA with the Province of Khyber Pakhtunkhwa.

## **Major Features of the Twenty-Fifth Amendment**

### **Merger of FATA with Khyber Pakhtunkhwa**

The principal objective of the amendment was the constitutional merger of FATA with Khyber Pakhtunkhwa (KP). This historic reform abolished the separate constitutional status of FATA and incorporated the tribal districts into the provincial administrative system. As a result, the people of the former tribal areas became part of the constitutional, political, and administrative framework of Khyber Pakhtunkhwa. The merger aimed to promote national integration, strengthen democratic governance, and provide equal constitutional status to all citizens regardless of their region.

### **Abolition of the Frontier Crimes Regulation (FCR)**

One of the most significant consequences of the amendment was the gradual abolition of the Frontier Crimes Regulation (FCR). The FCR had been criticized for many years because it contained provisions that differed substantially from Pakistan's ordinary criminal justice system. Critics argued that certain features of the law were inconsistent with modern constitutional principles, including equality before the law, due process, and the protection of fundamental rights. Following the merger, the legal system of Pakistan gradually replaced the FCR, enabling the former tribal districts to move toward the regular legal framework applicable throughout the country. This transition represented an important step toward ensuring equal legal protection for all citizens.

### **Extension of Constitutional Rights**

The Twenty-Fifth Amendment ensured that the people of the former FATA would enjoy the same constitutional protections guaranteed to citizens in other parts of Pakistan. The extension of the Constitution meant that residents of the merged districts gained greater access to Fundamental Rights, including equality before the law, protection of life and liberty, freedom of movement, freedom of expression, and constitutional remedies available under the Constitution. This reform strengthened the principle that constitutional rights should be available equally to all citizens without discrimination based on geographical location.

### **Extension of the Superior Judiciary**

Before the amendment, the jurisdiction of Pakistan's superior courts did not fully extend to FATA. Following the merger, the jurisdiction of the Supreme Court of Pakistan and the Peshawar High Court was extended to the merged districts. This allowed residents to seek judicial remedies, challenge

administrative actions, and protect their constitutional rights through the regular court system. The extension of judicial jurisdiction also strengthened the rule of law by ensuring that disputes could be resolved through independent courts operating under the Constitution.

### **Political Representation**

The Twenty-Fifth Amendment also strengthened democratic participation by integrating the merged districts into the political structure of Khyber Pakhtunkhwa. Residents became entitled to representation in the Khyber Pakhtunkhwa Provincial Assembly, allowing them to participate directly in provincial legislation and policymaking. Political parties expanded their organizational activities within the merged districts, and citizens gained greater opportunities to participate in electoral politics through provincial institutions. This reform enhanced democratic inclusion and promoted greater political participation at the provincial level.

### **Administrative Integration**

The amendment initiated a gradual process of administrative integration between the former FATA and Khyber Pakhtunkhwa. Government departments responsible for education, health, agriculture, local government, police, revenue administration, and public welfare gradually extended their services to the merged districts. The objective was to establish a uniform administrative system capable of delivering public services more effectively while promoting socioeconomic development throughout the region. Administrative integration also required coordination between federal and provincial authorities to ensure a smooth transition.

### **Constitutional Significance of the Twenty-Fifth Amendment**

The Twenty-Fifth Amendment is regarded as one of the most important territorial reforms in Pakistan's constitutional history.

- First, it completed the constitutional integration of the former tribal areas into Pakistan's federal system. The merger removed a long-standing constitutional distinction between FATA and the rest of the country.
- Second, the amendment strengthened the rule of law by extending the jurisdiction of the superior judiciary and replacing the colonial-era legal framework with Pakistan's regular constitutional and legal system.
- Third, it expanded democratic participation by providing representation in the Provincial Assembly of Khyber Pakhtunkhwa and strengthening the role of elected institutions in local governance.

- Fourth, the amendment promoted equal citizenship by ensuring that residents of the merged districts enjoyed the same constitutional protections and legal rights available to citizens elsewhere in Pakistan.
- Finally, the reform supported national integration by bringing the former tribal areas fully within Pakistan's constitutional, political, and administrative framework.

## **The Twenty-Seventh Constitutional Amendment (2024): Armed Forces Reforms**

### **Background**

The Twenty-Seventh Constitutional Amendment was enacted in 2024 to provide greater constitutional clarity regarding the appointment, tenure, and retirement of the Chiefs of the Armed Forces. Before this amendment, the Constitution empowered the President to appoint the Chairman Joint Chiefs of Staff Committee and the Service Chiefs on the advice of the Prime Minister. However, the Constitution did not clearly define certain matters relating to their tenure or the possibility of extension and reappointment. In recent years, questions regarding the tenure of senior military leadership became the subject of legal and political debate. The government considered it necessary to establish a clear constitutional framework that would reduce uncertainty and ensure institutional continuity within the armed forces. Accordingly, Parliament passed the Twenty-Seventh Constitutional Amendment with the objective of providing constitutional certainty while maintaining civilian control over the appointment process.

### **Major Features of the Twenty-Seventh Amendment**

#### **Constitutional Recognition of Service Chiefs**

One of the major features of the amendment is the constitutional recognition of the offices of the Chief of the Army Staff, Chief of the Naval Staff, and Chief of the Air Staff, along with the Chairman Joint Chiefs of Staff Committee. By expressly referring to these offices in the Constitution, the amendment provides greater constitutional certainty regarding Pakistan's military leadership.

#### **Appointment Procedure**

The amendment retains the constitutional principle that the Prime Minister advises the appointment of the Chairman Joint Chiefs of Staff Committee and the Service Chiefs, while the President formally makes these appointments in accordance with constitutional procedures.

This arrangement is consistent with Pakistan's parliamentary system, where executive authority is exercised through the elected government. The amendment therefore reinforces the principle of civilian supremacy by ensuring that appointments remain under the authority of the constitutional executive rather than any independent institutional process.

### **Tenure and Extension**

A significant feature of the amendment is the constitutional clarification regarding the tenure, extension, and reappointment of the Chairman Joint Chiefs of Staff Committee and the Service Chiefs. The amendment authorizes the Prime Minister to recommend extensions or reappointments within the constitutional framework and specifies the maximum period permitted by law. By addressing these matters directly within the Constitution, the amendment seeks to reduce legal ambiguity and provide greater institutional stability.

### **Retirement and Age Limits**

The amendment also authorizes Parliament to regulate matters relating to retirement, age limits, and terms of service through legislation where necessary. This enables future reforms to be undertaken within a clear constitutional framework while preserving parliamentary authority over matters relating to military administration.

### **Constitutional Significance of the Twenty-Seventh Amendment**

The Twenty-Seventh Amendment is significant because it provides constitutional certainty regarding senior military appointments and their tenure.

- First, it removes ambiguity by clearly defining constitutional procedures for appointments and extensions.
- Second, it strengthens civilian constitutional authority by reaffirming the role of the elected Prime Minister and the President in making appointments.
- Third, it contributes to institutional continuity by reducing uncertainty regarding military leadership during periods of transition.
- Finally, the amendment demonstrates Parliament's role in addressing constitutional issues through legislative reforms rather than relying solely on administrative decisions.

### **Conclusion**

The Nineteenth, Twenty-First, Twenty-Fifth, and Twenty-Seventh Constitutional Amendments represent important milestones in Pakistan's constitutional evolution. Although each amendment addressed a different constitutional issue, together they strengthened the country's legal and

institutional framework. The Nineteenth Amendment refined the judicial appointment process and reinforced judicial independence. The Twenty-First Amendment provided a temporary constitutional response to terrorism during an extraordinary national security crisis. The Twenty-Fifth Amendment integrated the former FATA into Khyber Pakhtunkhwa, extending constitutional rights and democratic governance to the region. The Twenty-Seventh Amendment clarified the constitutional framework governing the appointment and tenure of senior military leadership. Collectively, these reforms demonstrate the dynamic nature of Pakistan's Constitution and its ability to respond to changing political, judicial, security, and administrative challenges. They also highlight the importance of constitutional amendments as instruments for strengthening democratic governance, promoting the rule of law, ensuring national integration, and maintaining institutional stability. Continued commitment to constitutional supremacy and effective implementation will remain essential for achieving the objectives of these important constitutional reforms.

## Lecture 30

### Course Overview and Reflection

#### Micro Learning Outcomes (MLOs)

By the end of this lecture, students will be able to:

- Recall the major concepts studied throughout the course.
- Summarize the key ideological and constitutional themes of Pakistan.
- Reflect on the contemporary relevance and future direction of Pakistan's constitutional development.

#### Introduction

In the previous lecture, we examined the 19th, 21st, 25th, and 27th Constitutional Amendments, highlighting their role in shaping Pakistan's constitutional framework. The lecture focused on reforms related to the judiciary, national security, territorial administration, and armed forces. Students were able to understand the major features, constitutional significance, and institutional impact of these amendments.

Welcome to the final lecture of PAK\_522: Ideology and Constitution of Pakistan. Throughout this course, we have explored Pakistan's ideological foundations, constitutional evolution, democratic institutions, and major constitutional developments. The purpose of this concluding lecture is to briefly revisit the major themes covered during the semester, understand their significance in contemporary Pakistan, and reflect on the future of constitutional governance. Rather than introducing new concepts, this lecture brings together the ideas discussed throughout the course and highlights how they collectively contribute to understanding Pakistan as a constitutional and democratic state.

#### Brief Summary of the Course

The course began with the concept of ideology and its importance in nation-building. We examined how ideology shapes the identity, objectives, and political direction of a nation. This discussion provided the foundation for understanding the ideological basis of Pakistan. We then studied the historical decline of Muslims in the Indian subcontinent, the educational and political awakening led by Sir Syed Ahmad Khan, and the emergence of Muslim political consciousness. Important developments such as the Partition of Bengal, Simla Deputation, formation of the All-India Muslim League, and the growth of communal politics helped explain the evolution of Muslim political identity. The course further examined the Two-Nation Theory, the political philosophy of Allama Muhammad Iqbal, the leadership of Quaid-e-Azam

Muhammad Ali Jinnah, the Lahore Resolution of 1940, and the final phase of the Pakistan Movement that culminated in the creation of Pakistan in 1947. We also acknowledged the valuable contributions of women, students, and youth in achieving independence.

The second half of the course shifted towards Pakistan's constitutional development. We studied the concept and importance of a constitution, the ideological foundations of Pakistan's constitutional system, and the significance of the Objectives Resolution of 1949. We also examined the constitutional developments between 1947 and 1956 and the major features of the 1956, 1962, and 1973 Constitutions. The course then explored the structure of government under the 1973 Constitution, including the roles of the Executive, Legislature, and Judiciary, along with the principles of separation of powers and checks and balances. We also discussed Pakistan's federal structure, provincial autonomy, the Council of Common Interests, the National Finance Commission, and the impact of the Eighteenth Constitutional Amendment on federalism. Another important component of the course focused on Fundamental Rights, civil and political rights, responsibilities of citizens, and the Principles of Policy. These constitutional provisions illustrate the balance between individual freedoms, civic responsibilities, and the State's obligation to promote social justice and public welfare. The course also examined contemporary human rights issues, including women's rights, minority rights, child rights, labour rights, freedom of expression, digital privacy, and the institutional mechanisms established to protect these rights.

Finally, we studied Pakistan's constitutional amendment process and examined the constitutional significance of major amendments, including the 8th, 13th, 17th, 18th, 19th, 21st, 25th, and 27th Amendments. These discussions demonstrated how constitutional reforms have influenced parliamentary democracy, judicial independence, federalism, national security, territorial integration, and institutional development.

## **Contemporary Relevance**

The subjects discussed in this course continue to shape Pakistan's political and constitutional landscape. Questions relating to constitutional interpretation, democratic governance, judicial independence, electoral reforms, provincial autonomy, human rights, and institutional accountability remain central to public policy and national debate.

Similarly, emerging issues such as digital governance, cybersecurity, artificial intelligence, environmental sustainability, climate change, and data protection are creating new constitutional and legal challenges. Addressing these issues requires not only effective



legislation but also strong constitutional institutions capable of protecting citizens' rights while promoting national development.

The course therefore demonstrates that constitutional knowledge is not merely academic; it is directly relevant to governance, policymaking, and responsible citizenship.

## **Futuristic Outlook**

Pakistan's constitutional journey will continue to evolve as society changes. Future reforms are likely to focus on strengthening democratic institutions, improving judicial efficiency, enhancing transparency and accountability, protecting digital rights, promoting local government, and improving coordination between the federation and the provinces. Technological advancements, economic transformation, population growth, climate change, and globalization will also influence constitutional governance in the coming decades. These developments will require continuous constitutional adaptation while preserving the core values of democracy, justice, equality, federalism, and the rule of law. Ultimately, the strength of a constitution depends not only on its written provisions but also on the commitment of institutions and citizens to uphold constitutional principles.

## **Reflection**

This course has demonstrated that Pakistan's ideology and Constitution are closely interconnected. The ideological foundations provided the vision for an independent Muslim state, while the Constitution translated that vision into a practical framework for governance. Constitutional development is a continuous process that reflects the changing needs of society. Every generation has a responsibility to protect democratic institutions, respect constitutional supremacy, safeguard fundamental rights, and strengthen the rule of law.

As students of Pakistan Studies, you are now better equipped to understand Pakistan's constitutional evolution, critically evaluate contemporary issues, and appreciate the importance of constitutional governance in achieving political stability, national integration, and sustainable development.

## **Closing Remarks**

As we conclude PAK-522: Ideology and Constitution of Pakistan, remember that the Constitution is not merely a legal document; it is the foundation of Pakistan's democratic system, the protector of citizens' rights, and the framework through which the State functions. An informed understanding of Pakistan's ideological foundations and constitutional development enables us to become responsible citizens who value democracy, justice, equality, and the rule of law. We hope this course has provided you with both the knowledge and the

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perspective to better understand Pakistan's past, engage with its present, and contribute positively to its future.

**Thank you, and best wishes for your academic and professional journey.**